

Henry Northcote

JOHN COLLIS SNAITH

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NORTHCOTE ***

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By

JOHN COLLIS SNAITH

*Author of "Broke of Covenden," "Miss Dorothy
Marvin," etc.*



Boston

HERBERT B. TURNER & CO.

1906

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I

SHEPHERD'S INN, FLEET STREET

NORTHCOTE sat in his chambers in Shepherd's Inn. Down below was Fleet Street, in the thrall of a bitter December twilight. A heavy and pervasive thaw pressed its mantle upon the gaslit air; a driving sleet numbed the skin and stung the eyes of all who had to face it. Pools of slush, composed in equal parts of ice, water, and mud, impeded the pavements. They invaded the stoutest boots, submerged those less resolute, and imposed not a little inconvenience upon that section of the population which, unaddicted to the wearing of boots, had dispensed with them altogether.

The room in which Northcote kept was no more than a large and draughty garret, which abutted from the northern end of a crazy rectangular building on this curious byway of the world's affairs. Only a few decrepit tiles, a handful of rotten laths, and a layer of cracked plaster intervened between him and the night. The grate had no fire in it; there was no carpet to the floor. A table and two chairs were the sole furniture, and in a corner could be heard the stealthy drip of icy water as it percolated through the roof.

The occupant of the room sat in a threadbare overcoat with the collar turned up to his ears. His hands, encased in a pair of woollen gloves, which were full of holes, were pressed upon his knees; a pipe was between his teeth; and while he sucked at it with the devout patience of one to whom it has to serve for everything that the physical side of his nature craved, he stared into the fireless grate with an intensity which can impart a heat and a life of its own.

Now and again after some particularly violent demonstration on the part of the weather he would give a little stoical shudder, fix the pipe in the opposite corner of his mouth, and huddle away involuntarily from the draught that came from under the door.

Northcote was a man of thirty who found himself face to face with starvation. He had been six years at the bar. Friendless, without influence, abjectly poor, he had chosen the common law side. Occasionally he had

been able to pick up an odd guinea in the police-courts, but at no time had he earned enough to meet his few needs. He was now contemplating the removal of the roof from over his head. Its modest rental was no longer forthcoming; and there was nothing remaining among his worldly possessions which would induce the pawnbroker, the friend of the poor, to advance it.

“I wonder how those poor devils get on who live in the gutter,” he muttered, grimly, as he shuddered again. “You will soon be able to find an answer to that question,” he added, as he stamped his frozen toes on the hearthstone and beat his fingers against his knees.

Quite suddenly he was lifted out of the abyss of his reflection by the sound of a footfall in the room. Jerking up his head, he peered through the darkness towards the door whence the sound had come, but the shadows were so thick that he could see nothing.

“Hullo!” he called.

“Hullo!” came back a wholly unexpected response.

“Who are you? What do you want?” cried Northcote, with a thrill in his voice.

The young man rose to his feet to summon the commoner faculties. For a voice to have invaded his garret at this hour and in this fashion seemed to presage a new epoch to his life.

“Who are you?” he demanded again, having received no reply to the former demand.

“Nobody much,” said the voice, which sounded unlike anything he had ever heard before.

“I’ll strike a match before I get a blow from a bludgeon.”

“Pray do so,” said the voice, quietly.

Northcote began to fumble for the matches and found them on the mantelpiece. He obtained a light and applied it to the wick of the lamp which was on the table, and was then able to read his visitor.

The flicker of the lamp declared him to be a man of forty, of pale and attenuated figure, clad in rags.

“To what am I indebted for the honor of this visit?” said Northcote, with slightly overemphasized politeness.

“Curiosity, curiosity,” muttered his visitor, with the quietness of one who is acquainted with its value.

Northcote turned up the lamp to its highest point and resumed his scrutiny. The voice and manner were those of a man of education; and although the garb was that of a scarecrow, and the face was wan with hunger and slightly debased by suffering, a strange refinement was underlying it.

“This is all very mysterious,” said the young advocate; and indeed the wretched figure that confronted him appeared to have no credentials to present. “May I ask who and what you are?”

“How race reveals itself!” said the visitor, with a faint air of disappointment. “Even the higher types among us cannot cast their shackles away. When we go down into Hades, we are at once surrounded by the damned souls of our countrymen, clamoring to know *who* and *what* we are.”

“Well, who are *you*, at any rate?” said Northcote, oppressed with an acute sense of mystery.

“My name is Iggs,” said the scarecrow.

“Well, Mr. Iggs, I am sorry to say that to me your name conveys nothing.”

“No?”

“No!”

For an instant the scarecrow peered in a strange and concentrated manner into the face of the advocate. He then sighed deeply and rose from his chair.

“With all the learning we acquire so painfully,” he whispered, “we cannot enjoy a perfect immunity from error. Good night, sir. I offer my apologies for having invaded your privacy.”

With a bow of grave deference the strange figure proceeded to glide from the room in the noiseless manner in which it had entered it.

By the time his visitor had reached the door, Northcote called after him hastily: “Come back, Mr. Iggs. I have not expressed myself—not expressed

myself adequately. Come back.”

His visitor, with the same air of deference and the same noiselessness of movement, returned to the chair. Northcote fixed two eyes of a devouring curiosity upon his bloodless face. They recoiled with a shock of encounter; two orbs flaming out of it in all their sunken brilliancy had looked within them. Also he beheld a mouth whose lips were curved with the divine mobility of a passion. The advocate clasped his hands to his sides to repress a fierce emotion of pain.

“Perhaps, Mr. Iggs,” he said, “you have been down into the depths of the sea?”

His visitor brushed the green canopy of his mutilated bowler hat slowly and delicately upon the threadbare sleeve of his coat.

“That is true,” he said; “but I would have you not forget that I have also walked upon the peaks of the highest mountains.”

The roar of Fleet Street, the sough of the icy wind through the telegraph wires, the driving of the sleet against the window, and the drip drip of the water through the ceiling seemed to blend with the rich and full tones enveloping these words. A sensation of awe began to surmount the pity and the patronage that the outer semblance of his visitor had first aroused in the breast of the young man.

“With your permission, sir,” he said, “I will go back to my original question, and I will frame it with a deeper sincerity: To what does Henry Northcote owe the honor of this visit?”

“This visit is paid to you, my friend, because for some inscrutable reason Nature mixed blood and fire with your brains. You, too, will go down into the depths of the sea and ascend also into the mountain places.”

“You cannot know that,” said Northcote, with his heart beginning to beat violently.

“Reflect a moment,” said his visitor. “Do you not know as well as I that it is the privilege of us to know everything?”

“True, true! But in what manner has one so obscure as myself been brought to your notice?”

“Every Sunday afternoon for a year past I have been a member of the audience your oratory has enchanted in Hyde Park.”

“How comes it, sir, that one of your condition can bring himself to listen to a mob orator?”

“How comes it that one of a like condition can bring himself to preach to the mob?”

“Primarily, I suppose, that my powers may develop. One day I shall hope to turn them—that is, if it is given to me to survive the present snap of cold weather—to higher things and larger issues.”

“And I, my friend,” said his visitor, “who by no human possibility can survive the present snap of cold weather, I come to tell the young Demosthenes that he can seek no higher thing, no larger issue than to preach to the mob. All the great movements the world ever saw began from below. The power of the sea lies in its depths. Jesus was able to invent a religion by preaching to the mob.”

“There are some who think,” said the young man, “that for one who was ambitious the career of Jesus was a partial failure.”

“The age is crying out for another such failure,” said his visitor.

“Because the old has betrayed them?” said the young man, with fear in his voice.

His visitor left the question unanswered.

“They await the advent,” he said, after a silence in which both breathed close, “of a second Failure to save them from themselves. Only that can prevent them dashing out their brains against the blank wall that has come to stand before them.”

“I believe you to be right, sir,” said the advocate, slowly, as his eyes traversed the chaste delicacy of the face which was framed in shadows.

“The Great Renunciator who first reduces this failure to terms,” said the scarecrow, “will have a sterner task than Jesus had.”

“Yet, sir, you come to one who is almost fainting by the bleak wayside.”

“Have I not listened to your oratory? Do I not discern you to stand at the parting of the ways?”

“Yes, at the parting of the ways,” said the young man heavily. “The hour is at hand when one whose poverty is bitter must make his choice.”

“I have prayed for you,” said his visitor, with such a perfect simplicity that it filled the eyes of the young advocate with tears. “Your ordeal is terrible, for I discern you to be a man of great power.”

“Poverty is a deadly evil,” said Northcote.

“Yet I would have you beware of riches,” said his visitor. “Think of the cruel treachery with which they use so many. See how they have betrayed our own fair land. And it is one such as you, in his virgin immunity, who is called upon to release her from their false embraces.”

“I, sir!” exclaimed the young man, with wild eyes and his heart beating violently. “I, without clothes to my skin, without food in my belly, and who to-morrow will have no roof under which to rest his head!”

The wan smile of the scarecrow embraced his own mutilated hat, broken boots, and ragged condition.

“You may or you may not be the emancipator,” said the scarecrow, peering at him earnestly, “yet the veritable great one whom I see configured before me is some such man as you. I have listened many weeks to your oratory, and you have a strange power. Your voice is noble, and speaks words of authority. Even if you are not the demigod for whom the age is asking,—and, my dear friend, far be it from me to say you are not,—you were yet formed by Nature to do a momentous work for your country.”

“In its casual wards,” said the young man, with an outburst of bitterness.

“The elect upon whom Nature confers true power are generally safeguarded in this wise manner. The ambitions of the market-place are set beyond their reach. I lie down to-night with a pang of thanksgiving upon my lips. May the hour dawn when you also may consign your bones to the snow. But in the meantime you have a great work to do in the world. Nature has filled you with speech; therefore you have the burden of immense responsibilities, for speech is the most signal of her gifts. You may or you may not be the great renunciator whom millions of your countrymen await with fevered

looks; but it lies within your province, as it lies within that of every mariner, to array yourself among those of humble prophecy who read the meaning of the star in the east. At least, my friend, all who allow themselves to anticipate a divine appearance are the servants of truth.”

With these words the scarecrow rose from his chair, and, bowing to the young man with an austere but kind dignity, left the room as suddenly and noiselessly as he had entered it.

II

RETROSPECTION

LEFT alone in the coldness of his garret, Northcote felt a stupefaction steal upon him. The phase of his own circumstances had lent force to this bizarre incident. Spectral as this apparition was, however, the gestures, the tones, the mean garb were those of a living man.

The coming of such a mariner who had been down into the depths of the sea appeared for a moment to turn his eyes inwards. Seated again before the empty grate with his hands on his knees, he saw his life and its surroundings with a sharpness of vision which hunger had seemed to render more definite. He saw himself as the full-blooded turbulent man, tormented by desires, thwarted by fortune, yet yearning to express a complete, moral, intellectual, and physical life. He was so strong, yet so impotent; so expansive, yet so circumscribed; loving all the colors of the sun and the bright face of heaven, yet condemned to a prison, and perhaps the more dreadful darkness of the lazar-house. He saw himself as the wholesome, simple-hearted citizen, yet as the man of imagination also, the poet and the dreamer formed to walk upon the heights, who, oppressed by the duality of his nature, was in danger of succumbing to weariness, disillusion, and a remorseless material need.

He saw himself as a boy roaming the fields, casting up the soft loam with his feet, spending long days in dreams of the miraculous future, and evenings in conversation with his mother,—that wonderful mother whose mind was so secure, whose conceptions of the heavy duties that wait upon the gift of life were so odd, yet so exact. He recalled her as a gaunt, strong, and tall woman, with a red face, rather coarse hands, and a shabby black hat tied in a frayed velvet bow under her chin.

He could never remember to have heard her complain of life and fortune. She wore the same clothes year after year; sought no amelioration from her wearisome and unremitting labors; never seemed to vary in her sturdiness of health and temper; and always maintained plain, robust, material opinions. Her life had been a sordid and continuous struggle for the

acquisition of money, a pound here and a pound there, but there was no trace of avarice in her character. She had educated him wholly beyond her means, but permitted herself no romance about it. She believed that being her son, and the son of the man she had married,—whom life had cut off in an arbitrary manner before he had had a chance to display his gifts,—he would be a man of sound abilities. She had decided in her own mind three months before he was born that to have a fair field for his talents he must go to the bar.

“I have a little imagination, but not enough,” she would say to him, as he sat with her an hour after supper in the winter evenings. “Your father was a man of good imagination, and used to read the best authors to me. My mental limitations did not permit me to understand their truth, but I always felt their power. Your father was a brilliant man in some ways, but the clock of his intellect was always set a little too fast. If he had not decided early in life to be a bishop, I think he would have been a writer of books. Even as it was, he wanted sometimes to write them. However, I managed to dissuade him. ‘No, Henry,’ I said, ‘stick to your trade. You cannot combine the two. To write books you would have to look at things so closely that it would unfit you for your calling.’ All the same, your father was a man of remarkable natural force. He would have succeeded in anything he had undertaken.”

Northcote never recalled his mother—and it was seldom that a day passed in his life unless he did recall her in one shape or another—that this speech, and a hundred that were similar, did not fill his ears, his memory, and his imagination. As he sat now with his hands and feet growing colder, the pool on the floor growing larger, his vitality becoming less and with despair advancing upon him silently like the army of shadows that pressed every minute more strongly upon the feeble lamp, he saw that dauntless countenance, the firm lips, the gray eyes which darkened a little in the evenings as though accompanied by thought; the precise but inharmonious voice came into his ears; the vigorous intelligence was spread before him, calm but unbeautiful, full of massive courage, but deficient in the finer shades of life.

At those seasons when the young advocate sat in his isolation and despair, that arch-enemy of high natures crept into his veins like a drug; he would seek the antidote in that courageous life. This penniless widow of a

clergyman in a small village in a remote part of the world had fitted her son for the only sphere in which she looked for distinction for him, by many years of Spartan hardihood in thought and deed. The few pounds the Reverend Henry Northcote had laid by from his pittance, wherewith to provide an education for his son, had been lost in a building society within three months of his own departure from the world. From the date of the disaster his widow had restricted the hours she spent in bed to five out of the twenty-four; had renounced the eating of meat and the most commonplace luxuries; and had practised a thousand and one petty economies in order that her husband's son should not lack the educational advantages of those with whom he would have to compete. She had maintained him at a public school, and afterwards, for a short period, at the university, by translating classics out of foreign languages for scholastic publishers, and by conveying the rudiments of knowledge to the young children of the landholders who lived in her neighborhood.

This stalwart figure formed a wonderful background to his youth. He was filled with awe by a simplicity that was so unconquerable, a self-reliance that was so majestic. All the subtle implements of his nature could not resolve such a potency as that. He himself was so much less and so much more.

Strange homage was paid to this unlovely but august woman by the privy council which sat in eternal session in his intellect. The favorite guise in which she was presented to it was as the mother of Napoleon, that "Madame Mère" who in the trenches conceived the Man of Destiny, and walked to church an hour before she gave him to the world. Her martial bearing, large bones, strong country speech, clothed the idea with the flesh of the hard fact; her consciousness of purpose, power of will, ennobled and quickened it with the hues of poetry.

Homer must have had some such woman for a mother, in whose womb the Iliads were born prenatally. All that sped, flew, or swam in the arial kingdom of the Idea must first have had its pinions fixed and pointed by some inarticulate goddess who laid upon herself the humblest functions, the meanest offices, in order that nature might not lack lusty and shrewd servants in the time to be. The teeming millions of creatures who spawned in the darkness, who lifted their scaled eyes to where the light might be found, according to those who had skill in prophecy, yet who themselves

were so uncertain of its presence that, when it shone straight before them through the fissures in their cave, they passed it by as a chimera, or the iridescence of some bird, reptile, piece of coal, or winged snake,—these cried out continually for some true-born Child of the Sun to lead them out of that gross night into the molten plains of beauty which ran down to the sea. And it was given to some stalwart creature with a red face and coarse hands and a shabby black hat tied in a bow under the chin, who herself was purblind, yet with knees ever pressed to the flags of the temple, to dream of the light in her prayers, and presently, out of her own strong, rustic body, to furnish forth to her kind a guide, a prophet, and a leader.

As hunger, that exquisite, but cruel, sensation, grew upon Northcote, and caused fierce little shivers to run through his bones, he awoke to the fact that all the tobacco in his pipe had been consumed, and further, that there was not a grain left in his pouch. In this extremity he had recourse to his evening meal. It was contained in a confectioner's paper, and consisted of a large Bath bun, embellished with currants. He plucked out the currants carefully, and laid them apart as dessert. After half an hour's deliberate munching a little of the well-being of the nourished man returned.

He opened a drawer in the table, and took out a handful of foolscap pages covered with writing in a small and not very visible hand. These were but a few among some two thousand others, which embodied "A Note towards an Essay on Optimism," the fruit of the leisure of six years. It had had the honor of being rejected, promptly and uncompromisingly, by the publishers of London. Only one among this autocracy had condescended to supply a reason. It was brief but ample: "Philosophy does not pay."

As Northcote held these pages beneath the uncertain rays of the lamp, and for the thousand and first time their quality was revealed to his gaze, a profound excitement spread through his being. What had the degradation of his poverty enabled him to compass for mankind? These magic pages were so quick with authenticity that he was forced to regard them as the gage of one who was about to offer a universal sanction to the human heart.

After awhile he returned these papers to the drawer and addressed himself to one of the dusty manuals of jurisprudence that adorned his table. But strange shapes were in his mind to-night; and these would not be harnessed to the dead letter of the law. A torrent had been unloosed which bore his

thoughts in every direction save that in which he would have them go. After a time the lamp burned so low that it was no longer necessary to make a pretence at reading. Therefore he closed the book and lifted up his ears to the night. The faint, consistent drip drip of the water from the ceiling to the pool it had formed on the floor stole upon him with a sense of the uncanny. The room itself was draughty and decrepit, and in common with others in that neighborhood, particularly on the waterside, was inhabited by rats. He could hear them now in the crevices behind the wainscot. He took from the table a piece of lead which he used as a paper-weight, and waited grimly for one to appear.

Crouching upon the hearth with this deadly instrument in his hand, his thoughts strayed again to the country, again to his mother, and from her to the young girl whom he had hoped to make his wife. This slender and straight and joyous creature, with the supple limbs of a fawn and complexion of a dairymaid, had the seemliness and purity which was so essential in one who would be called to the function of completing his life. She was as sweet and choice as a lily, for her only gift was the serenity which has its seat in superb physical health and freedom from the penalties that wait upon intelligence.

She had seen nothing, knew nothing; there was nothing for her to see or to know. Her simplicity was so naïve that it was a perennial delight to a sophisticated nature. He never summoned her image except to cherish it. In his direst mood, in his straitest hour, when life blew barb after barb into his skin, he felt that to possess her was to keep a talisman in his spirit which could unweave the knots in the conspiracies of fate. Those lines in her shape, those curves which were so arch, so free, yet qualified so finely, seemed to bring healing and refinement to him; while those eyes, soft and luminous, yet lacking in expression, seemed to chasten his power without impairing it.

At this moment a sound for which he had been listening broke his reverie. An enormous she-rat, heavy with young, entered the room. He watched it waddle out of a dark corner and emerge slowly towards him along the floor. As it came near he could discern the gleam of its red eyes, its nose, its wide-spreading whiskers. They filled him with an indescribable ferocity. He poised the piece of lead in his hand, and took aim with close-breathing and deliberate care. Suddenly he hurled it with the strength of a giant, the

creature was struck in the flank and lay dead before it knew that anything had occurred.

With a grunt of satisfaction amounting almost to joy he picked up the animal by the tail. "What a beauty!" he muttered, "and what a shot! I might try that a thousand times and not bring it off." He opened the window, flung out the carcass, and heard it drop in a puddle of water in the middle of the traffic.

The perfectly successful accomplishment of this callous feat seemed to give his senses the exhilaration of strong wine; and the effect was heightened by a blast of icy air which was dashed on to his face when he opened the window. The mighty engines of his imagination were set in motion. He leaned out of the window and snuffed the brutal weather; and through the fierce sleet which stung his eyes and froze on his lips he looked down into London with its lights, its vehicles, and its chaos; unknowing, unheeding, and unseeing, yet in itself magnetic and so mysterious. He felt like an eagle who peers out of his eyrie in the cliffs in the midst of winter to witness the fury of the sea, dashing itself to pieces upon his paternal rocks, and is himself assaulted by the eternal ferocity of nature.

III

SUMMONING THE GENIE

THE passion of Lear when on the heath he bares his head to the storm mounted in his veins. Leaning far out of the window of his garret to confront the rage of heaven, with the unbridled insolence of his youth he called upon the elements to wreak themselves upon him. Let them stab his eyes with tears, let them curdle the breath upon his lips. Nature had charged his being with that dynamic force which makes the world vibrate, only to withhold the master-key without whose aid his quality could not announce itself. All—all was furnished in the armory of the spirit. He asked no more than one brief occasion, and clad in his demonic power he would shake the pillars of society with that passion which was preying now upon his flesh and blood.

Such occasions were not denied to those who did not comprehend their use. How often with scornful eyes was he to watch in the courts of justice mediocrity, primed with privilege and favor, misconducting itself amid the purlieus of the law. Every week he was affronted with the spectacle of this hydra-headed monster toying with the life and liberty of the subject. At the worst it was no more than another “miscarriage of justice;” some other unseemly wretch offered upon the altars of incompetence.

Many times of a night when alone and hungry had he conjured up a vision of the judge calling from the bench for a tyro to undertake the defence of one too poor to purchase an advocate. “You, sir—will you undertake the defence of this unfortunate woman?” And over and over again had he broken the silence of his room with a carefully modulated, “It will give me great pleasure, m’lud, it will give me great pleasure.”

However, no judge had made the call. How narrowly had some old and obtuse public servant escaped unlocking the lips of a Milton, mute and inglorious, who sat in a shiver of hope awaiting the summons. To be sure, no judge had known of so strange a presence, but had one of these venerable guardians been aware of it, in the public interest he would still

have passed him by. For what is more contemptible than elevation of any kind when it seeks a platform on which to declare itself?

Suppose the call came to-night! The suggestion was conveyed in the rages of the wind buffeting the cheeks of the unhappy man. Gasping, drenched, and excited almost beyond the verge of reason, he withdrew his face from the elements and closed the window. The lamp on the table had gone out, the few ashes in the grate gave a mere feeble spark. In spite of the overcoat and thick gloves which he wore, the coldness of the room oppressed him like a sepulchre. His feet were frozen; he had no tobacco; the clock at the Law Courts was chiming nine. Yet suppose it came! Why not? Why not demand it with all the fervor of his nature, like others who had sought their opportunity had done so often?

He could not understand this fever which had stretched him upon the rack. It might be that the lack of the meanest necessities had told too severely upon his frame. Indeed, he was starving by degrees. His limbs—huge, knotted things—had withered until he was ashamed. His skin was so pale, his cheeks so wasted, that when his eyes flamed out in all their cadaverous lustre the prosperous shrank from him as though he were a ghost or a leper.

However, he did not covet the heritage of others. Sharp as his belly was to-night, ragged as was his back, he must not purchase the cuisine and raiment of princes at the price that was asked. Were he to inhabit the body of Cræsus, he would have also to inhabit his soul. Throned amid pomp, he would have dined that evening to the strains of Beethoven under the shadows of Velasquez and Raphael. He would have eaten the manna of the wilderness served upon gold plate; have drunk the fabulous Falernian, with pearls from the Orient dissolved in it to heighten the bouquet. Gorgeous houris, whose eyes and jewels were jealous of one another, whose breaths were perfumed, whose lips were laden with music, would have been on his right hand and on his left. Yet he would neither have seen, nor heard, nor felt, nor tasted; for those who partook of such a feast could neither know nor understand.

He must not barter his hunger for a feast such as that. No ray of meaning ever invaded this crapulous Barmecide. All that he saw was that the color of money was yellow; all that he knew was that its possession oiled the wheels of life. The starving man crouched upon his knees and buried his burning

face in the dust of the table. He must make his apology to Nature for having reviled her. Nothing was more imperfect than this handmaid; yet how patient, how obedient was this Unanswering One! She did not deserve to be abused. For all at once, with a prophetic shudder of his doom, he recognized that he had only to make his demand of her to receive all that he asked.

If his nature craved the material, let him seek it and it should be given. He need not starve in his garret; his prayers would be heard. If Success with all her penalties must be his, let him prostrate himself before her; was she not a courtesan that none need to woo in vain? But crouching thus in wretchedness, his frame shivering and burning by turns, the price of such a triumph was before his eyes, written in garish letters upon the dismal walls. He was hungry to the point of death almost, yet if he satisfied that hunger with a mess of pottage he would be destroyed.

How unhappy is he who becomes the witness of his own dread passions determining an issue on the battle-ground of his nature! If the mere act of volition was still to remain with him, the choice must be made; yet if he made that which had grown so imminent he would lose whatever status or sanction he derived from the elevation of his aims. This bundle of forces within him, to whom after all he held the master-key did he but dare to use it, was driving him pitilessly. Already he seemed to be losing his fineness of perception. The point at issue was already half-erased. Those immensely powerful engines which drove the blood so furiously through his veins were in revolt. Let him find employment for them; let them fulfil their appointed ends, or woe betide him.

He had only to press his eyes to the table to summon the genie. Occasion would wait upon him if he sank to his knees. Let him harness his will to his common needs and the power would be rendered to him to achieve them. His imagination had no trammels; it was burning with a volcanic activity; by its light he could enter any kingdom in the material world. Let him ask, and all should be given.

He had fallen into a kind of trance in which immediate sensations of place and time were suspended. The cold room, now wrapped in an almost complete darkness in which rats were scratching and scuttling; the drip drip of the water to the floor; the rattle of the windows against the rising gale;

the roar of the traffic in the street—all had become submerged, had lost their form, had been blended into a strange yet not inharmonious something else. A pageant was passing before his mind. He was powerless to identify himself with it, to fix its colors, to catch the expressions of the fleeting faces of those who mingled in it, yet despite the suspension of the functions of the will, he was conscious of what was taking place.

He was not in a dream, because his eyes were open, he knew where he was, and he was in possession of the sense of hearing. But he had surrendered the control of the will; and although he was on his knees with his face pressed to a dusty table before a dead fire, the mind was become divorced from the body and was cast into the vortex of indescribable scenes. It drifted about among them helplessly. It bore no relation to actors or events. All was the weirdest panorama, crammed with hurry and wild inconsequence; and yet the spectator was filled with an exhilaration which was as remote from the province of reality as a drunkard's delirium.

He began to make frantic efforts to fix and locate this phantasmagoria. He stretched every nerve to catch the import of the word that was spoken; he craned his whole being to wrest a single incident from this wild confusion. He strove as fiercely for a thread of meaning as though he were fighting against the operations of an anæsthetic, but he could reclaim nothing from the chaos in which he was enveloped. He was like a drowning man with the heavy yet not unpleasant rush of water in his ears.

Suddenly his mind was invaded by a distinct sound. It had the dull sense of finality of a blow on the head. The door of the room had been flung open. And then came a voice through the shadows which encompassed the last feeble gutterings of the lamp:

“Anybody at home?”

Northcote rose from his knees in a wild and startled manner.

“Who—who is that?” he cried, in a hollow tone.

“Is that Mr. Northcote?” said the obscure presence which had entered the room.

IV

ENTER MR. WHITCOMB

FOR the second time that evening Northcote peered through the gloom of his chamber with a thrill of curious expectancy. The visit of the scarecrow had been forgotten in the torments of his passion, but the sound of his own name on the lips of the unknown resummoned that phantom to his mind. But in the room of one so frail was a robust and spreading presence.

“To whom do I owe a welcome?” muttered Northcote, and as he rose from his knees his words seemed to be lost in the vibrations of his heart.

“Mr. Northcote it is,” said the round and full tones of the invader.

The advocate, trembling in every limb, was conscious of a powerful and confident grasp of the hand. And then as his eyes encountered the outlines of his visitor, he was seized with a pang of disappointment, for he had looked to see something different.

“Don’t you know me, Mr. Northcote?” said the voice—the conventional voice which had already smote the starving man with a sense of the intolerable.

“I am afraid I do not,” he said, heavily.

“Well, I thought Samuel Whitcomb was known to every member of the bar.”

Mr. Whitcomb’s whimsical air strove to cloak a wound to his professional feelings.

“Ah, yes, of course, Mr. Whitcomb; of course,” said the young man, with a deeper disappointment fixing its talons upon him. “Of course—Mr. Whitcomb, the solicitor,” he added, hastily, as through the haze of the unreal which still enveloped his amazed and stupefied senses he caught a familiar aspect and a tone that he recalled.

“The same.”

“Excuse this inhospitable darkness,” said Northcote. “Here is a chair; and try, if you please, to keep your patience while I put some oil in the lamp and seek a piece of coal for the fire.”

“No elaborate scheme of welcome, I beg. Your client is not a prince of the blood, but a common lawyer.”

A well-fed and highly sagacious chuckle accompanied this sally on the part of the solicitor.

Still in the throes of his stupefaction, Northcote addressed himself to the oil-can and the coal-box, that as far as the circumstances would permit a reception might be accorded to this unexpected guest, whose common and prosaic quality had already jarred upon every fibre of his being. And these preparations, diffidently conducted, kindled again the well-fed chuckle of the solicitor; and so ingratiating was it that it seemed to banish all appearance of constraint by imparting an air of equality to everything in the world.

The lamp flared up under the influence of the dregs of fuel that had been added to it, and revealed the pale and wasted features of the garret’s inhabitant. The solicitor, with the quickness of the trained observer, pursed up his lips in a suppressed whistle. A kind of pity softened the relentless composure of his eyes as they beheld the haggard and unkempt bearing of the man before them. “Poor devil,” he muttered; “literally starving.” It was in this succinct yet compendious manner that Mr. Whitcomb filed for reference all facts which are sufficiently obvious to stand as knowledge.

“Do you know,” said Northcote, suddenly, “I was half-expecting somebody to-night.”

“Sitting in state to receive him, evidently,” the solicitor muttered, as he sniffed the temperature of the garret and glanced oddly from the fireless grate to the gloves and overcoat that Northcote was wearing.

“Dining out together, were you?”

“To speak the truth,” said the advocate, with an odd laugh, “I had hardly got so far as to consider the personage I was half-expecting in such a grossly material aspect.”

“Personage, eh?” said the solicitor. “They’re out of my line. I only have to do with persons, quite ordinary people, who are mightily interested in their meals.”

“Well, you see,” said Northcote, “I had hardly got so far as to formulate my expected visitant in actual terms of flesh and blood.”

“You deal in spooks!” said the solicitor. “A likely pitch for them, too.” Mr. Whitcomb began to stroke his moustache pensively, his invariable habit when confronted by the danger of going beyond his limit. “A creepy hole, by God!” he said, in another of his asides, for the simplicity and matter-of-fact of the advocate had a little discomposed him.

“I was half-expecting a genie,” said the advocate.

“A genie!” said the solicitor, with a laugh of embarrassment, for his surroundings oppressed him, and his vitality was impaired by not having yet had his dinner. “I never heard of a genie except in the ‘Arabian Nights.’”

“They abound in London,” said the advocate. “They are all about us.”

“You are right, I dare say,” said the solicitor, with a puzzled air. “The latest discovery of science, is it? They have found such marvellous things lately, even in the water we drink and the air we breathe. But if you will just stick on your hat, and do me the honor of eating a bite of supper,—I have had a deplorable day, which has ended by robbing me of my dinner,—I will talk to you of the business that has brought me here at such an odd sort of hour.”

“A bite of supper!” These magic words caused the advocate to enfold his visitor in a melancholy smile.

“Upon my soul,” said he, “you are the genie.”

The solicitor gave a laugh as ponderous as Gargantua’s.

“Have it your own way,” he said; “but for the love of heaven put on your hat and let us heed the intimations of Nature. Perhaps if we pet her a little she may do us well in this somewhat remarkable affair. Come, let us away.”

That robustness of bearing which made half the stock in trade of the first criminal lawyer in London had already an effect upon the advocate. Those luscious tones had dispelled his comatose condition. And who should say,

after all, that this was not the genie; at least, here was the living embodiment of success, that jovial and gigantic swaggerer. What a smugness and sagacity were in the heavy inflections of this prosperous man! "A fellow is not fit to pare his own nails when he's sharp-set, and I had my chop at a quarter-past one," he chuckled, as he watched the advocate grappling with his boots. "Now, on with your hat, and we'll take a cab to I know where."

"As you will," said the young man, reaching for his hat.

A reaction was stealing along his veins. Already his passionate despair had begun to cower. It looked like wizardry that one so famous should have been borne in person, dinnerless, at ten o'clock at night, up flight after flight of dark stairs, to the crazy fifth floor of that decrepit building in quest of one so poor and so obscure.

"I am sure you are the genie," said Northcote, carrying the lamp to the door to light the distinguished visitor to the head of the rickety stairs. "Strike a match, sir, if you respect your neck."

Northcote turned the key of his door, and Mr. Whitcomb descended, step by step, in a gingerly fashion.

"If there is the slightest fear," said Northcote, pressing on behind the solicitor, "of burning your fingers with that match, I shall urge you not to stop to examine the array of old masters that line this perfectly damnable staircase of mine."

"Is that an 'Adoration of the Magi' above me on the right?" said Mr. Whitcomb, with his jovial air.

"No; only a crack in the plaster and a cobweb. And that weird splotch to the left, which, at this distance, might stand for 'Hercules Wrestling with Death for the Body of Alcestis,' is the damp striking through the wall."

When at last they had crept down these noisome stairways into the street, they found that the sleet had yielded to a light, murky rain. The solicitor summoned imperiously a passing hansom, and sent a thrill through the heart of his starving companion by naming for the cabman's guidance one of the most luxurious restaurants in the world.

V

AN ARISTOCRAT OF ARISTOCRATS

A SWIFT journey of a thousand yards in this enchanted vehicle along slushy and dangerous pavements into the West End, that magic region and golden home of the marvelous, saw the bewildered young man and his companion, a veritable prince who had stepped out of some fairy romance, deposited before the portals of a palace raised by a wizard in the centre of the streets of London. A master-stroke of malice had placed this temple of choice and rarity in the midst of acres of disease, penury, and polluted air. The faces of the ghostly denizens of these regions broke through the shadows with dumb malevolence as the solicitor and the advocate leaped to the portico. Hardly had they reached it when they were assailed by light and color, glittering liveries, gorgeous women. A stealthy and perfumed warmth had even invaded the outer atmosphere. The starving man opened his lips and nostrils, and flung wide all the doors of the senses in order to drink the sheen and scents, the hues and odors. Like a poet of the Latin races he sought to feed upon animal sensations. Here in these bright saloons was the reverse of the medal, of which in his garret that evening he had dreamed. By no more than the wave of a wand he had been transported into the plaisances of success.

As he entered this domain he was enchanted with everything,—the tread of the carpets, the hang of the curtains, the clothes of the people, the sounds of the music, the mien of the waiters. Ali Baba did not illicitly enter the Cave of the Forty Robbers with a more profound bewilderment, a sharper curiosity.

Northcote followed his companion into one of the smaller and quieter but not the less gilded and luxurious rooms. Mr. Whitcomb, who even in his own person did not disdain the panoply of fashion, had the unconquerable nonchalance of bearing which is the first credential to the public respect.

“I want Jools,” he said to the first waiter he met.

The waiter bowed low and said ingratiatingly, "Yes, sare." He darted away in quest of that personage without an attempt to maintain the few rags of dignity that attend his calling. There was, indeed, a strain of the magician in this wonderful Mr. Whitcomb. It would not have occurred to Northcote to use the formula "I want Jools," any more than it did to Ali Baba to cry "Open Sesame!" at the portals of the cave of the Forty Robbers.

Jools was the head waiter, a man of the first distinction, with a small imperial, the envy and the proud despair of all the compatriots who shared his exile in an alien country. It had the choice perfection which art is sometimes able to superimpose upon nature. Jools was of slight, even mean, physique, but he had the ease of bearing which comes of having been somebody for several generations. He held the key to the finest cellar in London, as his father before him had held the key to the finest cellar of Paris, and his grandfather of that of Vienna. Jools was an aristocrat of aristocrats, and one versed in the ways of his order would almost have divined it from the amiable humility with which he came forward to receive one of other clay.

"How do, Jools?" said Northcote's companion, with his inimitable gift of manner. "Nasty night. Let us have a quart of your Château Margaux. What was that you gave me before?"

Jools screwed up his furtive brown eyes in deep contemplation. "Et would be a seventy-one, sare," he said, rubbing softly a forefinger along his chin.

"I don't know what it was," said Mr. Whitcomb, royally, "and I don't care, so long as it is the best you have in the place."

An air of magnificence which prosperity had conferred upon the solicitor touched a chord in the proud soul of Jools.

"I haf a seventy-three, sare," said this aristocrat, with a not too ductile absence of condescension, which he reserved for the society of his equals.

"That sounds all right," said the solicitor. "We still number you among the few eminent Christians we have in London at the present time."

Jools bowed and smiled softly, but an expression of sorrow was seen to overspread his mat complexion.

"Ef I had known before, sare, I would haf had it decanted."

“We must all abase ourselves before the despotism of necessity,” said the solicitor’s hollow-eyed companion, who was already under the stimulus of an intense anticipation. “She has reverence for nothing. Even your Château Margaux ’73, which no doubt is divine, must forego the rights and trappings of its royalty.”

“You must forgive him, Jools,” said the solicitor, enjoying the effect upon the waiter of these deep tones. “He is talking prose, although, unlike your immortal compatriot, I am afraid he knows it.”

Jools summoned one of another mould to receive the baser order of a thick soup and a cut from the saddle, while he himself, beaming with pleasure and shrugging his shoulders furiously, went forth accompanied by an awe-stricken satellite personally to select one of those royal wines, which lent a touch of romantic grace to the exile of this artist in a foreign country.

Seated on cushions in the cosiest of all imaginable corners, with spotless lawn and bright silver before him, the starving man enveloped his nostrils in the delicious fumes that arose from his plate. These aromatic vapors seemed to pervade his being like some intoxicating hashish, or a pungent but subtle Arabian tobacco. He toyed with the pepper and salt, and crumbled his bread with a devouring eagerness, which he kept in check sufficiently to refuse at first to swallow a spoonful of the magic food, in order that he might obtain this sense of inebriation to the full. His companion, whose perfectly normal and healthy hunger permitted no such refinements as these, had already tasted and enjoyed.

“Excellent soup,” he said. “It’s got quite a bouquet to it. I’m almost glad I missed my dinner. One of these days I shall do it again.”

The satisfaction which in these circumstances consumes the average sensual person grew so acute, that by the time he had swallowed half of his plateful, he cried out to the nearest waiter: “Hi! you, Alphonse—have the goodness to tell the chef to step this way, will you?”

Northcote placed the first spoonful on his tongue, and indescribable pangs seemed to mount to his brain. A fierce desire overpowered him. He devoured another spoonful, and then another. Suddenly he was overcome by a strange fury of greed. His plate was empty, and his palate had lost its original fineness, before he was able to impose a check upon his passion.

Great, however, as his expedition had been in its later stages, it had scarcely surpassed that of Mr. Whitcomb, who from the first had been devouring steadily. No sooner had that gentleman eaten his final mouthful than he ordered both plates to be replenished.

At this moment, by one of those significant coöperations of events which form the basis of the drama, a large, fat, frock-coated, and pomatumed gentleman appeared, a little sheath of quiet smiles twinkling all over his person, as though the playful god of love was in hiding behind his ample shirt-front and slyly tickling his bosom with feathers.

“Hommage, monsieur le chef, hommage!” cried Mr. Whitcomb. “Cette consommé est délicieuse. Vous êtes un vrai ruban bleu.”

The chef emitted a loud purr of satisfaction like an unusually large Persian cat. And then by a still more exquisite coöperation of events than that which had already preceded this incident, who should appear but Jools, behind whom his attendant satellite was mincing with a warmed decanter of wine.

“Two more glasses, Jools, if you please,” said the solicitor. “Monsieur le chef and your worthy self will honor us, I hope. The first product of your country will not prove unworthy of two of its most distinguished sons.”

A look of rapture sprang to the proud eyes of Jools, and he measured four glasses of wine with an agitation that was more dignified than perfect composure.

“To l’Entente Cordiale, messieurs,” said Mr. Whitcomb, raising his glass.

“L’Entente Cordiale!” chimed the others.

“It is part of my religion,” said Mr. Whitcomb, “never to encounter the artistic temperament without rendering my homage. If we had only a trace of it in this country to fuse and rarefy our other manifold gifts and blessings, I believe we should become the most perfect nation upon the earth.”

“Is it not, sir, the absence of it that makes you English so perfect?” said the chef, who had all the alert intelligence of his race.

“That is not a thrust, monsieur?”

“Ah, no. As a citizen of the world I make it my duty never to wound the English. I respect your country; there are seasons when I adore it.”

“Ees it not the land of justice, order, and liberty?” said Jools.

“Justice we have for those who can afford to pay for it,” said the solicitor; “that is to say, the poor man is quite unable to purchase it, and even the rich finds it costs a great deal of money. Order we have; it is the birthright of us all—an adumbration of our exaggerated reverence for mud, and stones, and bricks, and mortar. Liberty, Jools, I regret to say, we have not. We are all base slaves—”

“Of the External,” said Northcote, with a lustre in his eyes that the wine had kindled. “There is no slave like a Saxon. In his scheme of sense the eye takes precedence. Even his religion is Money.”

“Ah, no,” said the chef, with much amiability, “you English have no avarice like we have in my native Normandy.”

“An Englishman’s avarice is not of the heart, but of the spirit,” said Northcote, with the melancholy calmness of one who knows everything.

“You haf your Shakespeare, your Milton,” said Jools.

“I think sometimes we could afford to exchange them both for your Honoré Balzac,” said Northcote.

“You would be unwise to do so,” said the chef. “Your Shakespeare is among the first order of mankind. He is greater than Molière; my faith! he is as great as Napoleon.”

“Perhaps you are right, but your Honoré Balzac showed the bourgeoisie its every form and feature.”

“Truly,” said the chef, with a sly laugh; “but you have ceased to be bourgeois in your England nowadays.”

“Since when, sir?” said the young advocate, with a flame in his eyes. “Since we have learned the trick of calling our mean ambitions by high-sounding names?”

The solicitor filled up the glasses of Northcote and the chef.

“You speak well, my friends,” he said, with his richest chuckle; “although myself being a middle-class Englishman, I am sorry to say your discourse is over my head. But if it is to be my privilege to maintain the talk upon this extremely high level, it will cost me, Jools—”

“It will cost him, Jools,” interrupted Northcote, with a truculent glance at the waiter.

“It will cost me, Jools,” said the solicitor, with an imperturbable smile, “an extra quart at least of your Château Margaux.”

At the moment this order fell on deaf ears, for the lips of Jools were trembling with speech like those of Socrates.

“We will give you our Honoré de Balzac, sare,” he said, with a heavy sigh, “ef you will part wiz your Shikspeare.”

“Also our Voltaire,” said the chef, with a leer at his melancholy compatriot, “if they will part with their Shakespeare.”

“Your Honoré Balzac is only just coming into his own,” said Northcote, with immense solemnity.

“That is to say, sir,” said the chef, “a reputation must be established at least a hundred years in the arts before the world can be decorated with the radiance that proceeds from the enormous fire it holds in its bowels.”

“True, monsieur,” said Northcote. “It is like a new-born planet. It has to be allowed to cool a little before it can assume a shape, and the wonderful vegetation begins to appear upon it. It cannot be approached at first; it is a mere ball of fire in the heavens, without form and without meaning to the human eyes.”

“Or it ees like a young wine, sare; it must be allowed time to mature,” said Jools.

“It is the worst feature, Jools,” said the solicitor, “of this claret of yours, that it always unlocks the door for these pleasantries. And this British skull of mine is so packed with business, that with our shopkeeping instinct of transacting a little of it whenever and wherever we can, before we fall upon the latest theories in regard to the composition of matter, with every reluctance, I shall ask you and your distinguished compatriot to withdraw for the space of one hour.”

“Personally,” said Northcote, “I believe the universe is not made up of matter at all.”

“In other words, sir,” said the chef, “matter is—”

“I ask your pardon, my friends,” said the solicitor; “but with true Britannic effrontery, this business of mine even seeks to take precedence of the mystery of the universe.”

“There is no such thing as the universe,” said Northcote, draining his glass with great decision. “The whole of it is contained within ourselves.”

“Peace, peace!” said the solicitor. “We will resume our speculations, with the permission of our good friends, in the space of one hour.”

Filled with every fraternal and complacent feeling, Jools and his distinguished compatriot bowed smilingly, and with a profound regard for the solicitor and the advocate, retired, in opposite directions, to those spheres of activity in which there was none to dispute their supremacy.

VI

A PROPHECY

“AND now,” said the solicitor, “as the decks are clear, let me say this is a rather odd affair which has sent me hungry about the streets of London at an unpleasant hour.”

“Am I not surprisingly cool about it?” said Northcote, with a flushed face, balancing his empty wine-glass on the handle of a knife, “considering that this business of yours is destined to mark the turning-point in my career.”

“When a man begins to talk of his career,” said the solicitor, “it is safe to infer that he has taken the wrong quantity of liquor. Waiter!”

“Sare?”

“Tell Jools we want another pint of this filthy stuff—this what-do-you-call-it?—with which he is poisoning us. And, Alphonse, have a couple of Welsh rarebits ready by the time we want them.”

The waiter withdrew, walking delicately; and the solicitor bent across the table towards his companion in a manner of confidential gravity.

“Correct me if I am wrong,” said he, “but you have done no circuit work?”

“Hitherto I have not soared beyond a police-court,” said the young man, with perfect frankness. “And even there I have only made a public display of my incapacity on half a dozen occasions.”

“A beginner one might say, yet an ambitious one.”

“Where do you get the ambition from?”

“It is in the color of your eyes. Besides, have you not a habit of turning your phrases?”

“If I did not know you to be a connoisseur in men of promise I should not be convinced.”

“That’s my foible, right enough,” said the solicitor, with a laugh. “A connoisseur in men of promise. Samuel Whitcomb owes his own reputation

to that, and he is proud to believe that the reputations of half a score of those who are in every way his superiors are to be traced to that source."

"Laying aside the question of superiority, all the world knows it."

"I gave Finnemore Jones his first brief," said the solicitor, immodestly. "I provided Cooper, Howard, and Harrington with the opportunities that made them famous."

"And above all," said the young advocate, measuring with a stealthy eye the man before him, "are you not the discoverer of Michael Tobin?"

"Ha!" cried the solicitor, as he brought his fist upon the table with an air of unmistakable triumph, "I was holding that back."

"As the crown of your achievement?"

"Yes; Michael Tobin is almost here. But how do you come to suspect it, when at present his quality is only known to the few?"

"I am one of them," said Northcote, looking his companion imperturbably in the eyes.

Such a cool affirmation seemed to delight the solicitor.

"Well, I should not be surprised if you were," he said, with a violent chuckle. "If I had not had some such suspicion I might not have climbed up all those dark stairs at a quarter-past ten of a winter's night."

"Without your dinner."

"Without my dinner. Why, if that fellow hasn't forgotten the black currant jelly. But here he comes with his poisonous claret."

"Tobin is a brilliant man," said Northcote, poisoning his glass after having replenished it. "Irish to the bone; a real discovery; ought to go far. But far as he ought to go and will go, there is one name in your list that will surpass him."

"That is where I cannot agree with you, my son," said the solicitor, with confidential and parental bonhomie, for this subject lay at the source of his intellectual pride. "You must know somewhat to have found out about Tobin; but when you name his superior you betray your youth."

“I concede it is quite impossible for me to name Tobin’s superior without betraying my youth.”

“Go to,” said the solicitor, with an air of indulgence that he reserved for the young and promising. “Don’t labor the point. It wants experience to detect greatness in the shell. Michael Tobin will easily be the first upon my list.”

“There is one who will surpass Michael Tobin,” said the young man.

“Not among those I have mentioned.”

“True. As is usual with the prophet, you don’t dare to affirm the authentic name.”

“Upon my word I can’t think who you mean!”

“One Henry Northcote.”

The solicitor broke forth in a suppressed shout of laughter.

“Good!” he said; “you’ll do. Fill up your glass and we’ll get to work. And I’m glad your talent is so remarkable, because I’ve got some business here that is likely to tax it.”

“It is increasingly clear to me that you are the genie,” said the young advocate in a low voice, and fetching a deep breath.

VII

THE OFFER OF A BRIEF

THE solicitor drew from an inner pocket of his coat a bundle of papers tied with red tape. He placed them on the table at the side of his plate.

“At the eleventh hour,” he said, speaking coolly and distinctly, “I am going to ask you to undertake the defence in a trial for murder.”

Northcote was conscious of no more than a slight sharp throb of the pulses as he met the shrewd, even cunning, eyes of the man who sat opposite.

“Yes, that’s a chance for Henry Northcote,” were his first words, uttered under the breath.

“The fee is not much,” said the solicitor, with the precision of the man of affairs entering his fat voice. “You will not be briefed at more than twenty guineas.”

“To-night I think I would sell my soul for half that sum,” said the young man, with an excited laugh.

“Is not that a somewhat damaging admission for you to make?” said the solicitor.

“I agree, I agree,” said the young man; “but the truth is never discreet.”

“There’s no money in this case,” said the solicitor, “and I’m afraid there is no kudos. It is one of those disagreeable cases which are not only irreclaimably sordid, but also as dead as mutton. In order to obtain a small sum of money, a woman of the ‘unfortunate’ class has poisoned a man with whom she lived. She is one of those cold-blooded persons who are born for the gallows. There is enough evidence to hang her ten times. We shall be forced to submit to the inevitable.”

“You disappoint me,” said Northcote. “I was thinking of a real fighting case.”

The solicitor smiled, with a faint suggestion of patronage.

“I beg your pardon, I’m sure,” said the young man, quickly. “Had there been any life in the case you would not have carried it to one so obscure. Even as it is, I ought to be grateful to you—and I am grateful indeed—for putting it in my way.”

“The circumstances of this case are somewhat peculiar,” said the solicitor. “We are under rather severe pressure in the matter of time. The case will be called on the day after to-morrow at the Central Criminal Court.”

“That hardly explains away your kindness towards myself. Even at this short notice you could have got plenty of men to have consented to a verdict.”

“I am aware of it, but then it is not quite the method of Whitcomb and Whitcomb. We like ‘Thorough’ to be our motto. If we accept a client, we feel we owe it to ourselves to leave no stone unturned, irrespective of position or emolument.”

“But I understand this case is too dead to be fought?”

“Ah, we are now about to approach the first of the ‘peculiar’ circumstances. At five o’clock this evening Tobin himself was holding this brief, but at that hour his bicycle had the misfortune to collide with a motor-car, and the poor fellow now lies in hospital with a compound fracture of the right thigh.”

“Poor fellow, poor fellow!”

“I think you and I are agreed that Tobin is without a rival in a case of this nature.”

“You must forgive me if I express surprise that Tobin should have accepted the brief.”

“That is easily explained. Tobin is the generous-hearted Irishman who is never weary of affirming that Whitcomb and Whitcomb gave him his start. He never refuses us, and I am afraid we, in the interests of a client, trade occasionally on his good nature.”

“Then the practitioners of law are sometimes more disinterested than they seem.”

“My dear fellow, among a considerable body of men must there not be a leaven of human nature? And my own experience is that human nature is so

much more disinterested than the young and cynical like to consider it.”

“That is well said,” replied Northcote, feeling the rebuke to be merited.

“And so you see,” said the solicitor, “in regard to this wretched woman whom we had undertaken to defend, we were in the position of being able to brief a first-rate man for a third-rate fee.”

“Yet a third-rate man would have served your purpose equally well, if one is allowed to hazard the remark.”

“No; for this reason: the woman has long been of intemperate habits. Prior to the commission of the crime she was known to be drinking heavily, and Tobin, who is a real fighting man, if ever there was one, had decided to take the line of insanity.”

“As the only possible means of saving her neck?”

“There is no other. And even in the hands of such a man as Tobin, the chance is remote. He has his witnesses to call, of course, in support of his plea, but they cannot be considered as entirely satisfactory. And, unfortunately, their evidence will be rebutted by that of the prison doctors, who are against us.”

“Then, after all,” said the young man, with a sunken eagerness appearing in his eyes, “there will be opportunities for advocacy.”

“Pretty considerable opportunities, if we are to save her neck.”

“Then forgive me if again I put the question, Why did you come to a tyro with a case of this nature?”

“How can you ask,” said the solicitor, with an arch smile, “when the tyro happens to be one Henry Northcote?”

“Upon your own admission that is a name that has no particular significance for you.”

“Nay, you go too fast, my friend. It must be left to the future to place the name of Henry Northcote, but let me confess that in the meantime the bearer of it has not wholly escaped my vigilance.”

“In your capacity as a connoisseur in young men of promise?”

“Precisely.”

“Upon what data have you built, when you have never seen him in open court?”

“My dear fellow, you are as curious as a woman.”

“Every comprehensive mind is partly feminine.”

“No mind can be in any sense feminine. It is a contradiction in terms.”

“Well, well! From what data have you derived the courage to entrust an untried man with the defence in a trial for murder?”

“To be perfectly frank, it was Tobin who found the courage for me.”

“Tobin!”

“No less.”

“Why, Tobin doesn’t know me from Adam.”

“Not so fast, my friend; don’t come to conclusions so abruptly. Tobin has his eyes about him.”

“Well, yes, that is an attribute that is common to all who become first-rate in anything.”

“Let me tell you exactly what occurred. I was on the point of leaving Chancery Lane about six, and beginning to think about my dinner, when I received poor Tobin’s telegram to say he was tucked up in hospital with a broken thigh, and would I come to him at once. Of course I went; and there the poor fellow was in a devilish uncomfortable attitude, as white as the sheets, face drawn with pain, but himself as cool as ice.

“‘We shall have to apply for a postponement,’ were his first words.

“‘In any case, old boy,’ said I, ‘I shall relieve you of further responsibility.’

“‘Not much!’ said he. ‘Get a postponement until next sessions; I am going to save the poor beggar’s neck.’

“‘Why, old boy,’ I said, fixing him up with a cigarette, ‘you will be lying here in your little bed until next sessions.’

“‘Not for me,’ he said; ‘not for Michael. I shall be in court on two sticks a-saving the poor beggar’s neck.’

“‘Now, look here, old son,’ said I, ‘just let the whole thing go, and we’ll put up somebody else.’

“‘If you do,’ said he, ‘as sure as a gun she’s a gonner.’

“‘I am afraid I agree,’ said I; ‘but if our fair client is not a fit subject for the rope, upon my soul there’s no need to hang anybody.’

“‘Well, the next thing I saw was that his eyes were full of tears.

“‘Oh, damn it all!’ he said, ‘I can’t stand this hanging of women.’

“‘She’s an out-and-outer,’ said I.

“‘That doesn’t alter her sex,’ said the Irishman.

“‘Well,’ said I, ‘who can you suggest to put up in your stead with your plea of insanity? The difficulty is the brief is only marked twenty guineas, and you can’t get much for that money with you fellows.’

“‘You can’t,’ said he; ‘besides, this is a case for Michael. Unless it is handled in a certain way she is certain to hang. Apply for a postponement.’

“‘Why, you old sentimentalist, I don’t think we could get one,’ said I, having pretty well made up my mind that we could not.

“‘Who is the judge?’ said he.

“‘Bow-wow Brudenell,’ said I, ‘the most pedantic and cantankerous old man on the bench. And Weekes is leading for the Crown. There will not be much in the way of accommodation in that quarter.’

“‘Oh, come, old Bow-wow is not such a bad old sportsman,’ said the Irishman. ‘Tell him just how it is; tell him I’m suddenly laid by the wing, and it will be all right.’

“‘But,’ said I, ‘even if we get a postponement, we shall be none the better for it. It can’t be extended indefinitely; and I am afraid, old boy, this is going to be a long business of yours. I think I shall hand the brief over to Harris.’

“‘At first I was afraid the wild Irishman was going to jump out of his plaster of Paris.

“‘Harris!’ said he. ‘My aunt! I wouldn’t brief Harris to defend a fox-terrier for worrying a tortoise-shell kitten.’

“‘I’ll admit,’ said I, ‘that Christopher is not a genius, but at least he will get our unfortunate client hanged like a Christian and a gentleman.’

“‘I spent nearly an hour arguing the point with the poor old fellow. ‘I don’t hold with dumb animals performing on the stage, and I don’t hold with the hanging of women,’ he kept saying, in that odd way of his which one doesn’t know exactly how to take.

“‘Look here, old son,’ I said at last, growing impatient, ‘this will have to be fixed up with Harris to-night; and if I can’t get Harris, I shall get Westby.’

“‘She can hand in her checks if you get either,’ said he. ‘She’ll be hanged by the neck without even a run for her money.’

“‘Well, you can’t get “silk” for twenty guineas,’ said I; ‘and you can’t get a really useful junior.’

“Now, here follows another of the ‘peculiar’ circumstances. Suddenly the wild Irishman lifted himself in his bed, and again there was that odd look in his eyes.

“‘I’ll tell you who you *can* get,’ said he; ‘he’s come to me in a flash. Get that fellow Northcote.’

“‘Northcote?’ said I; ‘never heard of him.’

“‘Never mind, get him,’ said the wild Irishman. ‘He’s young, and they say he’s mad, but he might bring us luck.’

“‘For a chap with as brilliant a set of brains as are to be found in London,’ said I, ‘you do come out with some of the oddest suggestions. How did you come to think of this fellow Northcote, when you won’t allow Harris and Westby to be good enough?’

“‘Oh,’ said he, ‘he’s one of my inspirations,’

“‘Inspiration my foot!’ said I. ‘I’m off to Christopher Harris.’

“Well, as I was about to go, poor Tobin raised himself again, and those queer eyes came at me in a way I don’t like.

“‘Look here, Whitcomb,’ he said; ‘you were a pal to me when I had hardly a boot to my foot, but if you go to Harris I’ll never speak to you again.’

“‘Lie down, you damned Celt, and go to sleep,’ I said, ‘and I’ll come and talk to you another day.’

“‘I won’t lie down until you promise to go to Northcote at No. 3 Shepherd’s Inn.’

“‘King’s Bench Walk,’ I assured him, ‘will be far better. If I can’t have a reckless fellow like you, I mean to play for safety.’

“‘All the safety in the world,’ said he, ‘won’t save the poor beggar’s neck.’

“‘That’s all very well,’ said I, ‘but an inexperienced man might come a dreadful cropper in a case of this kind. I believe myself in a moderate amount of speculation, but not in a capital charge.’

“‘It’s her only chance,’ said the Irishman.

“‘I am afraid,’ said I, ‘her attorneys are not willing to provide her with it at the risk of decency.’

“‘There’s your Saxon,’ said he. ‘Even when they hang a woman, they insist on decency. Praise be to the saints, we haven’t got any decency in our dirty old island.’

“‘No,’ said I; ‘but you’ve got a good deal of superstition. Whatever put this fellow Northcote into your wild head? I never remember to have heard of him in court.’

“‘I don’t care what you’ve heard of him,’ said the Irishman, ‘this is where he gets his chance. He’ll bring us luck.’

“‘Luck!’ said I. ‘A lawyer’s luck is based on common sense and the capacity to see into the future.’

“‘We crack-brained Celts possess that capacity,’ said Tobin. ‘You can come and tell me on Monday whether I’ve been wrong.’

“‘Is Northcote an Irishman, too?’ I asked, feeling myself beginning to waver; and I don’t mind confessing that I have never been able to withstand Michael Tobin from the first hour I met him.

“‘I’ve only seen the man twice,’ said he; ‘but if he doesn’t carry a drop of the Celt under his waistcoat, Cork was not my birthplace.’

“‘Have you seen him in court?’

“‘Not I. The first time I saw him he was addressing a few well-chosen remarks, quoting the pagan philosophers, to a select gathering of the unemployed in Hyde Park. M’Murdo was with me. “My hat,” said he, “that’s a fellow called Northcote; he’s at the bar. A nice place for a barrister, isn’t it?” “Personally,” said I, “I don’t care a curse about the place, but I’d give ten years of my life to have his voice.” There the thing was booming like an organ, and we stayed half an hour listening to rhetoric that might have come out of Burke.’

“‘And the second time?’

“‘I have only the haziest recollection of the occasion. Where it was I can’t recall, but the mob orator was paraphrasing “Hamlet” to gain facility of expression. But I remember thinking, “My son, you will be bursting upon an astonished world one of these fine afternoons, and then we shall all be complaining about your luck for being born so gifted.”’

“And so, my dear Northcote, to round up a long story, thus it was I came to stand in your chambers, dinnerless, at a quarter-past ten of a winter’s night.”

As is not uncommon with those who possess mental energy, the solicitor, under the stimulus of wine and events, had an immense volubility. During this recital the claret had circulated freely between his companion and himself. Both their faces were flushed, and, moreover, the emotions which had been excited in the young advocate had filled him with a kind of vertigo.

“After all,” said he, resting his forehead on his hand and staring into vacancy, “it is most probably Tobin who is the genie.”

“Set a thief to catch a thief,” laughed the solicitor. “Michael Tobin and yourself are well matched—a pair of deuced odd fellows.”

“In any case,” persisted Northcote, “if a genie you are, you would say you are a genie in spite of yourself.”

“I say nothing at all when it comes to genies,” said the solicitor with emphasis. “I don’t know anything about them; they are not in my line. They don’t trouble the common lawyer in the pursuit of his bread. What does trouble him is time, for time is money.”

The solicitor took out his watch, a thing of value.

“Twenty past eleven,” he said. “There’s a fortune awaiting the fellow who invents an automatic brake to slip on old Father Time. I’ve got to get out to Norbiton to-night,—I promised my little girl, and she will be sitting up. But before I go I wish you would cast your eyes over your brief, and tell me precisely what you think about it.”

The solicitor handed to Northcote the document tied with red tape, and called again for the waiter.

“You’ll have a liqueur?—they’ve got some white curaao that might be worse. And perhaps some coffee might help us at this stage. Fortunately, this is the one place in London where they know how it’s made. And, Alphonse, you might bring some of those fireworks that you call cigars.”

VIII

EQUITY A FRUIT OF THE GODS

By the time the waiter had returned, the young advocate was addressing himself to the bundle of papers with a remarkable energy. Already a fierce mental excitement had stirred him. His senses, overstimulated by a wine of great potency, and by a too sudden reaction from a state of actual bodily starvation, a fever had been kindled in his frame. And those high ambitions which had reconciled him to existence through so long a period of the most abject penury, yet whose only home had been his wild dreams, had suddenly, at the touch of the magic wand of the enchanter, acquired a name and a local habitation.

It was no wonder that to the eyes of the solicitor, that cool, mature, and rather cynical man of the world, this young man, in whom strong and deep emotions had been let loose, soon became an object of scientific interest. Mr. Whitcomb felt himself to be even a little disconcerted by the feverish manner in which the young advocate tossed about the pages of his brief. As he came to note the vivid pallor of the face before him, the burning of the eyes, the twitching of the lips, he felt a qualm of uneasiness. Perchance it had been neither wise nor kind to be so lavish of the Château Margaux. Blood which had been deteriorated by a course of insufficient food was only too likely to be over-charged by an unaccustomed accession of heat. Already it had seemed to be waxing too high.

“Here is your liqueur,” said Mr. Whitcomb, with a slight perturbation, “and here’s a cigar I’ve chosen for you. And here’s a nice black coffee that may steady you a bit.”

“Thanks, thanks,” muttered Northcote, nodding his head in a mechanical manner.

The solicitor gulped his liqueur, and cut off the end of his cigar.

“Well, old boy,” he said, letting a somewhat whimsical gaze fall upon the man who sat opposite, “do you feel like giving us a bit of a run for our money at the hour of ten-thirty at the Central Criminal Court on Friday

morning next, or would you prefer that the chance should be offered to Harris?"

The advocate swallowed his coffee.

"You will have a run for your money all right," said he, "on Friday morning next. Upon my soul, I believe you have given me a start with the most fascinating case in the world."

The solicitor pursed up his lips in an expression of genial contradiction.

"If you find fascination in a thing like that," he said, "you must look very deep. The whole business is sordid, atrocious, bestial. The crime is brutal and perfectly commonplace."

"Is it not a mere question," said the advocate, "of the fashion in which one uses one's eyes, of the plane over which one permits them to stray?"

"There is only one plane, my friend," said the solicitor, "over which an attorney permits *his* eyes to stray. That is the obvious diurnal one of matter-of-fact common sense."

"Yet it may happen," Northcote rejoined, "that the plane of matter-of-fact common sense may not be identical in the eyes of attorney and advocate."

"Is not the hour somewhat advanced for a Socratic dialogue?" said the solicitor.

"Also," persisted Northcote, "the plane of matter-of-fact common sense, in whatever it may consist, may not prove identical in the eyes of the jury and the judge; also in the eyes of the person who committed the crime, and the person who was the victim of it."

"We are not here to traverse the moral code," said the solicitor, "or to enter the domain of abstract reason. The English penal law is perfectly explicit upon the point at issue, as I think you will find on Friday."

Of a sudden Northcote struck the table a violent blow.

"This unhappy woman has been deeply wronged by circumstance," he said, with a vehemence that was totally unexpected.

"It will do your case no harm to show that to the jury," said the solicitor, sucking quietly at his cigar. "There is not a scrap of evidence to support

such a contention, but it might be of service if it could be upheld.”

“Is it not here that we enter on the higher function of the advocate’s art?” said the young man. “Does it not consist in the evocation of that which lies outside the obvious?”

“You must have it entirely your own way, my dear fellow,” said the solicitor warily. “I don’t propose to play the rôle of Adeimantus at this hour of the night. But I don’t mind remarking that you will have to evoke that which is very far outside the obvious to secure the acquittal of my client on Friday.”

“That is viewing the subject from the plane of matter-of-fact common sense which you are content to inhabit?”

“That is so; I can view it from no other. But may I remark in parenthesis that you are also likely to find the judge and jury inhabiting that plane on Friday.”

“You permit yourself a greater definiteness than I dare to employ,” said Northcote. “But the point I would like to fix is this: Assuming that I am able to evoke that which in your view lies so far outside the obvious as to be non-existent, will you countenance my so doing in the prisoner’s interest?”

The solicitor gave a short nervous jerk to his mustache.

“That is a rather extraordinary proposition to advance,” he said disconcertedly; “and as you are a young man, a beginner, perhaps you will forgive my saying that I consider you hardly wise to advance it.”

“Because we cannot contrive to keep our corns out of the way, eh? We would look upon equity as a sort of fruit of the gods, which mankind may eat of, but may not analyze.”

“I shall not attempt to follow you. But what I would like to say is this,—and I hope, my dear fellow, you, as an advocate, will not consider this as a breach of etiquette on the part of your client,—I don’t like your question at all. In a word, speaking with twenty years’ experience behind me, I hardly think it ought to have been put.”

The accession of somewhat strenuous solemnity to a manner which a minute ago had been grossly, carelessly genial, filled Northcote with a heavy mocking laughter.

“I don’t like it at all; oughtn’t to have been put,” Mr. Whitcomb reaffirmed, with a curious admixture of nervousness and sternness.

“I wonder if I shall ever acquire the most valuable of all the arts,” said the young man, with an arch smile; “the art of knowing where not to look.”

“That art comprises the first law of success,” said the solicitor sententiously.

“I omitted to append a rather important corollary to that extraordinary proposition of mine,” said Northcote, with a mischievous air. “It is this: Is the advocate entitled to evoke what is non-existent in the eyes of his client, providing it has an existence in his own?”

“I hope to be spared anything further upon the subject,” said the solicitor. “I don’t aspire to be a casuist; I’m a common lawyer. But I feel I am entitled to say this: use this subtlety of yours on Friday to a full advantage, and you will have no cause to regret having done so.”

“Yes, it’s the voice of the genie, right enough,” said the young man, in a hollow voice, as he toyed with an empty wine-glass.

“And I feel I am also entitled to say,” said the solicitor, with emphasis, “since your mind appears to be exercised by the question, that when an advocate accepts a brief, his whole duty is to his client.”

“And in the case of this unfortunate woman, will serve the interests of his client by securing her acquittal?”

“Unquestionably.”

“If the ends of justice are thereby defeated?”

“Well, since you force one to say it, the interests of the prisoner’s attorney may not always be coincident with those of justice.”

“My dear Adeimantus, that is well said,” the young man exclaimed. “Yet I have your assurance that the interests of client and advocate should be always identical?”

“Yes, I think you are entitled to say that,” said the solicitor; “although understand, if you please, I speak entirely in my capacity as an attorney.”

“From which I gather that as a unit of mankind, as a subscriber to the common equity, you reserve to yourself the right to appease your private

gods subsequently in your own private fashion?”

“I suppose one does.”

“And in the meantime, you and I, attorney and advocate, must compass the liberation of this foul murderess, must, if we can, give her back to society?”

“Personally, I shall be content if we enable her to escape the extreme penalty.”

“You balk my question.”

“Pray have it as you choose. Thank God, I am only a common lawyer!”

“My dear Samuel Whitcomb,” said the young man, peering at him with gaunt eyes, “you would do well to get down here and now on your knees, and thank Him for a dispensation of that kind.”

IX

THE BRIEF WITHDRAWN

“WAITER!” called the solicitor at this point. “More coffee, if you please. Let it be hot and strong.” Turning to Northcote, he added: “Our minds have grown so subtle with that claret we’ve got to find out where we are.”

“Narcotics are not usually the friends of truth,” said his companion.

“My worthy Samuel Taylor,” laughed the solicitor, “I hope you will not forget I want to get to Norbiton to-night.”

“There is one other point,” said the young man imperturbably, “on which I wish to render myself clear.”

Mr. Whitcomb permitted himself a shrug of unmistakable expostulation.

“What, another!” he muttered under his breath. “This fellow is the devil!”

“I do not propose to take the line of insanity.”

Northcote spoke with a quietness which seemed to deepen the reverberation of Mr. Whitcomb’s subsequent exclamation.

“Then you hang her!”

“On the contrary,” said Northcote, “I promise an acquittal.”

For a moment the solicitor was robbed of speech by this extraordinary announcement.

“Upon my word,” he exclaimed, with a more manifest impatience than any he had yet shown, “you can hardly have read your brief. There is nothing to extenuate the crime; and the evidence of it is overwhelming.”

“Circumstantial, apparently.”

“You must know that in a capital charge the prosecution relies almost invariably upon circumstantial evidence.”

“So much the worse for it in this particular instance.”

“I am at a loss to understand.” The solicitor spoke in accents of alarm. “There is not a man living who could overthrow the present evidence.”

The young man smiled darkly. The symptoms of his inebriation had yielded to the clarifying influence of a liqueur and two cups of strong black coffee. His calmness was now forming a memorable contrast to the marked excitement of the older man.

“My dear Mr. Whitcomb,” he said, “I suggest, as you wish to get to Norbiton, that we adjourn this discussion until Friday evening, by which time Emma Harrison, *alias* Cox, *alias* Marshall, will be restored to society.”

“Such an undertaking is entirely reckless,” said the solicitor bluntly. “Quite the last thing that Tobin himself would attempt would be to upset the theory of the prosecution. The chain of evidence could not be more complete. Even he, in the opinion of many the most brilliant common law man we have at the present moment at the bar, would be content to urge extenuating circumstances, and call witnesses in their support.”

“Since you have seen fit to entrust the conduct of this case to me,” said Northcote, “I shall beg to be conceded as free a hand as would have been conceded to Michael Tobin.”

“Is your request quite reasonable?” said the solicitor. “Tobin has years of experience and success behind him.”

“You can trust me not to attempt more than I can perform,” said Northcote.

“Really, sir,” said Mr. Whitcomb, genuinely alarmed by such an obduracy, “I cannot admit your right, in the circumstances in which you stand at present, to overstep the bounds that are so clearly indicated by persons of experience.”

“I take this brief into court free of all restriction,” was the young man’s rejoinder.

“That one can hardly consent to,” said the solicitor. “Would you say it is quite legitimate to make such a stipulation? We have our witnesses on the line of insanity, and we must ask to have them called.”

“But do you not see,” said Northcote, “that if we call those witnesses we admit the theory of the prosecution, and cut the ground from under our own feet?”

“Certainly, certainly. One would have thought that so much would be self-evident.”

“Yet you sought me out in the capacity of a fighter. I take it that had you not desired to fight you would have gone straightway to Harris.”

“I can only admit the possibilities of a fight within limits. The woman’s guilt is established beyond question; our only concern is to mitigate its degree.”

“For my own part,” said the advocate, “I am not prepared to accept your proposition. To my mind, so far is the woman’s guilt from being already established, that I am prepared to give an undertaking that it never will be established.”

The solicitor drummed his fingers on the table-cloth.

“I should like Tobin to hear you say that. I wish you had been at the police-court when the case came before the magistrate. There is enough evidence to hang an archdeacon.”

“Very likely. But we shall be getting back to those abstract principles for entertaining which I have already suffered reproof.”

The solicitor gave an uneasy eye to his watch.

“You force me to deliver an ultimatum,” said he, in an uncompromising tone. “Please have the goodness to give an undertaking to conduct the defence on the lines indicated by Tobin, or return the brief.”

A wave of blood surged through the brain of the young advocate. A dismal sickness overspread his veins. Tantalus was about to pluck away that which he had fasted and prayed for before he could take it in his grasp.

“You have entrusted it to me already,” he said, in a dull, dry voice.

“In a case of this magnitude,” said the solicitor, with an almost brutal precision, “I reserve to myself the right to alter my mind. You have forced me to issue an ultimatum. Accept or reject it, whichever you choose.”

The solicitor called for his bill in a hectoring manner, and threw a bank-note on the waiter’s salver.

The young advocate, in the meantime, buttoned the brief in the breast-pocket of his somewhat threadbare black coat.

“What is your decision?” said the solicitor, regarding the young man with an insolent coolness.

“You can’t have back your brief,” said Northcote. “You gave it to me.”

“It can only be held conditionally,” said Mr. Whitcomb, “and the conditions are perfectly easy to accept.”

“The brief was delivered unconditionally into my keeping,” said Northcote, in an arid voice. “And,” he added, with a sudden gleam of the eyes as an overpowering recollection of his destiny came back to him, “you will have no reason to regret your act.”

Before the solicitor had framed a reply the waiter had returned with the receipted bill.

“Keep the change,” said the solicitor, “and call a hansom.”

The waiter withdrew.

“Do I take it,” said the solicitor, with an incisive drawl in his speech as he turned to Northcote, “that you have said no?”

“I have said no in the first place to your restrictions,” said Northcote, looking him full in the eyes, “and in the second to your ultimatum.”

“Then with all possible reluctance I must ask you to have the goodness to return the brief.”

“With an equal reluctance I feel I must decline to do so,” said Northcote, speaking through tight lips.

For a moment the solicitor was taken aback by this pointblank refusal.

“But—but—” he stammered, “surely this is most unprofessional. Such a thing has never happened to me in all my twenty years of practice.”

“And I don’t suppose,” rejoined the young advocate, “it will ever happen to you again. But suppose we leave the plane of our professionalism, step down from our platform, and approach the prejudices of each other in a rational spirit.”

“No more argument, I beseech you,” said the solicitor sternly; “I’ve got to get to Norbiton. Return the brief, and we will say no more. You are not the man for this case. You have a bee in your bonnet; you have too many brains. I think none the worse of you, mind; I respect you; you have your ideas; one day they may prove valuable, but not in common law. You have mistaken your *métier*, that is all. We will say you are above your work; at any rate, with all deference to Michael Tobin, I shall prefer to see Harris holding briefs of ours before a common-sense English jury and a matter-of-fact English judge when it comes to the capital charge.”

“If you are present in court on Friday,” said Northcote, “you will find that I, not Harris, will still be holding the brief you entrusted to my care.”

“Upon my word,” muttered the solicitor to himself, “this fellow is a madman, a lunatic. I dare say he’s been starving so long that a square meal has turned his brain.”

Involuntarily his eyes began to traverse the face of the man who sat bolt upright with arms folded at the other side of the table. It was excessively pale, flushed with wine and conversation, and strangely, exquisitely mobile. It had a kind of gaunt delicacy, but the obvious traces of suffering were permeated by a remarkable power. The features were irregular yet not unpleasing, the nose was straight and incisive, the eyes deep and luminous, the mouth large and full-lipped. The general expression was sombre, because it was so bluntly dominating, yet it was rendered memorable by many subtle qualities. Clearly it was one of those faces which to see was never to forget.

Mr. Whitcomb, in spite of his desire to get to Norbiton, and the severe tests to which his constitutional arrogance as an immensely successful man of the world had been subjected, owed too much to his trained powers of observation to lay them aside at a moment so remarkable.

“This fellow is cut to a big pattern,” was his mental comment. “That is a splendid mask for an advocate. Upon my soul, if he were not so mad I think I should be inclined to back him heavily. Yet I believe he is literally starving.”

The solicitor rose abruptly from the table to dispel his reverie.

“Rather than you should feel you have ground for complaint,” said he abruptly, as if touched by compassion, “I shall ask you to allow me to advance half of your fee; and to-morrow I will send you some other sort of work.”

Mr. Whitcomb unrolled a note for ten pounds and gave it to Northcote.

“Now,” he said, “kindly return the brief and I will go.”

Northcote crumpled up the note and thrust it in his pocket.

“I accept half my fee,” said he, “not as a bribe, but as a retainer. By this means I pledge myself to conduct the case to its appointed issue.”

“Pray do not let us misunderstand one another,” said the solicitor, with a sense of being trapped. “This brief is withdrawn definitely; I ask you to return it to me. I give you ten pounds as a solatium for losing your fee.”

“I cannot construe the situation in that fashion,” said the young man calmly.

“This is not a question of construction,” said the solicitor, with his anger beginning to announce itself; “it is a question of hard fact. Your brief is withdrawn.”

“And I,” said Northcote, with expansive bluntness, “do not submit to its withdrawal.”

Before this *impasse* which had presented itself in a manner so definite, the solicitor, whose patience had been strained beyond the breaking-point, could only take refuge in a series of imprecations.

“Fellow’s drunk,” he muttered. “Shall have to see him first thing to-morrow. But it is most irritating that he should refuse to give up the papers when time is so short. It looks like an application for a postponement after all.”

The solicitor turned for the last time to the advocate.

“It is a quarter-past twelve,” he said brusquely, “and I am going home. And I would like to urge you to gain reflection by the aid of a few hours’ sleep, because I shall look for that brief to be delivered at my offices at a quarter-past ten to-morrow morning. Good night.”

He held out his hand; Northcote ignored it.

“You appear to impugn my sobriety,” said the latter, “and that is a pity, because in all my life I have never felt my mind to be quite so clear as it is to-night. Perhaps it is not fair to expect you to appreciate the point at which I have arrived, and why it is impossible for me to restore your brief.” He pressed his hands over the bundle of papers in his coat. “You see your brief is my destiny.”

A final expression of somewhat forcible disapproval escaped Mr. Whitcomb, and he moved away to the room in which he had deposited his hat and coat.

As an attendant was assisting to envelop the solicitor’s portliness in these articles, it annoyed him to find that Northcote had followed him.

“Why not spare one this trouble to which you are putting one?” he said reproachfully. “Why not be moderately reasonable about it?”

“Ah, you see,” said Northcote with a smile, as he presented the ticket for his own extremely time-worn hat and coat, “even a thing so primitive as ‘the moderately reasonable’ must submit itself to the peculiarly elusive mental plane one is doomed to inhabit.”

“Peace! peace!” said the solicitor. “No more of that!”

“Attorney and advocate, judge and jury,” said the young man, as he rummaged in vain among his pockets to find a tip for the attendant, “justice and equity, the prisoner at the bar and the victim of circumstance,—one and all are to be poised upon the same arbitrary moral elevation, to submit to the mandates of a tribunal which is the creation of that egregiously warped and time-serving thing upon which we bestow the name of The Majority.”

“Peace! peace!” said the solicitor, unable in spite of himself to repress a laugh at the amazed face of the cloak-room attendant, and moving to where his hansom awaited him; “give up those papers here and now like a good fellow, and save me a great deal of time and worry. If Harris doesn’t see them first thing to-morrow it means a postponement, and we don’t want that.”

“There is need for neither,” said Northcote, buttoning up his threadbare overcoat. “But, ye gods and little fishes! what is the name for the total blindness, the pathetic obtuseness, which has eclipsed the faculties of this connoisseur, this expert? Here is one who has been angling for years for a

real authentic fish from the sea, yet when one plumps into his net, being accustomed to nothing but the sight of minnows, he doesn't even guess at his travail.

By this time the solicitor had fled precipitately through the vestibule of the restaurant, and stood in the portico awaiting his hansom.

X

THE RIDE TO NORBITON

As he was entering the vehicle Northcote came to his side.

“Good night,” said Mr. Whitcomb. “In the morning, perhaps, when you see things a bit clearer you will think better of this. In fact I am sure of it; and I hope you will not forget to send round the brief.”

Before he could close the door of the hansom, the young man had joined him in its interior.

“I hope you don’t mind my coming with you,” he said, entirely at his ease. “This matter is far too momentous for all concerned to be left in the unsatisfactory stage at which it has now arrived.”

“This fellow is the devil,” muttered the solicitor, suppressing a groan.

“Where, sir?” said the cabman through the hole in the roof.

“Norbiton.”

“Norbiton! Not to-night, sir; the ’oss is tired.”

“Take me to Norbiton,” said the solicitor sharply, “and never mind about your horse.”

“Very sorry, guv’nor—”

“Well, if you can afford to lose a sovereign—”

The cabman’s head disappeared immediately, and the horse started on its journey at a good round pace.

“These cabmen are the greatest robbers in Europe,” said the solicitor, settling himself in his corner. “They are a disgrace to London. One would like to see them taken over by the state.”

Although Mr. Whitcomb was ruffled by his companion’s strange pertinacity, his philosophic habit soon came to his aid.

“Have a weed?” he said, offering his cigar-case.

By the time each had lighted a cigar and ensconced himself in a measure of comfort in a corner of the vehicle, the irritation of the one and the aggressive tenacity of the other had been somewhat allayed.

“There are several points that still remain dark to me,” said Northcote, “in this odd affair. Having come in a moment of high inspiration to the attic of the obscure, having discovered its occupant to be of an uncommon faculty, having entrusted him with your business, all of a sudden, because of a singular revelation of his talent, you discard him and have recourse to an abject mediocrity.”

“You are certainly a queer fellow,” said the solicitor, amused by this piece of egotism. “A most unconventional fellow—quite the most unconventional fellow I have ever met.”

“Ah, there is my offence,” said the young man; “I have outraged the gods, I have disregarded the proprieties. Yet I would ask you, are not all conventions for the common vulgar? Are not nature’s most authentic specimens, those pioneers in every sphere of mundane activity who add the little more that means so much, are not these to walk about the earth just as nature fashioned them?”

“I am pleased to say,” said Mr. Whitcomb, emitting a soft purr of contentment, “I am a common lawyer. The whys and wherefores are not my province; I take things as they are.”

“That does not prevent all your instincts being up in arms when you encounter the unusual. How curious it is that the most deadly sin in the eyes of the average person is that shameless egotism which transacts the real business of the world.”

“If there were no rules to which one had to conform,” said the solicitor, “there would be no living in the world. Conventions to my mind are highly necessary. Of course every man has a perfect right to consider himself a tremendous fellow, but that is no reason why he should say as much to his neighbor. If he does, his neighbor will want to refute it.”

“And if he should throw down his gage, and prove to his neighbor in a perfectly logical and scientific manner that he is a tremendous fellow, his neighbor will not be content with wanting to refute him; his neighbor will

want to shoot him, or hang him, or burn him, or crucify him, and it is long odds that his neighbor will succeed in so doing.”

“I am afraid I don’t follow you.”

“I am speaking of the fate that awaited upon the majority of the tremendous fellows whom we discover in the pages of history; the founders of the religions, the saints, the heroes, the discoverers, the makers of the philosophical systems.”

“One suspects,” said the solicitor, “it was because they made the world so uncomfortable while they were living in it.”

“I agree. But what a world we should have if they had not.”

“It is not at all clear to my mind,” said the solicitor, “that in the long run these fellows of whom you are speaking have not done more harm to the world than they have done good. Not only did their abnormal egotisms run amok during their own lives, but after their deaths, which as you suggest were often brutal and unnecessary, they continued in the guise of saints and martyrs, and inspired teachers to wreak iconoclasm and discomfort upon mankind.”

“One can readily believe,” said the young man, “that you, sir, in your capacity of a member of the comfortable classes, to which by fortune and education you belong, would fetter the march of ideas by every means in your power.”

“Yes,” said the solicitor, drawing peacefully at his cigar; “few things are more distasteful to me personally than ideas. Particularly those lawless ones which proceed from ill-regulated and ill-balanced natures. It seems to me that they are responsible for nine-tenths of the misery that is in the world.”

“Do I take it that, in your opinion, so far from these so-called ‘great men’ of whom we are speaking meriting esteem from their fellows, their doctrines as well as their persons should be pursued with the fire and the sword; and that means should be adopted to exterminate the growth of these ‘great’ ones from the comfortable republic which is inhabited by the average person?”

“I would suggest it. I have given little thought to this subject, but I cannot think of a single historical personage of whom I do not consider that in the

long run mankind would have gained immeasurably had he never been born into its midst.”

“This is extreme doctrine,” said Northcote; “and may I pay you the compliment, sir, of saying that I find you to be one of a greater courage than I had suspected.”

“All the so-called ‘greatness’ one finds enshrined in history,” the solicitor continued, “proceeds from an abnormal egotism; and I think even a perfectly commonplace mind such as my own, which is content with the obvious, has only to take a most superficial look around to see that the abnormal is the only evil against which mankind has to contend.”

“Necessarily,” said Northcote, “since the self-consciousness of matter is the ugliest phenomenon known to natural law. But to follow the line of your reasoning, the abnormal person, whatever the sphere of his activity, is invariably the enemy of his kind?”

“That is my suggestion; the suggestion of an average mind that is content to rest on the plane of matter-of-fact common sense.”

“You would say that it would have been better for mankind had the poet Shakespeare never been given to it?”

“Unquestionably. In my view, all poetry, even in what we are pleased to call a sublime and concentrated form, is a direct emanation of morbid sensibility. It stimulates those already sufficiently irritable faculties of the mind which call for a never-ceasing vigilance to hold in check. Poetry is the chief enemy against which rational common sense has to contend.”

“Then in your view the greatest enemy of the human race of which history has taken cognizance is Jesus Christ?”

“I will not say the greatest; but He shares the opprobrium that attaches to His class. It was that type of abnormalism which developed the religious sense in man; and any sense more calculated to provoke infinite misery, any sense more completely out of harmony with the facts of existence, one cannot conceive.”

“In a word, excess of any kind is repugnant to the average person?”

“One would say so; mainly, I think, because it extorts such heavy toll of all who are brought in contact with it.”

“Then elevation of feeling, profundity of thought, subtlety of insight, austerity of morals, heroism, beauty, in short, the superlative in any guise whatever, should be eliminated from the republic of the average sensual person?”

“If the average sensual person could contrive a republic for himself, that would be its first decree.”

“Hence his hostility to those abnormal egotisms which are known as ‘greatness’?”

“As far as the average person can see, that appears to go down to the root of the matter.”

“Well, sir,” said the young advocate, “permit me to take a slight parable out of my own experience to refute this supposition.”

“Pray do so.”

The advocate selected as a preliminary a second cigar from the case of the solicitor, and resettled himself in comfort in the corner of the vehicle.

“All my life,” said Northcote, “from the farthest day to which my memory goes back, I have been persecuted with the consciousness of my own importance. In all my dealings with others, in the daily outlook upon my surroundings, not only have I been unable to detach myself from my own private entity, but I have also been obsessed with the knowledge that that entity was so much more powerful than any with which it happened to come in contact. As you will believe, a feeling of that kind spelt serious inconvenience to its possessor. At my private school I was the recipient of many cuffs in my capacity of a shy, nervous, and intensely self-centred child who detested games. It grew to be a special function of my youthful companions, and also that of every self-respecting master, to ‘knock the nonsense out of Northcote.’ However, so far from knocking it out, these disinterested efforts appeared to knock it farther in. And when in the fulness of time I ascended to the ampler region of a public school, my sufferings were materially increased. I was shunned, I was tormented, an opprobrious name was fastened upon me; and had not the fire which burned so intensely at the centre of myself kept me warm in spirit, life would have become intolerable.

“It was a consciousness of personal power haunting me day and night which caused me to scorn the gods of the little world in which I found myself, and to disregard the petty conventions which mean so much in every phase of human life. Accordingly I was marked out as an object of hatred and ridicule. However, as years went on, and I came to be endowed with the somewhat unusual physical frame which you may have observed I possess, I determined in a somewhat cynical spirit of revenge to devote myself to one of those stupid and unmeaning exercises, my contempt for which was one of the most potent causes of my unpopularity. Never before had I condescended to approach one of the usual school ‘games,’ other than in a spirit of levity; but when I awoke to the discovery that nature had somewhat ironically endowed me with a power of muscle, a suppleness of limb, and a bulk of inches which would in themselves make me the envy of every athlete in the school, I determined to turn them to account. It was in no spirit of open competition with those whom I despised that I resolved to become the most accomplished football-player who had ever appeared in the school. It was my somewhat curious method of avenging all the insults, all the barbarous forms of injustice, that had been wreaked upon me. I might have requited my assailants in other ways, but I was too proud to employ the methods of those whom I felt to be my mental, physical, and moral inferiors. Therefore I gave myself up to this mechanical exercise, and an abnormal concentration of will-power which I have always possessed, in conjunction with remarkable physical gifts, had the result for which I had prayed.

“When this new prowess was first bruited abroad it was received with derision. But in spite of an organized public opinion which in every walk of life assails the unconventional, this ability became a source of distress to the expert. ‘It comes to this,’ said the captain of the School Fifteen, after a House cup-tie in which dismay had been carried into the camp of the opposition, ‘if this sort of thing goes on, we shall have to think about playing “Cad” Northcote for the School.’ The shouts of derision with which this prophecy was received are still in my ears. However ‘this sort of thing’ continued to go on, and sure enough, to the amazement of men and gods, the day dawned on which ‘Cad’ Northcote did play for the School. He dominated the scene of action in every game in which he took part; but such was the strength of public opinion that the ruling powers withheld his ‘cap’ until the very last moment, the eve of the chief game of the year. It was the

match against our great school rivals, a neighboring seminary, of which, sir, I discern by certain unfortunate tricks of manner that you are an alumnus.”

“Never mind about that,” said the solicitor; “get on with your story. It is enormously interesting. Did you play against us in the great match?”

“Yes, I played against you in the great match. The ‘fez’ of the School Fifteen, which should have been mine weeks before, was duly presented to me on the eve of ‘Waterloo,’ for although it was a dreadful crime to be ‘unpopular,’ it was yet highly necessary to ‘take on’ the French. And I recall now with some amusement the manner in which I contrived to flout the *amour propre* of the venerable institution into whose service I was pressed. Instead of turning out in the garish colors with which I had been honored at the eleventh hour, I appeared upon the scene in a costume of the most immaculate whiteness. As soon as the captain beheld this apparition on the field of play, he came to me and said insolently: ‘Northcote, what do you mean by getting yourself up like this? Go back at once and put on the School colors.’ I rejoined: ‘I play for the School in my own colors on my own terms. I would like you to understand that if I am with you, I am not of you.’ There was a hurried consultation among my fourteen fellow players, and although their sense of outrage was enormous, that was neither the time nor the place to indulge it.

“The French were ‘taken on’ as they had never been ‘taken on’ before. But the debacle was the work of one man. Such a game as was played on that occasion by ‘Cad’ Northcote was never seen before or afterwards. According to tradition, which to this day invests his pious memory, he spent half his time in crossing the line of his adversaries, and the other half in standing the opposing three-quarters on their heads. He felt himself to be equipped for the part of the man of destiny. I believe the rout of our hereditary rivals on that occasion came near to approaching three figures.”

“You don’t mean to say,” exclaimed the solicitor, “that you are the great Northcote, the fellow who led the English pack while he was still at school?”

“No less.”

“Why, then I saw you play at the Rectory Field sometime in the ’nineties. I remember you had those damned Welshmen over the line three times in the

first five minutes. You pushed them all over the place.”

“Yes, we pushed them all over the place. You saw me at the summit of my fame. And I am now coming to the point of my parable. From those days of my inordinate success, which conferred not only lustre upon myself, but upon my school and all who were associated with me, I became not only a hero, but a figure of legend. The opprobrious title ‘Cad’ Northcote was dropped as completely as though it had never been. My lightest opinion was treasured, and heaven only can tell us how many they were on every point under the sun. I became a dictator where formerly I had suffered infinite misery and persecution. By a display of personal force criticism was laid low; yet, sir, according to this theory of yours, it must have been inimical to all who came within its sphere of influence.”

“I would say so certainly; demoralizing alike to its possessor, and to those who despised it in its growth and abased themselves before it in its flower.”

“Yet was it not with bated breath that you inquired whether I was the ‘great’ Northcote?”

“Pray do not overlook the fact, my dear fellow, that however much the average sensual mind may deplore the false gods before which it kneels, it has not the power to deliver itself from their thrall. This passion to ‘excel’ is a flaw inherent in the race.”

“It is at least pleasant to discover,” said Northcote, “that the average sensual mind is unable to banish the sentiment of admiration from its republic.”

“If it could,” said the solicitor, “there would be an end of these abnormal egotisms of which we have been speaking.”

“I do not agree,” said Northcote. “It is not a thirst for admiration from which they spring, but a thirst for power. And it is an uncomfortable reflection for those who belong to your republic that the world has been so arranged that mere power will always have its devotees. How lamentably your own practice breaks down before your theory. You have reverence for me as a player of football, and Tobin’s powers as an advocate fill you with enthusiasm.”

“True; and it is men like Tobin and yourself who forbid any reconciliation between theory and practice. A phenomenon is always inimical to the society in which it appears. It may stand forth as memorable and fascinating

as you please, but it does so at the expense of balance, law, and reason. Your presence in the football match ruined the game as a game, just as I have observed that the presence of Tobin in a case has been disastrous to the cause of justice.”

“Nevertheless, you invoke the aid of Tobin on every possible occasion.”

“I do.”

“Upon what pretext, may I ask, since you deplore his gifts so deeply?”

“The answer is simple. To whatever extent I may deplore the condition of things into which, through no fault of my own, I have been projected, beyond everything I am of a comfortable and conforming disposition. Therefore I make my subscription to the things that are. I have none of the reformer’s zeal; and it is one of the things for which I am thankful.”

At this stage of the conversation the voice of the cabman was heard from the roof.

“We’re in Norbiton, sir. Which house?”

“Straight on to the end of the road,” said Mr. Whitcomb; “then first to the right, second to the left, and it is the first house you come to at the corner of Avenue Road.”

“How quickly we’ve come,” said Northcote. “One would not have thought it possible to cover the distance in this time; with a tired horse, too.”

“The sound of your own voice may have been as agreeable to you,” said the solicitor, “as it has been to me. I confess it has passed the time very well.”

Northcote deduced from the more indulgent air of his companion that this imperious personality of his, of whose possession he was so conscious and upon which he built so much, had not been without an effect. He was thinking of the victory that he felt sure would crown his tenacity, when the hansom drew up at the gate of a very comfortable-looking suburban residence. It was girt with a high stone wall, and stood in a pleasant plot of ground amid tall trees.

As they got out of the hansom, the solicitor, after searching his pockets in leisurely fashion, collected four shillings and a sixpence and handed them up to the cabman on his perch.

“Wot’s this ’ere?” said the cabman gruffly. “This ain’t no use ter me, guv’nor. Yer promised me a quid.”

“In one’s dealings with the criminal classes,” said the solicitor, “one finds that the only method of self-protection is the use of their own weapons.”

“Yer promised me a quid, guv’nor,” said the cabman, who was too excited to follow the course of this reasoning.

“May I say,” rejoined the solicitor, with great suavity, “that a promise is considered to be a thing of no particular value among the members of the criminal classes.”

“Criminal classes! Wot!” cried the cabman, in a gust of fury. “Breaks yer promises and calls yerself a toff! Not a-going to part with that quid. Well, guv’nor, we’ll just see abaht it.”

Emitting a string of foul expressions, the cabman hopped down from his perch.

“Call yerself a toff? Give me that quid or I’ll knock out yer —— eye.”

“Try,” said the solicitor, with a coolness that his companion felt to be inimitable.

Inflamed a little by drink as well as by a sense of injury, the cabman prepared to exact a summary vengeance. Breathing slaughter he came at Mr. Whitcomb with his fists in the air; and that gentleman, stepping aside coolly and nimbly, hit him with a hand ungloved for the purpose a heavy blow in the face. The cabman dropped like a log in the slush of the gutter.

“A broken nose,” said Mr. Whitcomb, turning to his companion, while they stood watching the unfortunate cabman gather himself slowly and painfully together.

“I feel for you, cabby,” said the solicitor, to his rueful assailant, “but I can assure you this is wholly in the public interest. Thieves and bullies, as well as fools, have to be taught by experience.”

“Why the ’ell didn’t yer sye so?” whimpered the cabman, as he strove in vain to stanch the blood that poured from his nose. “’Ow the ’ell should I know yer could use ’em? I piked yer fer a toff in yer ’igh ’at and yer fur coat and yer glass eye; ’ow the ’ell should I know yer could use ’em?”

“That is for you banditti to discover,” was the rejoinder of his fare. “It is perhaps my chief recreation to thrash hansom cabmen in the interests of society. I am proud to say your case is one of many.”

“Blow me tight, a prize-fighter!”

“It is not too much to say I might have aspired to that calling, if the somewhat material nature of my ambitions had not summoned me to a more lucrative if less honorable practice. Twenty years ago I was considered rather useful with the gloves.”

“Not so rusty nah, guv’nor,” said the cabman, imperfectly mollified, and stanching his nose with his sleeve. “Give us a extra bob an’ I’ll drive to the ’orspital.”

“Here is your sovereign,” said Mr. Whitcomb. “Training and education make one so punctilious in regard to one’s word, although common sense assures one that like the majority of your class you are a rogue, a liar, and a bully; in a word, a common pirate. Here is your money; and have the goodness to take yourself off as reticently as you can.”

There was not a more astonished Jehu amid the ranks of his London brethren than this unfortunate specimen, as he climbed into the seat he had left so injudiciously. Bestowing a succession of brutal strokes of the whip upon his even more unfortunate horse, he was lost immediately in the sleet and darkness of the morning, leaving Northcote, who was only slightly less astonished than his bleeding and blasphemous self, standing at the side of the solicitor against the gate of the latter’s residence.

XI

MR. WHITCOMB'S FOIBLES

“IN moments of relaxation from my studies,” said Northcote, taking his companion by the arm, “I like to look upon myself as something of an amateur of the human mind. I find a great fascination in the endless nuances of the human character. Permit me to say that I have never come across a more promising subject than is offered by your own personal complexity. Why in the name of the marvellous did you batter that poor devil if you had no intention of cozening him out of his money?”

“He suffered for one of my foibles. I am convinced that a society of banded robbers is at work to blackmail, bully, and despoil the peaceable citizens of London. The law is powerless to touch them, their operations are so cunning and are ordered on so mean a scale. Therefore it would seem to behove every stalwart private individual to make war upon them openly; and I am proud to affirm that a good measure of success has attended my own puny efforts. It is quite possible that in the course of these labors I may happen upon a retired champion who chooses to eke out a well-deserved leisure in a manner so unsavory, but in the meantime I deal out a dozen broken noses a year to this banditti.”

“You are an enigma, indeed,” said the young man. “You professed just now to accept the things that are, that your last intention is to effect any sort of social reform; yet look what you do. Again, you profess to be a connoisseur in men of promise, yet with your eyes open you reject the most authentic specimen that has ever swum into your ken. Further, you deride every form of ‘greatness,’ and despise every manifestation of the force that it is your daily business to employ.”

“I am an enigma, right enough,” said the solicitor; “yet, for that matter, so are we all. Who shall explain himself? Who shall attempt it? I preach one thing in all sincerity, yet with an equal sincerity I practise another. Nature designed the lymphatic Samuel Whitcomb to be the most consistent man alive, yet see, my friend, how malleable he is, how mobile, how entirely at the mercy of the caprices that whirl about in himself. It gives me an

indescribable pleasure to thrash hansom cabmen; my being craves for that form of relaxation; it is its conception of true physical and intellectual enjoyment.”

“Did I not understand you to say,” asked the astonished young man, “that these Promethean labors were undertaken in the service of society?”

“Do not believe me,” said the solicitor, with his rich laugh floating melodiously into the chill night air. “I would deceive others with that pleasant figment, but I do not impose on myself. It is a sheer animal impulse, which I am powerless to withstand, that causes me to break the noses of this banditti.”

“Well, sir,” said Northcote, “I will wish you good night. It has been a real pleasure to have met you. The enchanting complexity of your personal character will beguile me during my long walk home. As for the brief that I hold, unless a whim should cause you to obtain a postponement of the trial, you will find it in my custody at the Old Bailey on Friday morning.”

“Not so fast, my friend,” said Mr. Whitcomb, as Northcote turned on his heel. “You had better come in and have a drink before you start. It will be a dreadfully cold and wearisome tramp back to town through this slush in the small hours of the morning.”

“My own foible is to walk the streets at night,” said Northcote. “That is the only taste of real freedom one enjoys in a city. It is only during the middle of the night in a place like London that one can think one’s own thoughts and breathe God’s air. But as we do not appear quite to have settled this momentous business of the brief, which may mean so much more to society at large than you can imagine, I will enter your domain and drink one glass of your whiskey.”

The solicitor led the way thereto, unlocked the front door with a latch-key, and Northcote found himself in the interior of a modern dwelling-house. It was furnished with perfect taste, fitted with every luxury. The heavy mats on the floors muffled the sounds of his feet; the warmed air that assailed his nostrils was seductive and delicate after the bitter inclemency from which he had taken refuge. Numerous objects of vertu were scattered in every nook, and the walls were lined with pictures that astonished him beyond measure.

“Why, that is a Whistler—one of the two or three!” he exclaimed, as he passed in the hall an unpretentious-looking portrait.

“I got it years ago for a song, before they began to be bought,” said Mr. Whitcomb modestly.

“And what is that stuck over the stairs? From this distance it looks suspiciously like a Velasquez. But surely that is in the Prado?”

“Aren’t you confounding it with the companion picture?”

“I had no idea we had this in England.”

“We have many things in England which fortunately are not matters of common knowledge. Every year they are becoming rarer, owing to that scourge of nations, the press. If you value my regard, you will forget that you have noticed it.”

“Did you get that also before they began to be bought?”

“There is rather a strange story attaching to that picture.”

“Ah!” exclaimed Northcote, with an anticipatory eagerness; “that is where pictures are so unlike women—they are worthless if they have no history.”

“Possess your soul in patience, my friend,” said the solicitor, with his rich chuckle; “the history of the lady in the blue dress is not going to be told.”

“I must get a bit nearer,” said the young man, with shining eyes, “Eh, she’s authentic! You should be a proud man to keep that little lady under your own roof.”

“As proud,” said the solicitor, in his unctuous voice, “as any other Goth of a householder in his snug suburban residence. Conceive the feelings of the Huns when they overran Rome.”

“Or the mob,” said the young man, “when they sacked the Tuileries.”

“Is she not precious, the little girl in the blue frock?”

At the sound of soft accents, Northcote, a little startled, swung round to confront a lady. She had come upon him noiselessly, and was standing at his side.

“Hullo, Angel!” said Mr. Whitcomb, bestowing a kiss upon her; “this is late for you. Allow me to present Mr. Northcote, England’s future Lord Chancellor.”

Northcote found himself to be holding the hand of a singularly beautiful woman. All that art can devise to enhance the sure, strong, and original groundwork of nature was displayed about her, chastely yet abundantly. Diamonds were strewn in the flounces of her gown; three tight bands of pearls clasped her throat; her shoulders gleamed; her hair had the evanescent hues of the fleeciest silk—each tress was the fruit of cunning and labor. Yet through every curve of her gorgeous fairness there peeped forth an almost quaint simplicity. Her eyes were bright; her features, each of which seemed to add a personal brilliancy to her expression, had a lustre at once naïve and opulent, as becomes one who accepts greedily all the thousand and one glittering and delightful minutiae that money adds to life; who has both hands outstretched to receive them; who carries them joyously, like a child, to her bosom; who presses them to her lips.

“His name is Northcote,” said the solicitor, patting her white arm. “From the window of his garret in Fleet Street he surveys the universe with the haughtiest eyes imaginable.”

“How clever of him,” said the lady, in a little melodious accent.

“Those eyes of his know everything,” said the solicitor. “Before them human nature unveils the whole of its mysteries. They range over the stars in their courses, and he himself is familiar with spirits. They have already promised to enable him to conquer the world.”

“He must be what they call a favorite of fortune,” said the lady, with engaging laughter. “He must be clever.”

“Yes; he confesses it.”

“He is young,” said the lady, with a tender little sigh.

She half-turned to meet the eyes of the young man, and looked straight into their sombre depths. Her own had a steadiness that was not at all imperious—they were not even faintly insolent; the candor of their inquiry was not so much as tinged with encounter. An infant staring with its ruthless curiosity into the human soul could have hardly dealt less in implication. Yet the act itself seemed to acquire for the young man the nature of a feat so

meaningless, yet so charged with meaning did it appear. Only the support of a confident personal beauty rendered it possible; yet it was nothing at all, not even a comment, nor the formation of an opinion, hardly the faint awakening of an interest; all the same the blood had invaded Northcote's ears.

"You mustn't look at him so long," said Mr. Whitcomb, laughing. "You are making him shy."

"Pray look at me as long as you please," said Northcote, who had recovered already his self-possession. "And if you do really succeed in making me shy, it may be shown to you one day as not the least of your works."

Her laughter rang out pure and clear like the tinkling of steel.

"Yes, he is clever," she said, "although he is so young. I am so pleased. I am sure to like you, Mr. Northcote; I like all men who are clever."

"Is it that you have so little to fear?"

Northcote was now returning her frank look of inquiry with a gaze of equal candor.

"Yes, there is truth in that," she said sagely.

"Are not the powerful among us the most vulnerable to your sex?" said Northcote gently.

"Yes, that is true also," she exclaimed, in a sort of glee. "Why has it not occurred to one before?"

"If you speak much with this gentleman," said Mr. Whitcomb, "he will tell you a large number of things that you will be surprised to think have not occurred to you before."

"He looks like that," said the lady, betraying a dimple. "I hope you don't mind my looking so much at your face, Mr. Northcote. It is one of those fascinating faces that seem to give a new meaning to old ideas."

"Yes, you are very well matched," said Mr. Whitcomb cheerfully; "and doubtless you will find a great deal to say to one another. But it will not be to-night, madam. Are you aware it is a quarter to two? Now suppose you play us a bit of a tune while we take a much-needed drink, and then I shall send you to bed."

The lady led the way to a drawing-room. Luxury and taste appeared there to have been carried to their highest point. Northcote, whose delicately poised sensibilities vibrated to the simplest of external things, was fain to believe that paradise itself could not have shaped a bolder contrast to that bleak squalor which he had been doomed to inhabit year after year. Somewhere apart in the sanctuary of the spirit, the home of so many complex and marvellous things, were chords responsive to the challenge of the beautiful. They could thrill before the manifestation of its power, even in that which was exterior, material, unmeaning. These cushioned enchantments, this bright bower, with so exquisite an occupant casting slim jewelled fingers across a wonderful instrument, sent a shock of intoxication into his blood. At the same instant he was conscious of a stab of shame. It was the flesh, the draperies, the trappings to which his pulses responded; it was not the magical secret which was contained in the miniatures upon the walls, in the passionate delicacy of the cadences which sobbed themselves out liquidly under the siren's touch of this beautiful woman.

He stood in front of the cosy fire, glass in hand. A soft warmth overspread his being. His eyes glanced from the white shoulders of the enchantress to the thousand and one hues which were blended so cunningly in the carpets and tapestries. The subtle playings of light and shadow, the mellow effects of the atmosphere, the softness of the music, began to assail his senses with indescribable pangs. He feasted his eyes, his ears, his nostrils; they rewarded him with gladness. His heart beat violently.

"These rare kinds of genius, are they not barbarous?" he said, when the siren had ceased to cast her fingers.

"It is like children lisping," she said, half-turning her head, with a smile that curved her mouth entrancingly.

"Yes," said the young man, "poetry, romance, imagination are primitive; they belong to the childhood of nations, to the dawn of new worlds. What a divine inspiration these sweet-voiced children of nature who are bought out of due time, these unhappy Poles, Germans, and Frenchmen bring to their despair. Instead of sitting down in black coats to make their music into beef and mutton, they should be tripping through the glades piping to the birds, the trees, the bright air."

“This is a mad fellow, my angel,” said Mr. Whitcomb indulgently, “but if you are gentle with him you may find him amusing.”

“Mr. Northcote will amuse me enormously,” said the lady, with a demure glance.

“Is it thus you rebuke his madness?” the young man asked.

“On the contrary, I don’t think I have ever seen a sanity that is quite so perfect.”

“Drop it,” said the solicitor, roguishly pinching her ear. “Beware of dangerous turnings, my son. She is quite prepared to play George Sand to anybody’s Alfred de Musset. She even does it to the greengrocer when he comes round with his barrow. I understand they discourse divinely together upon the subject of cabbages.”

“But Witty is too much the man of the world to be jealous about it,” she purred.

“If Pussy hasn’t the opportunity to sharpen her claws on a sofa or an ottoman, she doesn’t mind a wicker-work chair.”

“Witty, darling,” said the lady, “I hate to find rudeness keeping company with real distinction of mind.”

“Upon my word,” expostulated Northcote, seeking to measure her depth, “I consider that rebuke to be much prettier than the one bestowed upon me.”

“When, Mr. Northcote, did I rebuke you?”

“Did you not say I should amuse you enormously?”

“Is not that the only compliment a woman has the power to pay nowadays?”

“Yes, Noodle,” said Mr. Whitcomb, laughing; “but don’t you see how young he is, and therefore how serious? Who would call ‘enormously amusing’ a fitting compliment for one of the seven champions of Christendom? This is a devil of a fellow.”

“I can roar you like any sucking dove,” said the young man.

“How it would thrill one to hear you do it!” said the lady, enfolding him with large eyes.

“He is a man of destiny,” said Mr. Whitcomb; “he carries a genie in his pocket.”

“Oh!” said the lady, with clasped hands.

“One of these fine mornings he will stand the world on its head.”

“O-o-o-o-h!” said the lady.

“And having done that,” said Northcote, “this amazing fellow will dig a hole in the universe for to bury the moon.”

“I would that all men had ambition,” said the lady, looking down at her shoe. “If Witty had only a little of that precious salt which forms a sediment at the bottom of every fine action he would be one’s beau-ideal of a hero, a Christian, and a philosopher.”

“Minx!” exclaimed the solicitor. “If it were not for my ambition I should never rise from my bed.”

“So this wonderful Mr. Whitcomb has no ambition!” said Northcote. “You see I have found his character so complex, that in my capacity of an amateur of the human mind I am picking it out, here a little, there a little, piece by piece.”

“You must give him no marks for ambition,” said the lady. “But since when did you become acquainted with him not to have found out that?”

“Since this evening at ten.”

“Ah, then, you are absolved. He will certainly baffle you at first.”

“He is wholly incomprehensible to me. He is a man of moods who oughtn’t to have any.”

The lady clapped her hands in a little ripple of glee.

“How right,” she cried. “In a dozen little words you have shown me the nothingness of my own knowledge.”

“Of course he has, Vapid One,” said Mr. Whitcomb. “Have I not told you he carries a genie in his pocket?”

“Then that is why his eyes are so deep and bright,” said the lady, turning to peruse Northcote again with an unfathomable coquetry; “and would you not

say, Witty, that the genie is in some sort responsible for his mouth?"

"Is this public laying of one another upon the dissecting-table a new parlor-game that has been brought into vogue by the long winter evenings, may I ask?" said Mr. Whitcomb, concealing a yawn.

"Pray do not be insolent, Witty. The proper study of mankind is Man."

"In the words of Pope," said the solicitor, turning to replenish his glass.

"You can see how Mr. Whitcomb baffles me," said Northcote, who did not propose to lose the opportunity of following up his clue.

"Is it his attitude to hansom cabmen that makes him so dark?"

"That is contributory. But it is mainly because he has come before me in the guise of a waverer that I stand so much at fault. If one knows anything about anything one would be prepared to affirm that nature had designed Samuel Whitcomb to know his own mind."

"He does as a rule. I have never known him waver in anything; but then, of course, it is only quite recently that he has begun to associate with dangerous persons who keep a genie."

"Do you suggest that he is susceptible to such a thing as a genie? Would it have a malign influence upon him, do you suppose?"

"I would suggest it to be likely in the highest degree."

"Now, look here, my young friends," interposed the solicitor at this point, with a broad good humor, "Samuel Whitcomb does not propose to play the part of the corpse at the lecture on anatomy."

"You will help yourself to another drink like a good boy," said the lady severely; "and you will please to say nothing until we have dealt with your 'case.' Your character need not fear the lancet and bistoury of true science. Tell me, Mr. Northcote, wherein he is a waverer."

"I am rejoiced to hear you put that question," said the young man, with a gesture of triumph he did not try to conceal, "for now it is that I unfold my tale."

XII

THE FAITH OF A SIREN

“AT about ten o’clock this evening,” Northcote began, “as I was kneeling in front of the fire—there was not any fire, by the way, as it costs too much to afford one sometimes—in my miserable dwelling at the top of Shepherd’s Inn, the oldest and most moribund of all the buildings in Fleet Street, who should come climbing up to the topmost story of the rickety and unwholesome stairs, under which the rats have made their home for many generations, but Mr. Whitcomb. And what do you suppose was his business?”

“He wished to buy one of your pictures.”

“Ah, no, I am not a painter.”

“I thought there was a chance of it, since they say all very good painters are so poor. But perhaps you are a little too fierce, although I am told these impressionists are terrible men.”

“The painting of pictures is one of the few things I have not attempted,” said the young man, consenting to this interruption that he might sit for his own portrait.

“Well, I should not say you are a writer of fiction. They are so tame. Besides they are all nearly as rich as solicitors.”

“Why not a poet?”

“Why not? although your fierceness would make you a dramatic, not a lyric one. Still it is impossible for you to be a poet, because I am sure that Witty would never have climbed up all those stairs to your miserable garret—I feel sure it is a garret with a sloping roof with a hole in it—”

“There is a pool under the hole which has been caused by the percolation of water—”

“On to the atrocious bare boards, its occupant being much too poor to afford a carpet. Yes, Witty would never have climbed up to your garret if you had

been a poet. Or stay, he might, had you been Mrs. Felicia Hemans. As you are a seeker of documentary evidence, he has been known to recite her poems, at the request of the rector of this parish, to a Sunday-school party.”

“Base woman,” said the solicitor, with an air of injury; “I claim to be an admirer of the poet Longfellow.”

“Never, Witty, in your heart; it is merely your fatal craving to be respectable in all things. But in the matter of poetry you must be content to remain outside. You would never have climbed those rickety stairs to that cold garret to see John Keats.”

“Well, now, Featherhead, did I not tell you at the first that our young friend was England’s future Lord Chancellor?”

“I will never believe that; I will never believe that his destiny is the law. His eye has amazing flashes; and is there not a beautiful eloquence burning in his mouth? I cannot think of him as rich Witty, and successful Witty, and smug Witty, like you atrocious lawyers. He is one who would be an overthrower of dynasties, a saviour of societies.”

“You are letting your tongue wag, Noodle. If you talk so much it will take the young man until daybreak to unfold his story.”

“I am an advocate,” said Northcote.

“An advocate,” said the lady softly; “yes, I think you may be that. One no more associates an advocate with the law than one associates a poet with a publisher.”

“You would say,” said Northcote, “that it is the function of an advocate to draw his sword for the truth, for progress, for justice, for every human amenity?”

“I would, indeed. Why, if one thinks about it, surely it is nobler to be an advocate than to be a poet or a soldier. One might say it was the highest calling in the world.”

“Then let us say it,” said the young man, “for I verily believe it to be so.”

“And what, pray, was Witty’s business with this advocate?”

“They are going to hang a woman; and Mr. Whitcomb, who to his infinite complexities and many-sidedness as a citizen of the world adds a leaven of

the finest humanitarian principles, has undertaken to save the poor creature from a fate so pitiful.”

“To hang a woman!” said the lady, drawing in her breath with a sharp sound. “Is it still possible to hang a woman at this time of day?”

“Perfectly,” said the young man. “They do it in every Christian country.”

“Then the world has need for an advocate,” said the lady, with horror in her eyes. “It is necessary that we should have yet another champion for our sex in Christendom. Yes, this was he whom Witty came to seek in that garret at the top of all those rickety stairs.”

“He came to seek, and found no less a person,” said Northcote. “And having found this authentic champion of your sex, he gave him a mandate to plead on behalf of this unfortunate creature, the least happy of all its members.”

“What a moment of high inspiration for us and for him,” said the lady, with a glance of tenderness.

“It was even as you say. But I would have you mark what follows. Scarcely has he bestowed these high plenary powers upon one whom he has ventured to select from among all the great multitude to champion your sex in the name of humanity, than for a whim he withdraws his mandate.”

“Impossible; it would be an outrage upon us.”

“Yes; unconditionally and peremptorily he withdraws his mandate.”

“Impossible; they will do the poor creature to death.”

“Yes, they will do her to death. He who has been called to the office of averting her doom has decreed that she must walk to embrace it without a friend to plead her cause before humanity.”

“Surely this cannot be; society itself must protest.”

“One expects it; yet things are as they are.”

The beautiful creature turned to the solicitor with an almost royal air.

“What, sir, can you find to say in your defence?”

Mr. Whitcomb gave a short laugh.

“I yield,” said he.

“You restore the mandate?”

“Yes, yes, yes! My blood be on my own head, but so it must be. It is beyond flesh and blood to withstand such a pair. You, madam, are a sorceress; and this fellow is the devil.”

“I am content to be a sorceress in the cause of my unfortunate sex,” cried the lady; and turning to Northcote added gravely: “And is it not high time that we acquired a devil for our advocate?”

Northcote, who from the moment of her first appearance had foreseen a victory, took her hand to his lips impulsively, with an expression of gratitude.

“I hope this will be all right,” said the solicitor, viewing his surrender with a rueful smile. “You see it is the first time in my life that a foreboding has overtaken me in the midst of action. Whether it is the importance of the case, the obscurity of the advocate, or a certain flamboyancy in his bearing which is so repugnant to an English common lawyer, I cannot tell; but let me confess that I have already a premonition that I have been guilty of a mistake. And I will go farther,” said Mr. Whitcomb, with a wry laugh; “I even see ruin, blue ruin for all concerned, hidden in this irresolute act. Sharp little shivers go down my spine.”

“It is no more than the reaction,” said Northcote, “which attends our highest resolves. Is it not in such moments that a man truly measures himself? It must have been at the fall of the barometer that Samson was shorn of his locks.”

“Is there not always a woman in these cases?” said the lady. “This unfortunate creature whom our advocate is to deliver from the gallows, may she not be a Delilah of some kind?”

XIII

BE BOLD, WARY, FEAR NOT

AT these words, lightly spoken, Northcote grew conscious of an indescribable sensation which he had never experienced before.

“If it were one’s custom,” he said, with a laugh as wry as the solicitor’s, “ever to heed the note of prophecy, one might discern it in your words. But I will not do so. Since that dark hour in which I summoned the genie, have I not adopted as my device, ‘Be bold, wary, fear not’?”

“Now you come to mention it,” said the solicitor, “it may be this talk of the genie that has filled me with these forebodings.”

“That is very foolish, Witty,” said the lady. “You have but to look into the eyes of our advocate to know what it is and where it dwells.”

“He is quite entitled to keep one, of course, but it is not usual to take it into society. I sometimes think I may have a bit of a genie myself, but I do what I can to keep it a profound secret from the world.”

“Should a man venture to compliment himself, Witty, upon the score of his reticence?”

“Would you not say,” inquired Northcote, “that all our reticences had their roots in our cowardice?”

“I would love to say it if I dared. And I would love to say of our advocate that his genie enables him to fear nothing.”

“Yes,” said Northcote, “you shall say that.”

“A man must have fear of some kind,” said the solicitor, “if he is to succeed against enormous odds.”

“There may be a place for it in his reflections, but never in his resolves. Hence you will discern how our reticence has its basis in our cowardice.”

“Subtle brute,” said Mr. Whitcomb, giving his mustache a tug of perplexity. “He is entering upon his special function of turning black into white.”

“Nay,” said Northcote, “the subtlety is not mine, but Francis Bacon’s.”

“Good, O Advocate!” said the lady, as she rewarded him with bright eyes. “You do well to confute the Philistine with a learned name.”

Again the young man carried the jewelled hand to his lips. He felt the lithe fingers respond with a sweet and secret motion.

“Rogue!” said the solicitor, laughing. “George Sand and De Musset—Polly Whitcomb and the greengrocer at the back door. Well, Mischief, as you have entered into a compact with this fellow to get him his way, play us another bit of a tune, he shall keep his brief, and we will go to bed.”

“I knew we should force him to capitulate,” said Northcote to the siren, as he arranged the stool before the piano.

“What must I play?” she said, looking down at her hands.

“Play me a bit of Beethoven, so that I may take him out with me into the darkness of the streets.”

She played three movements of a symphony, and all his senses were submerged in the colors of romance. These fragrant hues which had a delicate aroma and pungency the imagination alone can impart were of no time or country. There was nothing that the mind could render as belonging to itself; the faculties which embody the technical were overcome by the tumultuous surgings with which they were oppressed. He seemed to be transfigured with the sense of joy, to be overpowered with the knowledge that he was a living man, able to breathe and to perform. The room had grown small and heavy. He was consumed with an overmastering desire for the spacious streets, for the largeness of the universe.

“There is a bed for you here,” said the beautiful player, almost before the last phrase had ceased to vibrate under her touch. “We could not think of turning you out at this hour.”

“I have not the least intention of staying,” said Northcote. “The hospitality you have given me already has been too profuse. I feel that I must roam for the rest of the night in the open streets, a Flying Dutchman of the London slush. Perhaps I shall fancy myself to be the mad music-maker of Leipsic, who walked at night on the ramparts to weave his harmonies.”

“We cannot consent to your leaving us in this manner,” said the hostess. “As for roaming through the night, it will not be good for you. Nor is there the least necessity why you should.”

“You forget his genie,” laughed the solicitor. “The infernal thing will drive him all over the suburbs of south London and send him home *via* the Crystal Palace and Blackfriars Bridge.”

“He must not go to-night,” said the lady. “It will be a perfectly horrid walk, and I believe the sleet has turned into rain. It will be awfully cold and unpleasant. Besides, if anything happens to our advocate he will not be able to deliver this unfortunate creature from her doom.”

“It is useless to argue with a man who has got a genie,” said the solicitor. “I have tried the experiment and therefore am in a position to give evidence. What will overtake him in the way of adventures I dare not conjecture; but of one thing I am assured—no earthly power will cause him to alter his determination.”

“Alas! I know it,” said the lady, sighing. “He has a face that will yield to nothing.”

This diagnosis proved to be correct, at least as applied to this instance, as in spite of the humane entreaties of the lady, supported by a banter which Mr. Whitcomb did not attempt to dissemble, Northcote insisted on faring from their roof at a quarter-past three. He bade them adieu with a cordiality that was eloquent of a deep sense of friendship.

When Mr. Whitcomb returned to the drawing-room after having shown the young man over the threshold of his residence, he faced the lady with a half-smile of bewilderment.

“Extraordinary chap,” he said. “He frightens me, takes me out of my depth. There is such a bee buzzing about in his bonnet that he might come wofully to grief on Friday. If he does, there will be none but myself to blame, for he is wholly without experience.”

“I think you may trust him,” said the woman softly.

“Well, you are a mass of instincts, Miss Pussy. And you counsel me to stick to your advocate?”

“I do, Witty; closer than a brother. I think he is perfectly amazing. I think he will make the fortunes of all who are connected with him.”

“Another Michael Tobin, would you say?”

“What a dunce it is,” said the lady, with an indulgent sigh. “Michael and this man don’t inhabit the same hemisphere. Michael is a dear fellow, brilliant, clever, but only surface deep; this is an ogre of a creature, a monster, deep as the sea, of the proportions of the universe.”

“Come, I say, Mrs. Noodle; they don’t call that sort to the bar. They might find the purlieu of the law too confining.”

“If you have not yet learned to scorn my advice, Witty, take care never to have this man against you. If you have him on your side every time you go into court, you will not have many lost causes to record.”

“He is clever, I grant you, but the worst of it is he knows it.”

“He is arrogant with power, Witty, which is somewhat different, although it sounds the same. I think he is a perfectly terrible man, and he looks so big and great and deadly. Did you notice his enormous hands? Did you observe his chest? And that voice as soft as a flute yet as deep as an organ?”

“You are completely conquered, Featherhead. Yet you would not call this phenomenon precisely beautiful?”

“Strength is more beautiful than symmetry, I think; although I grant you that huge square jowl verges upon the horrible. It is far worse than yours, my dear, although the poor hansom cabmen are constantly mistaking it for that of an eminent pugilist.”

“Well, little gal,” said the solicitor, “I shall heed you once more, since your luck is proverbial. I am prepared to back our latest discovery pretty heavily, although I must confess that when in cold blood I catch myself thinking of his infernal genie he frightens me to death.”

XIV

A JURY OF TWO

IN the meantime the subject of these speculations had entered the night. Food and wine in unaccustomed quantities, the romance of events, the spells cast by music and by a woman of signal beauty and accomplishment, had provoked his energies to an insurgency that had rendered them overbearing. He walked like a whirlwind, up one street and down another, in the chill wet darkness, not knowing whither he was bound. Soft yet wild strains of melody which still floated through his brain mingled with a swarm of ideas which were whirling about in it like so many atoms in a protoplasm. He moved so fast in the endeavor to keep abreast of his thoughts that at times he broke into a run.

The seductive, amiable, and brilliant woman, who had so nearly succeeded in casting over him a delicious spell, began to fade from his consciousness like the intangible occupant of a dream. She had no appeal for him now. The feast at the restaurant, that phase of color, warmth, and splendor in which for an hour the squalor of his existence had been dispelled; the struggle to retain the treasure which had been entrusted to his keeping by a supernatural agent; the bizarre incident of the hansom cabman; and the personality of the genial god out of the machine had now ceased to have significance.

Indeed one thing alone merged his faculties in his overstimulated thoughts. It was the packet which he could feel in the breast-pocket of his coat, towards which his hands were straying constantly. These pages of foolscap bound with red tape, were they not his magic talisman? By that occult presence had not his thwarted bleak and empty life been changed into an electrical existence crowded with glory?

His brain bursting with ideas, he began to run faster and faster through the maze of endless streets, lined with high garden walls, portentously respectable dwelling-houses, lamps, shops, and secretive silent-footed policemen. These frequently flashed their lanterns upon him, for the manner of his progress had an illegal air. Even at the height of this orgy of freedom,

the question shaped itself with the oddest definiteness as to whether it would not be expedient to curb his paces, since if he were stopped, he feared lest he should be able to render an account of himself that would be sufficiently lucid to commend itself to the myrmidons of the law.

When at last his exertions had thrown him out of breath, and his frame did not respond with quite the same unanimity to his passion, he stopped under a lamp in the middle of a street on the side of a steep hill, took out the precious document he carried, and began to peruse it for sheer human pleasure. He even pressed his lips to this prosaic thing, with no less of fervor, indeed with more abandonment than he had saluted the hand of the sorceress who had been the means of restoring it to his care.

“I must make her my saint, I must burn candles to her,” he muttered, recalling her image with a sense of rapture.

As he stood under the lamp, a very large and slow-footed policeman waddled up towards him, trying doors and casting the light of his lantern down the areas he passed. As he went by, keenly scrutinizing the figure of the young man, yet pretending not to notice it, Northcote hailed him.

“Where might I be, policeman? I am strange to these parts.”

“Well,” said the policeman slowly and with effort, “you might be in Balham, but you ain’t. Likewise, you might be at Charing Cross, but you are not there, nuther.”

“I observe, policeman, that you have graduated in the school of judicial humor,” said Northcote, delighted by the suavity of outline of X012. “If every man had his rights, which of course it is utopian to expect, you would be adding lustre to the bench. Your mental gifts fit you equally to be a judge, a recorder, or a stipendiary magistrate.”

Such an exaggerated view of his merits produced a deep-founded suspicion in the honest breast of X012.

“If every man had ’is rights,” said the custodian of the peace, speaking slowly and with effort, and eying Northcote with the solemnity of a horse, “you’d be took up on suspicion, young feller, and charged with loitering with intent.”

Northcote dispelled the suburban quietude with a guffaw.

“Being unwilling,” said he, “to impale myself upon that spiked railing which calls itself the law, I ought to be extremely careful to refrain in its presence from the vexed and overmuch discussed question of whether the badinage of its minions is wit, wisdom, humor, or a veritable cesspool of human inanity.”

X012 was so much astonished by these words and the forcible mode of their delivery that he pulled his whistle out of his coat, and proceeded to toy with it in an irresolute fashion. Before he had decided to summon aid by blowing it, there appeared round the corner of an adjacent street a second constable, in all essentials of bearing, physique, and mental energy the perfect replica of himself.

“I’m glad you’ve come, Bill,” said X012. “I’ve got a rum one ’ere. I don’t know what he’s been drinking, but you should just hear his languidge. Here he was under this lamp, a-purtendin’ to read a newspaper at twenty past four by the mornin’.”

“Noticed his mug?” said his confrère Z9. “Bob Capper, the ’ousebreaker, who just done in ’is last seven stretch an’ was let out on license last Tuesday.”

“Got it in one!” said X012, not without enthusiasm. “We ’ad better take him to the station and have ’im searched.”

“This is the result of a misplaced jocularly in the presence of professional wits,” said Northcote, with an amiability that was viewed with considerable disfavor by both constables. “I hope you will forgive me, my friends. The only excuse I can urge for impinging upon the prerogative of the legal supernumerary, if I may so express myself, is that as one day I am certain to be a judge, I feel it to be due to the lofty elevation I shall be called to occupy, and of which I intend to be so signal an ornament, to neglect no opportunity of acquiring these cardinal principles of humor, dangerous, double-edged implement though it be, which can only be done by association with those past-masters who as the crowning glory of our admirable legal system inhabit it in choice perfection in all its branches. I hope, my friends, I have made myself perfectly clear.”

“Clear as mud,” said Z9.

“Impudence!” exclaimed X012; “downright impudence! Certin to be a judge! Why, Lord love me, young feller, if ever they ax you to be the judge of a pair o’ pullets at a poultry show you’ll be lucky.”

“Balmy,” said Z9, tapping his forehead with an air of Christian pity.

“You are very probably right,” said Northcote. “I suspect there is a basis of truth in this scientific opinion which you have embodied in so expressive an idiom. But at the same time I would ask you, is it not a somewhat extreme view to take of the mental condition of a barrister-at-law who has been nominated to appear at the court of the Old Bailey to-morrow morning at the hour of ten-thirty to defend one Emma Harrison, who at that time and in that place will stand her trial for wilful murder?”

“A-going to defend Emma Harrison!” exclaimed the constables. “Why, what will he be saying next?”

“I do say that, my friends,” said Northcote, with a note of imperiousness in his voice that was not without its effect on these astonished minions of the law. “And I want you both to stand back a yard or two against the railings, while I advance to the curb; and further, I want you for a few minutes to imagine that you are the jury, and I will rehearse the opening of my speech for the defence. I shall begin something like this.”

“Oh, will you now?” muttered Z9 to his companion. “Well, if this don’t beat cock-fighting!”

Both these constables, overawed already by the authentic manner of the advocate, were now devoured by curiosity.

“Listen,” said he. “I rise in my place with this bundle of papers in my hand, which I shall not consult, but shall cling to to gain confidence, and I shall say: May it please your lordship and gentlemen of the jury, this is a dreadful issue you are sworn to try. Indeed it would be difficult for the human conscience to conceive an ordeal more repugnant to the moral nature of man, one in sharper antagonism to those principles that are his priceless inheritance, than is revealed to you by the situation in which you stand. It is not by your own choice that you come to take your places in this assembly. It is not in obedience to your own instincts that you have left your toil to subscribe to a law which is not of your own making. I venture to affirm this without fear, for is not this ordeal into which you are thrown in deadly

conflict with the behests of that unfearing spirit who, nineteen centuries ago, discovered the only possible faith for His kind?

“It is as the inheritors, gentlemen, of an inimitable tradition, not as administrators of a penal code, that I venture to address to you these words. And let me tell you why I venture to address you in this fashion. It is because the life of a fellow creature is at stake; it is because sitting here in conclave in this place you are enmeshed in the most grievous ordeal that the fruit of human imperfection is able, at this time of day, to impose upon you. For that reason, gentlemen, I conceive that you are entitled to take your stand upon a lofty and secure platform to survey this issue, a platform which has been raised for the oppressed, the unhappy, and those who are doubtful of their way, by the travail of the choicest spirit in the annals of human nature.

“Gentlemen, you are called upon to adjudicate upon the life of a woman. You are called upon to do so at the bidding of a formula, whose hideous and obsolete enactments are the fruit of an imperfect culture of a partial and unsympathetic interpretation of those laws to which every civilized community owes its name. Gentlemen, you are called upon to adjudicate upon the life of a woman; you rate-payers of London, you gentle and devout citizens, you to whom life has given as the crown of your endeavor, as the consecration of your painful daily labor, mothers, wives, and daughters of your own.

“Yes, gentlemen, we must indeed ascend the loftiest and most secure platform known to us, to survey the ordeal that our own imperfection has presented to us.

“You have heard the words that have fallen from the lips of my learned friend, the counsel for the Crown. You have examined the facts which he has marshalled before you. You have noted the inferences which he has not been afraid to draw. You have been thrilled by the union of a consummate skill with a consummate learning. All that is base, sordid, and unworthy in the human heart has been stripped naked before your eyes. The smallest acts of this unfortunate woman have been shown to you as vile; even the aspirations which are allowed to ennoble her sex have been rendered abominable. Every kind of mental and moral degradation has been made to

defile before you; for verily there is no limit to the talent of this accomplished gentleman.

“That such a talent should have taken service with an outworn formula is a great public danger. For just as our common humanity is able to assure us that the acts of the most wicked are not always wrong, so those of the finest integrity would not bear dissection at the hands of a cold and scientific cynicism. Our every act has two faces. One is presented to belief, the other to unbelief; one is presented to truth, the other to error. And as this penal code of ours, which we traverse constantly with searchings of heart, is itself a survival of a time of gross darkness, called into being by unbelief and fostered by error, the acts of the best and worthiest among us are liable to be visited by the sword of the avenger, in other words by justice. I am convinced that if any one of you gentlemen, or any private citizen, was called upon to rebut the most awful charge that can be levelled against him, innocent as you might be, innocent as he might be, it would be found immensely difficult, I will not say impossible, to combat the deadly array of inferences which would be marshalled against you in the interests of this penal code by one of the most talented of its servants. The mere fact that you had come to stand your trial in this noisome chamber, itself stained with a thousand crimes committed in the name of justice, and that a cruel chain of events had forced you to vindicate your kinship with the divine will in the precincts of this charnel-house—it is well, gentlemen, that the windows are kept so close, for who would have this foulness mingle with the air of London?”

For the best part of an hour in that raw winter morning, with a drizzling rain falling incessantly, did Northcote continue to rehearse his address to the jury. The amused intolerance of his hearers yielded to an intense interest. They had been present in court on many occasions and had heard these things for themselves, but never had they listened to a voice of such dominion, of such volume and majesty, a voice capable of such burning appeal. They stood merely at the threshold of the argument, it was true; but the art of the orator unfolded it, made it clear. His natural magic, his incommunicable gift, rendered it with the harmony of music, so that before the end these oxlike custodians of the peace, far from growing weary of their situation, began to view with emotion the injury that threatened an outcast from society.

“Go on, sir,” said Z9 humbly; “you’ve the gift and no mistake. They’ll not be able to hang her if you talk to ’em that way.”

“This is not quite the form it will take, you know,” said Northcote, whose exertions had been so great that he was breathing heavily and dripping with perspiration. “It is only a sort of opening roughly blocked out. It will have to be rendered a bit finer, so that it pins them like a fly on a card.”

“You’ll pin them to-morrow, sir,” said Z9; “you’ll get your verdict, see if you don’t!”

Z9 spoke with the proud consciousness of one who can respond to an intellectual pleasure. X012, with a mental organization of less delicacy, although impressed by so rare a personality, yet retained the reverence for facts of the honest Englishman.

“He’ve a gift right enough, Bill,” said X012 magisterially, “but the law is the law to my mind; and black’s black an’ white’s white. If this woman done the crime—I don’t say she did, mind—the law will ’ang her. An’ rightly, too. This gentleman is a book-learned man and a horator,—I know that because I heard Gladstone on Blackheath,—but the law is the law and horatory ain’t a-going to alter it.”

“I am obliged to you both for your courtesy,” said Northcote, with a perfect gravity, “and my obligation is even the deeper for the opinions you have been good enough to express. You are prototypes of the twelve honest men I am going to sway; and I take it that if my address were to be launched in its present immature shape, you, sir, would record your vote for an acquittal, and you, sir, for the severity of the law?”

“The law is the law I say,” said X012, inflating his chest before the honor of this direct canvass of his intelligence, “an’ words is words, although, mind you, sir, I respec’s you, because I heard Gladstone on Blackheath.”

“I assume,” said Northcote, “that although you admired Gladstone’s oratory, you did not allow it to influence your judgment?”

“That’s ’is pig-headedness, sir,” said Z9. “That’s just like a Tory; great horators can talk till all’s blue, and then they can’t get daylight into a Tory. ‘The law is the law,’ says he; an’ if it come to, he’d hang his own fayther.”

“I take it, policeman, that you try to keep an open mind, a mind accessible to new impressions?”

“That is so, sir,” said Z9. “I say with you, sir, that although the law is the law, human natur’ is human natur’. And although Bill ’Arper is just a common p’liceman with on’y one stripe, an’ not a lawyer like you, sir, nor a beak, nor a judge, ’e never goes into court and a-takes off ’is ’elmet but what ’e feels ’igh-minded.”

“Then, policeman, regarding you in the light of a juryman, it is most probable that you would want mercy to be extended to the prisoner, in spite of the law, if you happened to be in your present frame of mind?”

“Yes, sir, I should in my present frame o’ mind.”

“More shame to you, Bill,” said X012; “you are a nice bloke to be a copper, an’ no mistake.”

“Close it, ’Orrice,” said Z9, with a restrained enthusiasm; “you bloomin’ Tories are so thick’eaded you don’t know nothing.”

“Well, gentlemen,” interposed the advocate, brushing the water from his brief, “as I observe you to be on the brink of an altercation, I will hasten to discharge you with my best thanks for your kind attention in order that you may have it out. For the subject will engage your powers worthily; pursue it, and it will take you into strange places. But before I leave you to do so, may I ask where I am?”

“Bottom o’ Sydenham ’ill, sir,” chimed both constables as one.

“Good morning, my friends. I must leave you to ponder this subject or I shall not get home to breakfast.”

The two myrmidons of the law stepped together into the middle of the road to watch this astonishing figure ascend out of their ken.

“Well, if ’e don’t beat all as ever I ’eard!” was the comment of Z9.

“’E’s not got ’er off yet, and ’e won’t nuther,” rejoined X012. “She’s a wrong un; an’ if they let ’er off, it won’t be fair to peace.”

“Well, ’e can talk. ’E kind of got ’old of me. I could ha’ stood there all day.”

“’E kind o’ did me too, but I should shake him off in court. You’ll see the beak will put a muzzle on ’im. He warn’t talkin’ law, and you’re no good in court unless you talk law. The old bloke and them K. C.’s will not stand that sort o’ lip, see if they does.”

“Well, ’ere’s the sergeant comin’. But just to show there’s no ill-feelin’, I’ll ’ave ’arf a pint with you, mate, that ’e gets her off.”

“Make it a pint, matey. A pint seems more legal.”

XV

TRUTH'S CHAMPION

NORTHCOTE had only a hazy notion of his whereabouts. He had never been in these high latitudes before. He had a dim idea that London lay "over there;" but upon ascending the steep hill that lay before him, he found that "over there" was merged in the dark and enormous bulk of the Crystal Palace.

"Whitcomb was right in his topography," he laughed. "This is the route he predicted I should take; therefore it is a perfectly fair inference to regard it as the wrong one."

He hailed yet another minion of the law, who no less than his brethren was communicative.

"You are going away from London as fast as your legs will take you," said Z201, and proceeded to set a course which in itself was so intricate that the young man by no means pledged himself to follow it.

The terrific central energy still driving him, the wayfarer strode forth through the rain with an undiminished vigor. By now his clothes were saturated and lay upon him heavily. But nothing could abate the force of these concentrated fires which bore him so lightly mile after mile. Not only did they burn with splendor, but also with a vital clarity. His lips moved with the phrases that sprang upon them; the sense of dull power, of unused native force, which had oppressed him like a nightmare during many nights and days, had been fused all at once into an immense fecundity of expression. Each minute blood-vessel that formed a web round the ball of crystallized energy that was his brain was big with its own peculiar, original, and special idea. The strangest vistas had opened before his eyes. His faculties in the first flush of their self-consciousness had grown insolent and overbearing.

How could a body of common citizens hope to stand against the battery that would be directed upon them! All the subtleties of the sophists, all the enthusiasms of the creeds would be as naught in the presence of such an

overweening personal force. How could such insignificant fragments as these, the mere excrescences of the universal scheme, who could not make a mind among them, hope to retain the all-too-precarious standard of their probity when touched by the wand of the magician? He laughed aloud to the rain when his thoughts reverted to the two perplexed constables he had left at the bottom of Sydenham Hill; and how, in spite of the tentativeness of the effort, as his talent had mounted in him, so that presently its irresistible force had seemed even to surprise himself, these two stolid, unemotional Englishmen had nodded their heads in approval, and had hung breathless upon his words. Only one of God's great advocates could hope to perform that miracle under a gas-lamp in the wind-swept streets on a wet and chill winter's morning. The old mystics, delivering with a divine *naïveté* their surprising message to mankind, could never have accomplished a feat more wonderful.

His eyes veiled in darkness, his head high-poised yet thrust forward, his mouth and nostrils filled with cold and deep draughts of air, his whole being was surrendered to an orgy of freedom and power. For the first time since he had come to maturity he had found an occupation for his ferocious energies. It was no unworthy task by which they were confronted. Thirty was usually the age at which genius elected to give to the world its first masterpiece. And was it not as seemly that an advocate should rejoice in a theme as the statesman, the musician, or the poet? This first essay should be as complete, as audacious, and as worthy of the sanction of the best minds of the time, as the *chefs-d'œuvres* of other representative spirits. It should stand as a landmark in an art as little understood as that of truth itself.

Old men on the Woolsack, the most reverend seigniors of the law, advocates who had received the homage the age is accustomed to lavish on a scanty pretext, should stand aghast before an alarming iconoclasm of which he would be the pioneer. His ideas should prove so revolutionary that these practitioners, complacently drawing their emoluments, should foregather to turn this magnificent ruffler out of his inn. The scathing criticisms which the elect of all ages launch against a Jesus, a Galileo, or a Wagner, before the world has grown accustomed to their strangeness, he would be called upon to support; for would not he alone be the true advocate, the heaven-born, immortal one, while they would remain, as always, complacent performers of tricks which they mistook for the operations of their specific

talent, subscribers to conventions that were shallow and nonsensical and in open enmity to the idea of justice for which they stood as the self-satisfied expression.

As he raced along in the company of these wonderful thoughts through the south of London, he recognized in himself all the signs that declare Truth's authentic champion. It would be his to deliver more than one rueful blow upon the close-locked portals of pedantry. "The purblind old man who dares to occupy the seat of judgment, his authority shall be traversed, it shall be rent in pieces. As for that amazing creature who will dare to stand up for the Crown, who will propose to do to death a human being with that bleak and irascible voice, and the operations of that arrested growth he calls his intellect, an awful example will have to be made of him."

There was no end to the succession of deserted streets. Water swam in shallow pools along the black pavements which seemed to reflect the color of the sky. The numerous lamps, picked out as so many dull, yellow balls in the surrounding blackness, suffused their oppressive rays along the long, flat surfaces so that they appeared to shine without giving forth a radiance.

How vague and vast seemed these early hours before the dawn! They did not contain a living soul. The sky, the streets, the dark houses, the bare trees in the gardens and at the sides of the roads were soundless, empty, destitute of life. A quietness so profound appeared uncanny on the outskirts of pandemonium. But astonishing, desolating as it was, it seemed to aid the furious brain that was borne so fast in its midst. There was only the echo of the advocate's own feet, which came weirdly from across the way, and the high and labored breathing of his own body.

By the time the hour of seven chimed out from the half-dozen neighboring steeples of a population that was beginning to cluster much closer together, he divined that he was pressing nearer to the heart of the metropolis. He did not stay to inquire of the occasional wayfarer who was abroad in these regions, but set his face into the ruck of the streets, where the dark forms of the houses rose like an impenetrable and endless forest. No fears assailed him as to whether he would reach his home—the coldest, most inhospitable home that was ever called upon to harbor a spirit with such widespread, space-cleaving pinions.

His feet seemed to devour the pavements. His stride was great, elastic, and unflagging; it was propelled by the lungs, heart, and muscles of the athlete. In the swing of the arms, the lunge of the limbs, the lissom sway of the body, there was fine physical power, and the seething engines that presided over this massive yet elastic framework were like the boilers of a locomotive which eat up the miles without fatigue. When excited into action on the football field the feeling was always upon him that no puny human agent could stay his course. The feeling was upon him now in an intensified degree. With will and muscle coöperating to overstride the darkness, he longed for opposition to declare itself that he might trample it down.

Near eight o'clock he recognized Waterloo Bridge and the cold Thames below stealing like a felon through the vapors of the dawn. With a stupefied surprise he awoke to the sensation of being launched once more into the sharp and too-definite business of the time. The pavements were now swarming with people, the roads with omnibuses, cabs, and vans. Traffic was belching out of every street; clerks and seamstresses were scurrying to their employments, masticating their breakfasts as they went. Vendors of newspapers and hawkers of food were tearing the gray air to pieces with their cries. He emerged from the orgy of his passion to find that he was up to the throat and being stifled in pandemonium, even before he was aware that his feet had entered it.

The lines of palaces across the river, towering tier upon tier above the embankment, with their majestic bulks half-thrust through the curtain of December mist which the first streaks of day had seemed to thicken, fell upon the imagination of the wayfarer, who had slackened his pace all at once to a footsore limp as he crossed the bridge and crept towards them. At a distance they stood insolent, aloof, and cynical. He could hardly believe that in one of these wonderful caravanserais he, the starving, the friendless, and the solitary, had eaten and drunk only a few hours before. It was not feasible that such palaces as these could touch a life so obscure at any point. Penniless, friendless, lacking even life's common necessities, in the midst of six millions of people, who contended rudely with the first weapons that came to their hands to enforce their claims, how could he, whose coat was in holes, whose pockets were empty, have penetrated to the Mecca of their gods?

Limping into the Strand as the clock at the Law Courts chimed the hour of eight, his imagination was assailed, not with their unmeaning mass of architecture, but with that unseen and grisly bulk which only the eye of his inner consciousness could apprehend. A shudder convulsed his veins. Less than thirty short hours hence the gladiator would be called into the arena. He would have to face the lions with no defence for his nakedness except a small shield in the use of which he had had no practice, and a sharp but untried spear.

Climbing up the steep stairs to his garret, his nostrils were affronted as they had been on so many other occasions by the foulness of the heavy and noisome air. What a labor it was to reach the locked door at the top of the highest, the darkest, the most unpleasant story! His fibres had grown strangely slack, his breathing was no longer joyous and free. The mighty engines of his mind had ceased suddenly to vibrate; those pulses which had been so overweening in their insolence could only flutter now. He had fallen without a warning from his eminence. His whole being was enveloped in a despicable flaccidity, a despicable weakness, as he turned the key in the lock and entered his garret.

He recoiled from the dismal scene that met his eyes with the shudder that one gives in plunging into icy water. As he stood on the threshold all the phantoms of his previous despair sprang upon him from the walls of his chamber and seemed to throw him down. There was the cold grate with the gray ashes in it still; there the lamp that had left him in the darkness. The table was there with its pile of law-books that he had conned with the sickening patience which tortured him so keenly. Strewn over them were fragments of the writings which had eaten away the flower of his intelligence without bringing him a shilling to fill his belly or to pay his rent. Enveloped within them was the piece of lead by whose aid and with a skill so ferocious he had destroyed the rat. The confectioner's paper was there that had contained his dinner; also the crumbs which remained to testify to its nature. On the mantelpiece was the burned and dirty old pipe which he had cherished so much, the only friend of his adversity; on the floor was the pouch that had not a grain of tobacco in it. The pool of water was still in the corner, underneath the discoloration of the plaster in the low sloping roof.

How cold it was! Everything in this horrible apartment seemed to be rendered icier, more dismal, by the callous gray beams that stole through the grimy windows with a sullenness that hardly merited the name of light. Ah, that window with its outlook on oblivion! It all came back to him with the indescribable pangs of the knife, that the night before he had leaned out of it, bareheaded, open-mouthed, his eyes and nostrils cut by blasts of sleet, and had cried his haughty challenge to a world that grovelled so far below him in the mire.

It was all very hideous, yet this Titanic despair filled him with a deep sense of poetry. He realized, even as he stood now confronting it for the thousand and first time, that whatever the future might hold in her womb, never again would he be pierced to these depths whose very immensity urged the proud rage to his eyes. Yes, there in the cynical eyes of the morning lay the stained and battered old table to which the previous evening he had pressed his eyes to summon the genie. What torments of impotence, of baffled and thwarted power, must those eyes have undergone before they could prevail upon their royalty to stoop to such an act.

He took from his pocket the bank-note, half his fee, which the solicitor had given him at the restaurant, and held it up to a gaze that was as scornful as that of a young god who has not yet learned to accept as a matter of course the powers that render him immortal.

Not again would he suffer want. He had made his choice. In a tragic moment his faintness had forced him to his knees. He had summoned the mischievous imp who showers gold upon poor mortals in order that it shall stultify, poison, and corrupt them. Already he could taste success. There was a faint aroma of it in the dregs of the wine he had drained the previous night. There was a slight nausea upon his lips. There had been something beyond mere fatigue in the enervation with which he had climbed those stairs. For once the great muscles had seemed to flag. Yet not again would they know the chastening brutality of want. Indeed his despair already was beginning to seem a holy and pure condition. He foresaw, as he stood gazing upon its pinched face, crinkling as he did so the bank-note between his hands, that the future would be casting back to it perpetually as the tomb of his godhead, in which he put off those spiritual splendors in which his nature was once enveloped, those sanctified things which were native to

himself, in order that he might embrace those other things that were the birthright and the measure of the meanest natures.

Through the open door came the sound of footsteps on the stairs. They were shuffling and uncertain, and belonged to an old woman, who wore a shawl and a faded black bonnet, and who crept into the room with little toddling steps.

“Hullo, Mrs. Brown,” said Northcote, turning to confront her; “rather late, aren’t you? It is a quarter-past eight.”

“Yes, sir, I am,” said the old woman, in a precise manner. “My youngest grandchild is dying.”

“How old?”

“Five and a half, sir.”

“Of what is she dying?”

“Diphtheria, sir,” said the old woman humbly.

“And if the poor little kid dies that will reduce the number of small orphans in your family to four, will it not?”

“It will, sir.”

Northcote stood looking at the old woman for a moment and then changed the subject abruptly.

“Mrs. Brown,” he said, “I have had a windfall. For the time being I am a rich man; and I may say that one of these days I expect to be very much richer. And although your poor little grandchild is dying, I think we owe it to Providence to celebrate this occasion in a fitting manner. Never mind about the fire and the water for my bath. I want you to get a basket and do some shopping, somewhat as follows: one frying-pan, one pound of the choicest Wiltshire bacon, three moderately fresh eggs if money will buy them, which I expect it will not, one pot of marmalade, one pound of the most expensive butter and a loaf of bread, a pound of tea, price half a crown, and a pint of milk. Now get along, if you please, and I will light the fire.”

The blank stupefaction on the face of Mrs. Brown conveyed to Northcote that he had forgotten to give her the money.

“I am so unaccustomed to have the handling of money,” he said, “that I have forgotten to give it to you. This is a note for ten pounds. See that no one robs you of the change.”

The stupefaction on the face of the old woman appeared to deepen as her fingers closed over this unheard-of treasure.

“I—I don’t know that I dare trust myself with it, sir, along the Strand,” she said weakly.

“Very well,” said Northcote. “Just make the fire—a real good one, mind, and you can use all the coal that is laid by, because at one fell swoop I am going to order a ton—and I will do the shopping myself. Where is that big basket in which you bring home the washing?”

“Here, sir,” said the old woman, passing behind a curtain at the far end of the room which concealed a bed.

“Good,” said Northcote. “Providence is working for us. It intends that we shall do ourselves well. And my last words to you are, don’t spare the coal.”

“I will not, sir,” said the old woman, discarding her air of stupefaction in favor of her habitual preciseness.

XVI

A JURY OF ONE

WHEN Northcote returned with the basket heavily laden in one hand, and a frying-pan, aggressively new, in the other, his dismal chamber had already been transformed, for a fire was burning bravely, a kettle was singing upon it, the pool of water in the corner had been mopped up, the floor had been visited with a brush, and books and papers, two tables, and three chairs had received wholesome discipline from a duster.

“I could have done it all as well myself,” said Northcote, surveying this transformation with grim eyes, “although I do not deny it has the efficient professional touch. But I would have you to know I am a man of my hands. I am also a man of affairs. I have purchased extensively; and I am proud to say the best goods in the cheapest markets. I have ordered a ton of coal, although where we are going to put it I don’t quite know. Now, these things I surrender to your care; and in half an hour you will have the goodness to serve up a royal breakfast for two persons. In the meantime I will have a shave and a tub.”

The young man’s operations behind the curtain were conducted on an extensive scale, to judge by the noise and splashing that accompanied them. Yet presently he emerged with a well-scraped chin, a skin glowing with cleanliness, his ragged mass of hair reduced to a semblance of order, and his person arrayed in an extremely shabby and unfashionable but perfectly dry suit of clothes. The tea was at hand to be made, the pot heated, the eggs, bacon, and toast were delightfully warm and laid before the fire. And in accordance with instructions the table was set for two persons, with the blunt knives and forks and the decrepit crockery of his establishment.

“Will you wait till the other gentleman comes, sir?” asked the old woman.

“What other gentleman, Mrs. Brown?”

“The gentleman who is coming to breakfast.”

“Well, I can’t very well, seeing that she turns out to be a lady.”

“I beg your pardon, sir.”

“You, Mrs. Brown, are that lady. You will please sit just there, as near to the fire as you can get without burning yourself. I propose to make the tea, for I am so expert in the art that I yield to none. And I shall ask you to pour it out, while I proceed to serve the eggs and bacon, which look perfectly delicious.”

The charwoman, however, betrayed no sign of assenting to this arrangement.

“I am sure, sir, it is meant in great kindness,” she said humbly, “but I could not think of such a thing. You see I have been in good service, sir, and I beg your pardon, sir, but it is never done.”

“‘Never’ is a dangerous word to employ, Mrs. Brown,” said Northcote, towering over the old woman in a formidable manner. “In fact, I allow none to employ it to me. Sit down, if you please, and pour out the tea, and just have the goodness to imagine yourself the Lady Elizabeth Who-was-it, famous alike for her breeding and her beauty, while I shall endeavor to consider myself that distinguished nobleman, the Earl of What’s-his-name.”

“The Lady Elizabeth Plumptre, sir, and the Earl of Widmerpool.”

“Very well. Now I say, ‘Betty, my gal, have an egg with your bacon?’ and you reply with a quiet ease and distinction of manner, ‘Yes, papa, if you please,’ Now then, down you get into your chair, and spare me the necessity of arguing the point. I am so apt to lose my temper if I argue the point.”

The old woman, who was too much in fear of him to risk anything of the kind, took her place at the table immediately.

“One of these days,” said Northcote, handing her an egg and some bacon on the only plate that did not happen to be cracked, “I should like you to meet my mother. She is a very notable and good woman, with a remarkably resolute conception of her duty, which all her life she has rendered bluntly and directly without ever speaking of it to a human soul. She has ordered her life in the manner that she deems necessary to the rôle of an eminent Christian. She has brought up her only son in simple and pious resolves, educated him quite beyond her means, has found him money when in order to do so she has been compelled to deny herself life’s common necessities,

yet has asked alms of none, and at Christmas time never omits to dispense charity to others.”

“I should like to see your mother, sir,” said the charwoman, folding her hands meekly and sitting very upright on her chair. “I am sure she is a very good lady.”

“One of those noble narrow women, Mrs. Brown, upon whom life bears down so heavily. Yet she carries out her programme with a greatness of spirit which is almost demoralizing to one who tries to look at things as they are. I don’t know what there is in her life that carries her on so victoriously; for one never hears her utter a complaint against the buffets she has received from fate, or against the restrictions that her dismal surroundings impose on her nature. I have never heard an impatient word upon her lips, yet every morning, summer and winter, she rises at the hour of five, performs those domestic functions that can bring no satisfaction to her, and presently goes forth to labors still more arduous and equally devoid of meaning. What there is to carry her on I don’t know. Why that inflexible spirit has not been broken these many years I cannot conjecture.”

“She has got into the habit of going on, sir, I suppose,” said the charwoman.

“The habit must be a very strange one, Mrs. Brown, when to-morrow is always the same as yesterday.”

“It is like being a clock, sir, which goes on because it has been wound up.”

“Yes, but I never found a clock that could wind up itself. Every clock must have some kind of a key.”

“It is God, sir, who is the key,” said the charwoman.

“That throws us back,” said Northcote, “to our original necessity to have a religion. To my mind, Mrs. Brown, you have indicated that need in a very lucid and practical manner. And how, Mrs. Brown, as you appear to have given some thought to these things, do you suppose this reticent mother of mine views this God who holds the key to the watch, who winds it up and keeps it going? How would you say she regards Him personally?”

“Perhaps she doesn’t think about Him much, sir. Perhaps as a girl she troubled her head about Him a bit; but when she got older and had to take

heavy burdens on her shoulders, she was always too tired to think of Him, except when she said her prayers.”

“Do you suppose there have been times when in her great fatigue she has fallen asleep while she has been in the act of saying them?”

“Yes, sir, I suppose there may have been,” said the old woman.

“So, then, you would say there is nothing definite, forceful, all-compelling about this God of hers? You would say He had no particular personality to speak of?”

“Perhaps He is very real to her, sir, just as to the watch the key must be very real that winds it up and keeps it going.”

“I suppose, Mrs. Brown, you have never by any lucky chance arrived at the reason why He does wind you up and keep you going? Yet surely you have asked yourself the question why it is necessary that you should be wound up and kept going.”

“I may have done, sir, now and again. But then it has been a wicked thought.”

“It is an intensely natural thought, and the wickedness of sheer undraped nature is one of those hard doctrines I have never been able to accept. When in the depth of winter you have laid an old skirt on your bed because you did not happen to possess an extra blanket, and you have crept with your shivering limbs into the cold sheets, I suppose you have asked yourself occasionally why you who do not even perform the humble functions of a clock, since you keep no time, should yet be wound up and set going, when, as a matter of choice, you would prefer to remain in bed in the morning and be allowed to sleep on forever?”

“There are my five little grandchildren, sir, who have no mother or father.”

“They would go to the workhouse; and the state would transform them into honorable, capable, and industrious citizens with even greater efficiency than you would yourself.”

“The workhouse, sir, is a very disgraceful thing for a respectable family.”

“Ah, you impale me on another spike of your religion. Its points are fixed at a sharper angle than you are willing to allow. For I would ask you, is it not

enough to enrich the state with five healthy and able-bodied citizens without being called upon to maintain them at one's own expense?"

"I beg your pardon, sir," said the old woman, "but when you have children of your own you may not say so."

"I do not doubt that you are right. By exercising as keenly as possible the very inadequate number of wits with which nature has seen fit to arm me, I am able to discern that the more reasonable we become the less do we order our conduct by the light of reason. As you suggest, it is extremely probable when I become a father, if I am ever called to that beatitude, I shall rise every morning from my bed to prevent my children going to the workhouse, however strenuously reason may urge that the workhouse is their natural and appointed home. And assuming, Mrs. Brown, that I am not marked out for the honor of paternity, that crowning achievement of every citizen, why then should I rise from my bed—that is, assuming that I regard the person who presumes to wind up the watch to be a meddlesome busybody, a bore, and a nuisance?"

"If you work very hard, sir, you will have no time to think such thoughts," said the old woman.

"It is, I suppose, the satisfaction of depriving yourself of the opportunities of thinking such thoughts that brings you here every morning of the year at a quarter to eight to tidy up the garret of a starving materialist who is bleeding to death of his ideals?"

"Yes, sir, you might say partly that and partly to help to bring up my grandchildren."

"Well, my good woman, if it is partly to bring up your grandchildren, why, may I ask, do you continue to toil on behalf of this person, when for two months past he has paid you no wage, and may I ask also why have you lent him sums of money, when you must have been aware that it was in the highest degree unlikely that it would ever be paid to you again?"

"I have had no time to think about it like that, sir."

"That is not a very strong answer, Mrs. Brown. I felt sure I should be able before long to impale this religion of yours upon a paradox. And I suppose that when you put this shrivelled old hand that I am holding into that ridiculous old dogskin purse of yours, which must have been an heirloom in

your family in the year one, you had not time to reflect that you were robbing your poor little grandchildren? You had not time to reflect that the twenty-five shillings which you lent a weak-natured, self-indulgent sentimentalist in order that he might not be turned out into the street would keep them in boots for a year?"

"I don't say I had not time to think about it, sir, but I could never have seen you turned out into the street without a roof above your head."

"Why could you not, Mrs. Brown? It was no part of your duties to provide a home for a stalwart and able-bodied young man who was living in idleness, when you had your five little, orphan grandchildren to consider."

"I did not look at it in that light, sir."

"Surely it was very wrong of you to fail to do so. One would think a reasonable, right-minded person would hardly need to have it pointed out."

"Well, sir," said the old woman nervously, "I beg your pardon, I'm sure; but even if I had seen it in that way I might not have acted upon it."

"Then I grieve to say, Mrs. Brown, that you appear to have no very exact standard of probity."

"I—I—I'm sure, sir, I always try to do what is right."

The charwoman had become the prey of a deep confusion.

"But," said Northcote, sternly, "I have just had your own assurance that you do not. You would not, it seems, scruple to rob your poor grandchildren to gratify a whim; indeed, it may be said you have robbed them to gratify one. If I had to prosecute you before a jury of twelve of your honest countrymen, I could easily get you put into prison."

"Well, sir," said the old charwoman, beginning to tremble violently before this grim realism, "I—I am sure I have always tried to do my duty."

"On the contrary, Mrs. Brown, you can scarcely be said to have a conception of what is your duty. At least the best that can be said for that conception is that it is arbitrary, perverse, contradictory. Expedience is the only duty known to the laws which regulate all forms of nature. The man called Jesus, the chief exponent of the contrary doctrine which appears to have had some kind of attraction for you, received a somewhat severe

handling when He ventured to show Himself upon the platform; and you who in your dumb and vague and invertebrate manner have been seeking to imitate Him in one or two minor particulars, owe it to the generous forbearance of the recipient of your charity that you do not find yourself in prison. If the Crown in its expansive vindictiveness were to instruct me to prosecute you in what it is pleased to call a ‘court of justice,’ woe would betide you.”

The old woman grew as pale as ashes when confronted with the stern eyes of this advocate who turned white into black so easily.

“Why—why, sir,” she stammered, “you—you will make me think I have committed a murder if you go on!”

“I think I might do that without much difficulty. It would be quite simple to indicate to you in a very few words in what manner the Almighty has already seen fit to mark the sense of His personal displeasure. Is it not your own conduct, do you not suppose, which has provoked Him to strike down your innocent little grandchild with diphtheria? And if the child dies, which we will pray it will not, what would be easier than to render you responsible for its death? You see that is the worst of evil, it is so cumulative in its effect. Once it has begun its dread courses, who shall predict their end? A good action is self-contained and stops where it began; a bad one fructifies with immortal seed and practically goes on for ever—*vide* the poet Shakespeare. Why, you are eating nothing. I am afraid I am spoiling your breakfast.”

“Oh, sir, I didn’t know I was so wicked,” said the charwoman, with tears in her eyes.

“Opinions are easily formed. As for reputations, they can be made and unmade and made again in an hour. But might I suggest, Mrs. Brown, that if one happens to be righteous in one’s own eyes, it does not very greatly matter if one goes to jail to expiate so pious an opinion. Do I make myself clear?”

“I—I don’t say I am good, sir, but—I hope I am not a downright bad one.”

“Well, to relieve your feelings, we will take it that you are a nebulous half-and-half and somewhat unsatisfactory sort of person who blindly follows a bundle of instincts she knows less than nothing about, just like a dog or a

cat or a rabbit. And is not that what this elaborate moral code of ours throws back to if we take the trouble to examine it? And is not one entitled to say that a dog is a good dog, a cat a good cat, a rabbit a good rabbit, just as faithfully as it follows the instincts under its fur, whatever they happen to be? I have taken this excursus, Mrs. Brown, and have ventured to theorize a little, quite unprofitably, I grant, and at the risk of causing you some ill-founded alarm, because to-morrow I have to exercise all the talents with which the good God has endowed me in the cause of an extremely wicked woman who has committed a murder. Her crime is of a vulgar and calculating kind, perpetrated in cold blood; there is not a rag of evidence to save her from the gallows; but Providence has called upon me to attempt to save her from the fate she so richly merits. And there is an instinct within me, her advocate, for which I am at a loss to account by the rules of reason and logic, which calls on its possessor to save this abandoned creature at all hazard. If I obey that instinct I shall be a good advocate and a bad citizen; if I disobey it I shall be a good citizen but a bad advocate. Yet if I obey it I shall have fulfilled to the best of my ability the legal contract into which I have entered, and in so doing I shall be called on to commit a serious misdemeanor against human nature. On the other hand, if I disobey it I shall be causing human nature to be vindicated in a becoming manner, yet shall be guilty of an equally serious misdemeanor against myself; and further, I shall be false to the interests of my unfortunate client whose money I have taken, and render myself indictable for the offence of entering into a contract which I have wilfully refrained from carrying out. Please have another cup of tea, and kindly pass the marmalade.”

Northcote having shifted the ground of his reasoning from the personal to the abstract, the old woman regained sufficient confidence to pour out the tea without spilling it.

“Now,” said Northcote, “if you were in my position, would you try to enable one whom you knew to be a murderess to escape the gallows?”

“If I might say so, sir, I would try to have nothing to do with her at all.”

“In other words, you would rather starve than take her money?”

“Yes, sir, I think I would.”

“And cause *you* to rob your poor little grandchildren?”

“I—I—don’t say that, sir.”

“Let us be as logical as we can. Again, would it not cause me to rob my poor old mother who has contributed her all towards my education, which I put to no useful end?”

“You would be honest, sir.”

“Honest, do you say! Do you call it honest to pervert and misapply the money my mother has lavished on my education?”

“Might you not use your education, sir, in some other way?”

“You would have me till the fields or be a clerk in an insurance office. Would that be honest in the sight of God, who has placed an instinct in me which I disobey? Surely one would say the truly dishonest man is he who is unfaithful to his nature. Had we not agreed upon that? If a man knows that he was designed by God to be an advocate, is he not called to practise? Why have the gift to prove that white is black and black is white if that gift is not to be carried to its appointed issue? If I do not barter it for a means of livelihood by proving the guilty to be innocent, how am I to discharge the higher function of proving the innocent to be not guilty? If, in my cowardice, I decline to go into court lest I save those who ought not to be saved, think of the innocent persons who will perish for the lack of a true advocate.”

“If we could only get to the real intention, sir,” said the charwoman solemnly, “of Him who winds up the watch and who is Himself the key, perhaps these things might not worry us. But God moves in a mysterious way, His wonders to perform.”

“Yes,” said Northcote, rising from the breakfast-table, “there we have the fruit of all that our curiosity can yield to us. The power may be given to us to show that blue is green, but what does it stand for in the presence of the dread materialism of our religions?”

The advocate took three sovereigns from his pocket, three sovereigns which he had yet to earn, and placed them in the palm of the old charwoman.

“Mrs. Brown,” he said, “in the bleak and uncomfortable eyes of science your virtue will not bear inquiry; but if it were possible to take a plebiscite of the opinions of your fellows as hastily as possible upon the bare facts,

before a professional advocate had a chance to pervert them, I do not doubt that you would be voted to a position among the elect. I believe myself that there is a greater amount of purely disinterested nobility among all sections of society than is generally known. Fifteen shillings I owe you for services rendered; twenty-five for your timely contribution towards my rent; and here is a pound with which to pay the kind doctor who is going to thwart the Almighty in His intention of causing your small grandchild to die. One of these days, as I say, Mrs. Brown, I hope you may meet my mother, for I would like to render to you the homage that all men desire to be allowed to render to good women.”

He seized the blackened, shrivelled, and not particularly clean hand and carried it to his lips.

XVII

MESSRS. WHITCOMB AND WHITCOMB

AFTER the old woman had cleared the table of the breakfast things and she had gone away, Northcote sat nearly two hours in his easy chair at the fire, whose grate had never been allowed to consume so much fuel since it had been in his occupation, and with the aid of his brief proceeded to rehearse all the points of the case as they presented themselves to him. Warmth, food, and rest had overthrown his weariness, and his mind which in its operations was habitually so energetic began to shape and docket every conceivable aspect of the matter that could be of the slightest service to the accused. His reasoning was so amazingly copious that he foresaw and proceeded immediately to guard against a very real danger.

He might easily overdo it. The jury would not be men of education to whom fine points would appeal. Most probably they would be petty tradesmen whom it would be impossible to touch through the mind at all. He must take aim at their emotions. "I must use," he said to himself in his mental analysis, "not a word beyond three syllables, and I must keep to the language of the Bible as well as I can. All my little pieces of embroidery, all my little bravura passages must bear that singularly excellent model in mind; its power of touching the commonest clay is so unfailing. Happily, in the course of my somewhat eclectic studies it has not been neglected. But beyond all I must try to get my address quite fine and close. One word too much and the whole thing fizzles out in a haze of perplexity. For that reason I am afraid I must reject some of my choicest and neatest thrusts at the moral code, which ought to tickle to death all minds with a gleam of humor. No, I must deny myself those bright excursions in which the cloven hoof of the artist betrays itself, and put my faith in a few common tricks performed with mastery. They at least should set up the honest English grocer on his hind legs and make him purr like anything."

Before the ingenuity of this keen intelligence those obstacles which were bristling everywhere in the case, which to the average mind would have appeared insurmountable, began rapidly to melt away. It was with an ill-

concealed joy that he shed the lime-light of paradox on each point that presented itself. That array of facts which a judge and jury of his countrymen would hug to their bosoms as so many pearls they could positively hold in their hands he would disperse with a touch of his wand. In the ripeness of his talent he foresaw that it would cost him no labor to demolish the evidence, to turn it inside out.

The world is full of great masterpieces that have been created out of nothing, haunting and beautiful things which have been spun by genius out of the air. And are not feats like these more wonderful than the exercise of the natural alchemy of change by which fairness is turned into ugliness, poetry into lunacy, good into evil, truth into error? The constructive faculty is rare and consummate; when it appears it leaves a track of light in the heavens; but the faculty of the demolisher is at work every day. Northcote was conscious that he was a born demolisher of "evidence," of those trite dogmas, those brutalized formulas of the average sensual mind. When he looked for truth he sought it at the bottom of the well. On the morrow for the first time he would give free play to his dangerous faculty.

When he had blocked out and brought into harmony the main lines of his address to the jury, it occurred to him that his powers might receive an additional stimulus if he saw the accused, exchanged a few words with her, brought himself into intimate relation with her outlook. Up to this point she had been no more than an academic figure, around whom he had woven detached, somewhat Socratic arguments. He felt that to see and to know her would be to place yet another weapon in his hands, wherewith he would be enabled to dig another pit for those whom he had already come to look on as his, no less than her, deadly adversaries.

Already he was a little amused by his own complacency, the conviction of his own success. There was that curious quality within him that forbade his evoking the possibility of failure in so great an enterprise. He was so grotesquely sure of his own power to triumph over arbitrary material facts. Such a sense of personal infallibility could only spring from the profoundest ignorance, or from talent in its most virile and concentrated form. For what was more likely than that on inspection the accused would present one of the most abandoned figures of her calling? Was it not highly probable that nature, who takes such infinite precaution to safeguard her creatures, had caused this woman to assume the shape of a hag, a harpy, a thing of

loathsome, terrible abasement? In that case, how would he dispose of evidence in its most salient form? How would he dispose of that immutable instinct, that deep conviction which is conferred by personality?

On the other hand, if the accused, by the aid of one of those miracles of which the world is so full, were to present the outlines of actual personal beauty, through whose agency common sensual minds are appealed to so easily, how slight would his difficulties be! In that event, so far as her advocate was concerned, the guilt would be off the gingerbread, his achievement would cease to be astonishing. Indeed, so finely tempered was his arrogance that to undertake the defence of one of this kind would be distasteful to it, so small would be the field afforded for personal glory. Rather than have to deal with one who could be trusted to be her own most efficient advocate, he would prefer that a veritable harpy out of a sewer should be placed in the dock. Could he have been allowed the privilege of choosing a theme for his powers, he believed that he should best consult the dictates of his talent by asking for a commonplace, unilluminated woman of forty to be put up.

Deciding at last to seek an interview with the accused, he set forth to the offices of his client in Chancery Lane. On his way thither he occupied himself with drawing the portrait of the ideal subject as his mind conceived her. She would be forty, with her hair turning gray. She would be a plain, drab, slightly elusive figure, cowed a little by life, the privations she had undergone, and the ignominy and terror of her situation. The positive, the actual would be to seek in her; she would offer no target for too facile sympathies. Her inaccessibility to all suggestions of romance or of picturesqueness would lend to her predicament that extreme peril which it would be her advocate's chief glory to surmount. All the same, he desired no ghoul, but a human being. She might be visibly stained, buffeted, common, broken, devoid of a meaning to eyes that were unacquainted with the poetry of misfortune, the irony of blunt truths; yet let a few rags of her sex remain, let her be capable of humiliation, of being rendered in piteous fear.

At the offices of Messrs. Whitcomb and Whitcomb in Chancery Lane he was informed that the senior partner was anxiously awaiting him.

“Ah, here you are at last!” exclaimed the solicitor, rising to receive him. “I thought you would have been round before.”

“I suppose you only honor a silk gown with a consultation in his own chambers?” said Northcote.

“Chambers, you call them! Well, did we not hold it last night?”

“One cannot very well hold a consultation with one’s client before one receives one’s brief.”

“What dignity!”

“Is it not at least half the stock in trade of mediocrity?”

“What modesty! Do I take it that the rather formidable ’Ercles vein of last night is really no more?”

“You may not. It is waxing higher and higher.”

“Defend us, gentle heaven and pious gods!”

“A truce to these pleasantries. Put on your hat and take me to the jail to see the accused.”

“You are going a little fast, my young friend, are you not? Is it wholly necessary that you should see the accused? Is it wholly to her interest or to yours?”

“Wholly, I assure you.”

“Well, before we get as far as that, I am particularly curious to know what line you have decided to take. Is it too much to ask that you have decided not to adhere to the acquittal? Speaking for myself, I must confess that the more consideration I give to the question, the less do I like that idea. Tobin would certainly have taken the line of insanity.”

“Last night you were good enough to inform me of that.”

“Well, my young friend, what is good enough for Tobin should be good enough for you.”

“That also you were good enough to inform me of last evening. But, my dear fellow, pray do not let us go over this ground again. Unfortunately Tobin and myself do not inhabit quite the same intellectual plane.”

“Unfortunately that appears to be the case,” said the solicitor.

“Tobin’s is the lower,” said the young man blandly.

“Tobin will be glad to know that.”

“I hope he may. After to-morrow he will be the first to admit it. But once more I crave to be allowed to conduct this case in my own way. I can listen to none; so be a good fellow, put on your hat, and come along to see the lady.”

“Well, I must say that for a youngster who is asked for the first time to conduct the defence in a capital charge you don’t lack confidence in yourself.”

“If I did I should not be holding the brief.”

“There is something in that. And in any case you will have to have your way now. It is too late in the day to stand up against you.”

Mr. Whitcomb pressed his bell and a clerk appeared.

“I want permission to interview Emma Harrison. Will you ring up the prison and see if you can get the governor to give it?”

The clerk withdrew.

“They are not likely to refuse it?” said Northcote.

“They ought not to be,” said Mr. Whitcomb, “but when you are confronted with Mr. Bumble in any shape or form, your motto must always be, ‘You never can tell.’”

“Arbitrary brute,” said the young man with vehemence, “I hate him altogether.”

“I also; but one should always do him the justice of conceding that he has arduous duties to perform.”

“Presumably that is the reason why he aggravates difficulties of those who are called to help him in performing them.”

“Is not that what we agree to call ‘human nature’? But really I think it is the duty of every citizen to think of him tenderly. He means well. He is not a bad fellow at bottom.”

“I have no patience,” said the young man truculently. “Mean well!—not a bad fellow at bottom! Why, he and his satellites are the custodians of the life and liberties of the whole population. One wonders how many innocent lives have been sworn away by this fat-witted blunderer who is barely able to write his own name.”

“You are too strong, my son. His responsibilities are immense; the wonder is that he plays up to them in the manner that he does.”

“You are all members of the same great and far-reaching society; you have all sworn allegiance to one another. Mediocrity arm in arm with Mediocrity; Law and Order arm in arm with Law and Order.”

“Insolent dog!”

“Better the insolence of the dog than the blind ineptitude of the donkey. The barking of a dog can frighten a rogue, but the braying of the ass fills every fool with courage. If *he* is allowed to lift up his voice, why not *I*? is what Mediocrity is ever asking of itself. And up goes your own private and personal bray. The other ass says, ‘Good Lord, what a clear and beautiful note! Upon my word, I have never heard anything to compare with it.’ And you reply modestly, ‘My dear fellow, if you could only hear your own clarion tones, you would not say that. My own are modelled upon them, I assure you.’ ‘Well, my dear friend,’ the other ass eagerly rejoins, ‘if that is *really* the case, you are eligible for election to our Academy.’ ‘Oh, my dear sir,’ say you, with your hand on your heart and tears in your voice, ‘you overwhelm me with honor. This is the proudest moment of my existence.’ ‘Not at all, my dear fellow, tut! tut!’ says the other ass; ‘great privilege to have you among us. And there is only one rule, you know, to which you have to subscribe.’ ‘Ah!’ you exclaim, in an awed whisper. ‘The rule is quite simple,’ says the other ass, putting his great flabby lips to your long furry ear. ‘It is merely that every member of our distinguished brotherhood shall unite in extolling his confrères.’”

Happily the clerk reappeared at this moment, just as the solicitor, chuckling furiously, was preparing to launch a veritable thunderbolt.

“Well?” he said to the clerk, and suddenly whisking away his head to laugh.

“Sir Robert Hickman’s compliments, sir, and Harrison’s legal advisers may see her in consultation at any time.”

“There, what do you say to that!” said the solicitor, casting a merry glance at the young advocate.

“Courteous fellow,” said Northcote; “one R. A. to another R. A.; it is perfectly charming. I trust that in accordance with latter-day practice you keep a reporter on the premises, in order that these high-toned amenities may be communicated to the press.”

“My dear boy, you are perfectly incorrigible,” said the solicitor, sticking his hat on the back of his head and insinuating his portly form within the folds of his imposing outer garment. “But one of these days you will know better.”

“When I am old enough to be eligible for election, I dare say; in the meantime let me rejoice that I am not yet brought to heel.”

Laughing at the vagaries of each other, advocate and client went out together, called a cab, and drove to the prison.

XVIII

TO THE PRISON

No sooner had Northcote entered the vehicle than his mood underwent a curious transformation. His heart began to beat rapidly, his hands to shake, his knees to tremble. His brain grew so hot that a vapor was thrown in front of his eyes. Extraordinary emotions overcame him to such a degree that he could not discern any of the faces in the street.

“You are very quiet,” said the solicitor, after awhile.

“Yes, I dare say,” said the young man, in a voice which in his own ears sounded thin and high-strung.

“Why not talk? That is your *métier*. You were much more amusing last night on the way to Norbiton.”

“Somehow I don’t feel as though I have anything to say. My head is so full of this affair.”

“Don’t think about it too much or it may get you down,” said Mr. Whitcomb, puffing quietly at his cigar; “although to-morrow you are certain to be in a horrible funk, as it is the first job of the kind you have ever had to tackle. Nor will it make it the easier for you when you reflect that the line you have decided to take will add immensely to your difficulties.”

Mr. Whitcomb spoke with the quiet incisiveness of one whom experience has rendered callous. From the leisurely candor and nonchalance of his manner a trial for murder was made to appear of rather less moment than the obtaining of a judgment in a county court. Such coolness contrasted so oddly with the young man’s own perturbation that he was thrown completely out of conceit with himself.

“I suppose you played cricket, Whitcomb, at that highly fashionable seminary of yours?” said Northcote abruptly.

“I was a ‘wet bob’ myself,” the solicitor rejoined; “but I think I know why you ask the question.”

“It is like sitting with your pads on waiting for the fall of the next wicket when you are playing for your ‘colors.’”

“I agree,” said the solicitor, “that there are few things so disagreeable as that. But you are bound to have a wretched time until the case is over. It is for that reason that I continue to urge you to heed the counsels of experience.”

“Well, I will see her first,” said Northcote tenaciously.

That air of self-confidence which had tried the patience of the solicitor so extremely had vanished altogether from the manner of his youthful companion; for to Northcote’s horror, every phase of the defence which, with so much elaboration, he had already prepared, every word of the memorable speech to the jury which had been packed away sentence by sentence had passed away out of his consciousness so completely that it might never have been in it. Pressing through the crowded traffic with a vertigo assailing his eyes and his ears, and a paralysis upon his limbs, his mind was a blank which might never have been written upon. Pray heaven this would not be his condition when he rose to-morrow in the court; for what is comparable to the despair that overtakes an imperious nature when it is publicly abased by a physical failure? In imagination he was already sharing the sufferings of the young Demosthenes when derided by the populace.

At last came the dread incident of the hansom stopping before the gateway of the prison. The portals rose mournfully through the twilight of the December morning. While the hansom stood waiting for them to revolve, a little company of loafers and errand-boys collected about the vehicle, and regarded its occupants with curiosity not unmingled with awe.

“Lawyers,” said a denizen of the curb to a companion, whose world like his own was cut into two halves by the huge wall of the prison.

“Ugly——!” said his friend, spitting with extraordinary vehemence upon the wheel of the vehicle.

The huge door, studded with brass nails, swung back soundlessly upon its invisible hinges, and the hansom passed over cobbles under an archway that seemed to reverberate so much with the sound of its progress, that Northcote felt his brain to be shattered. He was unable to witness the little

drama that was enacted behind him, of the great door shutting out the row of solemn faces, standing upon the dim threshold of the outer world to peer into the gloomy precincts of oblivion.

The courtyard seemed to consist of low doorways with gas lamps burning within them, endless expanses of wall, windows heavily barred, and extremely official-looking police-constables. The little daylight of the streets through which they had passed had diminished sensibly.

Mr. Whitcomb led the way out of the hansom as it stopped at a doorway at the end of the courtyard, slightly less insignificant than the rest.

A policeman without his helmet, but with three stripes on the sleeve of his tunic, and whose hair, glossy with grease, fell over his low forehead in the form of a fringe, came out of the semi-darkness to receive them.

“If you will take my card to the governor I shall be obliged to you,” said Mr. Whitcomb.

“Yessir,” said the constable, with a deferential alacrity touched with a slightly abject humility. “Will you please to step this way, sir, and mind your ’at, sir, against the top of the door?”

They followed the policeman along a gaslit passage which seemed endless. Their boots echoed and reëchoed from its stone flags up to and along the low, white-washed ceiling. Ascending a flight of steps they were shown into a room through the iron bars of whose window a few irregular beams of daylight struggled painfully, and arrived in such an exhausted condition that they appeared to be quite at a loss to know what to do when they had entered. The room was small, warm, and so full of bad air that Northcote found the act of respiration difficult. Three or four massive chairs, covered in brown leather, were disposed in the corners, while the middle was in the occupation of a table, upon which was a bottle filled with water with a glass fitting over the top of it.

“The atmosphere of this place makes one feel ill,” said Northcote, when the constable had borne away Mr. Whitcomb’s card.

“They have another apartment which will make you feel a lot worse than this,” said that gentleman cheerfully, unbuttoning his coat and providing himself with a chair. “Take a seat and make yourself quite at home. It will take our polite friend with the hair at least three-quarters of an hour to

penetrate through morasses of red tape and officialdom in its most concentrated form into the governor's parlor and then to get back again to us. I have known him take an hour."

"Good Lord," said Northcote, "I shall be dead long before that."

"Pretend you are Dante, and try to think out the first canto of your 'Inferno,'" said Mr. Whitcomb, taking a crumpled copy of the *Law Journal* out of his coat, fixing his glass, and proceeding to peruse it with admirable spirit and amiability.

Northcote remained standing. He was too completely the victim of the emotions that had been excited in him to simulate composure. He walked up and down the room in nervous agitation, and examined the bare walls and the grated window.

"I see they have revived this flatulent controversy in regard to the value of circumstantial evidence in the capital charge," said Mr. Whitcomb.

"One would certainly say it ought always to be admitted under the greatest reserve," said Northcote.

"It would be impossible to work without it in almost every trial for murder."

"Well, I shall tell the jury to-morrow, overwhelming as in this case it may seem, to reject it altogether."

"And what do you suppose the judge will tell them, may I ask?" said Mr. Whitcomb.

"I am expecting a bit of a duel between us," Northcote replied. "But if he can undo the work I have set myself to accomplish, he is a better man than I take him to be, that is all."

The solicitor did not frame his reply immediately, but a rush of blood to his complexion announced what its nature would have been. The fellow was really like a child in some things! How could he suppose that these outworn pleas that long ago had been worn threadbare by every country attorney could carry the least weight with men who bore sound heads on their shoulders? If he had nothing better on which to base his defence than the inadmissibility of circumstantial evidence, there was no need for him to go into court at all. He was declining to call the witnesses who would attempt to prove insanity; he was rejecting the one natural and reasonable line,

which had the sanction of those who were older, wiser, altogether more capable than himself, in favor of a single desperate throw with the dice—and here was what that throw amounted to!

“I must venture to say,” protested the solicitor, “you surprise one more and more. If you have nothing more original than that to show the jury, a weaker judge than Brudenell would demolish it in a few minds like a house of cards.”

“We shall see.”

“Why, my dear fellow, all the world knows there is no escape from circumstantial evidence in murder cases. Have you asked yourself the question how many verdicts could have been taken in recent years upon notorious crimes, had it been ruled out?”

“I expect to have my own way of answering the question,” said the young man.

“Yes, and Brudenell will have his.”

“Quite probably, I grant you,” said the young man, with a tenacity that his companion felt to be exasperating; “but unless one is wholly deceived in the estimate of one’s own capacity—forgive this very unprofessional candor in regard to oneself—the jury will answer it in the fashion I ask them to, not in the fashion asked of them by Mr. Justice Brudenell and Mr. Horatio Weekes.”

“Well, my young friend,” said Mr. Whitcomb, scrutinizing him with the patient wonder that is bestowed on a rare quadruped in a zoological gardens, “pray don’t think me impertinent if I confess that you are the most baffling compound I have ever encountered.”

“Notably,” said Northcote, “of self-conceit, pig-headedness, childishness, ignorance, and effrontery. I dare say you are right, for have I not committed the unpardonable offence of assuming that I am wiser than Tobin, wiser than yourself, also of considering myself the superior of the judge upon the bench?”

“You may be perfectly entitled to this self-estimate after the event,” said the solicitor, with a candor he was unable to repress; “but I would like to say

that only a very complete, and even astonishing, success to-morrow can possibly justify it.”

“I recognize, I concede that,” said the young advocate, with an unexpected humility. He passed his handkerchief across his dripping forehead. “Is it not true of all who undertake to perform a miracle that nothing short of a consummate achievement will satisfy those eternally timid ones who have not even the courage to be credulous? It is the fate of all who break with custom to be derided, but was anything ever done for the world by conforming to it?”

“Custom is a useful safeguard against ridicule, at any rate,” said Mr. Whitcomb.

“Ridicule!” cried the young man. “Would you have one fear it?”

“Yes, my son,” said the solicitor, with calmness and unction, “one would have every professional man fear it like the plague.”

“God knows we are all susceptible to the fear of ridicule,” said the young man, sweating profusely, “but is it not those fearful minds that defer perpetually to custom that build their actions upon it? Where would the epoch-makers have been had they been weak enough to defer to ridicule? No movement was ever initiated but what in the beginning its progenitor was laughed out of court.”

“Do I understand, my young friend,” said Mr. Whitcomb in his suavest accent, “that you propose to elevate the hanging of Emma Harrison into a world movement?”

“You may,” said the young man, lifting up his chin, from which great beads were rolling, “for the theme is fit for a world-drama. And he who is cast for the leading rôle shall make it so.” With unsteady steps Northcote passed out of the gloomy corner in which he stood to where the daylight struggled through the grated window. He pressed his forehead against the bars. “One would have preferred Gethsemane,” he muttered; “at least there would have been space and air.”

Mr. Whitcomb readdressed himself to the study of the *Law Journal*. The conquest of that irritation which overcomes on occasion the sternest discipline had long been elevated into a mental habit by this sagacious gentleman, who felt it to be the due of the inimitable coolness with which

he looked at life. Yet could he have indulged an explosion without endangering his stupendous dignity, he must have done so here. This ridiculous fellow was getting on his nerves. Whatever could have led him to entrust him with a case of this kind? Was it not an evil hour when he climbed those foul and dark stairs to hale him from the obscurity of his garret? What could be clearer than that this madman was about to make a public exhibition of himself and of his client? After all, the unearthing of this man Northcote was no more than a whim of Tobin's formed on the spur of the occasion. Tobin, it was true, was highly successful, yet he was himself a somewhat odd, whimsical fellow, a Celt; and really his suggestion ought to have been seen at the deuce. Yet it was no good to repine; he had gone too far to draw back; time, the tyrannical determining factor of every event, allowed him no choice. This man Northcote must be Emma Harrison's advocate or she must do without one.

In the meantime Northcote's tense emotion had been well served by the cold iron against which his face was pressed. It seemed to possess a medicinal quality which entered his arteries. Once more his mind was able to exert its faculty. His courage, his fecundity of idea, the sense of his destiny, had seemed to return.

The discomposure of the solicitor and the nervous tension of the advocate were intruded upon at last by the constable, who had taken rather more than three-quarters of an hour to perform his mission.

"Will you come this way, gentlemen?" he said.

They were conducted along more dark and apparently interminable passages, up one flight of stone steps and down two others, until at last they found themselves in a room similar to the one they had left, except that it was larger and gloomier, smelt rather more poisonous, and looked somewhat more funereal.

Northcote's heart was again beating violently as he stepped over its threshold, and his excitement was not in the least allayed when he discovered that there was no one in it.

"If you will kindly take a seat, gentlemen," said their guide, "Harrison will be here in a few minutes."

“In other words, twenty,” said Mr. Whitcomb, beginning a tour of inspection of this dismal apartment. “These small mementoes may have some slight interest for you, my friend,” he said to Northcote.

He drew the young man’s attention to a row of shelves placed at right angles to the window. They were raised tier upon tier to the height of the ceiling, and were crammed with crude staring objects. A close inspection revealed them to be busts made of plaster of Paris.

“Why, what are these horrible things supposed to represent?” said Northcote, with a thrill in his voice.

“These,” said Mr. Whitcomb cheerfully, “are the casts taken after death of a number of ladies and gentlemen who have had the distinction of being hanged within the precincts of this jail during the past hundred years. If you will examine them closely, you will be able to observe the indentation of the hangman’s rope, which has been duly imprinted on the throat of each individual. Also, you may discern the mark of the knot under the left ear. Interesting, are they not? The official mind is generally able to exhibit itself in quite an amiable light when it stoops to the æsthetic.”

“I call it perfectly devilish,” said Northcote, shuddering with horror.

“They must have quite a peculiar scientific interest,” said Mr. Whitcomb, “for each lady or gentleman who may chance to enter this apartment to consult his or her legal adviser. Are you able to recognize any of these persons of distinction? If I am not mistaken, the elderly gentleman on the third row on the right towards the door is no less an individual than Cuttell, who poisoned a whole family at Wandsworth. High-minded and courteous person as he undoubtedly was, I must say Cuttell certainly looks less *outré* now he is dead, and more in harmony with his surroundings, than when he entered this room, and asked me in a mincing tone, with all the aitches misplaced, whether in my opinion any obstacle would be raised against his getting his evening clothes out of pawn, as he desired to wear them in the dock during his trial.”

“For the love of pity, spare me!” cried Northcote, pressing his fingers into his ears, “or I shall run away.”

“The gentleman with the protruding lip on the second shelf towards the window is, unless my eyes deceive me, one Bateman, who slaughtered his

maiden aunt with a chopper and buried her in a drain—”

Northcote spared himself further details in the history of Mr. Bateman by laying violent hands upon his counterfeit presentment, and hurling it with terrific force against the iron window bar, whence it fell to the floor in a thousand pieces.

“Upon my soul, I have a great mind to go through the lot,” he said, livid with fury.

“Pray do so, by all means, dear boy,” said Mr. Whitcomb, with that unction which never forsook him, “and you will find your art-loving countrymen will avenge this outrage upon the private and peculiar form of their culture by one day insisting that your own effigy is placed on these historic shelves.”

XIX

THE ACCUSED

RENEWED assaults upon these interesting *objets d'art* were averted by sounds outside in the corridor. Northcote imposed a superhuman control on all his faculties that his agitation might be restrained, when the door opened and two shadowy figures, barely visible at first, crept silently into the darkness of the room.

The two figures were those of women. By the time Northcote had evoked a sufficient force of will to meet their outline, the one that first encountered his glance was so brutalized and repulsive that his eyes were detained with a fascinated sense of horror. It belonged to a creature that was degraded, squat, coarse, insensitive. He felt almost the same reluctance in approaching it as he would a cobra.

She, however, was not the one whom Mr. Whitcomb, with all the polished readiness of the thoroughgoing man of the world, had advanced to meet, and to whom he had held out his hand. The young man heard with stupefaction, while his own gaze remained riveted to the features of the sibyl, the bland and courtier-like tones of the solicitor caressing and paying homage to a figure in the background, a figure which was still and silent, which he could not see.

This person, however, had no interest for Northcote; she was so obviously the female warder who had accompanied the murderess. One so characterless, so formless, could not be said to exist in the presence of this detaining horror, whose personality thickened, as with pestilence, the noisome air of the room. And it was this obscene life that he had pledged himself to save!

Strangely, this blunt fact did not dominate his consciousness in the manner it must have done one of a less alert perception. For with a perversity that transcended the will, at this moment his thoughts were overspread by the comedy that was being enacted by the suave lips of the solicitor. The harmonious stream of mellow commonplaces that Mr. Whitcomb was

pouring into the ear of the shrinking official nonentity who kept in the background accosted his sense of the comic with a kind of lugubrious irony. With a critical detachment which even startled himself, he seemed to awake to the fact that he was standing outside his *milieu*, that he was witnessing a drama within a drama; and he found himself in possession of the singular reflection that here was a robust yet delicate adumbration of the farcical which would make the fortune of a writer for the stage. For there was something indescribably ludicrous in the rich voice of the solicitor enunciating his own private opinions upon the weather, the state of trade, the inconvenience of winter and its bearing upon the perennial problem of the unemployed, when the grotesque horror which dominated the room was at his elbow, emitting the glances of a venomous snake.

Suddenly Northcote heard Mr. Whitcomb call his name.

“Come here, Mr. Northcote; I want to introduce you.”

In a hazy, stupefied manner the young man obeyed.

“Mrs. Harrison,” said the solicitor, “allow me to present my friend Mr. Northcote. I feel sure you will find a friend in him too.”

The advocate grew aware that a weak, nerveless hand was resting in his, but his eyes were still riveted on the face of the ghoul.

“Say something, you fool, and play up a bit,” said the solicitor’s calm voice in his ear.

“Er—a nice day, Mrs. Harrison,” said the young man, without knowing a word he was uttering.

“Yes,” said a hesitating voice, which by no possibility could have proceeded from the tightly closed lips of the creature whom his gaze was devouring.

The words broke the illusion at a blow. The brutalized countenance under whose dominion he had fallen was that of the female warder. The person with whom the solicitor had been conversing with such cheerful volubility, to whom he was now himself speaking, was the poisoner, the cold-blooded denizen of the curb and the gutter. He drew his hand away quickly, with an involuntary emotion, from those hot, flabby, and damp fingers that he still detained.

“I know, I know,” the woman seemed to breathe, as though she were interpreting an unspoken thought.

“I may tell you, Mrs. Harrison,” said the solicitor, with his well-fed chuckle, “that if your knowledge can compare with that of this gentleman, you are one of the wisest persons in the world. He will tell you so himself.”

So crude a gibe had the happy effect of restoring to Northcote his self-possession.

“My name is not known, Mrs. Harrison,” he said, with his fibres stiffening, and his voice growing deeper and falling under control, “but you can trust me to eke out my inexperience with a determination to serve you to the utmost of my power.”

Northcote saw that two luminous orbs were being defined slowly in the centre of the gloom. For an instant no reply was made to his words, and then he was conscious that a faint voice was whispering, “If your friend would go right away with the warder—right away to the end of the room, then perhaps we could speak with one another here where it is so dark.”

“Whitcomb,” said Northcote, in a low tone, “please take the warder right up to the window at the other end, where you can see to read, and read the *Law Journal* to her.”

“How d’ye do, ma’am,” said the solicitor, turning to the ghoul in his promptest, blandest, and most musical manner. “I think it has been my privilege to meet you before, although you may not remember me. Is that boy of yours prospering in the police force?”

“I haven’t got a boy in the police force,” said the sibyl, in a loud, strident tone.

“Then which of your blood relations is it, may I ask, who is connected with the police force? I am sure you have some one.”

“I have an uncle.”

“Ah, to be sure, an uncle! But it is so easy to make a mistake on a point of official nepotism. Come along this way, ma’am, and tell me all about your uncle.”

XX

THE INTERVIEW

PRISONER and advocate were left together amid recesses of impenetrable gloom in the darkest corner of the large apartment. It seemed to enfold them, and to render the pallor of their faces almost invisible. The eyes alone encountered those of each other, and even these could embody no phase of meaning. A strange continence, as sharp and clean as that of a hero of fable, had begun to cleanse the veins of the advocate. In the presence of this stealthy thing his nature had never seemed so fine, so valiant, so full of subtle penetration; nor had it ever felt so girt with mastery, so completely enamored of its own security.

"I shall know what words to speak to-morrow," he said, in a hoarse undertone.

"Will they not be spoken for yourself?" whispered the dismal low voice.

"How? In what manner?"

"You will speak to make a name."

"Also for the salvation of yours."

"Mine does not matter; it is not my own."

"You trust me, do you not?"

"I trust you; yet you drew your hand away so quickly when you knew it was not the warder who was the murderess. Give it to me again."

There was something so curious in the prisoner's fragility, something so strange in her cowed air, that it seemed to pervade the advocate with the stealth of a drug. But the emotion of disgust with which he had withdrawn his hand when first he grew conscious that he touched her was no longer present when he offered it again. The second time she clasped her fingers round it so that their pressure seemed to sear his skin. It had the heat of a live coal.

In releasing his hand she let her fingers yield it so imperceptibly that he did not know the precise point at which it had ceased to be held; and he was afraid to make a motion of withdrawal, lest it should be interpreted as a repetition of that which had dealt her a wound. He tried to see her face, but in the darkness there was no lineament to decipher.

“This is my deliverer,” he heard her breathe.

“How have you come to know it?” The advocate was devoured by an intolerable curiosity.

“Your hands—your hands, they are so powerful; are you not so strong?”

There was nothing in these words that the advocate had expected; the voice, the manner of their utterance, their apparent irrelevance, made a strange effect in his ears.

“They will not do me to death,” she said, in a tone he could hardly hear. “I never tasted life until I was brought into prison. And you cannot think how sweet it is to me. Everything has become so beautiful: the birds, the trees, and the sky, and the crowds of people and the mud of the great city.”

She clutched the hand of the young advocate with a convulsive shudder.

“Your quietness tells me that you understand.” Her voice was touched with ecstasy. “You do not answer or seek to console me. You are the one I have dreamed of in prison. Where is your hand?”

Again Northcote yielded to her entreaty, this time without a sense of repulsion.

“Yes, this is the hand that has been around me in the darkness, when I have shuddered in my dreams.”

“It is wonderful,” said Northcote, “that you should know that you will be able to lean upon me.”

“I know what your voice is like also, although it is so vague and distant to me now. I know the words it will speak to-morrow, when it asks them to be merciful. I know that all I have seen in my dreams will take place.”

“It must be a grievous thing to go to sleep in a prison,” said Northcote, uttering a half-formed thought without consideration of his words. “Or perhaps it is more dreadful to awaken in one.”

“The going to sleep and the awakening are not so terrible as the dreams that come. That in which I saw you first, in which I first heard your voice, in which I first touched the hand that will deliver me, was most dreadful in its nature. My weak mind fell down under it. I think I could not live through such a vision again.”

“How strange are these visitations!” said Northcote. “How awful, how mysterious! When did this dream come to you?”

“Last night about the hour of ten; the first time I had closed my eyes for three days.”

Northcote recoiled with a shudder. The precision of the voice and the power of the coincidence were overmastering.

“There is no accounting for these things,” he said, in a voice throbbing with excitement. “At the same hour I also had a strange, an almost terrible sort of vision.”

“Yes, my deliverer, you have been called into my life to save it—to save that life which never had a perfect thought until it was brought into prison. It did not know what the trees and the sky were, nor the air and the birds; never had it heard a deep voice nor touched a strong hand. You are he that leaped out of the vast multitude that mocked me in my dream, he who stood up before it, and, with a great voice that sounded like the waves of the sea, caused them all to break and run. They grew afraid of your words and your looks, and they fled in terror. Yes, my life has become so full of beauty and meaning, so full of a spacious mystery, that I cannot believe it is to be taken away.”

These words, breathed rather than spoken, sounded in the ear of Northcote as those of a transcendent sanity. Remote as they were, they yet appeared divinely appropriate to the time and place. But they left only one course for him to follow. He must detach himself from the unhappy speaker of them; he must flee her presence. Their edge was too keen. There would be no advocacy on the morrow if he yielded to the subtle enervation of this atmosphere. The voice pierced him like a passion, yet his veins had grown sluggish and heavy, as if under the influence of a drug.

XXI

THE TALISMAN WHICH TRANSCENDS EXPERIENCE

CALLING the name of the solicitor, Northcote broke away abruptly from the prisoner and left the room. It had seemed to be charged with a pestilence. Mr. Whitcomb was soon at his side, and hastily they wended their way up and down various flights of stone steps, along the noisome corridors of the huge building, until daylight came in sight once more through the doorway at the end of the passage at which their cab was standing. Their relief was very real at being able to breathe again the living air, fog-laden as it was.

“I don’t know how many times,” said Mr. Whitcomb, as they drove from the portals of the jail, “on one errand and another, I have descended into this inferno, but it never loses its power to give me the blues.”

“I am regretting,” said Northcote, “that I did not take your advice. I wish I had not come near it. I cannot shake off the impression it has made. Ugh! it gets into one’s blood. I don’t know anything quite so overpowering as the nausea of locality.”

“You are too impressionable, my son,” said the solicitor, with a furtive smile. “You will never be able to get through life at this rate. It wants one of some hardihood, one who is robust in each one of his five senses, to practise law.”

“I would say,” Northcote rejoined, with a shudder, “that to be armed for this calling each particular nerve he has got in his body must be shod with iron.”

The solicitor laughed at so palpable a discomposure.

“What did you make of the prisoner?” he asked, suddenly. “You appeared to find a great deal to say to one another.”

“Personally I hardly spoke a word to her,” said the young man, seeking to gather his recollection of that strange interview.

“She appeared to find a good deal to say to you,” said the solicitor. “In that respect you have been more fortunate than myself. I have spoken with her three times, and I don’t think I have been able to extract three words from her. Do you mind telling me what she said?”

“To the best of my remembrance she said nothing that could have the least interest for anybody.”

“Tell me, what impression of her have you brought away?”

“I hardly know whether she allowed me to form one. Our communication seemed so indirect. She kept her face in the shadow all the time; I could not discern a feature.”

“Surely you were able to gather some sort of general idea?”

“That is the strange thing—I seem to have formed no opinion about her. One would not have thought it conceivable that one should have conversed with a person, dealt at least in an actual exchange of words at close quarters, and that they should remain so null. I think I should have been better acquainted with her had I not seen her at all.”

“Come, my dear fellow, you can surely recall a word or two of what she said? She is an enigma; and she is said not to have spoken six words since she was first remanded in custody.”

“That certainly makes the volubility in which she indulged this afternoon the more astonishing.”

“Indeed it does. Would you say that she expects an acquittal?”

“Well, now you come to mention that, I would say she does.”

“It is an extraordinary thing that they are all so sanguine. It hardly ever seems to occur to any of them that by any possibility they can meet with their deserts. Indeed, one might say the bigger the criminal, the greater their confidence that they will escape.”

“I am going to ask you what opinion you have formed of her,” said Northcote.

“It follows the lines of your own. When I have come into personal contact with her, I have been able to make rather less than nothing of her. At first I thought she seemed sullen, and quite reconciled to her position, indeed, that

she was too callous to care about anything; but upon seeing her to-day, I was rather struck by the fact that her attitude had undergone a change.”

“How long has she been in prison?”

“Nearly three months. She is an odd sort of creature—her former associates are agreed upon that—and doubtless some sort of change has taken place in her. I am more than ever convinced that insanity is your line; and by this time it should not be too much to hope that you are.”

“She will expect her liberty.”

“*She* will expect! My dear boy, it is when you permit yourself to talk in this fashion that you fill one with so much distrust. Her position entitles her to expect nothing.”

“No sort of doubt overtakes you then in regard to her guilt?”

“None. I have suggested that to you over and over again. My dear fellow, it is as I feared; you have not permitted yourself a due appreciation of the overwhelming nature of the evidence. I do not see how she can hope to escape; and this is pretty plain speaking on the part of her attorney. Just look at the array of facts—her course of life, her purchase of the poison, the result of the post-mortem, the presence of motive. Again and again I have felt it to be my duty to suggest to you that Tobin would not have attempted to shake the evidence.”

“Well, you must permit me to say that, reflect upon the question as I will, it does not seem easy to reconcile the woman in that room with the cold-blooded monster who will be presented to the jury.”

“That phenomenon is by no means rare. It has been my fortune to undertake the defence of more than one finished example of moral obliquity who has presented not the least indication of such a condition. Besides, do you not admit that the impression that this woman made upon you was one of absolute nullity? Were you not unable to divine anything in regard to her?”

“Yes, that was my first feeling; but I am now confessing that after all, in some mysterious way, she has contrived to shake these preconceived ideas about her, now that from this distance I can view the room and what transpired in it. I dare not say by what means she has contrived to produce this effect; indeed, it is so subtle that I can hardly say what it amounts to,

because if I begin to recall her words she seems almost to have admitted her guilt. Yet of one thing I am convinced—she presented no evidence of her depravity.”

“One can easily concede the probability of that.”

“Yes, but had it been as complete as you insist, I must have seen it.”

“Pardon me, but I am afraid it does not follow. What is easier than to hide its traces from the eyes of inexperience?”

“Have I not the talisman in my pocket which transcends experience?”

“Talisman be damned,” said Mr. Whitcomb, with a jovial brutality.

Before his companion could frame an answer to a scorn so unconciliatory, the hansom stopped before the offices of Messrs. Whitcomb and Whitcomb. They alighted together.

XXII

LIFE OR DEATH

THE final consultation of Northcote and his client took place in the open street in the heavily raining December afternoon, with their backs against Mr. Whitcomb's brass plate. The spot selected for their last utterances on this momentous affair was incongruous indeed, but each had grown so impatient of the other, that if their last words were spoken here, the clash of their mental states was the less likely to invite disaster than in a more formal council-chamber of four walls.

The robust common sense of the solicitor had never shown itself to be more incisive than now as he stood with his back to his own door, under a dripping umbrella, his hat pushed to the back of his head, and his trousers turned up beyond his ankles. His twenty years of immensely successful practice, his exact knowledge of human nature, his ruthless worldliness, his reverence for the hard fact, stood forth here in the oddest contrast with the somewhat "special" and rarefied quality of this youthful advocate whom he had seen fit to entrust with so important a case.

"It's a pity, it's a pity," he brought himself to say at last, his veneer falling off a little under the stress of his chagrin, and revealing a glimpse of the baffled human animal beneath. "It is a serious mistake to have made; but we have got to stand to it. You are not the man for this class of work, to speak bluntly. You are either too deep or you are not deep enough. But as I say, we have got to stand to it now. My last words will be to urge you to put as good a face upon it as you can."

"In other words," said Northcote, stiffening, "you will look to me to do my best."

"I don't put it in that form exactly," said the solicitor, midway between exasperation and a desire to be courteous. "I want you fully to appreciate that you are handling an extremely tough job, and I merely want you to make the best of it, that's all."

“I will tell you, Mr. Whitcomb,” said Northcote, striving in vain to avert the explosion that had been gathering for so long, “that if it were not now the eleventh hour, if I had not pledged myself to this thing more deeply than you know, if it were not a matter of life and death to me as well as to your client, I would throw your brief back at you rather than submit to this. It will be time enough for you to get upon your platform when I have made a hash of everything.”

“Yes, I think you are entitled to say that,” said the solicitor impartially, having made a successful effort to recapture his own serenity. “I have no right to talk as I am doing; I have never done so to any one else. I suspect you have got on my nerves a bit.”

“Yes, the whole matter throws back to the clash of our temperaments,” said Northcote, unable to cloak his own irritation now that it had walked abroad. “It is a pity that we ever attempted to work together. Yet for one who envelops himself in the serene air of reason, you are somewhat illogical, are you not? You enter the highways and hedges in search of a particular talent; you have the fortune to light upon it; and then you turn and rend its unhappy possessor for possessing it.”

“As I say, my dear boy, this particular talent of yours—or is it your temperament?—you see I am not up in these technical names—has got on my nerves a little.”

“And your temperament, my friend, to indulge a *tu quoque*, is covered with a hard gritty outer coating, for which I believe the technical name is ‘practicality,’ which positively sets one’s teeth on edge.”

“So be it; we part with mutual recriminations. But this is my last word. Firmly as I believe I have committed an error of judgment, if to-morrow you can prove that I have deceived myself, you will not find me ungrateful. I can speak no fairer; and this you must take for my apology. It is not too much to say that since I have come to know you I have ceased to recognize myself.”

“I accept your *amende*” said Northcote, without hesitation. “I see I have worried you, but if I might presume to address advice to the fount of all experience, never, my dear Mr. Whitcomb, attempt to formulate a judgment upon that which you cannot possibly understand.”

“After to-morrow there is a remote chance that I may come to heed your advice. In the meantime we will shake hands just to show that malice is not borne. Don’t forget that you will be the first called to-morrow, at half-past ten. It is quite likely to last all day.”

The solicitor turned into his offices and Northcote sauntered along Chancery Lane. The twilight which had enveloped the city all day was now yielding to the authentic hues of evening. The dismal street-lamps were already lit, the gusts of rain, sleet, and snow of the previous night had been turned into a heavy downpour which had continued without intermission since the morning. The pavements were bleached by the action of water, but a miasma arose from the overburdened sewers, whose contents flowed among the traffic and were churned by its wheels into a paste of black mud. Northcote was splashed freely with this thick slushy mixture, even as high as his face, by the countless omnibuses; and in crossing from one pavement to another he had a narrow escape from being knocked down by a covered van.

It was in no mood of courage that the young man pushed his way to his lodgings through the traffic and the elbowing crowds who thronged the narrow streets. Even the mental picture that was thrown before his eyes of this garret which had already devoured his youth had the power to make him feel colder than actually he was. Never had he felt such a depression in all the long term of his privation as now in wending his way towards it laboriously, heavily, with slow-beating pulses.

He was sore, disappointed, angry; his pride was wounded by the attitude of his client. His self-centred habit caused him to take himself so much for granted, that at first he could discern no reason for this *volte-face*. In his view it was inconsiderate to withhold the moral support of which at this moment he stood so much in need. Truly the lot of obscurity was hard; its penalties were of a kind to bring many a shudder to a proud and sensitive nature. The patronizing insolence of one whom he despised was beginning to fill him with a bootless rage, yet in his present state how impotent he was before it. He must suffer such things, and suffer them gladly, until that hour dawned in which his powers announced themselves.

That time was to-morrow—terrible, all-piercing, yet entrancing thought! The measure of his talent would then be proclaimed. Yet all in an instant,

like a lightning-flash shooting through darkness, for the first time the true nature of his task was revealed to him. Doubt took shape, sprang into being. Its outline seemed to loom through the dismal shadows cast by the lamps in the street. Who and what was he, after all, in comparison with a task of such immensity? With startling and overwhelming force the solicitor's meaning was suddenly unfolded to him.

He took himself for granted no more. He must be mad to have gone so far without having paused to subject himself to the self-criticism that is so salutary. How could he blame the solicitor whose eminently practical mind had resented this inaccessibility to the ordinary rules of prudence? Was he not the veriest novice in his profession, without credentials of any kind? And yet he arrogated to himself the right to embark upon a line of conduct that was in direct opposition to the promptings of a mature judgment.

How could he have been so sure of this supreme talent? It had never been brought to test. The only measure of it was his scorn of others, the scorn of the unsuccessful for those who have succeeded. The passion with which it had endowed him was nothing more, most probably, than a monomania of egotism. How consummate was the folly which could mistake the will for the deed, the vaulting ambition for the thing itself!

On the few occasions, some seven or eight in all, in which he had turned an honest guinea, mostly at the police-court, he had betrayed no surprising aptitude for his profession. There had been times, even in affairs so trivial, when his highly strung nervous organization had overpowered the will. He had not been exempt from the commission of errors; he recalled with horror that once or twice it had fallen to his lot to be put out of countenance by his adversary; while once at least he had drawn down upon himself the animadversions of the presiding deity. Surely there was nothing in this rather pitiful career to provide a motive for this overweening arrogance.

He grew the more amazed at his own hardihood as he walked along. To what fatal blindness did he owe it that from the beginning his true position had not been revealed to him? Where were the credentials that fitted him to undertake a task so stupendous? What achievement had he to his name that he should venture to launch his criticisms against those who had been through the fray and had emerged victorious? How could he have failed to appreciate that abstract theory was never able to withstand the impact of

experience! It was well enough in the privacy of his garret to conceive ideas and to sustain his faculties with dreams of a future that could never be, but once in the arena, when the open-mouthed lion of the actual lay in his path, he would require arms more puissant than these.

To overcome those twin dragons Tradition and Precedent, behind which common and vulgar minds entrenched themselves so fearlessly, the sword of the sophist would not avail. It would snap in his fingers at the first contact with these impenetrable hides. His blade must be forged of thrice-welded steel if he were to have a chance on the morrow. He had decided to promulgate like a second Napoleon the doctrine of force, and for his only weapon he had chosen a dagger of lath. Well might Mr. Whitcomb smile with contempt. Where would he find himself if he dared to preach the most perilous of gospels, if he could not support it with an enormous moral and physical power?

For years he had dwelt in a castle which he had built out of air, secure in the belief that he was endowed in ample measure with attributes whose operations were so diverse yet so comprehensive, that in those rare instances in which they were united they became superhuman in their reach. An Isaiah or a Cromwell did not visit the world once in an era. How dare such a one as he fold his nakedness in the sacred mantle of the gods! It was the act of one whose folly was too rank even to allow him to pose as a charlatan. If he ventured to deliver one-half of these astonishing words he had prepared for the delectation of an honest British jury, these flatulent pretensions would be unveiled, he would be mocked openly, his ruin would be complete and irretrievable.

Never had irresolution assailed him so powerfully. This review at the eleventh hour of the unwarrantable estimate he had formed of himself rendered it imperative that he should change his plans. The opinion of others, acknowledged masters of the profession in which he was so humble a tyro, was incontrovertible. Evidence in support of a perfectly rational plea was provided for him, would be ready in court. His client had demanded that it should be used. To disregard that demand would be to rebuff his only friend, one of great influence who had been sent to his aid in his direst hour. And it was for nothing better than a whim that he was prepared to yield his all. No principle was at stake, no sacrifice of dignity was involved. That which his patron had asked of him was so natural, so admirably humane,

that the mere act of refusal would be rendered unpardonable unless it were vindicated by complete success. No other justification was possible, not only in the eyes of himself and in those of his client, but no less was exacted of him by the hapless creature whose life was in his keeping.

Stating it baldly, let him fail in the superhuman feat which had been imposed upon him by a disease which he called ambition, and this wretched woman would expiate his failure upon the gallows. Had any human being a right to incur such a penalty, a right to pay such a price in the pursuit of his own personal and private aims? The middle course was provided for him. It would deliver the accused and himself from this intolerable peril; it opened up a path of safety for them both.

Already he could observe with a scarifying clearness, that here and now, at the eleventh hour, he must defer to the irresistible impact of the circumstances. The risk was too grave; he was thrusting too cruel a responsibility upon his flesh and blood. He must hasten to make terms with that grossly material world of the hard fact which he scorned so much. He must submit to one of those pitiful compromises which he yearned to defy; and in so doing he must betray a talent which had inflicted indescribable torments upon him.

His address to the jury of his countrymen, that surprising impromptu prepared at leisure, must be given up. Not a word could be used of this demand for an acquittal which was to mark an epoch in English justice. He must begin again on a lower note.

Just before reaching the archway through which he had to pass to reach his own door, he turned into a post-office, and despatched to his mother two sovereigns out of the ten he had received from the solicitor. Enclosing a scrap of paper with the order, he wrote these words upon it: "My first great case is called to-morrow. Life or death for Prisoner and Advocate—which?" Having posted the letter he ascended the stairs to his garret.

He groped his way up to it. Shuddering with despair he unlocked the door and flung it open. An impenetrable darkness covered the room. He stood on the threshold searching his damp clothes for a match. He found a solitary one sequestered in a corner of a pocket; but all attempts to strike it failed. He then proceeded to grope his way forward through the room, reached the table, and after knocking down several articles was able to place his hand

upon that which he sought. He kindled a light, and the lamp having been replenished with oil that morning was able to maintain it. The fire had burned out long ago; all the coal had been used, and the fresh quantity he had purchased had not arrived. His overcoat was soaked with rain, his trousers were damp, and the room had already become cold. He rummaged out an old sweater that had stood him in good stead in his football days, from a box beneath the bed, removed his wet overcoat and pulled this garment over his jacket. He then filled his pipe and sat down beside the lamp.

XXIII

PREPARATION

HE had taken his new resolve outside in the rain; and it behoved him now to utilize these few remaining hours in putting it into shape. Rejecting the demand for the liberty of this wretched woman he must consent to the verdict being given against her, and place his hope in the clemency of the court.

For two inexpressibly weary hours he strove with clenched lips to piece together and elaborate this new line; but in spite of all his efforts it was so dull and lifeless that the task seemed beyond him. Whatever talent he possessed it was only too clear that so vacillating a method of defence was quite out of harmony with its workings. This way and that he twisted each listless uninspired suggestion, but at each laborious attempt it grew less possible to breathe upon their dry bones and create them into living flesh. These maimed and halting emendations were as far removed from the swift and audacious repleteness of the original as to express the difference between light and dark.

It was the difference between life and death. The one was informed with the living breath, a vital and a surprising piece of art; the other was cold and heavy, a confection of wormwood and ditch-water. A bitter chagrin overcame him when he saw all that his resolve implied. He would be sent into court dumb, tongue-tied—he with a philippic against injustice packed away at the back of his brain. This would mark the end of the ambition that had nourished the fires of his heart through full many a weary winter's day.

The new words would not glow; they were so much sound without meaning. Yet the new words were the true words. They embodied the actual; they stood for the established fact in its impartial fearlessness; they were the servants of justice. That the accused had committed the crime was clear to the meanest intelligence. It only remained for her advocate to announce her guilt and to pray for mercy. Yet the phrases in which he shaped this bald proposition crept to his lips as false, devious, and dishonorable.

The old words conceived in sophistry were burning things, brilliant with the blood and flame of their emotion. Beneath them paradox itself stood forth as but a subtler knowledge. The accent of conviction made these words resonant, these words whose design was to pervert and mislead. They were breaking in constantly upon the dull and tortured phrases which he was striving to weave, the insensitive phrases whose function it was to embody immaculate truth. The commonest platitudes were not so stale as these. At last with a cry of rage he spurned them vehemently from his mind.

Indeed, the only purpose that was served by these endeavors was to prove to the unhappy advocate that his nature must be allowed to obey its instincts. He must fulfil his destiny. To that acute intelligence it had come to seem that truth and untruth were identical. It would seem to be born for iconoclasm, for demolition; let it leave to less sophisticated minds the championship of outworn ideas. In this whirlpool of doubt in which he was engulfed, his ideals, his instincts, all those mental resources which garnish with dignity the most protean character, seemed to break from their moorings; and in the very frenzy of this wreck of his stability, there returned upon him in the guise of one of those paradoxes which had become so fatal, a newer, a franker, a more vital conception of his power.

There returned in its train the arrogance of his quality. It was not for one of the blood royal to submit to dictation from the mediocrity it despised. Its right was inalienable to obey the forces within itself. He had felt from the first that it was in his power to save this woman; the attorney's doubts had intervened and for a time had overthrown his faith; but now he had come to believe it again. The thing called "experience," that eternal standby of the vulgar, was a mere tawdry substitute for intuition in the inferior orders. A great talent incorporated experience within itself. He must suffer no qualm on the score of his youth, his absence of laurels. After all, this brief had been evoked by the exercise of an imperious will in a magic hour; had he not an immemorial right to use it as he chose? Let him obey the divine faculty that had carried him so far, and then if fail he must, at least his failure would be worthy of himself. It was proper for common minds, destitute of all force and originality, to subscribe to the conventions which they set up to protect themselves. Custom, usage, the accretions of centuries may even hallow and exalt them until they assume the guise of religions, but these simulations have nothing to say to the royal among their kind.

This powerful impulse, whose impact upon the mind of the advocate was almost terrible, merged the surroundings in itself. Time and place were obliterated; the evening was imperceptibly eaten away. The clocks of the neighborhood gave out the hour of midnight just as Northcote, gasping, with all the breath driven out of his body, emerged from the vortex to grasp his final decision. For six hours he had not been sufficiently accessible to the external to heed the hours as they struck. But now, as the long-drawn strokes announced a new day, a thrill of excitement convulsed his being. The day of all days was at hand. He was standing on the very threshold of the issue. The dread future was about to roll back its veil. Such an emotion was cast upon him that he began to tremble as violently as when he had driven with Mr. Whitcomb to the prison.

He supposed that the chime of these clocks would penetrate the walls behind which the unhappy woman was lying awake. She also must be trembling violently. Doubtless the poisoner and prostitute was dreaming again of her deliverer. The idea overcame him with a curious poignancy which, horrible as it was, was yet touched with ecstasy.

This was a creature who must expect no mercy from the Pharisee; yet the living woman had a power within herself to arouse a desire for it in one who pretended to no exalted sympathy with his species. In their interview in the prison he had discerned nothing of vileness about her. And he was fain to believe that she had dreamed in sober verity of her advocate the previous night. Conjuring up this memorable interview, which yet remained so colorless that it seemed to have happened only to the soul, the haunting low tones began to speak through the silence of his room; and with an impulse of joy that banished the horror of their insistency he responded to the accents of their truth.

A living voice had entered the room. It was the same voice, and yet so much more resonant than the one he had heard in the prison. The senses of the advocate were strung to a point so perilous that the luminous figure of a woman appeared before them. This was she who had huddled away into the shadows of the jail. The lamp on the table, which with so much difficulty melted the gloom within the area of its influence, framed her contour with a kind of weird delicacy. Her figure was veiled in a soft plasticity; it was that of one who was in despair; yet it had all the simple trust of her sex, which it exhibits at those supreme moments when nothing is left to it save to kneel

and to embrace its faith. It was a figure such as this that rolled away the stone from the mouth of the cave and discovered that the body of Jesus was not there.

During the interview the young advocate had known and understood little, but now, under the spell of his passion, an ampler knowledge enfolded him in its mantle. It is not until we look down upon them from the altitude of some momentous phase, that those moments which are destined to assume a permanence in our lives become crystallized into our mental history. The terror and the reticence of this pitiable creature had pierced him like a sword, yet it was not until this remote hour that Northcote understood the miracle they had wrought in his nature.

She must once have been fair under the eyes of the sun; once slender, gracious, inhabited by chastity. Her voice proclaimed a history that must have been inexpressibly grievous. Yet the desire for life was in her still. She was not prepared to yield her interest in the mystery. Her words were memorable: she had never understood anything until she was brought into prison. Was it not meet that this daughter of a hundred inhumanities should now call to be released from the doom her fellows had prepared for her. "I know you will save me, my deliverer," were the words he still heard; and they came upon his ear with more of authenticity than when they first fell from those indescribable lips.

He rose from the chair in which he had been immersed so many hours. He was shuddering in every vein. His fingers and limbs were petrified with the coldness of the room; his damp trousers were inflicting his ankles with rheumatic pains. So stiff were his limbs through remaining in one position for so long, that it cost him labor to cross the room and open the window.

He thrust out his head and a rush of icy air saluted his temples. The rain had ceased; the clouds had dispersed; the heavens, charged with a keen frost, were studded thickly with little dark blue stars. Peering towards them eagerly Northcote tried to decipher the names and positions of these meaningless heads, until at last he came upon one which was larger and brighter than the rest. He was convinced that its locality would render it plainly visible from the windows of the prison. He fixed his gaze upon it with great intensity; he knew the occupant of the prison had climbed up to peer at it through the bars of her cell.

Although he had spent the previous night without entering a bed, nothing would have enabled his thoughts to seek sanctuary in sleep. The incandescent fervor of his mind would not allow him to repose; and although a few hours hence he would have to draw upon every spark of physical energy he possessed, he had no fear of his bodily limitations. He had the immense vitality of those demigods among their kind, for whom no ascent is too precipitous. He spent some time in vigorous gymnastic exercises to drive the congealed blood through his veins; and this accomplished, he felt his strength return.

He passed the remaining portion of the night in pacing his room, with a pipe fixed in his teeth and his hands thrust beneath his white jersey into the pockets of his trousers. Occasionally he ceased these peregrinations for a few minutes at a time, in order to write down some of the sentences as they took shape in his mind. He desired to give himself the æsthetic pleasure of seeing how they looked on paper. Yet he did not propose to bestow a literal preparation on this address, since he had sufficient confidence in his fecundity of expression to speak extempore and yet expect adequately to traverse the scheme he had planned. Words charged with emotion springing fresh and tingling from the mist would increase their appeal by being thrown off in the actual impulse by which they were created.

When at last the old charwoman arrived at half-past seven she was astonished to discover Northcote walking about the room looking wild and haggard and declaiming passages of the peroration. He sent her out to borrow some coal; and when she returned with it and proceeded to make a fire, he ordered as on the previous day what they both considered to be a sumptuous breakfast. While this was preparing he retired to fit himself for that ordeal to which he would so soon be called.

Even now, however, a palsy was on his limbs, a fever in his blood. In the delicate operation of shaving he was unable to conduct the razor firmly, and cut his chin repeatedly. It was with infinite difficulty that he could render himself presentable after the various gashes it had undergone. After expending not less than an hour on his toilet, and conferring as much respectability upon his person as lies within the province of soap and water and clean linen, he sat down at the table hungry and cold yet consumed with excitement.

“Mrs. Brown,” he said to the old woman, “I forgot to ask about that small grandchild of yours.”

“She is dead, sir.”

“I am very sorry. When did this occur?”

“Last night, sir, about twelve. It is one mouth less to feed, as you might say, but I think it might have been my own.”

“But then there would have been no means of feeding the others.”

“Yes, sir, it was a wrong expression,” said the old woman in her precise manner. “It was not what I meant to have said.”

“Well, come now,” said Northcote, “suppose you try to eat some breakfast.”

XXIV

THE TRIAL

THE old woman took her seat at the table obediently, but with a bewilderment as great as on the previous day. It was very strange that incidents such as these should arise to embellish her servitude.

This morning, however, she was not tormented with a string of questions. Northcote was silent, gloomy, and haggard; something appeared to be preying on his mind. The remorse he had shown for having failed to ask how her grandchild was seemed strange to her indeed, for until the previous day he had always stood in her mind as a member of the inaccessible classes. Something had appeared to happen to him by which, in a few short hours, the tenor and current of his life had been changed. There was a terrible excitement burning now under his pale skin; his eyes were restless, his fingers were twitching, and he drank cup after cup of the hot tea as though he were consumed with an intolerable thirst.

When he had finished his breakfast he took his wig and gown out of a cupboard, and placed them together with his brief in a small black bag. He was on the point of starting for the court, when through the open door he could hear footsteps on the stairs. Some one was coming up to the fourth story, an incident so rare in the experience of its occupant as always to be rendered memorable. In an instant the jovial outline of the solicitor presented itself to his imagination. With an agitation that was indescribable he foresaw that he was not to be allowed to take the brief into court after all.

Instead of Mr. Whitcomb, however, his visitor proved to be a boy with a telegram. He tore it out of its envelope. The contents were contained in three words: "Life, my son." They were from his mother.

With this omen in his heart he set forth. A welcome change had taken place in the weather. The air had become sharp and dry; already misty beams were stealing out from the December sun. The press in the streets was immense, but he brushed through it with the elevating consciousness that he was overcoming a real obstacle. In his every fibre was the breath of contest,

the joy of battle. His mother's words, the faint beams of the new day, the rattle of the traffic, all conspired to endow him with a ruthless determination.

If it was to be that defeat and confusion should overtake him, at least he would not go out to greet them half-way. Once and for all he had put off those fears and misgivings that had tormented him. A great commander storming an inaccessible position does not pause to estimate the cost; he does not pause to contemplate the inevitability of disaster. He, too, would show himself of this quality: a great commander of his lurid and revolted imagination in the teeth of frightful odds.

He arrived at the Old Bailey at a quarter-past ten. He did not allow himself to glance at its profile, nor did he permit his mind to be distracted by one of the thousand details, common, depressing, and of no significance in themselves, yet likely to be so ominous in their effect on high-strung nerves. He passed from the barristers' robing-room as soon as he could, for beyond everything he wished to avoid contact with his kind. Yet to the majority of those within its precincts he was not even known by name; and he felt himself to be looked on askance by all as a solitary, queer-headed fellow.

On entering the court he used great care in selecting his seat. It was in a situation from which he felt he could command the attention of all present; from which the jury would lose nothing of what he presented to it, and yet be sufficiently removed to be unable to discern the more intimate workings of his personality. Oratory like music demands a certain space and distance in which and at which to reveal itself. Before taking his seat he looked all around him into every part of the building, in order that he might familiarize himself with that which lay about him. Every seat allotted to the public was already in its occupation; the nature of the charge was itself sufficient to stimulate its curiosity in the highest degree. Among the members of the bar the interest was not so great. There was said to be no defence worthy of the name; the crime was of a common kind, presenting neither rare nor curious features; the absence of Tobin, the most brilliant common law advocate among the younger men, had become known; and the case was expected to be disposed of without difficulty. Its main interest in the eyes of the junior bar centred around the man who had been asked to conduct the defence. That one so obscure as Northcote should have been

chosen to fill the place of Tobin in a murder case was one of those unexpected things which furnished a theme for the critic's function; a function which the majority of those in their robes on the benches felt eminently qualified to undertake.

Many were surprised, some were a little grieved, and the ambitious were rather disconcerted that Northcote should be entrusted with a brief of this nature. Obscure as he was in practice, he had acquired a kind of reputation at the bar mess as one who was singularly unsocial in his habits. As the brief in the first instance had been marked with a figure large enough to command the services of Tobin, the defence could not be wholly destitute of means. It was strange that a firm so notoriously astute as Whitcomb and Whitcomb should have handed it to one of no experience when the extremely able counsel they had retained originally had been compelled to throw up the case. There was quite a number assembled in that court who were far more competent to deal with it than this young and unknown practitioner. In the opinion of many, this circumstance was taken as the clearest indication of all that the case had no life in it.

Hardly had Northcote taken his seat in the court when he felt a hand on his shoulder; it belonged to Mr. Whitcomb.

"No nonsense, now," he said anxiously. "The witnesses are here, and we shall expect you to call them."

"It is quite impossible for me to alter my line at the last moment," said Northcote, while every nerve he had in his body seemed to be ticking furiously. "Besides," he added, in a hoarse whisper, "don't you see that if they are not called I shall get the last word with the jury, as the attorney is not in the case?"

"Pray, what is the use of that? What will that do for you?"

"You must wait and see," said the young man, with a red haze before his eyes.

"My dear fellow, I must insist on your calling the witnesses."

"It is impossible," said the young man, in a voice the solicitor could hardly hear.

"Really, you know, this is carrying things too far."

“I would to God,” exclaimed the young advocate, with his voice breaking in the middle in the queerest manner, “you had never retained me at all!”

This outburst of petulance conferred upon the solicitor a renewed sense of the young man’s situation.

“Well, well,” he rejoined, with a certain kindness, “I suppose you must do as you please. A case is not over until a verdict’s brought in. But the witnesses are here—if you change mind.”

The young advocate turned his haggard face and bloodshot eyes upon his monitor, but his rejoinder, whatever its nature, was banished from his lips by the entrance of the judge. Almost in the same instant the prisoner was put up. She was called upon at once to plead to the indictment, “for that she was accused of the wilful murder of Thomas Henry Barron upon the 12th of September.” In a voice that was scarcely audible she pleaded, “I am not guilty.”

The jury was sworn immediately, and justice proceeded on its course with considerable expedition. The case presented no feature that was warranted to arrest the progress of the legal mind. The woman’s guilt was indisputable; it was known that the defence had nothing material to advance; and even had it been placed more fortunately, it was unlikely to be marshalled to advantage in its present hands. The judge and the counsel for the Treasury were at one in their eagerness to press the opportunity of getting the case through, since every few minutes they could rest from the course of the public business was inexpressibly dear to their hearts. They would be able to get off to a week-end in the country by an earlier train.

Mr. Weekes, K. C., who led for the Treasury, commenced briskly and volubly without the delay of a moment. He was a small, thin man, with very straight and attenuated hair, sandy in color, and a pair of side-whiskers. A pair of gold pince-nez suspended by a cord contrived by some means to add to the quickness and irascibility of his frequent gestures. His voice was keen and piercing and somewhat metallic in sound; his language had great facility but no distinction; his delivery was rapid; but manner, diction, appearance, were equally destitute of style.

In opening the case to the jury, this expert occupied less than an hour. He unfolded the nature of the charge in easy, fluent, almost deprecating terms.

It amounted to this: the accused, whose reticence in regard to her antecedents was impenetrable, and whose age appeared on the charge-sheet as thirty-nine, had for several years past cohabited with the deceased, who had followed the profession of a book-maker.

It was known that previous to this she had lived the life of the streets. It would be shown by several of her associates, who would be called in evidence—women like herself of ill-fame—that during the last year in which she had lived with this man, she had more than once been heard to express the determination “to do for him.” It would appear that the man, although said to treat her well enough at first, had latterly evinced signs of growing tired of her. Further, he was a man of intemperate habits, and on many occasions she had been heard to complain with bitterness of his violence and brutality towards her.

The accused had been aware that by the man’s will a sum of money had been left to her. She had often, when in drink particularly, to which she also was addicted, mentioned this fact boastfully to her associates; and a few days prior to the commission of the crime had asserted in the presence of three of them, “that if she did not mind what she was about she would lose it, as he was always threatening to leave her.”

On the afternoon of the tenth of September she purchased a quantity of vegetable poison of a chemist. On the evening of the eleventh the man sat up drinking heavily into the small hours of the morning; and at noon on the twelfth he expired in the presence of a doctor, who had been fetched by a maid servant, although the woman herself had done her best to prevent a doctor from being summoned. In the doctor’s opinion the symptoms pointed to death by poisoning. A post-mortem was held the same afternoon; as the result of it the woman was taken into custody, the house was searched, and a quantity of strychnine was found concealed in her bedroom. Subsequently the contents of the man’s stomach was submitted to a public analyst; and in his evidence he would testify to the presence of strychnine in sufficient quantities to cause death.

This was the case for the Crown. Evidence was called in corroboration; first the detective who had taken the woman into custody, and another who had discovered the poison. These were examined briefly by Mr. Topott, the junior counsel for the Treasury. The doctors then described the cause of

death and the result of the post-mortem; and these were confirmed in their opinion by the analyst when he came to describe the result of his researches. All of these were soon disposed of, as Northcote did not attempt a word in cross-examination.

Two of the members of the junior bar, young men and critical, who were not disinclined to see a personal affront in Northcote's preferment, were not slow to note his passiveness, and to add it to the estimate they had already formed of his incapacity.

"I never saw a fellow look in such a funk," said the first of these gentlemen, one who had been nurtured in an atmosphere of wealth and influence, and himself a former president of the Oxford Union. "The case will be over by lunch."

"They are not wasting much time, certainly," said his friend, the son of the Master of the Rolls.

Two maid servants were called in evidence, and examined by Mr. Topott with the same convincing brevity as the previous witnesses. Here again Northcote refrained from cross-examination.

"Ought to do something," whispered the ex-president in the ear of his friend. "Missing opportunities. Why don't he ask if she saw it administered?"

The chemist's assistant who had supplied the poison, and who had identified the portion found in the possession of the accused as part of that which had been sold to her, also escaped without a challenge. Five of her female associates were then called one after another. Their evidence was extremely damning. With the skilled aid of the junior counsel for the Crown, every rag of decency was stripped from the woman in the dock. She stood forth a veritable harpy and monster, several shades more infamous than themselves. As one after another of these witnesses was permitted to stand down without being subjected to the ordeal of cross-examination, the ex-president of the Oxford Union was moved to express his personal disappointment.

"Something might have been done with these, at any rate."

"I think you are right," said his friend; "but what's the good, after all. It is a waste of time to say anything."

“There is no defence, I am told.”

“He will call evidence to show that she was subject to violent fits of passion when in drink.”

“Ah, that is where Tobin will be missed. Really, one is surprised at Whitcomb and Whitcomb.”

“They saw the futility of fighting, and are doing it on the cheap.”

“Poor brute! But I don’t altogether agree with you. Something might have been done by a man of ability. I should like to have seen Tobin in it.”

“I don’t think Tobin would have attempted to touch their witnesses. We must wait till he calls his own to see what he is worth.”

At this moment, however, those who had conducted this secret conversation had their curiosity gratified by the spectacle of Northcote rising for the first time. He got up heavily and wearily, as though age had stricken him in every joint. His face was almost painful in its pallor. The last “unfortunate” had just made her half-audible reply to the final question that had been put to her by the amiable Mr. Topott.

“I believe you said you had been acquainted ten years with the accused?” said Northcote, in a voice that was curiously low and gentle.

“Yes, sir.”

“During that period you had known her many times to be under the influence of drink?”

“Yes, sir.”

“Would you say that drink excited her easily?”

“Yes, sir.”

“That a very small quantity was sufficient to excite her?”

“Yes, sir.”

“And that when in this condition she was inclined to be very free in her speech?”

“Yes, sir.”

“Also she had a tendency to make use of expressions that she was never known to permit herself when perfectly sober?”

“Yes, sir.”

“The same would apply to her statements when in this excited condition?”

“Yes, sir.”

“They were obvious exaggerations?”

“Yes, sir.”

“And some were pure inventions? You knew they were wholly untrue?”

“Yes, sir.”

“You and her other friends were well acquainted with her habit of giving way to exaggeration, and even to palpable untruth when under the influence of drink?”

“Yes, sir.”

“The habit was so well known that it was amusing to you? You have often laughed about it among yourselves?”

“Yes, sir.”

“You were known to say yourself on one occasion when she was what you call particularly ‘merry,’ ‘Emma would do for anybody on a quartern of gin’?”

“Yes, sir.”

“You have a distinct recollection of saying that?”

“Yes, sir.”

“Your meaning was that when your friend had had that quantity of alcohol the airs of bravado she assumed were quite ridiculously out of keeping with her character?”

“Yes, sir.”

“And the point of your saying lay in the fact that whether your friend had had drink or whether she had not, her character was so soft and gentle that you could not conceive her to be capable of hurting anybody?”

“Yes, sir.”

“She has been your friend for ten years?”

“Yes, sir.”

“Throughout that period you have found her to be generous, kind, impulsive, lovable?”

“Yes, sir.”

“No one’s enemy save her own?”

“Yes, sir.”

“Had it ever seemed possible to you that if she was capable of the commission of this atrocious crime of which she stands accused, she could never have enjoyed the ten years of your friendship, nor the ten years of affection you lavished on her?”

“Yes, sir.”

“It was no wish of your own that brought you to this court?”

“Yes, sir.”

“Indeed, you cannot say you came here of your own free will?”

“Yes, sir.”

“You were brought here under compulsion?”

“Yes, sir.”

“Without that compulsion nothing would have induced you to come here, and stand in this box, and speak words which might be used to hurt your friend?”

“Yes, sir.”

The witness had been weeping softly for some time. Her emotion, which in the circumstances was natural, was also felt to be a tribute to the examining counsel. The gentleness of a voice which touched the chord of pathos in every phrase it uttered without betraying a consciousness that it did so, invested a series of tame and unfruitful questions with an æsthetic quality which even the least educated of those present could appreciate.

At this point, however, Mr. Weekes rose brusquely and tartly with an objection. His friend had trespassed beyond the privilege of counsel. The objection was upheld by the judge, who with a kind of courteous acerbity informed Northcote in some very harmonious diction that he would do well to put his question in another form.

“I will do so, my lord,” said the young man, with admirable composure and raising his voice a little.

“You were forced to come here by the police?”

“Yes, sir.”

“In whom you stand in great fear?”

“Yes, sir.”

“You are compelled to do all that they require of you?”

“Yes, sir.”

“And when they take one of your friends to prison, and they come to you and suggest words that she may have used to you when she was not in a condition to weigh them, you know very well that whatever your own feeling is in the matter, you must say nothing, and you must do nothing that is likely to displease the police?”

A more emphatic protest was entered at this point by the counsel for the Crown. It was upheld by the judge with an equal access of emphasis. Northcote accepted the ruling with the nicely poised urbanity with which he had received the previous one; yet in the act of doing so he contrived, as if by an accident, to let his gaunt eyes alight on the jury. It was followed by a smile which crept over his haggard cheeks; and this was conveyed to each of them personally, as though he were covering a retreat with a little apology. Yet it was all contrived so delicately that it required a certain fineness of perception to notice it.

During the next few minutes these objections were frequent. They were raised with an ever-increasing vehemence by the counsel for the Crown, were embodied with an ever-increasing acerbity and sternness by the judge, and were received by the counsel for the defence with a deferential patience, the ironical side of which was immediately exposed by the next question he put to the witness, and also by the concentrated manner in

which he smiled at the jury. After a perfect rain of objections, which for the purposes of our narrative must henceforward be taken as granted, the leader for the Crown could stand the carefully elaborated audacity of this unknown tyro no longer. He lost his temper.

“Mr.—er—er,” he said, referring to a paper for the name, “Mr. Thornton, you have no need to keep smiling at the jury in that way.”

Northcote turned to face his adversary with a deliberation that astonished the bar, and even caused a grim flicker to play about the mouth of the judge.

“I trust, Mr. Weekes,” he said, “you will withdraw your objection to these amenities. If you do not, I feel sure his lordship will be bound to uphold it. And if, Mr. Weekes, I might urge you to be patient, I can promise that your time to receive them will arrive.”

The measured dryness of the young man’s manner set the bar in a twitter.

“Damn his young eyes,” said a barrister of elephantine proportions on the back bench to a colleague; “two birds with one stone. I shall stand him a bottle. I like his mug.”

The opinion of the ex-president of the Oxford Union was less favorable.

“Funny chap, isn’t he?” drawled the product of Eton and Christchurch. “What can he do for the case by trying to score off the judge and a silk gown?”

“Theoretically he’s wrong,” said the son of the Master of the Rolls; “but it was very nicely done. I am sure my guv’nor would have liked it.”

Divested of its endless interruptions, the cross-examination of the woman was conducted with that persuasiveness he had used from the first. And to those acquainted with the immensely difficult art Northcote was essaying, it became a source of surprise that so young a man should evince this perfect command over the means he employed, when the high-strung nerves of the natural man were subjected to such severe trials from an opponent. And the reward of his restraint came to him as he proceeded, for the wretched woman was melted to tears by such a sympathetic tenderness; and further, the intercourse he had already established with the jury seemed to deepen.

“It is due to the courtesy of the police that you are able to follow your calling?”

“Yes, sir.”

“The police could take away your means of livelihood without giving you warning; and without giving you a moment’s notice they could put you in prison?”

“Yes, sir.”

“And whenever the police ask you to serve them, whenever they ask you to oblige them in any way, you feel obliged to carry out their wishes, whatever the cost may be to yourself?”

“Yes, sir.”

“Even when they cause you to hurt a friend by stating that which you know to be not quite true?”

“Yes, sir.”

“On one occasion, Mrs. Walsingham, to help the police, you identified a man whom they suggested had robbed you?”

“Yes, sir.”

“And your own testimony and the testimony of several of your friends enabled them to send this unfortunate man into penal servitude?”

“Yes, sir.”

“I use the word ‘unfortunate,’ Mrs. Walsingham, because this man, after languishing many years in prison, was able to prove, to the satisfaction of his fellow creatures, that he was perfectly innocent of the scandalous charge that was brought against him. But at the time of his conviction, when the police had called upon you for your help, you did not dare to tell the judge and the jury that you had not been robbed by this man, and that you had never seen him in your life before?”

“Yes, sir.”

“This was an instance in which you felt the necessity, in spite of all that it cost you, to help the police in obtaining one of those ‘convictions’ which they consider so necessary to their own well-being?”

“Yes, sir.”

“One of those ‘convictions’ which mean an extra stripe on the arm, and the addition of a few shillings a week to the pay of one or two of these natural enemies of yours, of whom you and your friends stand in constant dread?”

“Yes, sir.”

“And so, Mrs. Walsingham, these enemies of whom you stand in such great fear having, in the first instance, caused you in your weakness to affirm that which was untrue, in order that the liberty of an unhappy man, whom you had never met, might be taken away from him, they cause you now to come again into this court to swear away, not the liberty, but the life, of a poor friend, whose only fault, as far as you know, is that occasionally she drank a glass more than was good for her?”

“Yes, sir.”

“Mrs. Harrison often spoke to you of this Mr. Barron?”

“Yes, sir.”

“Of late Mrs. Harrison had complained to you of Mr. Barron being unkind to her?”

“Yes, sir.”

“She told you that he had even threatened to leave her altogether?”

“Yes, sir.”

“When you first knew her, Mrs. Harrison seemed attached to him?”

“Yes, sir.”

“That is to say, she never complained about him?”

“Yes, sir.”

“But when latterly he grew unkind to her she became very unhappy?”

“Yes, sir.”

“And was it not at such times that she was inclined to drink that extra glass to forget her great unhappiness?”

“Yes, sir.”

“Yet it was only under these conditions, when a stimulant had excited her feelings, that she was heard to complain against him?”

“Yes, sir.”

“And then it seemed to you no more than the legitimate complaint of a highly emotional and affectionate nature which was suffering deeply?”

“Yes, sir.”

“You remember, Mrs. Walsingham, that on one occasion she made a reference to her previous history?”

“Yes, sir.”

“It was to the effect that this Mr. Barron and herself came from the same village in the north of England?”

“Yes, sir.”

“That they had been intimately acquainted in her youth?”

“Yes, sir.”

“That as a young girl she had been in domestic service at the house of Mr. Barron’s mother?”

“Yes, sir.”

“That Mr. Barron seduced her under a promise of marriage?”

“Yes, sir.”

“And it was the fact that that promise had not been kept which led directly, in the first instance, to the ruin of this young girl?”

“Yes, sir.”

“And Mr. Barron having accomplished her ruin, fled from the house of his parents to London, to escape his duty?”

“Yes, sir.”

“And this girl, dismissed from her situation, disgraced in the eyes of her friends, followed in her despair to this huge city, in the slender hope of finding the man who had ruined her?”

“Yes, sir.”

“Yet for many years she was unable to find him?”

“Yes, sir.”

“And during those years of inexpressible bitterness, in her ignorance of life, her helplessness, her friendlessness, in the abasement of her spirit, she sank deeper and deeper into degradation?”

“Yes, sir.”

“The pure-blooded north country girl became a harlot by the force of circumstances?”

“Yes, sir.”

“And then after many years of misery one evening at a music hall, in the pursuit of her calling, she chanced to meet the man who had been the first cause of her ruin?”

“Yes, sir.”

“And when he renewed a proposal that he had made years before, which as a young girl she had scornfully repudiated, that she should dwell in his house, not as his wife, but as his mistress, the pressure of her circumstances forced her to accept this proposal almost with a sense of gratitude?”

“Yes, sir.”

“And, Mrs. Walsingham, you do not believe for one moment that any thought of vengeance ever suggested itself to her mind?”

“Yes, sir.”

“You are prepared to swear that?”

“Yes, sir.”

“Also, that even in these latter days, when Mr. Barron became cruel and violent in his conduct towards her, she never freed herself from his yoke, never passed from under the spell of a power which, from the first, had been so fatal to her?”

“Yes, sir.”

“And that this paltry sum of money which she believed had been left to her in his will, which has proved not to have been the case, could never have

counted in the scale of his personal attraction for her, which, sinister, dreadful, tragical as it had proved, had caused her at his behest to forfeit friends, health, virtue, honor, all those things which dignify life?"

"Yes, sir."

"I thank you, Mrs. Walsingham; I have nothing more to ask you."

The poor drab, tottering, faint, dissolved in tears, had to be assisted from the witness-box.

This piece of cross-examination had made a strange impression. The manner in which it had been conducted by the young advocate had exerted a powerful emotion upon many besides the weak and flaccid creature who had been so much clay in his hands. It had had great success as a *coup de théâtre*. The trained perceptions present had an uneasy sense that they had been listening to a masterpiece. Forensically, the means had been entirely adequate to the end; a supremely difficult art had been surmounted by an exquisite skill. Each question had been shaped so naturally, each word was clothed with such true delicacy, that wonderful *nuances* of feeling were shed by the magic of the living human voice over the sordid and the unclean. Sentence by sentence the fabric of a story that was as old as the world was unrolled until it became a piece of drama. Even professional criticism, which was avowedly hostile, was half-conquered by the infusion of human sympathy into that which could not bear the light. Irrelevant, destitute of real authority as was the whole thing, it was yet allowed to be a performance of rare technical beauty, a pledge of the controlled will-power of its creator. And like all things which are the fruit of an incomparable technique—in itself the reason to be of what is called "art"—it had evoked that subtle emotion which transcends reason and experience. And the least accessible to this malign influence were fain to see that the first nail had been hammered already into the coffin of the prosecution.

The indication of a fight on the part of the defence was extremely distasteful to Mr. Weekes and his junior. Nothing had been farther outside the prediction of these expert practitioners. It had been freely anticipated that by luncheon-time the end would be in view. By then, according to this prolepsis, the defence was to have called its witnesses to testify to the woman's violence when in drink, which would count for little; this youthful novice was to have floundered through his few disconnected and incoherent

remarks to the jury; the leader for the Crown was to have answered him in a few perfunctory sentences, which yet would be in striking contradistinction to the halting and rather inept performance of his youthful opponent; the whole was to have been transferred to the judge with a sense of perfect security, since the case for the prosecution was so clear and so entirely uncontroverted; and the judge, very excellent in his way, and highly in favor of the despatch of public business and economization of the public time, was even to have worked in his summing-up by the hour of the adjournment.

However, this lengthy and irrelevant cross-examination, which had had to be contested at every point, had somewhat demoralized this well-considered programme. A solid hour had been cut out of it, a solid hour in which both sides could have addressed the jury; in fact, a solid hour in which, by an effort, a verdict could have been obtained and the woman hanged. And when this tyro, who was conducting his first case of importance with a coolness that many of his elders might have envied, intimated that it was not his intention to call witnesses, and further claimed in that contingency the privilege of addressing the jury after the counsel for the Crown had spoken, Mr. Weekes was fain to inform the court that he would prefer to reserve his own address to the jury, brief as it would be, until after luncheon. Accordingly the adjournment was then taken.

XXV

MR. WEEKES, K. C.

IT was in no amiable mood that Mr. Weekes went to lunch with his junior. All his arrangements had been spoiled by “the fellow on the other side.” Instead of the case being in a stage that would permit him to leave it to devote his afternoon to business in another court, it began to seem that it might be prolonged indefinitely.

“So like a beginner,” said the leader to his junior; “must spread himself on the slightest opportunity. When he’s been at it as long as we have he’ll be wiser. So stupid to waste an hour of valuable time in that way. But, after all, it’s a golden rule to expect a beginner to fight a hopeless case. One ought to have known.”

“Quite sure it is hopeless, Weekes?” said his junior quietly.

“Why ask the question?” said Mr. Weekes, irritably. “The case is as dead as this mutton.”

“Then I am afraid there is a little life in,” said Mr. Topott, tasting the mutton ominously. “Waiter, if you don’t mind, I’ll try the beef.”

“That confounded cross-examination—so stupid—so unnecessary—put everybody out,” said Mr. Weekes, snappishly, at each mouthful. “Waste of public time—may well want more judges—ought to allow judges more power—better for everybody—save time and money—save youngsters from making fools of themselves.”

“Also enable us to get in an extra round of golf on a Saturday,” said Mr. Topott, viewing the beef he had exchanged for the mutton with a deep suspicion. “But seriously, Weekes,” said he, “I don’t want you to leave me until they’ve returned their verdict. You can just let that *nisi prius* business alone this afternoon, and stay with me. I have a presentiment that things might go wrong.”

“Presentiment!” said Mr. Weekes impatiently. “Deuce take your presentiments! Waiter, bring me some red pepper.”

“The fact is, I am frightened to death by that young fellow,” said Mr. Topott cheerfully. “I suppose you know who he is?”

“I know what he is,” said Mr. Weekes incisively. “He is a confounded nuisance.”

“He is the greatest player of Rugby football the game ever saw,” said Mr. Topott impressively.

“Pity he didn’t stick to it,” said Mr. Weekes. “Better for him, better for us. But what has his football got to do with his advocacy?”

“Well, I always think, you know,” said Mr. Topott modestly, “a man is all of a piece as you might say. If he is preëminent in one thing he will be preëminent in another.”

“Not at all, my dear fellow,” said Mr. Weekes, breathing contradiction, a pastime that was dear to him. “It doesn’t follow in the least. A man may be supreme as a crossing-sweeper, but it does not follow that he would be equally great as a member of Parliament.”

“I am only advancing a theory,” said Mr. Topott, more modestly than ever, “but I rather contend that it does. It is a matter of will-power. That to which his supremacy is due in one direction, if evoked in an equal degree in another direction will result in an equal supremacy. What I mean to say is, that it seems to me this truly great football-player has made up his mind to become a truly great advocate. And that is why I fear him.”

“Moonshine,” said Mr. Weekes. “He is clever, I grant you; but football-playing and advocacy are not on all fours, as he will discover this afternoon very speedily when he comes to address a British jury.”

“If you don’t mind my saying so,” said Mr. Topott, with a very apologetic air, “it struck me this morning that his football-playing and his advocacy were very much on all fours. They both struck me as belonging unmistakably to the man. I have, as I say, a presentiment that things might go wrong.”

“Confound your presentiments, Topott! How can things go wrong? And why a man of your experience should funk a mere boy who has had none, I don’t know. He is certain to come an imperial crowner with the jury. There isn’t half a leg for him to stand on.”

“Well, he didn’t come much of a crowner this morning,” said Mr. Topott deferentially, “in spite of Bow-wow and in spite of you. I don’t know where he obtained his information, but I thought the whole thing was most artistic. And if the fellow can cross-examine in that manner, heaven knows what he can do when he gets up on his hind legs to address the jury. I tell you, Weekes, I am frightened to death of this young fellow. He’s deep.”

“I tell you what it is, my boy,” said Mr. Weekes tartly, “you stayed up an hour longer than you ought to have done at the Betterton last night, waiting for four aces which never turned up.”

At an adjoining table the barrister of elephantine proportions, who had expressed his determination “to stand the fellow a bottle,” was entertaining a select coterie of his learned friends. In his inn he was justly celebrated as a trencherman among a society which had always been famous for its prowess at the board. He rejoiced in the name of “Jumbo;” and, although his practice was small, only his adipose tissue imposed the bounds to his good nature. In every way he was designed by nature to be one of her most popular efforts.

“Who’s Northcote?” was a question that was circulating freely. None seemed to know.

“Never heard of him. Never seen his name.”

“Well known in the police-courts, I believe.”

“It’s time he gave them up. His talents call him elsewhere.”

“It was rather poor form, I must say, trying to score off Bow-wow.”

“It is a mistake a young man is likely to make.”

“Speaking for myself, I thought Bow-wow was asking for it. It is the time-honored story of the old-established firm of the bench and the Treasury. Once a Treasury counsel always a Treasury counsel.”

“Jealousy, jealousy, jealousy.”

“He was altogether wrong with the police.”

“I agree. He ought to have been handled more firmly.”

“Bow-wow furnishes a good example of a lath painted to look like iron. I should like to have seen him face to face with Cunningham, or old Tottie Turnbull. There would have been trouble for one.”

“For m'lud, I'll lay a pony. This young sportsman is quite above the ordinary. He is going a very long way.”

“It is too early to say. We see so many geese with the plumage of the swan in this profession.”

“Name! name!” cried the table.

“I expect when it is all reckoned up,” said Jumbo, when order had been restored, “my young pal, Jem Smith, is the son of ‘Pot’ Northcote who went the northern circuit for years.”

“If that is so, Jum, he is already a better man than his father. Pot died a recorder.”

“I hope the young un will open his mug for an hour this afternoon. He's got the finest mask on him for a young un I ever saw.”

“Weekes might easily have to play jack-in-the-box all the afternoon.”

“In that case poor old Bow-wow will have to do a frightful amount of scratching at his leg.”

“But the case is too dead to be worth it.”

“That won't matter to James. He threw down his gage this morning. The jury will have to sit tight and hold on to the handle going round the curves, or he'll have them in a hat before he's done with them. And I've seen Bow-wow crumple up before now.”

“So have we all.”

“Like all notorious barkers his voice is the best part about him.”

“For my part, I think you are going too fast. The lad is not so wonderful as all this. He has done nothing out of the common as far as I can see.”

“No, dear boy,” said Jumbo, “because you can never see anything. But a young sportsman who can cross-examine in that manner in his first murder case is made of the right stuff.”

“But the witness was as easy as pie. She didn’t know where she was or what she was saying.”

“And he took an amazing advantage of her.”

“So would any one else.”

“They would, but in a very different way.”

“His cross-examination will amount to nothing, in spite of the time it wasted.”

“Will it not, though? That is all you know of a sentimental jury of your countrymen.”

“His attack on the police was monstrous, and he had no right to put questions in the form he did.”

“So thought Weekes, so thought Bow-wow, but he put them all the same. And what is more, the foreman of the jury, a highly respectable greengrocer, took cognizance.”

“Well, where does his amazingness come in? She only answered ‘yes’ to everything.”

“Had he wanted her to answer ‘no’ to everything she would have done so.”

“Of course she would. Everybody could see that.”

“Yes, dear boy, and what does he do? Our young friend takes the liberty of inventing every one of his facts as he goes along. All that about her dealings with the police and the murdered man coming from her native village was so much fiction. It was a marvellous piece of improvisation.”

“We shall none of us believe that.”

“Of course you won’t, dear boys; you are not expected to. But as soon as he realized his opportunity he took an amazing advantage of it. It was daring, I grant you, an unparalleled piece of effrontery. I don’t know another man at the bar who, had he been capable of a *coup* of that kind, would have ventured to play it. The whole thing was the most audacious piece of work ever seen.”

“But, my dear Jum, he had no right to do a thing of that kind.”

“Of course not, dear boy, but he did it.”

“But why didn’t Weekes stop him?”

“Because Weekes did not know any more than you. He would be the last man in the world to see a thing of that kind.”

“Then why didn’t Topott call his attention to it?”

“Topott also was completely taken in.”

“Then by your own showing, Jum, you were the cleverest man in court this morning?”

“The cleverest but one, dear old boy. My young friend Jem Smith was the cleverest by very long chalks, but my perspicacity is deserving of honorable mention.”

“It is not the first time,” said the table, roaring with laughter, “that this fatal drink habit has caused you to see things.”

XXVI

THE PLEA

NORTHCOTE lunched with Mr. Whitcomb in a secluded place, where he partook of a concoction of egg and sherry, and two Abernethy biscuits. The solicitor's attitude towards him had already changed. The fact that he had adhered to his refusal to call witnesses for the defence was allowed to pass, because he had been able to show that after all he was entitled to hold ideas of his own on the conduct of the case. His remarkable essay in cross-examination had restored the solicitor's self-esteem; the dark horse he had chosen was not going to prove so unworthy after all.

"Of course you have got the judge dead against you now," said the solicitor, "and I don't quite see what it is going to do for you; but as far as it went it was very well done. I can't think how you came to put all those questions. Where did you get your information? It was not on your brief."

"Never mind where I got it," said Northcote, with a laugh.

His composure was much greater than when his client had conversed with him in the court.

"If only the whole case were not so dead it might have proved enormously useful," said the solicitor. "Yes, it was very well done."

"Would you say that Tobin would have done it better?" said the young man, with an odd smile.

"No, I would not," said the solicitor. "I will pay you the compliment of saying that even Michael Tobin would not have done it better."

"Thank you," said the young man drily. "And now, what would you like to lay against an acquittal?"

"Well, you are a cool hand, I must say," exclaimed Mr. Whitcomb, somewhat taken aback. "For a beginner I don't think I've met your equal."

"What will you lay against an acquittal?"

“I don’t mind laying five hundred to fifty,” said the solicitor.

“Done,” said Northcote.

“If you had asked me this morning before you went into court you might have had five thousand to fifty.”

“Sorry I forgot to mention it, because I was just as sure then as I am now what the result will be.”

“Why you should have this confidence I cannot understand. Really, you know, you haven’t a leg to stand on.”

“Well, well; I am going to leave you now to take a stroll for ten minutes. See you soon.”

Northcote went out into the traffic to take a few mouthfuls of the London air. Fiery chemicals seemed to be consuming his nerves, and his brain was like a sheet of molten flame. But sensations so extreme in nowise distressed him. He felt the exhilaration of this strange yet not unpleasant condition to be the pledge of a harmony between mental and physical passion. It seemed to promise that the overweening consciousness of power that had haunted him for so many weeks in his solitude was about to be fulfilled. The painful self-distrust, the afflicting self-consciousness which had tormented and atrophied his energies in smaller cases had vanished altogether.

As he recalled the achievement of the morning, he felt a glow of exaltation. Looking back upon it his mind had been as clear as a crystal, exquisitely responsive to the will. Every bolt and nut of the complex mechanism had been in perfect order. The very words he had wished to use had sprung to his lips, the very tones in which he sought to embody them had proceeded out of his mouth. So profoundly harmonious had been his mind in its most intimate workings, that he had been able to convey fine shades of meaning to the jury without addressing to them a single word.

Already he seemed to know all that was salient in the character of each individual who composed it. As he rejoiced in the masterful strength in which he was now cloaked so valiantly, he felt it had only to abide with him throughout the afternoon, and a signal victory would crown his efforts. And it would abide with him throughout that period, because all the power of his nature, which when aroused to action he felt to be without a limit, was pledged to this contingency. In this overmastering flush of virility in which

he walked now, he stood revealed to himself as a Titan. Bestriding the crowded pavements he seemed to be in a world of pygmies. What was there in the life around him that could stem this vital force? No longer did he doubt that it was in him to dominate the judge, the jury, and the prosecution. They were none of his clay; their mould was not the mighty one nature had used for his fashioning.

With an extraordinary boldness and elasticity in his steps he walked back into the court. How dear, how precious, had the fetid and hideous room become to him already! It is a ruthless joy that consumes the orator, when, clad in his strength, he stands up in that forum which previously his failures have caused him to dread, but which the lust of triumph has rendered indispensable to his being. This day would be written in its memorials. It would mark the first of a succession of achievements within its precincts, achievements which would cause his name to be handed down in its archives forever. Who among the listless occupants of the surrounding benches foresaw that they were on the threshold of another miracle that was about to happen in the world? Who among them foresaw that a demigod was about to rise in their midst?

Those venal, high-living men, whose flesh was overlaid in luxury, how could they hope to understand the miracle that was about to occur? How could the poor drab, cowering in the dock, whose life so ironically had become the pretext for the first announcement of his genius, how could she hope to understand that a new force was about to take its walk in the world? How dismal, coarse, and sordid everything seemed! Not a glimpse of light, beauty, or hope was anywhere to be discerned in the whole of that crowded and suffocating room. The darkness and horror which oppress us so much in the streets of a great city, all the festering sores, all the blunt evils which discolour human nature and conspire against its dignity, seemed to have congregated here. The most cruel fact of human existence, the knowledge of man's innate imperfection, appeared to be concentrated, to be rendered visible in this inferno in which every aperture was kept so close.

As soon as the judge returned into court, Mr. Weekes rose to address the jury. Northcote sought sternly to curb his own impatience while the trite voice of the counsel for the prosecution marshalled the array of facts. They were so damning that they hardly called for comment. None could dispute the tale that they told; and the Crown had no wish to waste the time of the

court by laboring the obvious. Reposing an implicit confidence in the triumph of a virgin reason, that one imperishable gift of nature to mankind, Mr. Weekes was yet able to exhibit a profound sorrow for the terrible predicament of the accused, and the awful alternative with which twelve of her countrymen were confronted. But painful as was their duty, and painful as was his, it was imposed upon them by the law. Mr. Weekes resumed his seat in the midst of a deep and respectful silence, which indicated how crucial the situation was to all, after having spoken for three-quarters of an hour.

The uninspired but adequate words of his opponent had galled Northcote at first, so overpowering was his desire to rise at once and deliver that utterance with which his whole being was impregnated. But as perforce he waited and his ears were fed by the formal phrases of his adversary, his nervous energy seemed to concentrate under the effort of repression. And when at last a curious hush informed him that his hour had arrived, which at a time less momentous would have unnerved him altogether, and he rose to his feet, to such an extent was he surcharged with emotion that at first he could not begin.

Every eye in the crowded building was strained upon him almost painfully, as he stood with locked lips looking at an old woman in a bright red shawl in the public gallery. He was as pale as a ghost, his cheeks were so cadaverous that in the murky light of the gaslit winter afternoon they presented the appearance of bones divested of their flesh. But there was a profound faith among the majority of the slow-breathing multitude. Since the morning the name of the advocate had come to be bruited among them; and in spite of his silence, which was grinding against their tense nerves, there was that in his bearing which excluded all sense of foreboding from their minds.

A full minute passed in complete silence while the advocate stood staring at the old woman in the red shawl. At last his lips were unsealed, slowly and reluctantly; the first words that proceeded from them were of a quietude which pinned every thought. All listened with a painful intensity without knowing why.

“My lord, gentlemen of the jury: It is with feelings of awe that I address you. This is the first occasion on which my inexperience has been

summoned to bear the yoke of a great task; and here on its threshold I confess to you without shame that I should faint under its burden, had I not the knowledge that I hold a mandate to plead the cause of not the least of God's creatures.

"You must have heard with admiration the words which have fallen from the lips of the learned gentleman who has pleaded the cause of the Crown. Impregnable in his learning, ripe in his judgment, he has made it impossible for the tyro who stands before you to imitate his force and his integrity. Indeed, I do not know how this tyro would derive the courage to follow him at all were it not that a special sanction had been given to him by the grievous circumstances of this case. It is because its nature is so terrible that he who has to share its onus is able to forget his youth, his weakness, his absence of credentials.

"We are proud, we citizens of London, that we are born of the first race of mankind, in the most fortunate hour of its history. It is our boast that we are the inheritors of a freedom that was never seen before on the earth; a freedom not only of conduct and intercourse, but more rarely, more precious, a freedom of opinion, a freedom of ideas. And we prize this birthright of ours not merely because our fathers purchased it for us with their blood, but also because its possession is of inestimable worth in the progress of human nature. And in the very centre of this pride of ours, which is intellectual in its source, there arises, as the bulwark of our homage, the more than sacred edifice which has crystallized the national life. I refer to the constitution of England.

"We do well to accept this institution with an unreserved emotion which, as a race, we regard as unworthy. For there are some who hold that this hiatus between our precepts and our practice confers a yet deeper lustre upon our love of justice. For, gentlemen, that love is innate in the heart of every Englishman; it is the stuff of which our constitution is composed, which quickens our pulses and tightens our throats; it helps to form the most magnificent of all our traditions; it is the woof of a fabric which is imperishable.

"It is the thought of this love of justice dominant in the breast of every London citizen, which sustains him who pleads the cause of the accused. For in a charge of this awful nature the constitution enacts with a noble

wisdom that the prisoner at the bar is entitled to any doubt that may arise in any one of your minds in regard to the absolute conclusiveness of all the evidence that may be urged against her. That is a humane provision, gentlemen. It is worthy of the source from which it springs. Without this provision I do not know how any advocate would be prevailed upon to incur his responsibility; nor, gentlemen, do I know how any jury of twelve humane and enlightened Englishmen would be gathered into this court to adjudicate upon the life or death of an Englishwoman. It is a humane and far-sighted provision, and it enables the advocate of this unhappy Englishwoman to address you with a feeling of security which otherwise he could never have hoped to possess.

“I feel, gentlemen, that the exigencies of this case may compel me to speak to you at great length, but of one thing you may be assured. I shall not speak at all unless every word I am called to utter is weighed with care and fidelity in the scales of the reason that God has given to me, and I know, gentlemen, from the look upon your faces, that with equal care and equal fidelity you will weigh them in the scales of the reason God has given to you. I have placed myself in the most favorable position for addressing you I can devise. I shall hope to speak with the utmost distinction of which I am capable; and I shall hope not to employ a word whose meaning is obscure to you, or a phrase which is equivocal or open to misconstruction. That you are prepared to surrender your whole attention to me you tell me with your looks. That I shall hold that attention I dare to believe, unless the hand of Providence deprives me of the power to give utterance to those things with which my mind is charged to the bursting-point.

“You will not refute me when I assert that the fact in our common experience which at the present time has the greatest power to oppress us is the imperfection of human nature. And upon entering a court of justice this fact is apt to demoralize a feeling mind. The science of appraising criminal evidence has been carried among us to a curious pitch, as witness the unexampled skill of my learned friend; the paraphernalia of incrimination, if the expression may be allowed to me, is consummate; but in spite of the rare ingenuity of great legal minds, human nature is fallible. It is liable to err. It does err. To the deep grief of science it errs with great frequency. Indeed, its errors are so numerous that they even impinge upon the sacred domain of justice. Miscarriages of justice occur every day.

“In a cause of this nature it is most necessary that steps should be taken to exclude the element of injustice by all means that are known to us. We are bound, gentlemen, to keep that contingency constantly before our eyes. Such a contingency fills me with trembling; and I believe it fills you, for in this instance a miscarriage of justice would not only be irreparable, it would be a crime against our human nature.

“The question arises, how can we safeguard ourselves against this element of injustice? What means can we adopt to keep it out? Gentlemen, it devolves upon me, the advocate of the accused, to furnish that means. By taking thought I shall endeavor to provide it. To that end I propose to divide what I have to say to you into three parts. The first will deal with your legal duty. The second will deal with the duty to which every Christian Englishman must subscribe or forfeit his name, and with his name the title-deeds of his humanity. The third will show the consequences which must and do wait upon the evasion of this second duty, which is the highest and noblest known to mankind, which in itself completely transcends this legal one, this technical one you are sworn to obey.”

“I can see he means to be all night,” said Mr. Weekes to his junior, with marked irritation. “Lover of the sound of his own voice.”

“He is going wrong already,” said Mr. Topott complacently. “Saying too much; overdoing it generally.”

“Every inch a performer,” said Jumbo at the back to a companion. “There’s a fortune in that voice and manner. Hope the lad won’t say too much.”

“Has done already,” said his companion. “That cant of a duty higher than the legal one is merely ridiculous.”

The ex-president of the Oxford Union and his friend, whose youth rendered them sternly critical, were following Northcote’s every word with the closest attention.

“He’s got a brogue you could cut with a knife,” said the ex-president, with an air of resenting a personal injury.

“You are wrong,” said his friend, with an absence of compromise. “He was at school with me.”

By this time the advocate had cut into the heart of his subject. In a few swift yet unemphasized sentences he had proved the existence of a doubt in the case. He pressed home the significance of that fact with a power that was so perfectly disciplined that it did not appear to exert itself, yet it carried a qualm into the camp of the enemy. He was content to indicate that the doubt was there, and with apparent magnanimity differentiated it from that which in his view must ever accompany circumstantial evidence. Every gesture that he used in the demonstration of its presence, each vibration of a voice which had become marvellously flexible, was a living witness of the dynamic quality he had in his possession.

“He will be wise to let it go at that,” was the opinion of Mr. Weekes. “He has done quite as well as was to have been expected. We shall just get home, and for a beginner he will have done very nicely.”

“It wouldn’t surprise me if he is only just starting,” said Mr. Topott mournfully.

“I have done now, gentlemen,” Northcote continued, “with the legal aspect of this case. That aspect, as I have shown, makes an acquittal necessary. But whenever we are content to base our judgment upon technicalities, we tie our hands. We furnish room for one of those sophistries which trained intellects, the intellects of those who are far more learned in the law than we are, find it so easy to introduce. There is always the danger that a body of laymen, however unimpeachable their integrity, may be led from the plain and obvious path of their duty by a cunning stratagem. Again, in all those matters that seek ascertained fact for their basis, we must not forget that its supply is partial. Science is doing stupendous things for the world, but even it cannot yet supply mankind with anything beyond half-truths. There is no field of man’s activities—philosophy, religion, politics, law—which does not depend upon these. Science can furnish us with sufficient evidence to hang a fellow creature, but the time is at hand when it will also have furnished us with such abundant knowledge of our eternal fallibility, that we shall cease to exact these reprisals. For are not all reprisals, which we include under the comprehensive term ‘justice,’ the fruit of an imperfect apprehension of the nature of man? It has been said truly that a little knowledge is dangerous, for in looking at the history of human opinion in all the phases through which it has passed, we see how the habit of basing

our actions upon half-truths has been the cause of the manifold wounds of the world.

“I think, gentlemen, I have said enough to indicate the dangers which lurk in the temptation to apply in its arid literalness the letter of the law. I am aware that such a precaution tells against the cause I am pleading, because, as I think I have made clear to you, the letter of the law demands the acquittal of the prisoner at the bar. But those who seek for direction in great issues must strive to forget their personal cause. According to the law you are pledged to obey your duty is clear; but as every day its tendency to err becomes more visible, I feel I must not, I feel I dare not, place too implicit a trust in its clemency. Therefore, gentlemen, I am about to supplement this law, I am about to reinforce it, and to reinforce you, by a reference to that moral code which each and every one of God’s citizens carries in his own heart, that is the only tribunal known to mankind that is not liable to error. And I think you will agree with me that the nature of this case allows me to partake of the inestimable boon of appealing to it.

“When I watched you defile into this dismal room this morning, one after another, faltering and uncertain in your steps, and bearing about you many evidences of having been overcome by the cruel task which had been imposed upon you by no will of your own, my heart went out to you, and I could not help reflecting that I would rather be in my own case, awful as it was to me, than I would be in yours. I at least could walk upon the higher ground without misgiving. I had not been pressed into the service of this court of justice to make obeisance to a ruthless and obsolete formula. I was not called upon to subscribe to a compact that was repugnant to my moral nature; I was not called upon to enact the brutal travesty of sealing it with my lips. But, my friends, as I marked you this morning, with a great fire burning in my veins, I wondered by what miracle it was, I wondered by what signal act of grace, I too did not stand among you in my capacity of a private citizen, to bear my part in this saturnalia of justice. Who was I, that I should not be plucked from among my family and my friends, from my peaceful vocations and my modest toil, to do to death a woman? Who was I, that I should be exempt from this bitter degradation which my peers are called upon to suffer? And in thinking these thoughts, my friends, it came upon me suddenly—call it a prophetic foresight if you will—that one of

these days I should be called to sit among you. And I said to myself, 'When that comes to pass, what will you do?' I said to myself, 'What will you do?'

"At first I could make no answer. I was stupefied by the thought my too active imagination had conjured up. And then at last I said to myself, 'I shall ask for guidance in this matter; I shall ask for guidance from that tribunal which lies within my own nature.' And, my friends, there and then I turned to it, as though this thing had come of a verity to pass, for the sight of you all seated there in your despair had borne upon me so heavily that your situation had become my own.

"Now the answer that tribunal vouchsafed to me was this: 'Consider what your pastors and masters would do were they placed in your case. Consider what would be the attitude of those great minds that still burn like candles in the night of the time, whose radiance has warmed your veins, whose immortality has enriched your own personal nature. Consider what would be the conduct of those representative spirits of whom you proud Englishmen of the twentieth century are the heirs.'

"And then a strange thing happened. No sooner had this answer been written on the tablets of my brain, than this gaslit room grew dimmer than it already was, and there seemed to arise a kind of commotion among you gentlemen of the jury. And when at last I found the courage to lift my eyes outwards from my thoughts, and they looked towards you, I saw with a thrill of surprise, as if by the agency of magic, that each one of your faces had been blotted out. Each was shrouded in an intense darkness. But while I continued to gaze upon the place that had contained you, almost with a feeling of horror, a shadowy haze seemed to play over it, and a number of strange faces peopled the gloom. They were more than twelve in number; they were more than twenty; they were more than a hundred. For the most part they were those of men old and austere. Each face seemed to be that of a person of infinite power and dominion, of one accustomed to walk alone. Each was marked by a kind of superhuman composure, as though having spent its youth in every phase of stress, it had emerged at last upon the summits of the mountains, where the air is rarefied, and where it is possible to hold a personal intercourse with Truth. Some of the faces were grave, some a little sinister, but the eyes of each had a forward, upward look which conferred an expression upon them of entrancing beauty.

“Stealthily, rapidly, but with a superhuman composure these noble shadows ranged themselves in the jury-box, in the room of you gentlemen who had vacated it. And when I had overcome my stupefaction sufficiently to look upon these new jurors more closely, I was struck with amazement at the curious familiarity of those faces of theirs. They were those of persons that I had seemed to have known all my life.

“There and then a shiver of recognition crept through my veins. I knew them; I revered them, I had spent many hours in their company. The first face I had recognized was that of an old man, urbane and ironical, a citizen of the world; it was the face of Plato. Beside him was a man, older, less urbane, more ironical; it was the face of Socrates. Thinkers, warriors, saints, and innovators began to teem before my gaze. There was St. Augustine and St. Francis of Assisi, Shakespeare and Goethe, Leonardo and Dante, Washington and Cromwell, Kant and Spinoza, Isaac Newton, Giordano Bruno, Voltaire. I thought I discerned the faces of at least two women among this assembly; one was that of Joan of Arc, the other that of Mary the Magdalene. There appeared to be hosts of others of all times and countries which sprang into being as I gazed, but though I recognized them then, I cannot pause to enumerate them now. For this gathering was strangely representative, and the living were not excluded—I saw a great Russian, a great Englishman, and a great Frenchman of our own day—but I must resist the temptation to give the names of all I beheld.

“No sooner had the scope and representativeness of this gathering declared itself and it had ranged itself miraculously within a little room, than a kind of commotion overspread it. They seemed to be discussing some difficult point among themselves. However, this action of theirs had no time to engage my anxiety, for I understood immediately that they were seeking a foreman to their jury. Now you would suppose that among a concourse of all who had attained an immortal preëminence in mental and moral activity, to choose a leader from amongst them would be impossible. But this was not so. Their discussion was over almost before it began. They had no difficulty whatever in nominating one among their number to speak for them all.

“It was with an indescribable curiosity that I observed a slight, strangely garbed figure emerge from their midst. And when he came to assume his place at the head of his immortal companions, which you, sir, are occupying

now, I was devoured by an overpowering eagerness to look upon his face. And by this time so immensely powerful had been the impact of this jury upon my imagination, that it had obtained an actual existence and proceeded in sober verity to conduct the business of the court. And I was sensible that the painful curiosity with which I awaited the foreman's revelation of his identity was shared by all who were present. All were craning with parted lips to look upon his face. And when at last he lifted his head, and his pale and luminous features shone out of the gloom and overspread this assembly, a kind of half-stifled sob of surprise, a sort of shudder of recognition, passed over the crowded court. The face was that of the man called Jesus of Nazareth.

“To myself, however, the recognition brought an immediate and profound sense of joy. All my doubts, my terrors, my perplexities, were no more. They passed as completely as though they had never been. The business of the court proceeded, but I was inaccessible to its bearing upon my task. My every thought was merged in the personality of the foreman of the jury. The precise, calm, and harmonious legal diction of my learned friends lost all its meaning and coherence, and even the demeanor of the good and upright judge, who is making trial of this cause, became one with the glamour which environed the figure in the jury-box.

“That august jury seemed to sit and listen to all that passed. By an extreme courtesy which they were able to impose on their finely disciplined natures, they gave heed to the ceremonial that was enacted for their benefit. It is true that there were moments when they were unable to conceal the smile of soft irony which veiled their lips; but from the beginning to the end their patience and urbanity remained inviolate. The foreman, however, muttering continually inaudible words to himself, with fingers twitching, and the hectic pulse beating in his thin and fevered cheek, never took his eyes from the rail in front of him. And when at last the time came for the jury to consider their verdict, they were able to return it instantly, without leaving the box, as you would expect such a tribunal to do.

“I can scarcely hope to picture to your minds the scene that was presented when the foreman, so frail and thin and yet so full of compassion, rose humbly in his place. ‘Are you agreed upon your verdict, gentlemen?’ said the Clerk of Arraignment. ‘We are,’ said the voice of the divine mystic of the Galilean hills; yet I can convey to you the sound of it no better than could

those poor fishermen who heard it nineteen centuries ago. 'What is your verdict, gentlemen?' said the Clerk of Arraignment, whose own voice sounded so ludicrously trite in comparison with that of the foreman, that it seemed to have no place in human nature. 'I understand,' said the foreman of the jury, 'according to your laws the penalty is death.' 'Yes, sir,' said the Clerk of Arraignment, with a quiet dignity, 'the penalty according to the law is death.' 'The jury return a verdict of Not Guilty,' replied the foreman instantly, stooping to write with his finger on the rail in front of him, as though he had heard him not."

At this point Mr. Weekes rose excitedly.

"My lord," he cried, "this blasphemous travesty has gone too far. It must be carried no farther. It must cease."

"Mr. Weekes," said Northcote, turning to confront him, while a wave of emotion swept over the court which seemed to make the air vibrate, "I must ask you resume your seat." He pointed with a finger with sorrowful sternness. "I cannot submit to interruption at such a moment as this. You hold your brief for the Crown; I hold mine for God and human nature."

The hush which followed was broken by a poor actor among the jury. He had been out of an engagement for two years, and he had left his home that morning with his wife sitting with a child at her breast before a grate without a fire in it.

"That's true," he muttered heavily.

"My lord, I appeal to you," cried Mr. Weekes more excitedly than ever. "I did not come here to be browbeaten and insulted. I did not come here to witness religion made into mockery and dragged through the mire."

"Mr. Weekes," said Northcote with a depth of compassion in his tone which made many veins run cold, "a subterfuge of this kind will not serve you. The jury have no desire that you should make a parade of your feelings at such a moment as this. They desire that you will resume your seat, and relinquish any further attempt to make their task more hideous than it already is."

"That is perfectly true," exclaimed the foreman in a hoarse whisper.

It was observed by those who were behind Northcote that in the stress of the mental anguish through which he had already passed, by constantly plucking with his fingers at the back of his hands, the skin had been pulled away and the bleeding flesh was exposed.

“I appeal to your lordship,” cried Mr. Weekes.

“My lord, I also appeal to you,” said Northcote; and the poise of his head and the lift of his chin, as it was directed upwards to the bench, reminded those who had seen it of the figure of Balzac as modelled by Rodin in clay.

The dæmonic quality was dominant here, as is the case always when the gospel of force has its dealings with human nature. Few had suspected that this old judge, with his brusque manners and his great barking irascible voice was no longer fit to fill his position. His lionlike exterior was no more than the livery of his dignity. He was not the man to face a crisis, when above all things an iron nerve and an implacable will were needed to impose restraint upon a jury and an advocate who were in danger of trampling underfoot the accepted rules of decorum and procedure. And the week before the judge had buried his youngest daughter. When Northcote’s gaunt eyes were turned upon this old man, who was trembling violently under his ermine, the tears began to course down his face.

“My God, he’s settled Bow-wow,” said the fat barrister on the back bench.

“Always was a senile old fool at bottom,” said his companion. “That young bounder ought to lose his wig and gown.”

“Shut up! He’s speaking again.”

XXVII

THE PERORATION

“IT is too much the custom, my friends,” Northcote continued to the jury when Mr. Weekes had sat down as spasmodically as he had got up, “to regard this divine mystic of whom I have spoken as a supernatural being whose name can only be mentioned with propriety in the presence of an elaborate ritual. That fetish dies hard, my friends, but dying it is, for if ever a human being walked this earth, whose life and opinions are a great poem that deserves to be recited in our bosoms and our businesses during every hour that we dwell, it is the life and opinions of him who has already given his verdict in this case. There are very few things that are of any importance to us upon which we have not his pronouncement in one form or another; and though that pronouncement may not always be coincident with the technical lawyer’s law of the time, which is understood of no man, least of all of themselves, these *obiter dicta* of his, delivered upon the spur of the occasion, have already outlasted kings, dynasties, and nations; and they are likely to endure when court-houses, jury-boxes, and scaffolds have long ceased to be.

“A few centuries ago such words as I am now addressing to you would have sent me to the lions, and you also would have been torn in pieces for having deigned to listen to them. It is not a hundred years since small children were hanged in this country for stealing five shillings. A hundred years before that a woman was burned at the stake for the practice of witchcraft. It was the custom to disembowel those who were guilty of a felony; to break on the wheel those who did not hold orthodox political opinions; and to burn, maim, cut off the heads, and inflict indescribable physical torments upon any person because of his religious views.

“I am going to ask you, my friends, how these monstrous enactments were overcome. By the lawyers who drew their fees from the Crown to put them in practice? Not so. By those educated minds that conducted the business of the state? Not so. These unspeakable crimes committed in the name of justice were overcome by a handful of prophets, seers, and reformers, who

arose in Israel. They were common and unrefined, of small education, and less culture; poor and obscure herdsmen and fishermen, a pedlar by the wayside; the keeper of a public-house; a small tradesman in Lambeth; a miserable grocer of Spitalfields; a wretched old tinker who passed the choicest part of his days in Bedford jail. This very Jesus himself, the foreman of this jury which is sitting with you in the box, which at this moment urges these words to my lips, was a common rustic by trade, a carpenter. And you will remember that he paid for the extreme unorthodoxy of his religious and political views by crucifixion upon the tree.

“The tree has gone, my friends, but he remains. I say the tree has gone. That tree has gone, but as mankind in the present imperfect stage of its development, does not dare as yet to trust itself without a tree of some kind to lean upon, a substitute has been provided for that cross of wood upon which it nailed the redeemer of his kind. And it seems to me that if the divine mystic of whom I am speaking were again to roam the hills of Galilee, his fate would be the same to-day as it was yesterday. In the present phase which has been attained by our sympathies with those who share the burden of our so dark and so inscrutable inheritance, it would be extremely easy for some learned Treasury counsel in the performance of his duty to the Crown, to reenact the supreme tragedy of a world which is filled with tragedies.

“At the present time there is still a tree standing in England upon which we nail women. They may be guilty of dark offences, as were the associates of that Nazarene Jew of whom I have spoken; their fate, according to the written statutes, may be sound in equity; some wretched Magdalene in falling by the way may have stained the pavements of the street with blood. But if we, her peers and coadjutors, are to continue at this time of day to visit her with reprisals, I am forced to believe, my friends, that all we most cherish in our national life will perish. And I think I discern by that which is written in your faces that you are of this opinion also.

“I have alluded to the two unhappy outcasts who were nailed upon the tree with Jesus. Technically they were malefactors; it was right that they should be immolated upon the altar of the law. Doubtless the instant the counsel for the Crown had compassed this desirable end, he repaired to his home with a substantial emolument and a perfect security of soul, ate a good dinner, and afterwards lay on a mat and harkened to the sounds of the lyre. But I do not

think from that day to this the associate of these malefactors was ever shown to be guilty of any crime at all, at least of any crime known to the judicial calendar. His only offence, if offence there was, was in living before his day and generation, which, in the eyes of those who are contemporary, is a misdemeanor of a heinous character. Posterity only is able to condone a greatness which transcends its own era. Yet do not misunderstand me. Technically he was blameless, technically he had committed no crime.

“This consideration brings me to the final word I shall venture to speak—the supreme danger of the tree. It is very dangerous to keep a tree at all. Whatever is once nailed upon it can never be removed. The stains sink into the wood, and, strive as they may, the labors of those who undertake to cleanse it and purify it cannot avail. Like corrosive acids these stains percolate through the fibres and change them to wormwood and fungus. And do not forget, my friends, that the fibres of the tree are the fibres also of the national life. A nation pledges its honor when it seeks reprisal.

“We do well to shudder at the many bitter degradations which have sprung from this habit of keeping a tree. Jesus was not the first innocent person whose blood was spilt upon that oft-humiliated wood. And he was not the last. Our human faculties play us such strange tricks that they can render us certain of nothing. Even a poor outcast who has fainted by the bleak wayside of life, who has occasionally drunk a glass of spirits to keep her from the river, may by some obscure possibility which the counsel for the prosecution has not been able to reveal to us have refrained from destroying the man who has been the first cause of her fall, although it devolves upon all who love justice—in whatever justice may consist—to explain away the coincidence of a packet of poison having been found in her possession. But, as I say, it is within the bounds of possibility that the theory of the prosecution is wrong.

“It would not be the first occasion that an uncommon zeal has led it into error. A year ago to-morrow, at these sessions, one John Davis, a butler, who for thirty years had been a faithful servant in the household of his mistress, was found guilty of the crime of compassing the death of that aged lady, in order that he might spend his own latter days in the enjoyment of a small legacy she had left him in her will. In the mind of the counsel for the Crown, and in the mind of the judge, the evidence against this man was

overwhelming. At first you gentlemen of the jury were disposed to see a doubt in the case, but the learned counsel for the prosecution was so consummate in his arguments, the learned judge was so emphatic, the array of witnesses for the Crown was so formidable, from zealous police-constables, with their way to make in the world, to experts and past-masters in criminology who had made theirs long ago; and the youthful advocate, whom the butler's legal adviser had selected to defend him, was so unused to a trial of this magnitude, for his experience had been limited, that he failed in cross-examination to elucidate from a hostile witness an extremely important fact; and in his address to you, gentlemen of the jury, he was unable to soften the impression that the Crown had been able to build up in your minds.

"I have hardly a need, gentlemen, to reveal to you the sequel of this painful story. As all the world remembers, you had in the end to submit to the inevitable. You, gentlemen of the jury, consented to a verdict of guilty; a month later the unhappy man was hanged; and he had not been five days in his grave when a nephew of the murdered woman gave himself up to a justice that had already wreaked itself on an innocent man, and confessed that he himself had murdered his aunt because he was in need of her money.

"These facts are green in the minds of you all. But there is a coincidence connected with this atrocious story and this grievous case which is engaging your attention. The counsel for the prosecution in both cases is identical. He stands before you framing yet another of those objections with which he has endeavored to impede the cause of humanity. I point my finger at him, and challenge him to deny the truth of the statement I am making. And by a perfectly logical and natural extension of this coincidence, the judge who sent the butler to his doom is seated above you now in all the panoply of his office. I leave him now if he is able to deal in a like manner with this poor Magdalene, who may or may not have fallen by the way."

Northcote sat down after having spoken for nearly three hours. The December darkness had long fallen upon the court. The feeble gas-jets seemed to enhance the shadows that they cast. The intense faces of the overcrowded building, bar, jury, populace all electrified, seemed to belong to so many ghosts, so pale, shining, and transfigured did they gleam. For nearly three hours had the advocate cast his spell; yet moment by moment, in the dominion of his voice and the cumulation of his effects, he had

increased the hold upon his hearers. At times the tension had been so great that it had seemed that somebody must break it with a laugh; but no one had done so. One and all were swept forward by the contained impetuosity of the orator; by the restrained and gentle modulations of a power that played through every word he used; by a ferocious irony which looked like tenderness, so little did they understand its nature; and above all by the irresistible magnetism of a personal genius which rendered the most perilous obstacles of no account.

None had foreseen the cruel, terrible, yet melodramatic climax to which the advocate was leading; and when it came over the minds of those present, all of whom in the course of the speech, even the most hardened officers of the court, the ushers, the chaplain, the javelin men, and the newspaper reporters, had passed in one form or another through all the anguish of the spirit of which they were capable, pity and horror were mingled with their overwrought surprise. As the advocate stood with his huge and livid face turned upwards towards the judge, with an ineffable emotion suffusing it, and the old man, with tears dripping quickly on to his ermine, put his two fat, white hands before his eyes, a feeling of silence and terror seemed to pervade the court.

The advocate sat down with parched lips. The hush that ensued was so long that it seemed it would never come to an end.

It was broken by a commotion among the public benches. A woman who had fainted was being carried out at the back of the court. The incident served to unloose the electricity which was pent up in the atmosphere. A voice from the solicitor's well was heard to pronounce the word "Shame!" In an instant it was answered by the multitude with a volley of the wildest cheers that was ever heard in a court of justice. All the ragged, tattered, despised, broken and rejected units of the population, those humble, hungry, and inarticulate creatures upon whom Jesus himself had wrought his magic, upon whom he had depended for countenance, took up the challenge, and with their wild and hoarse cries flung it back upon him who had uttered it.

For a time the scene was one of consternation. The judge was but a poor, senile, old man, from whom the tears were leaping. Every official looked towards him for his prop and stay, but all there was to see was feeble and inept old age. The Clerk of Arraignment, as pale as a ghost and trembling

violently, was spreading his hands before an alderman. Policemen stood dismayed, and officers of the court, who had grown old and despotic in its service, looked towards one another helplessly, seeking for that authority which none had the power to exercise.

“I never thought,” said the companion of the fat barrister, “we should come to this in England. It is a disgrace to English justice. That fellow must be brought before the general council. They must take away his wig and gown.”

“A little less prejudice and a little more appreciation, dear boy,” said the fat barrister, wiping his eyes stealthily. “That lad will be a peer of the realm long before they make you a stipendiary.”

“He is either the greatest madman or the greatest genius who was ever called to the bar.”

“Probably both, dear boy.”

XXVIII

THE SUMMING UP

THE barrister who had ventured to give a public expression to his opinion was that nursling of wealth, the youthful ex-president of the Oxford Union.

“You’ve done it now,” said the son of the Master of the Rolls. “They will have in the roof. They were only waiting for a leader.”

“With all respect to your school,” said the ex-president heatedly, “this fellow is a disgrace to it, also to his profession. It was the act of a black-guard to throw that at the judge. He is not a gentleman.”

“Rough, of course, on the poor old judge, but he’s playing to win, as he always did. Hullo, the poor old boy is coming up to the scratch.”

Order had been at last restored, or more correctly had restored itself; and in thin and shaken tones the judge began his summing-up. He had conquered his emotion, and in a perfectly simple, plain, and audible manner he was able to give expression to that which he desired to say. It afforded the keenest relief to the bar, which was so profoundly jealous of professional prestige, that after all the presiding judge should be able to reassert himself sufficiently to invest with a certain dignity his own procedure in his own court. His words were charged with deep feeling, but the most critical among his listeners could discern nothing derogatory to his office in his mode of utterance.

“Gentlemen of the jury,” he began; and although the sound of his voice was divested of that roughness and irascibility by which it was known, it yet enchained the attention of his hearers, since intensity of feeling had rendered it singularly harmonious, “Gentlemen of the Jury, before I refer to the details of this terrible case I desire to record my opinion of the manner in which it has been conducted. The counsel for the defence is a young man, and in the nature of things his experience in cases of this kind cannot be extensive. But I would like to affirm that never within my own knowledge has a more remarkable presentation of the art of advocacy come within the purview of this court. Mr. Northcote is a young man, but the display of his

genius—I can use no smaller word—which recently he has made, is an honor to human nature. As an old advocate, I tender my sincere congratulations to him, and I hope that the career he has chosen to follow will in every way be worthy of the nobility of his talent.”

A murmur of applause greeted this eulogium. It had been rendered with such obvious feeling and delicacy that every word rang true, and touched the chord that was dominant in the hearts of all.

“Well done, Bow-wow,” said the fat barrister, sniffing and blowing his nose, “I trust some old pal will stand you a bottle at the Forum this evening.”

“That is the English gentleman,” said his companion. “I expect that young cad is feeling rather cheap just at present.”

“Expect nothing, dear boy. Who the devil are you that you should expect anything? You could no more have saved that woman from the gallows than you could have jumped across the moon.”

“There is a vexed point which the counsel for the defence has touched upon,” said the learned judge, “upon which I hope I shall be excused if I say a few words before approaching the case which occupies your painful attention. In Crown cases it happens frequently that the prisoner is at a serious disadvantage in the matter of representation. Counsel of great eminence may be briefed for the prosecution, while the defence, for whose conduct, as a general rule, very little money is forthcoming, has not the means to secure the aid of counsel of tried worth and experience. In theory the judge is assumed to hold a kind of watching brief for the accused, inasmuch that it is his duty to be alive to any loophole of escape that may present itself in the course of the evidence, and represent that loophole to the jury. But my experience has shown to me that that loophole is extremely unlikely to appear where the opposing counsel are unequally matched. In theory it is expected of the counsel for the Crown that he shall keep a perfectly open mind and not allow his own position to sway his conduct of the case; but a long experience has imposed the conclusion upon me that such an impartiality as this is not practicable for an advocate who, in the exercise of his art, is compelled by the fact that he holds a brief to exert his talent, in spite of an unwritten law, and even in spite of himself, to the fullest capacity on behalf of his client.

“These words, gentlemen, will not be misconstrued, I am sure. Nothing is farther from my intention than to suggest that Crown advocates wantonly overstep their duty or go outside their jurisdiction. But I do suggest that they feel impelled to do their utmost for their client, and that client is the Treasury. And having that very proper and natural feeling in their minds it is humanly impossible for them to approach their task of promoting a conviction in the academic spirit which in theory is imposed upon them. Therefore you will conceive how difficult becomes the function of a judge who is called upon in the prisoner’s interest to hold the scales and to adjust the balance, when there is, as occurs so frequently, a grave disparity between the ability and the professional experience of the contending counsel. The judge himself, gentlemen, is only human, and although his familiarity with the procedure of a criminal trial may render him less vulnerable to the art of a skilful advocate than those who are not so familiar with those forms of procedure, at the same time I feel entitled to assert that every judge must in a measure be susceptible to the manner in which evidence is conveyed to his notice, and the manner in which it is dissected before his eyes.

“You will forgive me, gentlemen, I hope, in making what may seem to be a digression from this extremely painful case we are considering, but it is a point that arises very naturally out of it. The counsel for the defence saw fit to touch upon it in the course of his address, and I would like to assure him and to assure you that during the five and twenty years I have had the honor to occupy a seat on the judicial bench, this question has seemed to me of such paramount importance that it has been constantly before my mind. This is the last opportunity I shall have of making a reference to it in the presence of you gentlemen of the jury; this is the last occasion on which I shall take my seat in this or any other court; therefore I feel a desire to record, with whatever authority twenty-five years of public service may confer on a mere expression of opinion, the conclusion at which I have arrived.

“In the ears of many my conclusion will sound utopian, in many minds it will seem to be a counsel of perfection, for it is this. In important criminal cases it is the duty of the Crown to make the same ample provision for the accused as it does for itself. It should afford equal facilities to the accused person to establish his innocence as it affords to itself to establish his guilt.

After many profound searchings of heart, more particularly upon circuit, where cases affecting the life and liberty of the subject are so often left entirely to the discretion of a rural practitioner, this is the conclusion I have reached. Such a conclusion will, I fear, be taken as a confession of weakness on the part of an individual judge. It is a confession of weakness, gentlemen, but I do not think I shall be contradicted when I urge that it is a confession which the strongest and most able of my learned brethren have been called upon over and over again in their heart of hearts to make.

“The terrible miscarriage of justice which occurred a year ago in this court, for which I alone can accept responsibility, for which to this present hour I have not ceased to mourn, would not have taken place had the defence been in a position to present its testimony, and to marshal its facts with a skill equal to that enjoyed by the prosecution. The most material issue in the case was never presented at all. Its existence was not even revealed. Neither the prosecuting counsel nor the presiding judge was aware that the defence had this implement in its possession until long after this miscarriage had been consummated. Do not misunderstand me, gentlemen; I hold no brief for myself; I accept the whole of the responsibility for what took place. It was my duty to unveil that which was hidden, and to present it adequately to the jury. I failed in that duty, because from the beginning of the case the defence was overshadowed. The actual murderer himself was called in evidence by the Crown; it was upon his unshaken testimony that the verdict was rendered; but as was only learned when too late, had one obscure question been pressed home in cross-examination to this murderer who had perjured himself to conceal his guilt, his testimony could not have lived five minutes in any impartial mind, and a lamentable, a grievous miscarriage of justice would not have stained the annals of this English justice of which very rightly and properly we are so proud.”

Again a profound silence had descended upon the court. The painful and close-breathing intensity with which all in that crowded assembly had followed the prisoner’s advocate through the devious courses of his address was now extended to the judge. There was nothing in the words he used to call forth this hush of excited expectation, but the emotion with which they were invested seemed to furnish them with life and magnetism.

“All his life,” whispered the fat barrister to his friend, in a tone of curious tenderness, “he has been a blusterer and a blunderer, overanxious, pedantic,

weak-willed, easily led, but—but his end is glorious. This is a note he has never touched before.”

“This state defence of prisoners is so much mischievous nonsense,” said the other almost angrily. “Where does he suppose it will land the country? A judge has no right to advance such an opinion from the bench.”

“Bill,” said the fat barrister, with a solemnity for which none of his friends would have been prepared, “when you have been one of His Majesty’s judges for twenty-five years you may not hold quite such definite opinions. Dear old Bow-wow; all the world knows that underneath his armor he has kept the kindest heart that ever beat, but this is the first time he has made me feel that I wanted to blub.”

“’Pon my word, Jumbo,” said his friend, impatiently, “don’t you begin. We have had enough mawkishness this afternoon to last us for the rest of our lives. I expect Weekes will be falling on the neck of Topott soon, and the clerk will be kissing the sheriff.”

“Dear old Bow-wow, dear old boy, how old he is getting. They say this John Davis affair has cut him up dreadfully. There is not a judge on the bench who would feel it more.”

“Probably the weakest judge who ever took his seat on the bench. What is he maundering about now? Ah, at last he’s got to the summing-up.”

The hour was advancing, and happily the judge’s speech was not of the length which at one time it had threatened to be. The summing-up was short but indecisive. It was plain that the prisoner’s advocate had done his work with the judge as well as with the jury. There was nothing in the judge’s presentment of the evidence, which at one time had looked so damning, to compare with the resolution and conviction of Northcote. The magnetic splendor and brilliancy which had overcome, one by one, the twelve good men and true in the box, had fastened also upon this old man. His confidence was shaken, and the definite line the counsel for the Crown had so confidently expected him to take was far to seek.

“This is doing us no good,” grunted Mr. Weekes to his junior. By now the leader for the Crown was in a very bad temper. His afternoon had been wasted, he was going to be late for his dinner, and he was about to lose a verdict upon which he had counted with certainty. “My dear Bow-wow, you

are positively maudlin. Why the deuce don't you leave the doubt alone and confine yourself to the evidence? There is no doubt. There is not a leg for them to stand on."

"There was not half a leg for them to stand on at the beginning," said Mr. Topott, with scrupulous modesty, "but now as the end approaches, they appear to be standing upon two thoroughly sound ones. I think I said at lunch I was frightened to death of that fellow."

"Much good that did the case," snapped Mr. Weekes.

"You were so sanguine, my dear fellow," said Mr. Topott, with his modesty taking an almost angelic note. He was a young man, able and ambitious; and his private opinion of his leader was of a nature that wild horses would not have caused him to expose. "You pooh-poohed everybody and everything at lunch. The case was as dead as mutton; their man was a beginner; you and Bow-wow were going to take care that he did no harm."

"Well, Topott, I must say you never lose an opportunity of rubbing things in."

"Perhaps that is so," said Mr. Topott, dreamily. "Perhaps I am rather good at rubbing things in. Perhaps that is my *métier*."

"Then perhaps you will provide yourself with another. To my mind this one is not at all amusing."

"I suspect that is so. But now this case has gone to pot, I hope you will not be angry, Weekes, if I inform you that the fault is not yours. You have simply been knocked out in a fair and square battle. But I hope you will not repine; because there is not a man in England to-day who could have stood up against that fellow. He chose extraordinary weapons, but they were those he knew how to use. No disgrace attaches to you; you have taken the knock quite honestly; and if the attorney had been here he would have had to take it too."

"Thank you, Topott," said Mr. Weekes, tartly; "I wish I could have your testimonial in writing."

"By all means," said Mr. Topott.

"Just listen to that old fool," said Mr. Weekes, petulantly. "Whoever heard such rubbish as he is talking? It is time he resigned. Nobody actually saw

her put the poison in. Absence of motive. Prisoner entitled to every doubt that may arise. Every link must be forged in the chain of all evidence that is purely circumstantial. No credence can be given to the testimony of half the witnesses for the Crown. My dear Bow-wow, I really never heard such nonsense in my life."

"An hour ago you never heard such blasphemy."

"I would to God the attorney had held this brief!" said Mr. Weekes, desperately.

"You may count on one thing," said Mr. Topott; "he will never let you hear the last of this. Won't he chuckle? He will pull your leg about it for the next ten years."

"I hope you will tell him, Topott," said Mr. Weekes anxiously, "that he would have done no better."

"Oh, I don't say he would have done no better," said the impartial Mr. Topott. "He would have done better. He would never have let that chap get as far as he did, even if he had had to ascend the bench and take poor old Bow-wow by the tippet. But I do say he also would have had to take his gruel, and he would have lost his verdict."

"Oh, we have not lost it yet."

"We shall have lost it in another quarter of an hour."

XXIX

THE VERDICT

It was a quarter-past seven by the time Mr. Justice Brudenell had concluded his summing-up. Long before he had reached the end, a prediction of the result had formed in every mind. This case which in the beginning had been as clear and strong as the sun at noon had become so vitiated by contact with these legal wits, that by now even its most salient points had become obscure. No jury in the frame of mind of this present one, each component of which had been played upon like the strings of a harp by the hand of a master performer, was in the least likely to convict. There were those who even inclined to the belief that they would not leave the box.

This, however, proved to be an extreme view. They did leave the box, but in exactly nine minutes had returned into court. As slowly they defiled back again into the court with their verdict, the excitement depicted in their looks was painful to observe. Their drawn faces were livid and perspiring; they kept down their heads without glancing to the right or to the left. The foreman, a coal dealer in a small way of business in the Commercial Road, was seized with a violent twitching of the body.

“Are you agreed upon your verdict, gentlemen?” whispered the Clerk of the Arraignment.

“We are,” said the foreman of the jury, in a voice that could hardly be heard.

“What is your verdict, gentlemen?”

“We return a verdict of—of—”

The conclusion of the sentence seemed to die in the foreman’s throat.

“Will you please speak in such a manner that his lordship may hear you?” said the clerk.

“We return a verdict of not guilty,” said the foreman, with his eyes fixed on the rail before him. To the horror of many who observed him, he appeared to trace some words upon it with his finger.

The demonstration which followed the verdict had been anticipated, and accordingly on this occasion the officers of the court were able in some measure to control it.

No sooner had the judge uttered a few words, which in the clamor were inaudible, than he rose hastily from his seat. In the same instant Northcote rose also, and that voice and presence which for so many hours had exercised such an unquestioned sway at once detained those who were thronging eagerly through the doors into the raw December darkness.

“Before the court rises,” said Northcote, “I crave your lordship’s indulgence for a brief moment.”

The judge bowed courteously and resumed his seat, a little unsteadily as was thought by those who were near to him.

“I desire to offer to your lordship,” said the young advocate, with a humility that was affecting, “in a public manner, an ample and an unreserved apology for an allusion which had the misfortune to fall from my lips. I gave utterance to it in a moment of great mental excitement, and at that moment I did not realize, so completely was I under the domination of the end I had in view, that in a sense such an allusion was an indictment of your lordship and of that high office upon which, during a quarter of a century past, your lordship has conferred honor. I beg to be allowed to crave your lordship’s forgiveness. Had these words not been spoken at a time when I was overcome by the heat of advocacy, they would never have been spoken at all.”

“Thank you, Mr. Northcote,” said the judge in a low but distinct voice. “I understand perfectly well the circumstances in which these words were spoken. They gave me pain, but I do not hold you blameworthy. I viewed with keen sympathy the position in which you were placed; and I accept without reservation the apology which with an equal absence of reservation you have conceived it your duty to tender to me. I don’t know whether I can be permitted to offer a suggestion in a matter of this kind, but if, Mr. Northcote, you could see your way towards the inclusion of your friend Mr. Weekes in this extremely honorable *amende*—”

“I will, my lord—I do!” cried the impetuous young man, turning towards the place of the senior counsel for the Treasury.

“I regret to say, my lord,” said Mr. Topott, rising and bowing to the judge and to Northcote, “that my learned friend has already left the precincts of the court; but I feel sure I am entitled to state, that were he now present he would accept these words of Mr. Northcote in the spirit in which they are offered.”

The judge left the bench and the court emptied rapidly. Mr. Whitcomb, who had remained most of the day in Northcote’s vicinity, plucked him by the sleeve as he rose and gathered his papers.

“I know now what you mean by the genie,” said he. “I shall send a wire to Tobin at the hospital. I should like to see his face when he gets it.”

Northcote was too highly wrought to appreciate a word that was uttered by the solicitor. He could only smile and nod and wish him good night, all of which was done with incoherence and abruptness. As the young man passed out of the court, an elderly unfortunate, without any teeth, one-half of whose face had been destroyed by disease, crept from her hiding-place in a dark corner of the corridor. She grabbed the hem of Northcote’s gown and carried it to her lips.

“Gawd bless yer, guv’ner,” she mumbled, in a thick, wheezy whisper.

In the barristers’ robing-room the entrance of Northcote created a stir. Jumbo, a bencher of Northcote’s inn, and like all who are not afraid to present themselves without reserve, just as nature devised them, a man of immense popularity, hit the young advocate a blow on the shoulder.

“When can I stand you a bottle, dear boy? Fine work!”

The son of the Master of the Rolls came up.

“I say, Northcote,” he said, “you don’t remember me? I’m Hutton. I was in Foxey’s house with you at school.”

“Of course, of course,” said Northcote, hardly knowing a word that he spoke; “I remember you perfectly well. You have not altered at all.”

“You’ve not altered much, although you look awfully old and very much thinner than you used to look. I want you to mention an evening that you can come round and dine with my governor—you remember the governor I used to get ragged so tremendously for boasting about? He will be delighted to meet you. I shall tell him all about this; he is the kindest old soul.”

“Thanks, but I can’t dine with you until I’ve got my evening clothes out of pawn.”

Northcote’s schoolfellow laughed heartily.

“No, you’ve not altered,” he said. “Just the same amusing cynical old cuss you were at school—just the same cynical old cuss of whom we were so much afraid and who was so frightfully unpopular.”

“Poverty and pride were never a popular combination,” said Northcote, aroused from his preoccupation by the sympathy of one of the few who had supported him in his youth. “If I hadn’t been a bit of a football-player I don’t know what would have happened to me in those days. I used to derive pleasure, I remember, from insulting everybody.”

“Foxey used to call you Diogenes.”

“He used to say that Diogenes was considerably the pleasanter fellow of the two.”

“Poor old Foxey always feared you, I believe, just as did everybody else. You were a gloomy, dreamy sort of chap when you were not merely formidable. I remember once you were nearly superannuated. And do you remember Foxey saying there was nothing you might not do, if only you would apply your mind to it; but as it was, he was sure you would never do anything?”

“I lived in a mental fog in those days,” said Northcote, with a dreary laugh. “There was a thick vapor wrapped all round my brain. I could see and understand nothing. One fact only was borne in upon me with any sort of clearness. It was that I was vastly superior to everybody else. There never was such a colossal self-esteem.”

“Well, you certainly despised everybody in those days. And you must have gone on despising everybody to be capable of doing what you have.”

“I remember I was generally chosen to lead the scrum because I had a big voice,” said Northcote, with the light of reminiscence softening his grim mouth.

“But your voice is so much greater now than it was then, although it was always an immense booming sort of thing that seemed to come out of your boots. But your hands used to impress me more than anything else. I used to

think that if I had hands like that I should break ribs for my private amusement. Do you remember standing the three-quarters on their heads? You were a hefty brute in those days.”

“I was always more or less a man of my hands, yet at the same time was always intensely interested in myself. I used to consider that ‘Cad’ Northcote—that was my name at school, although you are too polite to remind me of it—was quite the most wonderful person who had ever been born into this world or into any other. I used to lie awake all night taking myself to pieces as though I had been a watch. Sometimes I dreamed that I was Napoleon, and that it had come to pass that he had been chosen to lead the English pack while he was still at school.”

“Well, that dream came true at any rate,” said his schoolfellow, with an outburst of enthusiasm. “You were still with us when you pushed those Welshmen all over the place.”

The conversation was curtailed at this point by the appearance of the judge’s marshal.

“Mr. Northcote,” said this courteous and nicely dressed official, “Sir Joseph would be very much obliged if you would come round and see him in his room.”

“Right you are! I will be round in a minute,” said Northcote, shaking hands with his old schoolfellow and declining an invitation to dine in Eaton Square the next evening but one.

XXX

SIR JOSEPH BRUDENELL

IN the judge's room Northcote found its occupant seated in an armchair at the side of the fire. The light was subdued, and the face of the old man was in shadow even while he rose to receive his visitor.

"I thank you for coming to see me, Mr. Northcote," he said, in a low voice. "I will not detain you long, but I hope you will sit down."

Northcote accepted the seat that was indicated opposite to the judge's armchair. His curiosity was roused in a strange fashion by the manner and tone of this old man. They were extremely kind and gentle, almost those which an aged and benevolent parent might employ when about to take leave of a favorite son.

"If you will allow an old advocate," said the judge, leaning back in his chair and placing the tips of his fingers together, "to affirm it again, I have been impressed by your conduct of this case. My memory carries me back a long way; I have been more than fifty years at the bar and on the bench. During that period I have been brought into contact with the greatest advocates of their day, and I have been called upon to bear a part in many of the leading causes. But never, Mr. Northcote,—I emphasize the word,—has it been my privilege to witness a performance so remarkable on the part of one who is young and untried as the one given by you to-day.

"In the first place, and bearing in mind the limited character of your opportunities, I cannot pretend to know how it has been achieved. Your cross-examination of the last witness called for the Crown was, in my view, masterly. I have always held, and many will support me, I am sure, that the art of cross-examination is a searching test of an advocate. To the ordinary person even moderate skill in that supremely difficult branch only comes with years and experience. But you begin, Mr. Northcote, where many of true distinction are only able to leave off.

"I have always been proud, jealous—I might say overjealous perhaps—of my profession, to which I have given the flower of my maturity; and I have

always felt that whatever degree of talent it may please God to bestow upon a man, this great profession of ours offers a field which brings it to the test. You must let me say, Mr. Northcote, that when I heard you deal with that poor woman this morning, and I heard you frame those questions which you put to her with a really beautiful sincerity which told heavily with the jury, I felt proud that so young a man could stand up so fearlessly and so collectedly in his first great criminal cause and put to so fine a use the talents that God had given to him. Had you been my own son I could not have felt prouder of you, and prouder of the traditions that you were upholding. Many of the great lights of the past came before my eyes—Pearson, now the Lord Chief Justice; Hutton, the Master of the Rolls; poor, dear Fred Markham, in many respects the most brilliant of them all, who was cut off, poor fellow, almost before he had reached his prime; the late George Stratton; Lord Ballinogue; Walker; Skeffington; and I know not how many more—but I did not hesitate to believe, although we old men are tenacious of our prejudices, that the bounty of nature had placed you already on their level, and that great and good and glorious as were all these names I have mentioned, you were starting at the point where they were content to end.”

Northcote leaned forward and lowered his head with a fierce, almost uncontrollable sensation of bewilderment, in which, however, pain was predominant. Every word that was uttered by that low, trembling, old voice appeared to spring from the heart. It was something more than an old man babbling of his youth. There was a pride, an eagerness, a solicitude, in the manner of this aged judge which seemed to clasp Northcote like the impersonal devotion of a noble woman to something more radiant but less pure and less rare than that which emanates from herself. In the keenness of his distress it was as much as Northcote could do to refrain from rushing from the room.

“Yet, Mr. Northcote,” the old man went on, “if I say this of your cross-examination, which as far as you are concerned was a thing of the moment, a mere piece of *esprit* thrown off without premeditation, what shall I say of that address with which you conquered all who listened to it? I speak no longer as a judge, Mr. Northcote; my livery is laid by. As I sat there in court with every chord in my heart responsive to the noble music of your voice, I felt that you had brought home to me that the time had come when I had

ceased to be of service to the public. I shall take my seat on the bench no more. But henceforward I shall always carry your words in my heart. They were noble words, nobly spoken; nature has been almost wantonly lavish to you in her gifts. It has been given to you, a young man, to show that the completest abasement of human nature is not in the gutter. I read the deeper and the truer meaning that was innermost, the divine message that was unfolded by the deep vibrations of your singularly beautiful voice. You revealed to one in that court, Mr. Northcote, who should have been engaged in performing his duty to the public, that no sore festers in our social life to-day like the organized degradation of the police-court, where learning, wisdom, courage, and integrity are debased to even fouler depths than the gutter by their constant traffic in human misery. Many times, Mr. Northcote, have I cowered in spirits since I have been called to my office, but it has remained for you, a young advocate, a fledgling of a newer and grander generation, which will touch this material world of ours to finer issues—it has remained for you to knock at the door of the citadel of the oldest of his Majesty's judges, and to put questions that he cannot answer. You forced him to say to himself, 'Tell me, Joseph Brudenell, what law you are obeying when you take your seat on these cushions, and you endeavor to fulfil the functions of the office to which you have allowed yourself to be called?'

"When, Mr. Northcote, in the height of your conviction you dared to swear in your own jury, you made every member of it actual and visible to me. You may have been uttering a profounder truth than you knew—which is one of the many prerogatives of genius—when you asserted that every one of those fearful and unhappy tradesmen had that jury within him in the jury-box. As you pointed out, we are the heirs of all the ages: the prisoner and the policeman, the advocate and the judge. And he whom you caused this jury of yours to elect as their foreman showed to me how responsible and authentic that jury was. By the magic, Mr. Northcote, in which you deal, you not only evoked that foreman in the spirit, but by some miracle you clothed him in flesh. That was a terrible achievement. It was the first occasion that the redeemer of mankind was seen to be in the occupation of a seat at the court of Old Bailey.

"I have heard all the great advocates of my time. I was present on that memorable occasion when Selwyn Anstruther made his appeal on behalf of Smith. Anstruther spoke during the whole of three days; as an orator he

would, with equal opportunities, have been the peer of Gladstone and John Bright. Anstruther's tradition is such—he had killed himself with overwork by the time he was forty—that he has become almost a myth. But even this speech of his to which I allude, many phrases of which I can recall after all these years, does not compare forensically with this appeal of yours, to which we had the awful privilege of listening this afternoon.

“Nature, Mr. Northcote, as I have said, has in your case been almost wantonly lavish of her gifts. Like one who was compounded of pure wisdom, you appear to have sprung from Jupiter's forehead completely armed. You have the voice and presence of the tribune; you add to the power of the demagogue a cool, elastic, and a subtle brain. I know not which to marvel at the more, your almost reckless courage, or that wonderful self-discipline which bends a courser so fiery to your lightest behest.

“You must bear with me in patience, Mr. Northcote, while I exhaust the stock of my superlatives; you see you have carried an old advocate away just as completely, nay, even more completely than you carried those honest laymen. This afternoon you furnished an old warrior, weary of the arena, with a few more of those priceless moments which he had not dared to hope again to enjoy. For over and above all your other qualities you have the divine gift which fuses every quality you possess. You have that sympathetic imagination which is the gift of heaven. It is a key which unlocks every bosom. The rich and the poor must alike bow before it. Things and men, Nature herself, even the universe itself, if you care to address your questions to it, can deny to you none of their secrets. The foreman of your jury, the divine mystic of the Galilean hills, was the man who was endowed with that rare jewel beyond all others; and he, as we read, carried the multitude from place to place and caused the sea to open that it might walk across.”

The voice of the judge grew lower and lower. He had spoken very rapidly, and under the impetus of an excitement almost painful in one of his years. Northcote was entranced by the vivid energy of the old man, and the tremulous emotion with which his words were charged. It seemed to be uncanny that he should be sitting there to listen. There was not a member of the bar who would have identified in the transfigured zealot who was pouring forth such strange words the personality of Bow-wow Brudenell,

the irascible old blusterer who was considered to be so unsympathetic and hard to please. There was not a word, not a gesture by which the outer man who had become so “famous” with the public could be recognized. This intense mental energy, burning like a lamp behind the harsh creases in his face, seemed to have refined him and rendered him beautiful. The grand passion which Northcote had unmasked filled the young man with awe. What did his own imperious qualities amount to in the presence of this simplicity? How foolish, how divine it was! This old man, whom he had dubbed in his arrogance the type of all mediocrity, shone forth with a lustre which filled its beholder with shame.

The judge rose from his chair with an effort. Northcote also rose. The old man seized his hand with a humble gesture which yet transcended a parent’s tenderness.

“My dear boy,” he said in a whisper, “I did not call you here to listen to this unbridled praise of your own gifts. But I felt that I must speak all that was in my mind concerning you, because I love you—I love you for what you are and for what you will be. All my life I have had a passion for my profession, and I bring myself to speak these words to you, because I feel that I hold within my grasp the newer, the wiser, the grander generation which has sprung already from the loins of us effete old warriors. You, my dear boy, I dare to prophesy, will be its protagonist. There is not a prize which our profession offers which is not already in your hand. One of these days you will be called to its highest dignities. I foresee that you are likely to become a dictator. The imperious will by which you are impelled invests you with a power that soon or late will control the destinies of the state. Therefore an old public servant ventures to speak to you as he would speak to his own son were he living to hear his words.

“The material lures of your profession are powerful, but I entreat you never to consider them. Be a strong and great advocate who will take his stand only upon truth. In the infinity of your nature you are fitted to walk alone in the strait places. The temptations which will accost one of such powers will not be light ones, but if you can acquire that reverence for your calling, that mediocrities like myself have been endowed with throughout their days owing to the infinite mercy of God, that calling has nothing to fear at your hands. It will derive a new sanction from your genius. But, my dear boy, this is a terrible gift which you possess. It is a two-edged sword, and if in a

moment of unwariness, such as has been known to visit the heroes of which we read, one of its sharp edges should be turned against the society in which you dwell, I beseech you to remember the other edge will be turned against yourself. He who affirms this is a humble and aged servitor of truth, and on that plea I beg you to forgive his importunity.”

All this time the judge had been holding Northcote’s hand. Towards the end his voice seemed to fail, but the pressure of his fingers increased.

“These are my last words,” he said feebly. “Guard your trust; take your stand upon truth. May God keep you. One who is old will remember you in his prayers.”

Almost involuntarily the judge placed his hands on the shoulders of the young man and pressed his lips to his forehead.

For a moment Northcote seemed petrified with bewilderment. This strange message from one who had run his course to one who was entering upon his own atrophied the powers of speech and motion. At last he tore his hand from the judge’s weakening grasp and ran from the room. In his flight he seemed to detect the sound of something dull and heavy falling behind him. Yet in the depths of his agitation and his shame he did not stay to look back.

He was soon out in the dark streets. Their coldness and commotion, their secrecy, and above all their freedom, were painfully welcome. He had hardly been able to draw breath in that arena in which he had fought his battle during so many dreadful hours. The old madness of movement, the old insensate desire for liberty overcame him again, and hungry and weary as he was he proceeded to tramp fiercely about the raw winter night.

As he marched without aim hither and thither, up one street and down another, he had no thought of the astonishing victory he had gained. The words of the judge had overcome everything else. They dealt with the future; his victory was already a part of the past. His pride was so arbitrary that it appalled and humiliated him to reflect that any man, that even an aged servitor of the truth, in the moment of renunciation of the arduous labors that had oppressed him for so many years, should have had the temerity to address words of such import to him.

From one pair of eyes at least, his talents, which had at last wrested recognition from a jealous, narrow, conventional world, had not been able

to hide the dangers with which they were girt. This aged judge had pierced the secret. Those senile old eyes, alone of those in the court, had seen the pitfalls which lay beneath his triumph.

He ought to have been overwhelmingly happy in this new perambulation of the darkness. Yet the sense of humiliation was paramount. That strength upon which all his life his extravagant hopes had been nourished had proved to be even greater than he had known, but the under side of his nature, to which he had given rein in order to grasp success, opened up possibilities that were strange and awful. Truth and justice had had no meaning for the terrible genie he had called to his aid. They had been used as so many cards in a game. The judge was right: so grievous a prostitution of a noble talent was a grave public danger. On the first occasion it had been employed it had compassed a notable miscarriage of justice.

Towards ten o'clock his wanderings carried him into Leicester Square. He stayed his steps under the ghastly lights of a music hall and made the discovery that he was faint with hunger and fatigue. With a dismal sense of foreboding, which habit had rendered involuntary, he thrust his hands in those pockets which on many occasions had had nothing to yield. To his joy his search was rewarded with a sovereign and a halfpenny. As he held the coins in his fingers a strange weary feeling of gratitude stole over him. His days of bodily privation were at an end. Not again would he know what it was to need food and yet lack the wherewithal of obtaining it. After all he must not dare to deride success. Its attributes were substantial, definite, necessary.

As he crossed the square in search of a restaurant of whose merits he was aware, the large letters of the news-bill of an evening journal caught his eye. Murder Trial—Sensational Speech for the Defence—Scenes in Court—Verdict.

“Here, boy, a paper,” he said, holding out the halfpenny.

He clutched the paper greedily and crumpled it in his fist. It almost seemed as he did so that fame itself was tangible, that it was something that he could crumple in his hand.

In the eating-house he passed a glorious hour in which he devoured beefsteak and potatoes and consumed a tankard of ale. He read the account

of the trial over and over again, although as rendered by the evening journal it had no meaning for him. Even the bald *résumé* of bare facts seemed far otherwise than those as rendered to himself. He could not recognize one of the incidents. Hardly a word was intelligible to the chief actor in that crowded and pregnant drama. “Mr. Norcutt for the defence spoke for two hours fifty-eight minutes. His speech was full of Biblical quotations, and even the judge was affected by it.”

When he turned out again into the streets a newsboy came running round the corner of Shaftesbury Avenue. He was crying, “Here y’are hextry special. Sensational murder trial—sudden deff of the judge.”

Northcote bought another newspaper and opened it under a lamp. In the space reserved for the latest telegrams, these words were printed upside down, “We regret to learn that Mr. Justice Brudenell expired in his room shortly after the conclusion of the murder trial at the Central Criminal Court this evening. The cause of death is believed to be heart failure.”

XXXI

MEDIOCRITY VERSUS GENIUS

NORTHCOTE could confess no surprise. But it struck him with a sense of drama, the thrill of the unexpected which underlies the impact of the common, that he should not have discerned the end of this aged man to be so near. The sounds he had heard as he rushed from the room must have been caused by that venerable figure falling to the floor. Sharply, however, as he felt the knife of reality in all its brutal power, he yet refrained from speculating upon the scope of its present operation. He was now tired out; his brain was heavy. He pushed on straight to his attic, climbed the dark stairs, and in a little while was curled under a blanket with a merciful sleep blotting out the actual.

He was summoned peremptorily from oblivion by the noise made by the old charwoman in drawing back the curtains which divided his garret into two apartments.

“Quarter to eight, sir.”

“Ay, ay,” he muttered, stretching his limbs and brushing the sleep from his eyes. His slumber had been that of abject weariness; deep, dreamless, undisturbed. He jumped out of bed, slipped on a dressing-gown that hung in rags, and felt himself to be once more the complete and valiant man.

When he sat down to breakfast he sent out the old woman to procure the morning journals. Throughout the operation of dressing, his mind, inflamed with conquest as it was, was filled with thoughts of the judge. In spite of its length, his career on the bench had only been a qualified success; he had never lacked adverse criticism. In the eyes of many he had never been quite strong enough for his position.

Upon the arrival of the newspapers, Northcote turned first to the obituary notices, rather than to the accounts of the trial in which his own personal triumph would be displayed. Following the custom of bestowing even more indiscriminate eulogy upon mediocrity when it is dead than it receives when it is living, the newspapers vied with one another in descanting upon Sir

Joseph Brudenell's services to the public, and his qualities of heart and mind. It brought immense relief to Northcote that this was the case. He was in no mood to suffer disparagement of that venerable figure.

The *Age* had a leading article upon the trial, and it was soon apparent to the advocate that its hostility towards himself was very marked. It said: "We venture to think that a more singular speech was never heard in a court of justice. It is not our province to advance opinions which encroach upon the right of counsel to settle for themselves what is proper and what is improper in the means they may adopt to safeguard the interests of an accused person, particularly in cases of this nature. But it does seem to us, and we believe this view is shared by the majority of competent persons who were present in court, that the course adopted by the counsel for the defence, if it were to become general, would constitute a grave public danger. Mr. Northcote is a young advocate, whose reputation is yet in the making; and in yielding to the call of his ambition, he adopted a means for the display of his forensic skill the propriety of which we venture seriously to call in question. Had Mr. Justice Brudenell—whose tragically sudden death (to which we refer on page 9) occurred within an hour of the rising of the court—been in the complete enjoyment of that mental and bodily vigor which during a period of twenty-five years he had taught the public to look for in the performance of his avocations, we are sure that, to use a mild term, such a travesty as that with which Mr. Northcote assailed the ears of the jury would not have been allowed to invade a British Court of Judicature. We are sure it would have been stopped peremptorily at the outset. As it was, a concatenation of unforeseen circumstances vouchsafed to the counsel for the defence a license of which he availed himself to the full. And the result we can only regard as lamentable.

"The youth and the limited experience of the counsel for the defence are entitled to be urged on his behalf; while the physical condition of the judge which resulted, almost immediately this extremely painful case had concluded, in his tragically sudden death, removes from his shoulders the least onus for what was allowed to take place. But at the same time it is to be urged upon ambitious members of the junior bar that yesterday's precedent is not one to be followed with impunity. Whatever the exigencies of the moment may dictate to young counsel in course of a trial for a capital offence, public opinion will not permit the introduction of the doctrines of

Nietsche into a British Court of Justice. The parody which was perpetrated yesterday upon religion at the Central Criminal Court must have been peculiarly repugnant to every reverently constituted mind, while its effect upon the verdict can only be characterized as a total failure of justice. Again the effect upon the advocate who permitted himself to indulge in an occupation so perilous was demonstrated in a remarkable and dramatic manner at the conclusion of his address. The reference he was led into making, for which afterwards he was impelled to make an unreserved apology, to the miscarriage of justice which occurred in the case of the unfortunate man John Davis a year ago, a reference which took the form of an impeachment of the learned judge himself, and of Mr. Weekes, K. C., the senior counsel for the Crown, can only be characterized as a gross breach of taste, and an equally gross disregard of those higher tenets of humanity which Mr. Northcote in addressing the jury put to a use so questionable."

"Well done, old Blunderer," said the recipient of this castigation, his mouth full of buttered toast, and attempting the delicate feat of propping against the teapot the instrument with which it had been administered. "In the performance of your 'daily avocations,' my dear old friend, you are to be admired. The 'doctrines of Nietsche' is distinctly good. Whatever will happen to us in this country when you can no longer be bought for threepence I am sure I don't know."

However, when the young man had finished his breakfast, and he had read the article again, he did not view it with quite the same air of detachment with which he had contemplated it at first. By nature he was immensely impatient of criticism. He accepted his own superiority to all the rest of the world without question, but like an arbitrary despot, he could not suffer the power of which he felt so secure to suffer misinterpretation, or the motives that impelled it to be called in question. His pride, after all, was of a ferocious and aggressive kind. The old judge's appeal had humiliated him bitterly. This newspaper article filled him with the fury that it would have filled Voltaire.

"I see what it is," he said, filling his pipe. "They are all in the ring, and they are afraid a rank outsider is going to break it. And so he shall!"

He finished with a volley of oaths.

The next moment tears had sprung to his eyes. Tears of chagrin, rage, disgust, of resentment against himself. How dare he be so arrogant when the words of the honest old man, spoken while the hand of death was upon him, were still in his ears. Mediocrity had its function, its reason to be. Until he had grasped that elementary truth he could never emerge, clad in valor and completeness, upon that high platform which nature had designed him to occupy. "Cad" Northcote had been the name bestowed upon him at school by his humbler but honester fellows: the same term of opprobrium had now been applied to him in a more public manner.

It was unworthy that he should ascribe the bitter antagonism he had raised against himself to the eternal feud of mediocrity versus genius. That fine gentleman, the old judge, was incapable of bearing false testimony. Outface it as he might, the flaw was in himself. It had been there from the beginning. The genie in which his intellectual pride was centred was the seat of the canker. Every time he employed it he must be aware of his fatal gift. It was a sinister talisman, or, in the words of the judge, a two-edged sword. Better a thousand times not to be distinguished from the mediocrity he was never weary of despising, than to be at the mercy of a genius that would compass his destruction.

He took up another newspaper, and turned his attention to an article entitled: "'Bow-wow' Brudenell, by an Old Friend." In the course of a column of appreciation it said: "Public life is the poorer to-day by a memorable figure. Mr. Justice Brudenell had achieved an odd sort of fame. It rested upon his idiosyncrasies upon the bench; upon the curious, irascible, barking delivery he affected, which earned him the name by which he was always spoken of in the circles in which he moved. In the judgment of his profession he was hardly considered to be a 'strong' judge, nor was he widely popular; yet although he had detractors, he was always listened to with respect. His queer little tricks of manner and his somewhat formidable aspect created an impression in the public mind which cannot be said to have been wholly in his favor. Yet none could have told from his demeanor on the bench what the man was at heart. It would require the pen of a Charles Lamb to limn him in his quiddity. To his private friends he was a perpetual delight and stimulus; he stood for all that was worthiest in the human character. He kept a too fearful conscience ever to be truly eminent

in public life, but no kinder, humbler, humaner gentleman ever walked the earth than Joseph Brudenell.

“It is to be feared that the closing days of this good man’s life were darkened by tragedy. The present writer was sitting with him in the smoking-room of a club, when a fellow member, an occupant of the Episcopal bench, carried over to him the evening paper containing the confession of the man Burcell in whose stead John Davis had suffered the extreme penalty a few days before. It would engage the pen of a dramatist to portray the self-righteousness of the bishop and the horror and bewilderment of the judge. ‘It has overtaken me at last,’ said the old judge, covering his eyes as though he had been poor blind Œdipus. ‘This is the shadow that has darkened my life during twenty-five years.’

“His distress will never be forgotten by those who witnessed it. From that hour he was never the same. The tragic suddenness of his end was not unforeseen by those who knew him best. Yet to the last he was the same gentle, courteous compound of scholarship and refinement. In no sense could he ever have been looked upon as brilliant. No epigrams, no pregnant sayings, no flashes of wit are recorded of him; upon the bench he was too much in earnest even to be genial. Every cause that came before him appeared to engage the very blood of his veins and the whole life of his intellect. It was a ruthless kind of irony that fixed upon such shoulders as these the responsibility for as grave a miscarriage as ever darkened the annals of English justice.

“In his private life he had known great sorrows. His only son was drowned twenty years ago while a freshman at Oxford. Had he lived, he was destined for that profession for which his father had so profound a reverence. Nothing could have been more exquisite than Joseph Brudenell’s childlike devotion to his calling, yet he was always haunted by the consciousness that the ideals he had set up were beyond his grasp. This son was to have been the truer, the wiser, the stronger, the more penetrating man; yet it was never to be. The accident that deprived him of this enlarged and completer edition of himself added something to his latter years that his faithful circle of old friends found wistful and affecting. And only last week he lost the devoted daughter who had been the stay of his declining years.

“It is safe to say that no man was ever called to the bar who was more honestly beloved by all who understood the secret workings of his mind than was Joseph Brudenell. Subtle it was not, it was not agile, and it was not profound; indeed the possession of that simple and unsagacious implement conferred only one claim to preëminence. It is as a great and honest gentleman that Joseph Brudenell will be called to the Valhalla of his gods. He was past master in one art only: the art which embraces the amenities of life. Unsympathetic critics he has had in his public capacity. He has been called a pedant, a weakling, one deficient in insight; even his scholarship, which was so laboriously honorable, has not escaped inquiry; but the void left by that massive and ungainly form can never be filled. In this time, at least, his like will not be seen. A rare jewel has been resolved to its element; earth is the poorer by an English gentleman.”

These words served to heighten Northcote’s indignation against himself. The stab he had directed at the judge increased in infamy. Already it seemed as if he had paid an exorbitant price for his success. However, in the midst of his anguish and perplexity, he heard feet on his staircase. There came a knock to his door. It was the solicitor.

“Well, my boy,” said Mr. Whitcomb, shaking his hand affectionately, “do you see you have killed the judge?”

“Yes,” said Northcote, “but I saved the life of your client.”

XXXII

MEDIOCRITY ASPIRING TO VIRTUE

THE advocate handed the *Age* to the solicitor.

“You may have seen it,” he said. “I am honored with a leading article.”

“I have read it. It means your removal from the top story to the basement.”

“I don’t understand.”

“It ensures that your professional emoluments will not be less than two thousand a year.”

“That would be very well had I not arrived at the conclusion that the game is not worth the candle. The penalties are too great.”

“Why consider them, dear boy? Why not accept the gifts of the gods in a thankful and contrite spirit?”

“You would have me drink the nectar that they offer although they hand it in a poisoned cup?”

“You are a queer fellow. You accept starvation with a dignified humility, but the instant you touch success—and such a success!—you make a face.”

“Such a success—there you have it all!”

“My dear fellow, whoever in this world got off the mark with such a flying start? You have awoke this morning to find yourself famous.”

“Bah! I am poisoned; I have got my death!”

“Within five years, if you keep your head, you will be making a princely income.”

“I know it.”

“And two days ago you could not afford to pay for a fire in the middle of winter.”

“You are perfectly right.”

“Two days ago you could not fill your belly when you were hungry.”

“I shall never taste hunger again—that honest, bitter, medicinal hunger that merges the mind in the soul. I shall never taste again that ascetic clarity which makes the heart supple and arms the brain.”

“You talk like a Methodist.”

“My father was a country preacher.”

“I expect this is the swing of the pendulum. You must have undergone great mental excitement in making your effort—and what an effort it was! And now the clock has swung right back; you are below par: you have got the blues.”

“I hate myself; I hate my cursed profession.”

“Yes, the mercury has fallen. The higher the rise the greater the drop. But make an effort to be rational. Look at this.”

The solicitor handed the advocate a brief. It was marked with a retaining fee of a hundred guineas.

“Two days ago that was beyond the dreams of your avarice. And now it is a mere forerunner of the beginning. You will be compelled to change your quarters and keep a clerk.”

“You remind me of the devil—the real authentic mediæval Mephistopheles,” said Northcote, with his fingers trembling upon the tape. “You are in the pay of the genie, you smug-hearted materialist.”

“Ah, the genie again! I am afraid to confess that that genie of yours gave me a very bad quarter of an hour,” cried Mr. Whitcomb, laughing heartily at the recollection. “I was never in such a panic in my life. Had it not been the last moment, and had it not been impossible to get any one else, you would never have held that brief. You and your genie frightened me to death. I woke up in a cold sweat in the middle of the night, wondering what would happen if you brought the infernal thing into court.”

“Well, I did bring it into court, did I not?”

“You would never have got your verdict without it.”

“Yet you were afraid?”

“That was before I knew what it was. But as soon as you got up to talk to the jury, and you could have heard a pin drop over the court, I gave in.”

“That is true enough,” said Northcote, in the hollow tone which had discomposed the solicitor at the restaurant, “but once having summoned this thing to my aid, once having taken it into court with me, once, as you might say, having let it taste blood in the arena, I shall be compelled to have it with me every time. It is already out of my control.”

“So much the better for you and for those who command your services. This genie of yours will one day be worth thirty thousand a year in cool coin of the realm. If you will deign to take the advice of one who is perfectly willing to be a father to you, I say to you, don’t overdo it. Employ as many devils as you please,—five, ten, or a hundred and ten,—but don’t be tempted into taking enough work to break down your nervous system. Keep that intact and you are predestined for the Woolsack.”

“I feel it; and yet, do you know, Whitcomb, it hangs in the balance whether I ever walk into court any more.”

“If you think so, it is little you know of your nature. What you call the genie will have the last word to say on that subject.”

“Like every other mud-colored materialist your intelligence is admirably lucid as far as it goes.”

“Compliments are flying. But is it not the faculty of youth to despise the common sense to which one day it is only too glad to return?”

“I would spew mediocrity out of my mouth,” said Northcote, suddenly overmastered by arrogance.

“Common sense and mediocrity are not quite the same; but you can take it from me, dear boy, that genius has always to learn sooner or later that mediocrity has its uses.”

The solicitor was amazed to see tears spring to the eyes of the advocate.

“I have learnt that already,” he said huskily; “I learnt it last night after the rising of the court.”

“I presume you are referring to poor old Bow-wow, the type of all mediocrity.”

“Yes, to the poor dear old blunderer who, after the manner of his kind, consecrated his life to a public display of his incapacity. Yet I weep for Adonais, he is dead!”

“I say, my boy,” said the solicitor, amazed by the depth of emotion that was revealed in the face of the young man, “you did not suppose for one moment that I was in earnest when I said you had killed him?”

“You struck so near to the truth,” said the young man, “that you made me bleed.”

“Well, this is a consummate kind of folly. You must feed well; build yourself up; go away for Christmas; take a rest. Future greatness cannot be allowed to play ducks and drakes with its chances.”

“I swear to you, Whitcomb, the weight of a feather would make me throw up the bar.”

“Impossible! That voice, that presence, that imagination, that extraordinary dynamic quality—in other words, your genie, leaves you no choice.”

“I swear to you, Whitcomb, if it were not for my countrified old mother, who has worked her fingers to the bone to provide an education for me, I would never go into court any more.”

“Ah, well, I shall continue to send you briefs all the same. I cannot recall another man who has got a start such as yours, and I shall be astounded if through a whim you show yourself unworthy of your good fortune. Here is a check for ‘the monkey’ you won of me at lunch yesterday.”

“Five hundred pounds! I don’t remember anything of the circumstances.”

“I laid five hundred to fifty against your getting a verdict.”

“When?”

“At lunch yesterday.”

“You must not take any notice of that. I was very excited. I am afraid I was not myself.”

“Why afraid? The money is yours.”

“I don’t want it; I won’t have it.”

Mr. Whitcomb had thrust the check in the hands of the advocate, who tore it up immediately.

“Well,” said the solicitor, “I should say at the present time you have undeniable claims to be considered the most remarkable man in London. I can’t fathom what has come over you.”

“I was thrown off my balance a little yesterday,” said Northcote hoarsely.

“Yesterday, my friend, you were a great man; to-day, you are a prig.”

“You are right. Yesterday, a great man stooping to foulness; to-day, a mediocrity aspiring to virtue.”

“Well, my dear boy,” said the solicitor earnestly, “my last words are these. Be guided by your talent. Greatness is written all over you; it is in your eyes; it proceeds out of your mouth. Play up to your destiny, like a wise fellow, and leave hymns and sermons and disquisitions upon morality to the official purveyors of those condiments.”

“You are the devil!”

“Well, Faust, dear old boy, if it come to that, it does amuse me sometimes to think that I have not dabbled in human nature in divers forms during the last twenty years without getting to know a little about it. And I put it to you, do you suppose I took the trouble—I, one of the most sagacious criminal lawyers in London—to climb up to this attic without my dinner at ten o’clock of a December night, without having taken your size in hats and your chest measurement?”

“I say, you are the devil.”

“Your estimate is too liberal. There is nothing of his Satanic Majesty about me; but, all the same, I am always perfectly willing to employ him. I am always prepared to pay him liberally to fight these causes of mine, wherever and whenever he is to be found. What you call the genie is, after all, a euphemism for the devil, although under the more chaste patronymic I failed at first to recognize that elderly swaggerer.”

“Well, yes, you are shrewd. But you leave a bad taste in the mouth.”

“Everything does that this morning. But I am not surprised that you are feeling cheap. The human frame has to pay for such colossal efforts. In the

meantime, you have no need to worry about anything. The mercury will rise again; things will all come right; and you will attain an eminence that few could occupy. In the meantime, divert yourself with these, and mention your own time for the consultation.”

Leaving two briefs, one of which was marked with the sum to which he had previously referred, Mr. Whitcomb descended the stairs, much to the relief of the advocate.

XXXIII

THE HIGHWAY OF THE MANY

SUCCESS had spread out both hands to Northcote, but the emotion she had aroused in him was not one of gratitude. He had spent many days of suffering, of mental darkness, during the years of his obscurity, but none had engulfed him in such humiliation as this upon which he had entered now. He had tasted coldness and hunger; he had known the stings of rage and despair; but these sensations appeared salutary in comparison with a hopelessness such as this.

How could he cherish an illusion in the matter, he who knew so much? He had made his choice deliberately under the spur of need; he had foreseen its enormous penalties; he had foreseen the degradation that was implied in the honors and emoluments that would accrue from its exercise. Yet, now these things had come upon him, he smote his breast and lifted up his voice in woe. Less than a week ago, in the freedom of his penury, in the license of his failure, he had had the power to spurn these lures. Yet in almost the next breath he had yielded to the call of his ambition; and in his first walk upon the perilous path he had elected to choose, he had shown an ease and lightness of motion that were audacious, astonishing.

What was there to deplore? His triumph had been so patent as to win the applause of the world. For the first time in his life money was in his pocket. That woman of courage who had striven so heroically for his welfare would meet with her reward. She would be enabled to end her days at ease. In those somewhat unilluminated eyes Money had always seemed to divide the place of honor with Duty. She would go to her grave, this upright and courageous one, with a p an upon her lips, because her son, her one talent, had in her old age been increased to her tenfold. Those worn hands would need to toil no more.

After all, this success, which to an honest nature was so embittering, had a curious virtue of its own if it could fulfil such an office. And it was hardly for the like of himself to be troubled with these intimations. Morality, like other privileges, was for those who could afford to enjoy it; it was for those

who had a snug little annuity in the funds. Those who had shivered in penury, who had known the look of want, had purchased their right to walk unfearingly by the light of their necessity. And he had only parted with his dreams after all; he had only transmuted airy nothings into explicit gold of the state. Let the visionary who nourished his heart upon the unattainable despise Cræsus as before, but let the well-fed and valiant materialist render due homage to that lusty and pagan old fellow. You could not keep your cake and eat it; you could not resign your ideals and yet hope to inhabit your castle in Spain.

It always came back to the question of the Choice. Was it not a sign-post that headed every path; did it not denote the convergence and the parting of every road? It was his own will which had selected the broad and muddy highway of the many, instead of the narrow and precipitous mountain ascent which was only for the feet of the few. In a choice of this kind there might be an affront to his nature, but once having embraced it, it was weakness to repine. He must shed this ferocious arrogance of his. He was now of the common herd, no longer of the sacred few.

The strangeness of his position held his thoughts all day. That which he had purchased had been obtained at a cost beyond rubies; it was not worth one-half he had paid for it, but as he could never recover his outlay he was bound to go on. It remained for him now to play the part of the cynic and philosopher. It was not the highest style of the hypersensitive man on the defensive, but the patchwork target would have to serve until he found the cunning to provide himself with a more efficient cover for his wounds. Yet when all was said the shaft had sunk to a cruel depth in that quivering nature. Heart and mind were lacerated.

At the table at the aerated breadshop at which he took his lunch, two middle-aged clerks from a city counting-house, musty, cowed, and solemn men, were discussing the trial wherein the morning journals with their unerring instinct had discovered the element of sensation.

“——so she got off?”

“Yes, they brought in a verdict of not guilty. My father-in-law was on the jury. He says it was her lawyer’s speech that saved her. He says there wasn’t a dry eye in the court, and the poor old judge cried just like a child.”

“No!”

“Yes! He says he never heard a speech like that before in his life, and he says if he lives to be a hundred years old he will never forget it.”

“Who was her lawyer? Sir Somebody, K. C., M. P.?”

“My father-in-law says not. He says he was quite a young chap without any reputation. But such a voice—he says it just went through you and made you shiver.”

“Something like Irving?”

“My father-in-law says he must have been acting, yet there didn’t seem to be a bit of the actor about him. That’s where he was so wonderful; struck no attitudes; never even raised his voice. Every word seemed to come straight out of him, as though he just couldn’t help it, and yet at first all the jury thought she was a thorough bad one.”

“So she was, I expect.”

“I dare say; but after what her lawyer had said they never thought of bringing in a verdict of guilty. My father-in-law says he was a wonderfully read young fellow, and he must have known the Bible almost by heart from the way in which he used it in his speech. And such an eye as he had too! My father-in-law says it looked like that of an eagle; and when the jury retired to consider the verdict the foreman, who had got a weak heart, had to have brandy or he would have fainted dead away.”

“It was very strange that the judge should have died suddenly.”

“Excitement killed him, they do say.”

“You would think that a judge would be so used to that sort of thing that it wouldn’t affect him.”

“Well, my father-in-law has been many times on the common jury, but he says this young lawyer beat all he had ever heard. He says it doesn’t matter how clever the ordinary lawyer may be, you can always tell when he’s putting it on. But this young chap was so quiet and solemn that he simply made you shiver.”

“Just a trick.”

“They all knew that, yet he made them so that they couldn’t help their feelings. My father-in-law says as soon as they retired to the jury-room to find their verdict, old Bill Oaks—you know the old prize-fighter what keeps the Blue Swan at Hackney—who was on the jury, he just spat in the corner and wiped his eyes on his sleeve, and he says, ‘Well, mateys, I’d reckon we’d ’ang no more women.’”

“Bill Oaks said that?”

“Those were his words. And it just shows the power that young chap must have had to make a common fellow like old Bill Oaks say a thing like that.”

“Some men are born lucky. With a mind of that sort he will have made a fortune in no time. In a year or so he will be keeping his yacht and driving his motor-car. It is a funny world when you come to think about it. Here is a chap like me, been a clerk in the Providential for thirty-five years. My hours are nine-thirty till five; I have never once been late, nor had a day off for illness; and my salary per week is thirty-eight and a tizzey, with a pound a week pension at sixty provided I keep up my payments to the fund. I have never done a wrong action as far as I know; I go to church once on Sunday; I teach in the Sunday school; I give five shillings to the poor every Christmas; I have brought up five children well and decently; I always acted the part of the gentleman to my wife while she was alive, and now she is dead I always keep fresh flowers on her grave summer and winter; I’ve paid my rates and taxes regular; the landlord has never had to ask me twice for the rent; and what’s it all amount to? Why, I leave off just where I began. Yet I consider myself a cut above this young man, with all his gifts, who will make a fortune by saving murderers from the gallows.”

The speaker, a sallow, stunted little fellow, uttered his words in a quiet, yet dogged staccato, as though he were issuing a challenge which he knew could not be taken up. His sharp, quaint cockney speech was almost musical in its incisive energy.

“Happiness don’t depend on money,” said his friend.

“You have got to have money, though, before you can believe it.”

Northcote overheard this conversation while he munched a sandwich. It afforded him the keenest interest. He moved out into the eager crowd which thronged the Strand. Yet again his old passion for perambulating the streets

came upon him. There was a sense of adventure in dodging the traffic at a breakneck pace, and in elbowing his way through the press. Until the evening he wandered about in the mud and the December mists. He was sick and weary; the conflict within him gave him no rest; yet there was a fierce joy to be gained in mingling with the virile, many-sided life that was about him everywhere.

Thoroughly tired out at last, he took a frugal dinner at a restaurant, and accompanied it with a bottle of inexpensive wine. He lingered over his meal and made an attempt to read an evening paper, but found he could not do so. The vortex in which his nature had been plunged absorbed the whole of his thoughts.

XXXIV

MAGDALENE OR DELILAH

ABOUT nine he returned to his lodging. He lit the lamp, drew the curtains across the window, and built up a good fire. He set himself to do three hours' reading before he turned into bed. However, that power of will it was his wont to exert to its fullest capacity was for once insubordinate. There were not two consecutive sentences upon any of the pages which he tried that displayed a meaning. He had never known this impotence before.

In the midst of these futile attempts to fix his mind on the task before it, he thought he heard the creaking of the stairs. He listened acutely. Late as was the hour, the clerk of some attorney might be bringing him more briefs. A moment later his door was softly tried and opened as softly as some one entered the room.

To the profound astonishment of the young man he saw that it was the figure of a woman. She was tall and pale and clad sombrely in close black draperies. Her entrance was somewhat stealthy, yet it had neither reluctance nor timidity. Unhesitatingly she approached the chair in which the advocate sat with a book on his knee. He rose to greet her with an air of bewilderment.

"I knew you were a great student," said his visitor in a low voice, letting two large and dark eyes fall upon the page of the book.

"I beg your pardon," said Northcote, "I am afraid I don't know you."

"You do not know me?" said his visitor in a tone that entered his blood. "I will give you a moment to think."

Northcote seemed to recoil with a half-born pang of recollection which refused to take shape.

"I have not the faintest knowledge of having met you before," he said, feeling how vain was the effort to fix his thought.

"Think," said his visitor.

“It is in vain.”

“I should not have expected you to have so short a memory,” said the woman. “You saw me yesterday and you saw me the day before that.”

“I do not recognize you at all,” said Northcote faintly.

“Should I have remembered that you were a busy man who was unable to spare a thought outside of his profession?”

There was something curiously stealthy in the fall of the voice which startled the advocate.

“That is a voice I seem to recall,” he said, with an air almost of distress.

“A voice you seem to recall,” said his visitor, with a sombre laughter which made his heart beat violently. “How strange it is that you should recall it! You only heard it once, and that was in the stifling darkness of a prison!”

Northcote gave a cry of stupefaction.

“Impossible, impossible!” he said weakly. “You—you cannot be the woman Emma Harrison!”

“Emma Murray, alias Warden, alias Harrison,” said his visitor, whose tone of gentleness was now charged with deliberation.

“Then how and why do you dare to come here?” cried Northcote.

“I bring you my thanks,” she said, with a sudden consummate transition to humility. “I bring the gratitude of an outcast to him who has delivered her from a deeper shame than any she has suffered.”

At first the bewilderment of the advocate would not yield; the revelation of the last creature in the world he looked to see in his attic had seemed to arrest his nature. But hardly had she rendered him her homage with somewhat of the sombre dignity of one who seeks by suffering to efface her stains, than the old devouring curiosity of two evenings previously returned to him. In the prison he had not seen her face; in the dock he had not permitted his eyes once to stray towards her. She was engraved in the tablets of his imagination as a foul and sordid creature, dead to feeling, yet susceptible of the loss of freedom, horrified by the too-definite thought of a barbarous doom; yet over and above everything a denizen of the gutter,

wretched, stupid, and unclean. It was amazing to see her stand before him in this frank guise.

Peering at her through the subdued flames of the fire and the lamp, he saw that she had contrived to inhabit her stains in a kind of chastity. It was a trick of her calling, perhaps; yet if trick it was, it was subtle, consummate, and complete. As far as his eyes could pierce the texture of her secrecy, her face was that of a woman of forty. It was pale and unembellished; the cheeks were wan; the features, but slightly defaced, were possessed of a certain original fineness of line, like the handiwork of some little known craftsman who had been touched by genius. There were the remains of a not inconsiderable splendor strewn about her, particularly in her dark, enfolding, and luminous eyes. Suffering was everywhere visible, even in the hair, whose natural sallow hue was peeping through its dye. In form she was large, but not massive; ample, flowing in contour, with the powerful, yet graceful, moulding of a panther.

“Had you not expected something different?” she said, standing up before a scrutiny he did not disguise, and speaking with a mournfulness that seemed to challenge him.

“You have guessed my thoughts,” said Northcote, without lowering his gaze.

“I was not always as I was,” she said, letting each syllable fall passionless. “I sank deeply, but I am risen again. I am praying that with the aid of one I may scale the heights. I even hope to reach that which in the beginning was above my stature.”

“I am glad to hear it,” Northcote muttered.

“That is cruel,” said his visitor with a shiver. “Such a phrase from your mouth wounds me like a sword.”

“I am afraid I don’t understand,” said Northcote, almost with indifference.

“This is not him whom I came to see,” said the woman. “This is not him who saved my base body; him who, if he will, may redeem my whole nature.”

“I?” cried the incredulous young advocate.

“You, my deliverer!”

“I—I don’t think I like you; I think you had better go away,” said the young man, with a brutality of which he was unconscious.

The woman replied to this speech by sinking slowly to her knees. She lifted the noble line of her chin, which intense suffering had seemed to refine, up towards him with an ineffable gesture of appeal. It almost vouchsafed to him a sense of his own degradation.

“I see you as the one whose noble strength will heal me,” she said, prostrating herself more completely, and clasping her arms about his ankles.

“Better rise, better leave me,” said Northcote, bewildered by a sense of pity for his own impotence.

“You are striking me again,” said the woman with a shudder that even to Northcote seemed terrible, “but every blow you give may help to make me whole.”

“What can heal a murderess, a prostitute?” he asked, with a candor of selection that was intended to lacerate.

“You. You who brought me out of prison—you who delivered me from a shame to which even I dared not yield.”

“Get up,” said Northcote, filled with an unaccountable pang. “Sit there, and try to compose yourself a little.”

With an indescribable impulse, which he had no means of fathoming, he raised the trembling, shuddering form by the shoulders, and let it into the chair nearest the fire. The act was wholly without premeditation, but there was nothing in it that partook of the uncouth harshness of his voice. A few scalding drops crept out of her eyes on to his hands, and when he lifted her the heat of her body communicated itself to the tips of his fingers.

“Oh, why do you not speak to me with the voice with which you terrified my judges?” she moaned.

“I cannot make up my mind about you,” said Northcote calmly. “I do not know whether you are the Magdalene, or whether you are Delilah.”

“When you pleaded for my life before my judges yesterday in the court, I looked upon you as Jesus,” said the woman, pressing the tips of her fingers against the balls of her eyes.

“At that hour I felt myself to be no less. And I believe there were those among my hearers who had that hallucination too.”

“Would *he* have cut me into pieces when I crept to him for sanctuary?”

The young man pressed his hands to his sides. An ineffable anguish had pierced him.

“No man ever felt less like that Nazarene than do I this day,” he cried, with a face that was transfigured with terror. “A holocaust has taken place in my nature. I know that I shall never take my stand with the gods any more. Henceforward I am filled with roughness, brutality, and rage; I hate myself, I hate my species.”

“Wherefore, O my prince!”

“Am I not fallen deeper than her I redeemed from her last ignominy? Have I not prostituted a supreme talent; have I not poisoned the wells of truth?”

“Can this be he who preached the Sermon upon the Mount? Can this be he who said to the woman taken in adultery, ‘Daughter, go thy ways, and sin no more’?”

Already the roughness of the advocate was melted into blood and tears. His callous rage had yielded before the figure of the Magdalene. This nondescript animal he had picked out of a sewer had proved to be a woman who had bled for abasement, and who strove for reinstatement by bleeding for it again.

“I have a curiosity about your history,” said Northcote, with a gaze that devoured her. “You see you are pictured in my imagination as the denizen of a slum.”

“I entered upon life,” said the woman, yielding to the domination of his eyes, “as the eldest daughter of an artist whose existence was a misery. He was a painter of masterpieces that no one would buy. He had not been in his grave a year when they began to realize sums that during his life would have appeared to him as fabulous. His two girls, who comprised his family, never got the benefit of the recognition that had been denied to their maker; but the dealers in pictures, who had begrudged him so much as oils and canvas, grew rich by trading upon a great name.

“My childhood was bitter, cruel, and demoralizing. Art for the sake of art was the doctrine of my poor father, and in pursuing it he took to drink. That honest and virtuous world which I have never been allowed to enter, viewed him afar off as an outcast, as an idle and dissolute vagabond, as a worthless citizen, whose nature was reflected in his calling. Perhaps he was all this; perhaps he was more. Yet he would shut himself up in a little back parlor in the squalid little house in which we lived, and there he would work in a frenzy for days together. He would emerge with his nerves in rags, his skin pale, his eyes bloodshot, his linen foul, his clothes and person in disorder, yet under his arm was a new masterpiece, twelve inches by sixteen, which he would carry round to a dealer, who would bully and browbeat him, and screw him down to the last shilling, which he already owed for the rent. He would return home worn out in mind and body by his labors; and for weeks he was unable to bear the sight of a brush or a skin of paint. It was then he would seek to assuage his morbid irritation with the aid of drink. ‘They will place a tablet over this hovel when I am dead,’ he would say, ‘but while I am alive the rope which is needed to hang me outbuys the worth of this tattered carcass.’

“My poor father, rare artist as he was, was right in this estimate of himself. As a man, as a father, as a citizen, I cannot find a word to say for him. He never brought a moment of happiness to either of his girls. He dwelt in a world of his own; a beautiful and enchanted world, the Promised Land of his art. He was a man of strange ambition; of an ambition that had something ferocious in it; of an ambition that was unfitted to cope with the sordid and material aims, by whose aid persons of not one-tenth part of his quality achieved wealth, respectability, power, and the fame of the passing hour. There was a thread of noble austerity in my poor father’s genius, which remained in it, like a vein of gold embedded in the mud of a polluted river, throughout the whole time of his degradation and his ruin. His pride seemed to grow more scornful with each year that witnessed more completely the consummation of the darkening and overthrow of his nature. I can remember his saying of a picture by the president of the Academy, ‘I would rather have my flesh pecked by daws than prostitute myself with such blasphemies as that;’ and at that time he stood upon the verge of the grave of a drunken madman.

“I have said he was not a good citizen. Nor was he a good father to his girls. He did not offer them physical violence; but it never occurred to him to shield them from the indignities thrust upon them by want and debt, and the despair which was sown in their hearts by the foulness of every breath they drew. It would need my father’s own gift to limn the picture of this beautiful talent living its appointed life in its own way, yet indifferent to the most elementary duties of a righteous parent and an honest citizen. As a young man he had been handsome, with a fine, delicate, even an entrancing beauty; it was one of his favorite sayings that the face of every true artist borrowed something from heaven. I can only recall that face in its latter days, when it was that of a petulant, arrogantly imperious, yet hideous and bloated old creature, whose body and soul had been undermined; but from the numerous pictures he painted of himself in his youth he had the divine look of a poet.

“I have always considered it as both cruel and ironical of nature that she should have bestowed upon the daughters of this drunkard and madman, a little of his own originality—divinity, that taint of genius, which brought him to the gutter. Look at me well, my deliverer, and you will see what I mean. If you choose you may read my dreadful secret in my eyes; in the shape of my lips; in the expanse of my nostril. It is there still, although drink and the gutter have defaced its bloom. Look at me, I say, and you will read my poor father’s history. You will see in my face that ambition for which he sought an anodyne in the drinking of drams. Sometimes when he grew tired of painting himself he would have me to sit to him, and he would tell me I was amazingly like him in his youth. He would also take my younger sister as his model, but she did not interest him as much as I. ‘Polly is destined for middle courses,’ he would say. ‘She is neither good fowl, fish, nor flesh. One of these days she will effect a compromise, and will be admitted to membership of the Great Trades Union.’

“‘As for thee, thou little slattern of a wench,’ he would say, running his fingers through my hair, as he cuffed me affectionately, ‘I am afraid to cast thy horoscope. I cannot predict what will become of thee. Such a face as thine, thou dirty one, is born to a dreadful and cynical hatred of things as they are. I can see a bitter scorn in thee for those hare-hearted rogues who run the show. Like thy illustrious father thou wilt live to be a thorn in the bowels of the canaille.’ I was too young at that time to understand what was

the meaning of my illustrious parent, but often since, as I have sunk from one stratum of my calling to another—there are degrees in this profession of mine—have I recalled his words, and I have marvelled at his power of seeing into the future.

“It was this father of ours, who before he deferred to the hand of death, launched my sister and myself upon our respective careers in the world. There was nothing hypocritical or pharisaical about this painter and lyric poet. In his heart he never aspired to those principles which he denounced with his lips. He sent our beauty to market as soon as it had reached the age of puberty. He caused us to cease the scrubbing of floors, lest it should roughen our hands. We were turned out upon the streets with rouge on our cheeks; for it seemed to dawn upon him all at once, in one of his Titanic flashes of inspiration, that there was a rational way of obtaining money to buy the brandy for which he craved during every hour of the day.

“After my father’s death, my younger sister grew into a charming, accomplished, and beautiful woman. In the course of time she aspired to the prizes of her trade. For several years she lived in refinement and luxury with a judge of the High Court; and upon his demise was able to claim the interest of a prosperous and clever criminal lawyer of the name of Whitcomb.

“For many years now I have been dead to my sister’s knowledge, for brutalized and sordid as I have grown, she was the one thing in the world besides myself I have ever been able to pity. Even when I descended below my poor father’s level, I could never find it in my heart to ‘queer her pitch’ as we say in the gutter. She grew happy and prosperous, and forgot her childhood and all the sores that festered upon her name. Long ago she achieved the beatitude of that condition of mental and moral nullity as predicted by her distinguished parent; while I, as also predicted by that seer, was destined for sterner things.

“In those lucid intervals when drugs and drams had left me the use of my faculties, I sought to appease my cynicism by preying upon society. I cannot reveal to you the cold rage I nourished against the cosmogony that had been evolved by I know not how many generations of Pharisees. The lode-star of my father’s ambition was art for the sake of art; that of her he had nurtured upon it became crime for the sake of crime. Not that I was

wanton or petty in the workings of my creed; like my father, I had usually some large aim in view. Yet again like my father, it was not to myself that material prosperity accrued from the exercise of my gift, but to the crimps and bullies by whom I was surrounded. It was one of these, a base, cold-blooded, brutal, calculating ruffian, whom so treacherously I did to death.

“I think I should enact that crime again; although when my guilt was fastened upon me, and I was brought into prison, my fear of the gallows was terrible. It was even stronger than my poor father’s dread of criticism of his works. And yet as I lay under the shadow of a fate that I did not know how to obtain the fortitude to accept, I amused myself with a stroke of that wantonness which has sometimes delighted my associates, and on occasions has even rendered them respectful. I chose Mr. Whitcomb to undertake my defence. My poverty and evil repute made him reluctant to accept the office, but like my father, I retain a little of the artist’s power of seeing into the future. In my dreams a voice whispered to me that he alone could ensure my safety. And to my importunity he yielded. He yielded to that importunity which when I have felt called upon to exert it, no man has ever been able to resist.

“What a sanctuary did this prison with its indescribable gloom offer to me! All the days of my life had been cast with drunkards, madmen, thieves, panders, and prostitutes. They had rendered the very breath of heaven unclean. From one slum to another slum, from one gutter to another gutter had my steps been traced. Will it astonish you that what after all was a powerful nature had founded its grand passion upon an irreconcilable hatred of its kind? Yet I was brought into prison, and for the first time I tasted the breath of the living God.

“It was the horror of my doom, I think, giving to a life that had never had any finite knowledge the certainty of the surgeon’s knife, which had the power to touch me for the first time with the instinct of beauty. I am sure I know not whether such was the case; but a pall was lifted from my brain, a stealthy drug seemed to evaporate out of my pores. There were times when I lay behind the bars of this prison in which I could have cried aloud for gladness. The open sores in my nature began to heal. All those dark mysteries, that had pressed me down like a curse, were spread out before me luminous with meaning at those hours when the dawn stole into my cell. Ere long I would lie awake all night to watch for its appearance, for I knew

that every time it came to me I should gain in knowledge. I began to understand why the sun was warm, why the birds sang, why the rain was wet. I began to understand that to breathe, to move, to do, to think, to say 'yes' and 'no,' to wield despotic powers, to do battle with that underworld, that reflex action, to which I had always been so ready to succumb, were all acts of splendor and grace, all parts of a living idea that was a noble solution of my perplexity.

"As I lay behind the bars of my prison I dreamed again and again of some mighty and enfolding power that would take the whole of my trembling irresolution in its arms and bend me into the mould of its all-powerful will. I foresaw that some young god would emerge out of those clouds about heaven, which for the first time in my life my enraptured eyes had perceived, that he would break into my cell, that he would make me the bride of that majestic loveliness which had caused my sight to shed its first tears.

"When you came and spoke to me in darkness in the prison I knew who you were. I knew that my dreams had yielded a reality; and that the new birth which had unfolded itself in my nature had already found a shape. From that hour of our meeting I thought no longer of my doom. Now that such a one had consented to plead for me I knew that none could do me hurt. Even the dock itself was powerless to touch me with fear; although until you rose to speak I could neither hear nor see, and I did not know where I was. But at the first sound of your voice I sat entranced. I forgot that my wicked and degraded life was in your hands; I forgot that a subject so foul was the source of your beautiful words. I had never known before what the living voice of poetry was like. I had never beheld those heights to which a great and noble nature is able to aspire.

"As you spoke in the court and all my enemies hung upon your words, you became a part of this miracle which had happened in myself. You were the breathing embodiment of those august shapes which emerged in all their order and beauty from behind the dark curtains of my nature. Hour by hour, as I listened to the enchantments of your voice, it seemed to steal over me that you, my deliverer, in the empire of your youth would not only free me out of prison, but also you would deliver me out of the bondage of my own soul. Such a tumult of joy came upon me then as I could not believe could

visit any human creature. The music of your lips was not only the earnest of my dreams, it was the consolation of my stains.”

When the woman had finished her story she rested her elbows on her knees and her chin on her hands. Northcote, who had followed so strange a recital with an interest which its attendant circumstances even rendered intense, felt no longer able to withhold an ample meed of pity. And how unfathomable it appeared to him that his defence, which had been inspired at a time when all was darkness concerning her, should yet be vindicated so completely by the facts of her life. Such an intuition was an uncanny weapon. Who could wonder that this buffeted, arrested, slowly maturing, late-developing creature should see in its transactions the revelation of a supernatural power? She was base and foul, yet she was suffused with the inspiration of his strength—with a strength that had been used in ignorance, with a sordid end in view. She must indeed engage his pity, she who had prostrated herself before a chimera, she the thrice unhappy one who had prostrated herself before an idol with feet of clay.

In looking at her now she had lost half of her strangeness, half of her mystery. The foulness and ugliness that must recently have been stamped upon her was now effaced. He could not doubt that since she had been brought into prison her nature had been sanctified by a new birth. This squalid criminal whom life had pressed out of the ranks had actually gained eyes to see and ears to hear. Such a confession was not a charlatan’s trick; this enkindling experience of the divine beauty was a true renaissance; a cleansing of a fœtid heart by the instinct of joy. Faith in its childlike naïveté had appeared by some miracle amid that expanse of corruption. It was as though a violet had raised its head in a sewer.

Now that the young man had become the witness of the phenomenon that he himself had wrought he was abashed, yet also he was sensible of recompense. Not in vain had he suffered those creative pangs by which so strange a thing was born. Fame and money were the only guerdons he had sought to compensate his gifts in their highest walk; yet that travail of the mind, that expenditure of spirit were to receive emolument more fitting. This wanton, with her crimes and her sores upon her, whom he had delivered from the last indignity her fellows could devise, would issue from Gehenna healed and purified into the mellow light of the afternoon.

Northcote had suffered extreme misgiving throughout that day, but now as he stood to gaze upon her who was undergoing a resurrection by the wand of his genius, he felt an exquisite joy in this special and peculiar gift that heaven had vouchsafed to him. It had wrought beyond his knowledge. This genie which had derided and tormented him had achieved an intrinsic glory in allowing itself to be called to the highest, the most disinterested of human offices. Here was the apologia for the art he had practised. The black magic in which he had dealt, the shame of which had stricken him, had actually wrought a divine miracle. In the light of its sanction he need repine no more.

“It is truly wonderful,” the woman muttered softly as if to herself, “to live forty years without knowledge and without curiosity, and then to awake in a night to the seas of color, the harmonies of music that make the enchantments of the life we have never perceived.”

“You are like a bird,” said the young man, “who has been born in a cage, yet who contrives at last to break through its bars. It flies into heaven, mounting rapturously into the void, and it sees the sun, the tops of the trees, the green fields, the fleecy clouds, and it tastes the bright air.”

“Yes; and hears for the first time the free and joyous songs of its kind.”

They seemed to pause to look upon one another with violently beating hearts: the man in his strength, in his insolent domination; the woman in her weakness, in her pitiful need.

“Strange, is it not,” said the young advocate, speaking aloud his thought involuntarily, “that I should not be acquainted with your history when I made my appeal?”

“Would it have been made had you known all?”

“Indeed, yes,” said Northcote, with a fervor in which he tried to rejoice; “your baseness is now less in my sight than it then was.”

The fierceness of the woman’s breathing arrested her speech.

“You force me to believe,” she cried in choking accents, “you show me what faith is, you unfold the meaning of affirmation. Never again can I be nourished by denial. You are, indeed, the Cloud-dweller who in my vision I saw break forth out of the stars.”

The sword with which these words pierced the advocate was too sharp for his fortitude. His wounds of that day had left him faint and spent with the blood that had flowed from his veins. He grew frail and numb.

“You had better hear the truth,” he said, gasping. “It is the death-knell of us both, but there is a limit to mortal endurance. I would have you divorce the instrument from his works. Your Cloud-dweller is not a god, but even as yourself a thing of dross and clay.”

“I deny it, I deny it,” said the woman, in a voice of passion.

The man seemed to cower before the anguish of her eyes.

“You owe your deliverance to an unworthy instinct which rendered me invulnerable.”

“Unworthy, my deliverer!”

“A thousand times unworthy, poor deluded one. It was not for the sake of the abandoned wretch who was presented to my mind, that I bought her life and freedom. It was not for her, it was not even for her cause that I spent the last drop of my power.”

“It was not, then, a divine magnanimity that taught you to forget my stains?”

“No.”

“It was not that you drew your sword for a marvellous gospel—for a gospel that dazzled the poor outcast in the dock with its magnificence?”

“No, no.”

“Then why did your voice seem to wail like a flute? Why did you pluck the back of your hands until the blood flowed from them? Why did you conclude in a whisper so gentle that it could only be heard by the spirit?”

“I was in a frenzy of avarice. I was fighting for myself.”

“No, no! Your words were inspired from heaven.”

“No, no! It was no more than the baleful power of the earth. I was fighting for a roof over my head, regular meals, a reputation, material needs.”

A thrill passed through the eyes of the woman. They seemed suddenly to be blinded by a thousand black thoughts she had half-forgotten. She sprang to her feet, possessed by an excitement that he who had made his pitiful confession was afraid to plumb. She placed her hands on his shoulders and peered into his face; and he did not shrink from contact with her, for by some occult power, which was her own genie, her own special and peculiar gift, he was disarmed.

“You have the voice, the bearing, of a god,” she said, quivering with terror, “but your speech belongs to the underworld whence I have come. Persist in it and we return to it together, walking hand in hand.”

The advocate strove feebly to escape from the demonic faculty which already had been exerted upon him. She resisted him mournfully.

“You cannot put me off, my deliverer. Henceforward your ways are my ways. I go with you to the bright fields of your native kingdom, or I return to the horrors of my own. I beseech you to take me by the hand and lead me along the golden paths to those mountain fastnesses in which you were born, in which the sun shines forever. You know how I have been dreaming that some saint and hero would lead me to them; you must make my dreams come true again, my deliverer, as you did but yesterday.”

“Oh, why did you come to me?” cried Northcote weakly, as he strove in vain to free himself of the yoke that was already on his neck.

He seemed hardly to understand that he had to deal with a desperate gambler who was staking all upon a final cast.

“Do not let me perish,” cried the woman. “Do not say this is an illusion upon which I have built my miraculous faith. Do not tell me that the gods walk the earth no more!”

The tragic distension of her countenance filled the young man with horror, yet also with a sense of its weird poetry.

“You must not hurl me back into the abyss out of which I have crawled with bare life,” she cried, seizing his hands with an astounding passion. “You are the god who has breathed upon the poor outcast who knows no heaven apart from your nobility; you cannot, you must not, reject her.”

Again the wretched creature sank down upon her knees before him.

XXXV

DELILAH

As Northcote gazed upon her, despair beat him down like a flail. It was not for him, man of genius as he was, to heal this outcast with his touch. Only a perfect chastity could do that; and this was the jewel with which he had parted two days before to save her from the gallows. If he touched her now, it would be as the inhabitant of her own level. She cried for the living god, yet now he was become a counterfeit of arid clay. She had asked for bread, and he had only a stone to yield.

“You must go,” he said, and the words seemed to thicken as they fell from his throat. “You must fly from me. I have nothing to offer you.”

The woman shuddered and clasped him by the ankles, but otherwise made no sign that she had heard.

“My power is gone,” he said. “I am no longer the strong and valiant one, but the poor outcast even as are you. Two days ago I flung my birthright away.”

“Will you send me back to the charnel-house?” said the woman with a low moan.

Northcote drew up his body rigidly, erectly.

“I have no choice,” were the words that were forced from between his lips.

Vein by vein the creature before him was invaded by death. She crouched lower and lower upon the ground until she was no more than a shapeless and ignominious mass on the bare boards in front of the fire. Every line of her body was merged and outspread into something amorphous, without form. Her helplessness was too complete to arouse pity. Such a flaccidity was greater than that of an infant, whose frame is too puny even to allow it to crawl.

Northcote had no disgust. He had too sharp a sense of horror that the power should be denied to him to succor such an invertebrate thing. Presently, by

an effort which seemed to shatter her flesh, the creature was able to move. She rose from her knees, issuing from the state of coma with all the heavy and desperate pangs of one who attempts to throw off the fumes of a deadly venom. She rubbed her eyes with the back of her hands, and folded her arms in front of her.

“If you could have touched me once with the hem of your garment you would have healed me. As it is, I walk back with my wounds into the world.”

A singular change had occurred in the voice of the suppliant. It was far other than that which had clothed the language of entreaty which had previously fallen from her lips. In the ear of Northcote the change wrought relief. Yet even as he imbibed this clear, this definite, this pungent tone with the eagerness of one who presses cold water to his throat at a time when the pangs of his thirst have become insupportable, a rapid and bewildering transformation took place in her who confronted him. She who a minute ago had presented the appearance of a nebula, suddenly broke out all over into light like a star. Out of the sprawling shapelessness there was seen to issue something as strong, graceful, and agile as a leopard. The hue of her skin became luminous as though a fire had been kindled beneath it; and her eyes, which so lately had been dull and without nascency, shot forth a lustre that added light to the room.

There was nothing baleful or malevolent in an apparition so profoundly wonderful. In standing aside to witness the evolutions of any force, in the act of obeying the laws by which it is governed, however inimical its operations may be to our personal safety, the feeling of repulsion bears no part. The spring of the tiger, the long white teeth of the wolf, the pinions of the eagle, the motions of the serpent, are in themselves beautiful, for in them are manifested the free and unconquerable expression of that force which nature has taken for its highest gospel. The wide and curving nostrils of the prostitute were the mansion of a subtle but brutally dominating power.

For the moment, however, Northcote was only aware that a splendid, supple, and entrancing thing had stolen unperceived, like a beast of prey, into the room. The strong, fine, and beautiful line that had been traced along the convergence of the thin but full lips addressed him like an unexpected

but supreme artifice of a great painter, who has learned to use his pigments with effrontery.

As a revelation of power she was more than his equal; she challenged him with eyes whose insolent domination exceeded his own. Furtively, yet boldly, she had discarded her stealthiness; she had already the strength that disdains a mesh. She looked upon him now with the same hidden but imperious scornfulness with which he had looked upon the judge, the jury, and the bar under the excitement his speech on her behalf had generated. Strong, subtle, and secure as he had been in the exercise of his specific and audacious talent, this siren was equally so in hers. He had delivered a great prostitute from the gallows in order that she might lead him to it.

“I came here with no thought of destroying you,” she said.

With perfect composure she proceeded to divest herself of her hat and coat, and carried them confidently behind the curtain, as though already she were perfect mistress of his house. When she returned she seated herself in the chair against the fire.

Northcote had not protest to raise. He could not meet the challenge in the eyes of Medusa. In their baleful lustre he had read the abrupt limit to his own imperious will, he beheld as through a mirage the prefiguration of his own doom. Even as he had conquered others by the fearlessness of his own quality, he had himself been conquered by the fearlessness of hers. He was no common advocate, but this was no common harlot. Prayer and devotion alone could have saved him from toils such as these; but of prayer and devotion he no longer commanded the use. There was a fissure in his armor; and through that aperture, small as it was, the deadly, unnamable thing that had crawled into his room had been able to plant its look.

“I am trying to think,” said his visitor, as she reclined in the chair with her elbows outspread and her hands clasped behind her hair, which was profuse and ordered with rare precision, “I am trying to think what it is about you that has caused me to love you. I do not think it can be your voice altogether, for although when it chooses it can sound so low and delicious, it can also sound harsh and rude. No, my noble warrior, I think there is a deeper cause. Is it not that our natures are alike? Are they not so similar? We are not of the common herd. We can think, we can feel, we have a little knowledge, and do we not possess enormous powers of resentment? Life

has not been very gentle with you and me, but we will not complain about it much. Can we not quietly choose our own weapons and go our own way to work in order that we may avenge ourselves? It is for your strength and spirit that I love you. Give me a kiss.”

Northcote obeyed.

She caressed his hands with an extreme tenderness.

“How strong, square, massive, and beautifully ugly they are!” she exclaimed. “I am sure you could fell a bullock if you doubled your fist. I love you even for these. I would rather be strangled by strong hands than I would be fondled by weak ones. If you cared to drive your fist into the world, you could knock a hole in it and let out a few of its wrongs. How tall and young and splendid you look. And strength means bravery.”

Her words, the careless complacency which accompanied them, the ease of her posture with her head thrown far back in the chair and her eyes directed steadfastly to Northcote’s face, filled him with a cruel sensation of pleasure. Knowledge translated into the grace of physical perfection had an all-conquering attraction for his nature. Every blemish upon her, and as she lay back in the shadow of the lamp they appeared surprisingly few, were additions to her value. They were so many receipted acknowledgments of the heavy sums she had paid for what she possessed. There was a short but deep scar over one eye. There was a suggestion of coarseness in her jaw; her bust looked a little too full.

“What shall I call you?” said the young advocate with shining eyes. “Shall I call you Diomeda?”

“Do, my beloved Achilles!”

“How do you come to have heard about him? Is it that Greek is compulsory in the University of the Gutter?”

“Achilles was perfectly familiar to me before I attended it. My dear father used to tell us stories from Homer when he was drunk.”

“Well, Diomeda, I have come to believe that your father must have been a very remarkable man.”

“The world will arrive at a similar belief two hundred years hence. But how can you have acquired such an important piece of information concerning

him when you have never seen one of his works?”

“Do not forget that for the past hour I have been gazing upon his *chef-d’œuvre*, the masterpiece among his masterpieces.”

“On the contrary, my beloved, you are judging him by his one great failure. In conception, in design, I have no peer in this time of ours, but the inspiration of the artist failed suddenly and lamentably before he could touch me with the magic that would have rendered me immortal. I am a splendid thing, my beloved, but I shall perish. Therefore the artist has failed.”

“This is a masculine intellect of yours,” said Northcote, who was captivated by the celerity with which she had interpreted an idea that in his own mind had still the nebulosity of recent birth. “Is it usual to your sex to have such powers?”

“You will confess that you would not say so? Are they not eternally dunces and fools in the austere eyes of the male?”

“Perhaps I make that confession if you insist upon the measure of my ignorance.”

“Say rather, my hero, the measure of your inexperience. You see you have only studied those of my sex who are affiliated to the Great Trades’ Union. They take eternal vows of foolishness and duncishness before they are admitted to membership of that sanctified order. But with us black-legs it is different. We are allowed to know everything. You may not know that in our University of the Gutter we have the most learned staff of professors in the world. There is a chair for everything.”

“Except for honesty. If there was a chair for that, would there not at once be an end to your intellectual subtlety?”

“You do not know the great university to which I have the honor to belong if you think intellectual dishonesty is tolerated among us. The moment we become intellectually dishonest we have done forever with Alma Mater. She sends us down immediately, and there is nothing for us then but the river or the Great Trades’ Union.”

“That is what the world would call being ‘sent up.’ Yet if the simplest terms were not subject to totally different meanings in the varying strata of our

society, we should not have so many of these pretty paradoxes to subsist upon. But I feel, Diomeda, that I am entitled to ask you one question. Was it in my capacity as a mentally dishonest person that you came to me to-night to ask me to arrange for you to be 'sent down' from your university?"

"Answer that question to your own liking, beloved one. It was your appeal on my behalf that brought me here to-night. Would you have me ask whether you were mentally honest when you made it?"

Her laugh had an edge that cut him like a keen blade. But she was quick to read the sharp thrill of pain that made his eyes grow dark.

"Do not repine, my beloved Achilles," she said with a softness that had the power to caress, "I found you after all to be as honest as I am myself."

"At least," said the young man, sensible that even her lightest caresses possessed the ferocity of those of the snake and the tiger, "you are the first of your sex with whom I have conversed who appears to understand the uses of paradox."

"There is no other means by which the honest mind can carry on its thinking."

"If that is the case, you conduct the thinker to his doom with atrocious certainty. You conduct him to the gutter."

"That is true, O Achilles," said the woman with a quiet laugh.

"In other words," pursued Northcote, "he demonstrates in his own person the impossibility of a reconciliation in any terms whatever between the ideal world of the spirit and the material world of the flesh."

"Why trouble to put it into so many words, dear lad? Briefly, I am the child of the poor drunken man of genius, my father; and I suspect that you had a poor drunken man of genius for your father also."

"I would have you to know that my father was ordained a clergyman of the Church of England."

"How old was he when he died?"

"About thirty."

“Did it never occur to you that the poor fellow killed himself in the struggle to become an honest man?”

“These eyes of yours are dreadfully piercing. I remember my mother saying of him that the clock of his intellect was always set a little too fast.”

“She never informed you by any chance, dear lad, that if he had not taken an overdose of opium he would have died a lunatic?”

“Or that he killed himself with drinking brandy after the manner of your own illustrious parent. By the way, you have yet to give me a description of your mother. Can you recall her?”

“She died, worn out, I believe, by slavery when I was about four years old. She reminded me of a cow; her eyes were so placid and her movements were so slow. But she had been affiliated to the Trades’ Union from her earliest days. I believe she was a life member with her policy or whatever they call it—I have no first-hand knowledge—fully paid up. She was buried in consecrated ground in Kensal Green cemetery with wreaths on her coffin in consequence. Non-members of the Union are mostly buried in a prison or in the Thames. And now about your mother, the clergyman’s widow? She, I presume, would be a vice-president of the Union, or on its committee, or one of its trustees, or she might even aspire to be one of its honorary secretaries? Her social rank would render it necessary.”

“Yes, dear old woman,” said Northcote softly. “She is on the committee right enough. As you say, her social rank has rendered it necessary.”

XXXVI

THE HONORABLE SECRETARY

ON the following morning Northcote was late for breakfast. When the old charwoman shook his curtains at a quarter to eight, a sleepy voice murmured: "I may be a bit late. I will cook the bacon myself and make the tea. Lay a knife and fork for two and don't stay."

It was between ten and eleven o'clock by the time he had completed his toilet. And it befell that at that hour the kettle was singing on the fire, and he himself was kneeling before it, toasting pieces of bacon upon a fork, when there came a knock on the door of his room.

"Come in," he called cheerfully.

He expected to see an attorney's clerk with further business for his attention.

Instead, two persons entered whose appearance caused him to drop the fork and the bacon among the ashes.

A moment ensued in which he had to fight with all his resolution to regain his self-possession. The first to enter the room was his mother, and immediately behind her was the young girl whom he was under a pledge to marry.

Mrs. Northcote was a tall, strong woman, past fifty, with assured movements and a resolute-looking face. It was large and rather square. Her cheeks were red with country life; her hair had streaks of white in it; her eyes were bluish gray. Her clothes, severe in outline, fitted close to her broad and powerful frame. They helped to sustain a somewhat rural appearance, which was not altogether unprepossessing and had a sort of education in it. Her speech was decisive, while the voice was somewhat harsh, and left an impression that it would be easy for it to domineer.

The young girl who accompanied her was not moulded in these Amazonian lines. She was straight and slender, only a little above the medium height, neat of hand, delicate of foot. Her complexion could only have been

produced by generations of country air. It was perfectly clear, and of an exquisite tawny pinkish whiteness. Her eyes were large, soft, and long-lashed, and although as clear and bright as a pair of crystals, as meaningless as those of a dumb animal. Her simple straw hat and thick gray coat and skirt were in themselves innocent of coquetry, but their inhabitant was in her kind a sweetly beautiful thing—half-child and half-woman—therefore these articles, rough and primitive as they were, had significance in every crease and fold.

The moment Northcote had managed to strangle the first pangs of his stupefaction, he rose from his knees and ran forward to greet them. He kissed his mother on both cheeks, and seized both of the young girl's hands in his own.

"I could not believe my own eyes," were the first words he spoke to his mother. "You should have given me warning that you were coming up to London, my dearest. It is the merest chance you have caught me at home."

"It was not until last evening that we decided to come," said Mrs. Northcote. "Margaret had happened to see the advertisement of an excursion, only eight shillings here and back."

"Why not telegraph, my dear?" Northcote expostulated gently. "I would then have met you at St. Pancras."

"It would have cost sixpence," said his mother. "Besides it was too late last night."

"Always the woman of action," said her son, with a hollow laugh. "Always an arbitrary and drastic old woman in the execution of her ideas."

Northcote kissed his mother again with the pride and affection which for the moment overlay this wound.

"I wonder," said she, with an air of one who has come upon something profound, "why men have such a dislike to being taken by surprise. Your father was the same, Henry. He could not bear to be taken by surprise in anything. And I think you are wonderfully like your father in some things."

"What is your opinion of this room of mine?" said her son abruptly.

"I don't think I like it," she said decisively, after making a catalogue of everything with an immensely critical glance. "It has a dismal look. And a

hole in the roof, I declare! You must have it mended at once; it might help you to catch a cold. And you are right up at the top just under the tiles; I should think you must get frozen in winter. And it must be extremely draughty with those cracks in the door. And, my dear boy, I must say it looks very bare and untidy with not even a piece of carpet to the floor. I have meant for years to come and see you; and when I received that money you so kindly sent me, I thought now or never is the time. How I wish I could have come before, to have made you a little more comfortable!"

"How I wish you could, old woman!" said Northcote gently, taking both her hands.

"I think this room is rather sweet myself," said the girl, who also had been examining it very critically. "Somehow every room looks sweet with a nice fire and a lot of books."

"That unnecessarily large grate takes all the heat up the chimney," said Mrs. Northcote, "and moreover is very wasteful of the coal. And what have you got behind the curtain, Henry?"

"That is where I sleep."

"Well, that is sensible, my boy; a saving of money."

"What a large room this must be altogether!" said the girl, with a sudden growth of her curiosity.

"I can see neither of you will rest until you have penetrated into the heart of all my mysteries," said Northcote, laughing loudly, as he interposed himself between the entrance to his chamber and his mother, who, full of inquiry, was plucking at the curtain.

"Why, Henry," cried the girl, with a thrill of consternation in her voice, "you have not had your breakfast!"

"Why should I? This is not Chittingdon, you know. Eleven o'clock is the fashionable hour in town. It wants ten minutes yet."

"Bad habits," said Mrs. Northcote solemnly. "My dearest, eleven o'clock is wrong."

"When one is in Rome you must do like the Romans, you know."

“I have never agreed with that proverb,” said Mrs. Northcote. “I consider it weak. When in Rome one should make the Romans do as one does.”

“Imagine me knocking at the gates of Buckingham Palace at a quarter to seven.”

“I am quite sure, my dear boy, the royal family is addicted to good habits. I am quite sure you would not find the king having his breakfast at eleven o’clock.”

“Oh, this dear dogmatic old woman of mine,” said Northcote, tapping her cheek in tender remonstrance. “A fixed rule and a definite opinion for everything under the sun.”

“You must have fixed rules and definite opinions if you are to succeed, my dear boy. Those who have their doubts always end by failing miserably.”

“So they do, old woman, so they do!” cried Northcote fervently, in spite of being stabbed by consternation. Yet he never conversed with his mother on the most trivial topics without feeling that her simplicity rendered her invulnerable.

“I see your table is laid for two, Henry,” said the girl. “Are you expecting a friend?”

“If he comes, he comes,” said Northcote, with a clever assumption of carelessness, “and if he don’t he stops away. Do you understand, Miss Inquisitive? I generally have an extra knife and fork, you know, in case a friend should happen to drop in.”

“He will have a wretched breakfast this morning if he comes,” said the girl, taking off her gloves gaily, and fishing out the fork and the bacon from among the ashes. “I must say, Henry, whoever your friends may be, they cannot be very nice about their cookery.”

“Consecrated by the cook, don’t you see, Miss Impertinence. That bacon is toasted by mine own fair hands.”

“Really, my boy,” said his mother, “you have grown most Bohemian in your ways.”

She took off a pair of shabby and much-mended gloves with that air of resolution she imparted to her lightest action, and insisted on being allowed

to make the tea. She measured two spoonfuls of tea from the caddy with great care.

“I allow myself three spoonfuls now I live in London,” said her son.

“Three is extravagance, Henry, three is not necessary,” said his mother quietly. “One for each person and one for the pot is correct.”

“Suppose a friend turns up?”

“More can be made. I fear you have formed very bad habits in London.”

“We have a surprise for you, Henry,” said the girl gaily.

She left the room to fetch a basket she had left at the top of the stairs.

“Guess what we have brought for you,” she cried as she produced it.

“Butter and eggs.”

“How awfully clever that you should have guessed them at once,” she said, with her eagerness sinking into disappointment.

“I am afraid I never had any tact worth mentioning,” said Northcote. “It was very stupid of me to have guessed butter and eggs.”

“But we have brought you some holly as well,” said Margaret, a little mollified. “Christmas will soon be here.”

“I am so glad I was not clever enough to guess holly,” said Northcote.

The contents of the basket were unpacked and laid along the books on the writing-table. He had to submit, not without a passage of arms, to having an egg cooked for his immediate delectation. His mother also insisted on being allowed to toast him a slice of bread.

“You are spoiling me completely,” said Northcote, being forced at last into making a pretence of eating after his own half-hearted offers of hospitality had been uncompromisingly repelled.

By an effort of the will that seemed superhuman to himself he forced himself to swallow a few mouthfuls, yet as he did so he followed the smallest movements of his guests. One eye never left the curtain that ran across the room. Whenever one or the other of his too curious visitors was seen to approach it incautiously he made ready to spring to his feet.

The only alleviation to the bareness of the walls was several photographic groups of football-players, over which velvet caps decorated with tassels were suspended.

“See that group in the middle?” said Northcote. “Look at it well. That is the finest pack that ever turned out for England. We walloped Wales twenty-nine points to three. Pushed ’em all over the shop. Notice that little chap sitting between my legs. He was a half if you like. Cunning as a trout and quicker than a hare.”

“I think, my dear boy, this is perfectly uninteresting,” said his mother, fixing her spectacles and examining the photograph sternly. “This is a stupid pursuit, not only a waste of time, but also a waste of money. It has been the ruin of many young men. One of these days it might even prove to be the ruin of England.”

“All work and no play, my dear,” said her son, “makes Jack a dull boy, you know. Personally I would suggest that a game like football is a rare training for the character.”

“I think football is a fine and manly game, Henry,” said the girl, with a little air of defiance. “I shall never forget seeing you come home with your twisted knee.”

“The doctor’s bill was thirty pounds,” said Mrs. Northcote simply.

These words, spoken in a manner that was almost childlike, came upon Northcote with the force of a blow. He was perfectly accustomed to his mother’s voice and manner, that voice and manner which were so direct and so unqualified. But for the first time they had driven a deep flush of shame to his cheek. This dauntless unimaginative creature, who measured spoonfuls of tea, who counted pennies, whose staff of life was hard facts, what had she not performed at the call of her religion? What lions had she not removed from the path of this one ewe lamb of hers, in order that one day he should win his way to the kingdom she had designed for him? Night and day, year after year, had she labored with this object in view. He was her only son, and material greatness was to be his destiny. He recalled the unflinching figure of this woman tramping over the moors in the depth of winter, through rain and wind, through frost and snow, to earn a pittance by her tutelage; he recalled the resolution with which she performed the

meanest household duties in order that money might be saved; he recalled her sitting beneath the insufficient light of a lamp through the midnight hours, transcribing, for the sake of a few miserable sovereigns, foreign masterpieces out of their native French, German, and Italian into trite, colorless, and rather wearisome English prose. All in an instant Northcote seemed to be fascinated, overcome, by the sudden revelation of the pathetic beauty of the commonplace.

“I won’t have you think I have become idle and extravagant,” he said, rising from the table and placing both his hands on her shoulders. “You see I have had to fight my battle, and a long, a stern, a lonely one it has been. What was I in the midst of six millions of fighters, most of them as sturdy, as fierce, and, in many cases, far better equipped than I was myself? But I must tell you, my dear, I believe I have conquered at last. I think I have got the turn of the tide. If health and strength remain to me, and never in my life have I been physically more robust than I am at present, I am about to make an income at the bar which, to frugal people like you and me, mammy, will seem fabulous wealth. For I ought to tell you I won my first big case the day before yesterday, and I think I am entitled to say I made an impression.”

“I know that you saved that poor woman, my dearest boy,” said his mother, with a tenderness that was almost grim.

“Tell me, by what means did you learn that?”

“I walked over to the Hall and borrowed the *Age* of Sir John.”

“The *Age*!” said her son, in a tone that had a thrill of horror in it. “Why walk all that distance to the Hall to get a look at the *Age* when Parson Nugent would have been only too pleased to lend you his *Banner*?”

“The reason is this, my dear boy,” said his mother impressively. “All my life I have been accustomed to look upon the *Age* as the first English newspaper.”

“I expect you are right, you dear old Amazon,” said her son, strangling a groan.

“No, Henry, I am not right. I am prepared to believe there was a time when the *Age* was the first English newspaper, but in my opinion it is so no longer. I shall never place my trust in the *Age* again.”

“A heavy blow for Printing Press Square,” said Northcote, laughing to restrain his tears.

“I consider that leading article it had about the trial, and the terms in which it referred to you, my boy, to be a disgrace to English journalism. In fact, I wrote to the editor to say so.”

“What did you find to say to the editor?” asked Northcote feebly.

“I said it was contemptible that a newspaper of such a widespread influence as the *Age* should lend itself to a faction whose aim was to suppress young men of talent.”

“And what had the editor to say to that?”

“Very wisely he did not reply. Perhaps I was somewhat severe in my letter, but I felt very strongly upon the point and I do not regret that I expressed myself at length.”

“In the name of wonder, what else did you say to the editor?”

“I said this faction of which I complained had been very mischievous in its influence in this country, but in the end it had always failed in its object, as in the end, Henry, everything that is merely negative and destructive and retardatory must fail. I cited the cases of Benjamin Disraeli and the poet Keats.”

“I suppose,” said Northcote, with a dull sense of agony overspreading his veins, “it could not occur to you, old woman, that by any possibility the *Age* was justified in the course it took?”

“It could not, Henry,” said his mother.

Her air of finality bewildered him. Yet involuntarily he raised his eyes to her face, and, for the first time in his life as he looked at it, he was able to penetrate through its heroic commonness. The features were harsh and aggressive and scarcely lit by the mind, but the rigidity of such a nature in the teeth of public opinion had appeared to shed over them a little of the bloom that proceeds from the elevation of the intellect. It was a kind of apotheosis of the power of faith. Her eyes were deep blue, strangely unfearing and clear, wide-lidded, steady in their gaze. It was little enough that they had the capacity to see, but whatever they lacked in range derived compensation from mere force of vision. They were inaccessible to the

changes which are wrought by influences from without. Whatever they had looked on once could never be modified by external causes.

Northcote carried the toil-stained hand to his lips with a reverence that was more profound than any he had ever felt for it before.

“Every man needs to have known one truly good woman,” he said, strengthening his grasp of the roughened fingers, “before he can even begin his own education.”

It darkened his eyes to see the muscles of the harsh face relax as they yielded to the slight softness of an infrequent emotion.

“Your father was constantly making speeches like these,” she said, with that simplicity which was so formidable. “I was never able to understand them.”

XXXVII

INDELIBLE EVIDENCE

FOR some time Northcote stood holding her hand and looking down into her eyes. A sense of deep wonder was percolating slowly to every part of his being. What a haven was here to embrace when the frail bark of his nature had been flung, like the cockle-shell that it was, upon the crest of tempestuous and multitudinous seas. How blind and undeveloped he had been not to have understood this before! From what ignominy could this anchorage have saved him! It would not have been necessary to founder upon the shoals had he been aware of this harbor that would have been so willing to embrace him. He was already broken into pieces; and those tears which appeared to suffuse his eyes with such facility and to suffuse hers with such a painful reluctance were falling from him.

“You must ignore that unmannerly attack in the *Age*,” she said in a stern voice which yet was full of redress. “The enemies of the friendless have no kingdom into which they can enter. A few years hence, when you are a rich and honored man, you will forgive them for having once stabbed you.”

The silence which followed her words was broken by the hard and intense breathing of the figure that clasped her.

“There is one thing I shall ask of you,” said Northcote at last. “I shall ask you to give me the pledge from your own lips that you will always believe in me as completely as you do at this moment, whatever doubts, charges, or suspicion the future hurls against me.”

“It is not necessary for me to give this assurance, but, since you demand it, I give it.”

“It is part of my weakness to demand it,” said her son, “although none is so well aware as am I that there is no need to give expression to your faith.”

“As you say, there is no need. But I remember your father saying to me shortly before that illness which was fatal to him, the greater the gifts the greater the lenity to be meted out to their unhappy possessors. On that

account I have always treated you with more indulgence than otherwise I should have done.”

“Had you been more Spartan you might have strangled the genie at its birth.”

“I might.”

“And yet made of its possessor a more upright and God-fearing citizen.”

“That is impossible.”

“You never could conceive of his being other than you see him now?”

“I could not.”

“Even if the indelible evidence were laid before you?”

“Evidence is never indelible to us. So-called facts have no worth in our eyes. We believe or we do not believe. Nothing changes our emotions; they are what we understand by religion.”

“You speak for wise and great women.”

“I speak for the humblest of wives and mothers who cannot accept credit for blind obedience to an instinct which alone gives her life.”

“I begin to understand why even the most imperious natures, which are as ruthless as volcanoes in action, cannot live without your aid. It is not that you enslave and fetter them; your function is to cleanse, renew, rehabilitate.”

As Northcote spoke a feeling of profound joy overspread the humiliation whose penalties had been far more grievous to him than those of despair. Hardly had he tasted it, however, than the nightmare at the back of his thoughts assumed a visible shape. Of a sudden there came a sharp screech from the curtain. Margaret, who throughout the conversation with his mother had been engaged in fixing pieces of holly over the photographs on the wall, was still employed in this decoration. It was not she who was responsible for the sudden shrieking of the brass rings along the curtain pole.

With a single comprehensive movement the curtain had been flung back and the bed revealed. Seated upon it, half-dressed, with her hair hanging

loose, and her bare arms exposed by her chemise, was his visitor of the previous night. Half a dozen hairpins were stuck in a row in her mouth. In the cold grayness of the December morning, which seemed to envelop her malignity in a bald realism, her features appeared blunt, pale, and hideous. The almost incredibly bitter and mocking glance was not directed upon the man, but upon the elderly, unprepossessing, and countrified figure in the shabby clothes and antique hat whom he was holding by the hand.

Northcote let the hand fall, and recoiled from his mother with a gasp of fear mixed with passion.

The young girl, whom life had done nothing to enlighten, stood in dumb amazement upon the chair on which she was poised.

There was a moment in which the older woman quivered with terror. The brutal eyes of the prostitute, fixed upon her face with a blunt contempt, seemed to change her into stone. Observing her to be petrified like a bird in the presence of a serpent, the woman seated upon the bed picked the row of hairpins from between her teeth with the circumspection of an actress who, upon the stage, is notorious for her power, and who, having a stupendous scene to enact, prepares her audience for it by a display of quietude. She proceeded to coil up her hair with a deliberation that had value as drama.

“Vice-president of the Great Trades’ Union,” she said, removing the last hairpin from her mouth.

The elder woman stood looking helplessly away. Those indomitable eyes were cowed for the first time in their history. For the first time they had come upon something upon which they had no opinion to deliver. She had barely the strength to carry her gaze to her son, who stood ten paces from her as pale and rigid as a statue.

“Better go—better take Peggy,” he whispered in a voice that she did not know to be his.

Margaret, still holding the holly, had come down from the chair, and like a child had come to stand at the side of her natural protectress. She was visibly afraid; and she had clutched the holly so tightly that blood was trickling from the wounds in her soft fingers.

The spectacle of her childishness restored to the elder woman that capacity for action which she was never without.

“Get your coat and gloves, child,” she said in her harsh tones. “Where’s the basket?”

She herself took up the basket, and, without venturing to look at her son or her who sat upon the bed, neither of whom had changed their postures nor spoken again, she led the way out with resolute steps to the top of the stairs. The young girl followed in her wake with a timid obedience, pulling on her cotton gloves over her bleeding fingers as she went.

At the head of the stairs this new resolution of the elder woman’s appeared to fail her.

“Go down, child; take the basket. I will follow you in a minute,” she said, handing the basket to the girl.

She turned suddenly and went back into the room. Her son was still standing in the attitude in which she had left him. There was a curious glare in his eyes. Advancing to him she placed her hands on his shoulders, pressed her lips against his forehead, and then, in a kind of headlong flight, darted away like a rabbit out of the room and down the stairs.

XXXVIII

CLEANSING FIRE

THIS irrational proceeding served to liberate Northcote from his thrall. Even as he felt his mother's lips and witnessed her ridiculous flight, he was able to divine the nature of the impulse. It was the expression of that unconquerable instinct by which her sex affirms itself.

He walked to the window which commanded a view of the pavements below. He watched the two figures mingle in all their rustic quaintness with the heterogeneous streams of persons and traffic which defiled before his gaze. It followed their every deviation among this ruthless swarm of Londoners until they were swallowed by the mist of the December morning. The last detail he was able to discern, which served to emphasize their slightly ridiculous character as seen from this altitude, was the large empty basket bobbing about in the hand of the girl. Their rusticity in combination with the wild hurry of their flight marked them out as almost grotesque among the spruce and purposeful crowd through which they made their way. With a pang he remembered that neither of them had ever seen the metropolis before. Whither were they flying? How would they spend their day? What would be the end of their ill-starred adventure?

He continued to strain his eyes after them until they grew dark with the effort. He then left the window and turned round to find that his visitor was standing in front of the fire. She was yawning.

"A facer for the old Methodist," she said, with a short, nonchalant laugh.

Northcote clenched his hands. An almost ungovernable fury caused his ears to sing.

"I know what is in your mind," said the woman calmly. "Get it done."

"I hope you will go," said Northcote in a low tone.

"Get it done," said the woman. "Tear my head from my body and I shall respect you."

Northcote was barely able to point to the door. The woman looked at him with supreme effrontery. She was utterly divested of fear. Her nostrils seemed to be dilated in scorn, and her dark eyes were full of mockery.

“I never saw anything half so funny,” she said, “as the worthy old widow of the clergyman running back shamefaced to kiss her saint and hero. The three of you made a picture for an almanac, as my dear father would have said. You reminded me of nothing so much as a stuck pig. The dear old hymnologist and psalm-singer, who had spoken such brave nonsense, looked just like a poor silly old cow with a red face; and that stupid little baby-face sticking up the holly, well, she was just like one of those silly dolls with wax cheeks, which has a button which you press and it changes its color.”

Northcote was faint already with the dreadful struggle he was waging. Suddenly, as if touched by inspiration, he turned in the direction of the door. Yet the woman was too quick for him. She leaped before him and barred his course.

“I am asking you to pluck my throat out with your great hands,” she cried with fury. “Don’t you understand, you fool? Don’t you understand, I say? I cannot, I will not go back to the gutter; yet I cannot go anywhere else. Why don’t you do as you are told?”

“Do go!” he cried weakly, piteously. The veins were swelling in his neck.

He strove to thrust her aside, but she resisted him; and when he tried again she fixed her strong teeth in his hand ferociously.

“Do it now!” she cried, watching his eyes with the baleful hunger of a she-wolf.

“You are not worth it,” said Northcote, recovering possession of himself.

She spat in his face.

Northcote began to realize that he had to deal with a mad woman.

She plucked a knife from the table. By this time, however, the man had all his wits about him, and the movement was anticipated. He had seized her before she could make use of it.

He knew immediately that he had entered upon a terrible struggle. He possessed immense physical power, but the creature upon whom he had to exercise it was extremely supple and vigorous, and, above all, was now a maniac. She fought with the fury of a lioness. Her unbridled rage seemed to make her more than a match for him. Screaming foul oaths, and resorting to devices that a wild beast would not have employed, the issue hung in the balance. Inch by inch, however, he obtained a stronger purchase on her body, and it writhed under his great hands like that of a huge snake. He grunted under the Titanic exertion of forcing her to the ground. He shifted his hands to her throat, and once he felt it yield to their gripe, his own pent-up fury broke forth in an uncontrollable manner. Hardly conscious of what he did, he shook her with the passion of a wounded bear. She gave a low moan, and a spray of blood came on to her lips.

It fell upon him with a shock of surprise that her struggles had ceased. She had fallen stiff under his hands. When he relaxed his grip she fell to the ground, measuring her length with dull heaviness like a sack of flour. In an instant a revolting idea stifled the dreadful frenzy of the demoniac. She was dead. Those enormous hands of his had pressed out her life without knowing it.

Overcome with horror, Northcote sank to his knees beside the body. It was stark, and already a little cold. He rolled the corpse over, so that its face was exposed; he felt for the beating of the heart. There was not a movement of any sort to enkindle his touch. The face was convulsed, tinged with purple, mottled with gray. The eyes were glazed, and even more hideous than when he looked into them last. In his anguish, he gave a little cry, and rose from his knees, and pressed his hands to his head.

His first thought was for himself. By this irrevocable act he was destroyed. His dreams had come to a brutally abrupt termination. That high destiny which was to shake the world had petered out in a shameful public ignominy.

In a pitiable state of terror he fell on his knees again. There was a sort of morbid reflex action within him that seemed to draw him back to the body, to force him to pass his hands across the corpse. It was now cold. A stinging fury made him writhe. Was it for this foul, uncanny monster that he must forfeit one of the most precious jewels that had ever been devised by

nature? He was a young man; life was before him; there was the magic talisman in his spirit that could bend the whole world to his purposes. He gnashed his teeth with impotent fury, and rose biting at his nails.

“This is a dreadful tragedy,” he muttered. “This is a dreadful tragedy. Think of such a one as myself being lost to mankind.”

His own grotesque words caused him to laugh. That surprising genie, that had been destined to conquer a stupidly material world, enabled him to present himself to himself in his amazing predicament. He could hardly preserve his gravity before a spectacle so astonishing.

“The genie is deriding me,” he said.

That mute and distorted face that was looking up at him with an insane leer had no message of its own. It was only significant to the advocate as the price of all that he was about to give up. Yet suddenly he remembered this strange creature he had broken with his hands as he had first encountered her in the prison. In no animate thing could the desire for life have been more intensely strong. Overmastering as was his own desire at this moment, hers, at that time, had been no less so. She must have life; she must see the sun and the clouds and the trees. The common earth had acquired fresh symbols for that debauched vision. And how nearly she had come to possess this strange new thing that she craved. One heaven-born man had all but given it to her. He had so nearly done so, that for one brief instant she had been able to taste it with those blood-stained lips. And when she had discovered that strong and shining as this one man was, his was not the divine valiance of those early mystics who roamed the hills in the childhood of the world, that he had not the simplicity to provide her with that which she craved, she insisted on receiving death at his hands in lieu of the life he could not give her.

It was then, that he took a little compassion. It was a loathsome and terrible destiny to which this human being had been called. By what subtle twist or abrogation of her noble faculties had she come to live her days on such lines as these. This avowed and ruthless enemy of society had been of no common or spurious clay. It was not a small nature that had taken a revenge so bitter. A little more and it had been how much? Another grain of courage, another ounce of power, and she, too, poor maimed and twisted thing of beauty, would have been numbered among the valiant.

It added a sharp touch to her slayer's compassion, that, in regarding her mutilated image, she became the mirror of his own. He saw the parallel between the living and the dead. Every point in this analogy was so perfect that a mental fascination lurked in its rendering. Did the texture of his own fate admit of any more lenient inquiry? He also would have entered his kingdom had he but possessed the little more that meant so much. Were they not both in the beginning the victims of a fine and original talent, for she whom he had slain had been the offspring of a man of the first genius. Her thoughts were his thoughts; her desires were his desires; the tragedy of each had been that their fineness had been immolated upon the altar of its base surroundings; both had failed to scale those precipitous mountain-places from which alone it was possible to stand in true perspective to their own characters.

As he pressed home this analogy with that curious grim subtlety that was always one of his chief pleasures to employ, he began to feel in his own veins that intense desire of hers to live the life that nature had appointed, to discover an ampler, a truer self-expression. How was it possible to arrest those functions that had not had an opportunity to fulfil themselves? There was a ravishing vigor in his blood; he must not perish as a felon, he to whom all things were so full of meaning.

The overwhelming force of these thoughts translated them into action. It had already come to him that to obey his overmastering desire he must conceal his deed. He raised the heavy corpse in his arms; yet powerful as he was it proved too much for him to bear. Therefore he dragged it across the room, and with herculean labor contrived to hoist it on to the bed. He then drew the curtain across to hide it from the view of those who should chance to enter the room. Afterwards he proceeded to ponder the evolution of a means to ensure his own personal security.

He was still engrossed with this occupation when the old charwoman entered his room. She had brought him some clean linen. It was contained in a basket which it was her custom to deposit on a chair behind the curtain at the foot of his bed.

"You can leave it here, Mrs. Brown," said Northcote, indicating with his finger a place on the floor.

“I had better take it out of the way, sir,” said the old woman. “Besides, I have not made the bed.”

“Never mind the bed,” said Northcote; “that won’t matter at all.”

“Oh, no, sir, it would never do for you not to have your bed made,” said the old woman, in a tone of quiet but determined expostulation.

“I tell you I don’t want it made,” said Northcote. “You can go.”

The tone of his voice seemed to strike the old woman. Formerly he had always been kind and gentle to her; he had never used such a tone to her before.

“Very well, sir,” she said meekly, looking at him with scared eyes.

Still, however, with a perversity which in the circumstances he could only regard as diabolical, she did not go. For suddenly she recollected that the day before she had lost her shawl, and it occurred to her now that it was not at all unlikely that she had left it beneath the bed. It was not in the least probable that she would find it there, but one of those irrational side-currents to mental activity, which science finds so baffling, had suggested to her that she might.

“What do you want now?” cried Northcote, as she moved towards the curtain.

“I want my shawl, sir.”

Her meekness exasperated him beyond endurance.

“Where is your shawl?”

“I think, sir, it might be under the bed.”

Her hand was already stretched towards the curtain. Northcote was standing against his writing-table, and near his elbow was the leaden paper-weight which he used for the destruction of rats. He took it in his hand and poised it in a fashion that would enable him to hurl it with all his force at the back of the old woman’s head.

For some occult reason she withdrew her hand from the curtain, and retired without pulling it back.

“Of course I remember now,” she said. “I lent my shawl to Mary Parker while the snow was about. I have such a bad memory,” she added plaintively.

“There is one little errand I should like you to do for me,” said Northcote, looking at her calmly. “Do you mind fetching me a gallon of paraffin? You can get it at an oilman’s or an ironmonger’s. I am going to try a new kind of fire.”

He handed her half a crown.

“Very good, sir,” said the old woman.

As he listened to her descending the stairs with little toddling steps, he balanced the paper-weight thoughtfully in the palm of his hand.

“Those five grandchildren will never come much nearer to the workhouse, you perverse old woman,” he said with a whimsical laugh.

He had already formed his plan, and like all subtle minds which yearn for a finality which they so seldom obtain, the definiteness of its nature enhanced his capacity for action. He discarded his carpet slippers in favor of boots, and set his hat, gloves, and overcoat in a place where he could take them up immediately. He placed the briefs confided to him by the solicitor carefully in his pocket. There were no other portable objects of value belonging to him except a quantity of large and loose manuscript sheets, numbering some two thousand pages, the “Note towards an Essay on Optimism,” that fruit of six years’ labor. These he collected from divers drawers in the writing-table, and piled them into one upstanding heap.

He stood surveying this proud edifice with a rueful smile when the old woman returned at last, bearing a gallon of paraffin contained in a tin.

“Thank you,” he said, taking it from her. “You may keep the change. If I spoke to you rather roughly just now, I hope you will not mind it. The fact is, I have a great deal of work to get through, and it has made me rather irritable.”

The old charwoman, immensely mollified by the tone in which she was now addressed, thanked him humbly, and after standing a moment irresolutely, in which she further considered the question of how far it would be now expedient to attempt the making of the bed, a daily duty

which with all her soul she yearned to perform, decided it would not be politic to reopen the subject. Therefore she retired crestfallen, because she had failed to carry out a régime which was the foremost function of her life; yet a little exalted also by the apology which had been so feelingly rendered to her by one who wore a nimbus; and above all, tremulous with excitement by reason of having ninepence in her pocket which was pure gain, a solid lump of treasure-trove.

As soon as she had gone, Northcote “sported his oak” and locked the door. It was indeed necessary that he should not be disturbed in his labors; and he took elaborate precautions to render them effectual. First he broke up all the chairs he possessed, and strewed the fragments over the corpse. He pulled down the curtains, and flung them upon the pyre. He gathered several armfuls of books of jurisprudence and philosophy, dilapidated articles which had been purchased second-hand, tore them in pieces, and strewed them about. He pulled a wooden box from under the bed, flung out the contents, consisting of old clothes, and having broken up the box into splinters, heaped those up also. Finally, he gathered in his arms that formidable bundle, the “Note towards an Essay on Optimism,” and sprinkled its two thousand leaves upon the sacrifice.

By pressing into service every combustible article the room contained, the pile that he built mounted up to the roof. Having arranged the great mass to his satisfaction, he poured the paraffin over it. He then kindled one of the splinters of the chair into a fagot, and applied the lighted end to one of the saturated blankets of the bed. He then ran to the door, catching up his hat and coat as he did so, and unlocked it. Barely had he time to do this ere the whole of the pyre, under the excitation of the oil, had burst into a sheet of flame. He changed the key, and locked the door after him.

Putting on his hat and coat and gloves he walked down the four flights of stairs, past various open doors with clerks behind them, yet in so doing betrayed neither sign of haste nor discomposure. At the bottom of the last flight he was accosted by an elderly lame man, who bore unmistakable traces of being the clerk of an attorney.

“Can you tell me if Mr. Northcote’s chambers are on the top floor, sir?” he asked courteously.

“My name is Northcote. Can I be of service to you?”

The clerk opened a small bag that he carried, and selecting an oblong piece of paper from among half a dozen similar documents lying within it, handed it to the advocate.

“Messrs. Peberdy, Ward, and Peberdy, No. 3 Shortt’s Yard, sir,” he said.

“Thanks,” said Northcote, placing it in the inner pocket of his overcoat.

At that moment a clerk from one of the upper stories came running down the stairs.

“The place is on fire,” he cried. “The top landing is so full of smoke you can’t go up to it.”

“I thought there was a smell of burning,” said Northcote. “I say, it must be my room!”

“If you are Mr. Northcote, it is certainly your room.”

The advocate turned round hastily, and proceeded to ascend the steep and rickety old stairs. He was turned back, however, as he had anticipated, by other clerks who were running down.

“The place is on fire,” they cried excitedly. “The smoke will choke you.”

XXXIX

WITHOUT FEAR AND WITHOUT STAIN

NORTHCOTE made no further show of resistance to the inevitable, but accompanied the excited clerks into Fleet Street. The window of his room abutting on to it had already attracted the notice of the crowd that thronged its pavements. By the time he had crossed to the other side of the road and had taken up his stand with the knot of spectators that was rapidly assembling at the end of a bystreet, the smoke had increased considerably in volume.

“Not much doubt about there being a fire,” was the verdict of those around him.

The bunch of witnesses in the side street increased every instant. Persons riding on the outsides of the omnibuses stood up to look. Policemen on point-duty came out of the press of the traffic to gaze with concern and inquiry at the smoke which now was belching forth in a black mass.

“Must ha’ begun in the chimbley,” said one of Northcote’s neighbors, a man without a collar. “That’s soot.”

“It’s Pearmain’s Hotel,” said another.

“No,” said a third, “it’s Shepherd’s Inn.”

“If it’s Shepherd’s Inn it will take it all,” said a fourth. “It has been condemned by the County Council for the past two years. It is so crazy it can hardly stand up in a gale.”

“It is rotten and rat-ridden from top to bottom. It must be five hundred years old.”

“Five ’undred me leg,” said the man without a collar. “It ain’t more than two.”

“Lord Bacon lived in it, anyway.”

“Wot if he did? I tell you it ain’t more than two.”

The controversialist spat on the pavement authoritatively, and those who surrounded him, who knew he was wrong, deferred to his opinion humbly.

“There’s the flame,” said a quiet man excitedly. “Why don’t they bring the engines?”

“They want it to get a firm ’old,” said the man without a collar, “so that they can put it out in style.”

“They will have something to go at when they do come,” said a nervous man, who wore spectacles. “There it goes through the roof. Look, look, see that!”

There could be no measure of uncertainty as to the power the fire had acquired already. Smoke and flame were pouring and leaping out of the windows and through the old red tiles into the dull December sky. A stern joy held Northcote as he gazed. Every instant of delay increased his chance. It needed a holocaust to ensure his safety. He derived that thrill of impersonal satisfaction which visits a good craftsman when a work is placed before him which has been adequately planned and executed.

“The engines ought to have been round from Fenchurch Street afore now,” said one, whose mustache bristled like that of a county councillor.

“Fenchurch Street, did yer sye?” said the man without a collar. “Lord love me, they’ll send ’em round from ’Olborn.”

“They are taking a lifetime about it,” said the nervous man in a voice of intense anxiety.

However, at that moment there sounded a curious rattle of warning; policemen came running up, and immediately afterwards came the first of the engines. The crowd was now dense and the traffic was impeded. In the next few moments it had been stopped altogether and diverted into side streets. By now a large posse of constables had appeared, and they succeeded in clearing a space in which the firemen could carry out their operations. Before the hose had been placed in position two other engines had arrived.

Northcote had managed to place himself in an admirable situation among the excited throng; and although those in front of him were somewhat roughly thrust back by the police, he was able to maintain his coign of

vantage. By the time the first spray of water had been flung upon the conflagration, it had not only burnt through his room into the story beneath, but also it had spread some twenty yards along the tiles.

“If it takes to burning down, it will be awkward,” said a voice near him.

“How it is spreading! They will find it difficult to keep it off the hotel.”

Northcote, in the midst of the frenzy of destruction that possessed him, now grew conscious that a hand had gripped his arm. He managed to turn his head sideways and discovered that his old schoolfellow, Hutton, was standing next to him.

“This crazy old hole has been waiting for this,” said Hutton. “It burns like tinder. If there are any poor devils who keep there, I pity them.”

“I’m one,” said Northcote quietly.

“Well, I call that really bad luck,” said his old schoolfellow fervently. “Upon my word, it will take the whole place.”

“Job’s comforter,” said Northcote.

“I say though, it is a blaze! By Jove, it has got into the hotel! It will take half Fleet Street if they don’t look out.”

“More engines,” said Northcote with satisfaction, as their hideous rattles pierced the air. “Well, they will all be wanted.”

“I say, though,” said his companion, with the growing excitement of his surroundings communicating itself to him, “this is going to be really awful. It has got down another story, and it is certainly in the hotel, and if they don’t look out it will be in the bank.”

Although half a dozen engines had arrived by this time and the supply of water was copious, the fire had spread on all sides with such alarming rapidity that the liquid sheets that were flung upon it seemed only to increase the virulence of the flames. The surrounding buildings were all more or less decrepit, while the old inn itself had not the slightest resistance to offer to the flames. The whole of its quadrangular roof, most of which lay behind, appeared, as far as the onlookers could discern, by now to be involved.

“There is something strange, fascinating, exhilarating,” said Northcote with a thrill of exaltation in his voice, “in witnessing a really great fire. The fire of London must have been the finest sight the world ever saw.”

“You don’t appear to mind very much about your rooms, I must say,” said his companion. “If I were looking on at the destruction of my goods and chattels and the roof that protects my head, I don’t think I should be able to raise much enthusiasm for the spectacle.”

“It will probably take half Fleet Street. What is my wretched little attic in comparison with that?”

“Somehow in the circumstances I don’t think I could play the philosopher myself.”

“It is all up with the hotel,” said Northcote. “It will be into a few of these newspaper offices before long. Conceive a holocaust that places the press of England in danger! Ha, ha, there goes the roof of my room!”

“Why, that is where the fire began! You don’t mean to say the fire began in your room?”

“Yes, that is where the fire began.”

“No! How did it begin? Were you in it when it started?”

“Yes, I was in it when it started.”

“No!”

“I started it myself.”

“Did you overturn a lamp? Or did it begin in the chimney?”

“Well, if you must know,” said Northcote, “you shall hear the true facts. A lady called upon me last evening, and very kindly stayed the night. But this morning when I wanted to turn her out she refused to go. And further, she showed temper and made herself distinctly objectionable. Therefore I lost patience with her, and being a man of my hands I twisted her neck. But when I had managed to do that—by Jove, it is into the bank! we shall soon be able to reckon the damage by a cool million and it has only just begun!—but when I had managed to twist her neck, the question arose how to get rid of her remains. You see to have her unvirtuous person found in my room would not help this career at the bar I am just about to begin. How could I

get rid of the body, that was the question? Now mark the really fertile mind of genius. Why not burn down the whole place? And that, you see, is exactly what I have done, although I will admit the idea is a plagiarism from that excellent old author, Charles Lamb. You remember his Chinaman who burnt down the house of his parents every time he wanted to eat roast pig?"

"Well, North, you have a pretty mind, I must say," said his companion to whom this recital, in the circumstances which attended it, had afforded keen amusement. "But you were always a bit of a lunatic at school. Now if you had tried to persuade me that you had insured your furniture, and that you had fired your place to keep out an execution, I might have tried to swallow it."

"That is mediocrity all over, my son," said Northcote, linking his arm through that of his companion. "It is always craving for hard facts. It cries aloud for hard facts; they are the staff of its life, its daily bread, but you have only to present hard facts to it in a somewhat unconventional form—my God, look at the bank!—in a somewhat unconventional form, and it flings them back in your face and asks you what you take it for."

"My dear old lunatic, what *are* you talking about?"

"Merely this. Your alternative of the insurance company and the furniture is ingenious but lacking in comprehensiveness. The insurance company would, after the fashion of insurance companies, have insisted on an investigation into the cause of the disaster; they might even have preferred a charge against me to save themselves a few wretched shillings; litigation would almost certainly have ensued—there goes the roof of the hotel!—and litigation which touches myself is the last thing I should be willing to risk."

"All this is very elaborate, North, but it is hardly convincing. Why are you so unwilling to risk litigation when your whole life—and a rather important one I expect—will be bound up in it?"

"The less my name is associated in the public mind with any shady transaction the better for my career."

"A point of honor, North. You always had the reputation at school of being rather nice about it."

"To be frank, it is a point of expedience, my son. Henceforward you will find the notorious 'Cad' Northcote without fear and without stain."

“Why?”

“Why! Because one of these days they will make him a judge.”

THE END.

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